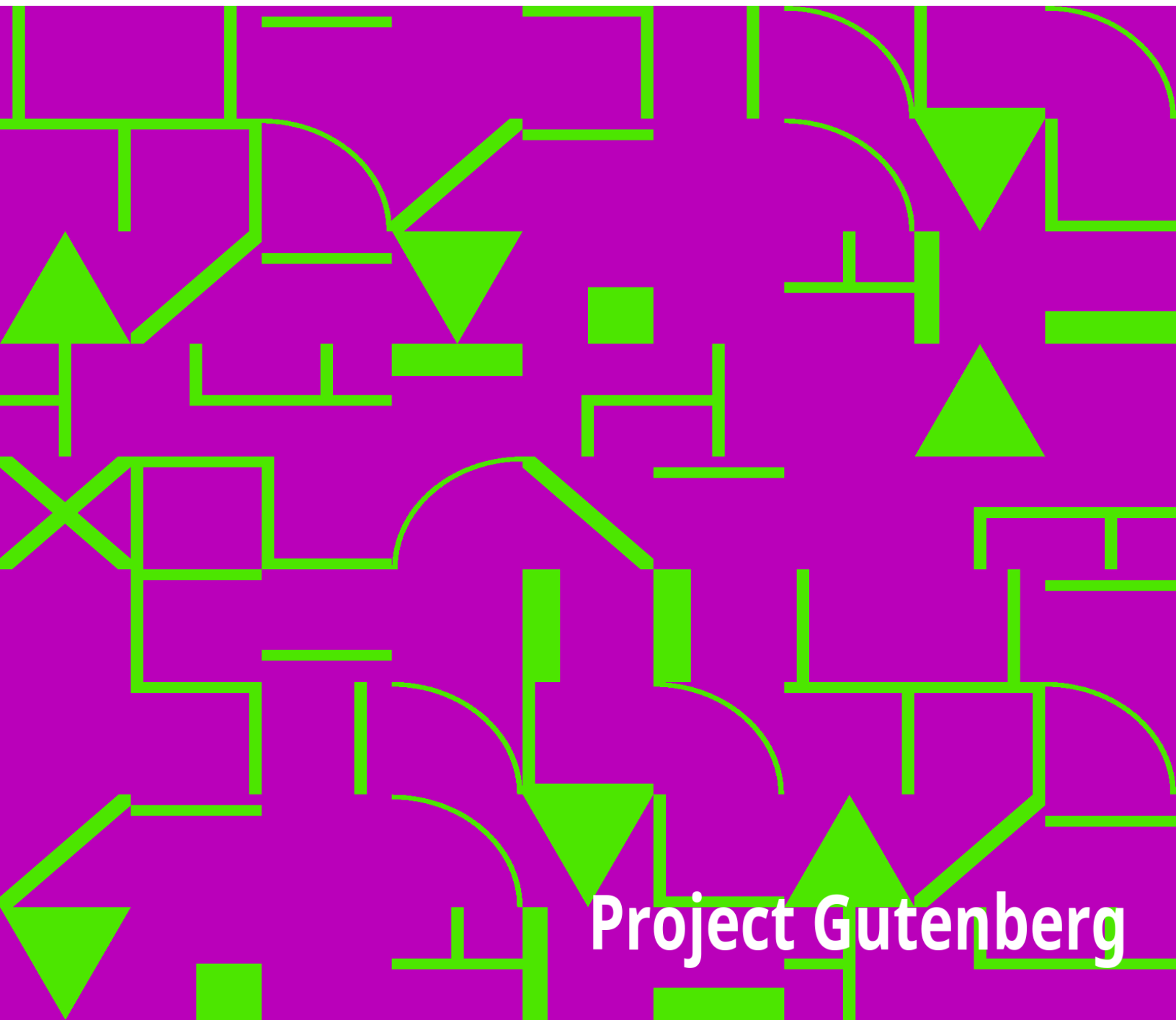


The Philippine Islands, 1493-1803 — Volume 02 of 55

Emma Helen Blair and James Alexander

An abstract geometric pattern consisting of various shapes like squares, triangles, and circles, some filled with solid colors (blue, green, yellow) and others outlined in black, set against a white background.

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**The Philippine Islands, 1493-1803 — Volume
02 of 55**

Emma Helen Blair and James Alexander

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PHILIPPINE ISLANDS, 1493-1803 — VOLUME 02 OF 55 ***

The Philippine Islands, 1493-1803

explorations by early navigators, descriptions of the islands and their peoples, their history and records of the catholic missions, as related in contemporaneous books and manuscripts, showing the political, economic, commercial and religious conditions of those islands from their earliest relations with European nations to the beginning of the nineteenth century

Volume II, 1521-1569

Edited and annotated by Emma Helen Blair and James Alexander Robertson with historical introduction and additional notes by Edward Gaylord Bourne.

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Portrait of Fray Andrés de Urdaneta; photographic reproduction from painting by Madrazo, in possession of the Colegio de Filipinas (Augustinian), Valladolid.

Signatures of Legazpi and other officials in the Philippines; photographic facsimile from original MS. of their letter of June 1, 1565, in the Archivo general de Indias, Seville.

The Santo Niño of Cebú (image of the child Jesus found there by Legazpi's soldiers in 1565); from a plate in possession of the Colegio de Filipinas, Valladolid.

Preface

The next attempt to reach the Spice Islands is made by García Jofre de Loaisa. A synopsis of contemporary documents is here presented: discussion as to the location of the India House of Trade; concessions offered by the Spanish government to persons who aid in equipping expeditions for the Moluccas; instructions to Loaisa and his subordinates for the conduct of their enterprise; accounts of their voyage, etc. Loaisa's fleet departs from Spain on July 24, 1525, and ten months later emerges from the Strait of Magellan. Three of his ships have been lost, and a fourth is compelled to seek necessary supplies at the nearest Spanish settlements on the west coast of South America; Loaisa has remaining but three vessels for the long and perilous trip across the Pacific. One of the lost ships finally succeeds in reaching Spain, but its captain, Rodrigo de Acuña, is detained in long and painful captivity at Pernambuco. The partial log of the flagship and an account of the disasters which befell the expedition are sent to the emperor (apparently from Tidore) by Hernando de la Torre, one of its few survivors, who asks that aid be sent them. Loaisa himself and nearly all his officers are dead—one of the captains being killed by his own men. At Tidore meet (June 30, 1528) the few Spaniards remaining alive (in all, twenty-five out of one hundred and forty-six) in the "Victoria" and in the ship of Saavedra, who has been sent by Cortés to search for the missing fleets which had set out from Spain for the Moluccas. Urdaneta's relation of

the Loaisa expedition goes over the same ground, but adds many interesting details.

Various documents (in synopsis) show the purpose for which Saavedra is despatched from Mexico, the instructions given to him, and letters which he is to carry to various persons. Among these epistles, that written by Hernando Cortés to the king of Cebú is given in full; he therein takes occasion to blame Magalhães for the conflict with hostile natives which resulted in the discoverer's death. He also asks the Cebuan ruler to liberate any Spaniards who may be in his power, and offers to ransom them, if that be required. Saavedra's own account of the voyage states that the time of his departure from New Spain was October, 1527. Arriving at the island of Visaya, he finds three Spaniards who tell him that the eight companions of Magalhães left at Cebú had been sold by their captors to the Chinese.

Undaunted by these failures, another expedition sets forth (1542) to gain a footing for Spanish power on the Western Islands—that commanded by Ruy Lopez de Villalobos; it is under the auspices of the two most powerful officials in New Spain, and is abundantly supplied with men and provisions. The contracts made with the king by its promoters give interesting details of the methods by which such enterprises were conducted. Various encouragements and favors are offered to colonists who shall settle in those islands; privileges and grants are conferred on Alvarado, extending to his heirs. Provision is made for land-grants, hospitals, religious instruction and worship, and the respective rights of the conquerors and the king. The instructions given to Villalobos and other officials are minute and careful. At Navidad Villalobos and all his officers and men take solemn oaths (October 22, 1542) to carry out the pledges that they have made, and to fulfil their respective duties. In 1543 complaint is made that Villalobos is infringing the Portuguese demarcation line, and plundering the natives, which he denies. An account of his expedition (summarized, like the other

documents), written by Fray Jerónimo de Santistéban to the viceroy Mendoza, relates the sufferings of the Spaniards from hardships, famine, and disease. Of the three hundred and seventy men who had left New Spain, only one hundred and forty-seven survive to reach the Portuguese settlements in India. The writer justifies the acts of Villalobos, and asks the viceroy to provide for his orphaned children. Another account of this unfortunate enterprise was left by García Descalante Alvarado, an officer of Villalobos; it also is written to the viceroy of New Spain and is dated at Lisbon, August 1, 1548. Like Santistéban's, this too is a record of famine and other privations, the treachery of the natives, and the hostility of the Portuguese. Finally, a truce is made between the Castilians and the Portuguese, and part of the former embark (February 18, 1546) for the island of Amboina, where many of them perish.

Nearly twenty years elapse before any further attempt of importance is made to secure possession of the Philippine Archipelago. In 1564 this is begun by the departure from New Spain of an expedition commanded by Miguel Lopez de Legazpi, with which enterprise begins the real history of the Philippine Islands. Synopses of many contemporaneous documents are here presented, covering the years 1559-68. This undertaking has its inception in the commands of Felipe II of Spain (September 24, 1559) to his viceroy in New Spain (now Luis de Velasco) to undertake "the discovery of the western islands toward the Malucos;" but those who shall be sent for this are warned to observe the Demarcation Line. The king also invites Andrés de Urdaneta, now a friar in Mexico, to join the expedition, in which his scientific knowledge, and his early experience in the Orient, will be of great value. Velasco thinks (May 28, 1560) that the Philippines are on the Portuguese side of the Demarcation Line, but he will follow the royal commands as far as he safely can. He has already begun preparations for the enterprise, the purpose of which he is keeping secret as far as possible. By the same mail, Urdaneta writes to the king, acceding to the latter's

request that he accompany the proposed expedition. He emphasizes the ownership of "the Filipina Island" (meaning Mindanao) by the Portuguese, and thinks that Spanish ships should not be despatched thither without the king's "showing some legitimate or pious reason therefor." Velasco makes report (February 9, 1561) of progress in the enterprise; the ships have been nearly built and provisioned, and Legazpi has been appointed its general. Urdaneta advises (also in 1561) that Acapulco be selected for their embarkation, as being more convenient and healthful than Navidad. He makes various other suggestions for the outfit of the expedition, which show his excellent judgment and practical good sense; and asks that various needed articles be sent from Spain. He desires that the fleet depart as early as October, 1562. Legazpi in a letter to the king (May 26, 1563) accepts the responsibility placed upon him, and asks for certain favors. Velasco explains (February 25 and June 15, 1564) the delays in the fleet's departure; he hopes that it will be ready to sail by the following September, and describes its condition and equipment. Velasco's death (July 31) makes it necessary for the royal *Audiencia* of Mexico to assume the charge of this enterprise. Their instructions to Legazpi (September 1, 1564) are given in considerable detail. Especial stress is laid on the necessity of discovering a return route from the Philippines; and Urdaneta is ordered to return with the ships sent back to New Spain for this purpose. By a letter dated September 12, the members of the *Audiencia* inform the king of the instructions they have given to Legazpi, and their orders that he should direct his course straight to the Philippines, which they regard as belonging to Spain rather than Portugal. In this same year, Juan de la Carrión, recently appointed admiral of the fleet, writes to the king, dissenting (as does the *Audiencia*) from Urdaneta's project for first exploring New Guinea, and urging that the expedition ought to sail directly to the Philippines. He says that he has been, however, overruled by Urdaneta. Legazpi announces to the king (November 18) his approaching departure from the port of Navidad; and Urdaneta

writes a letter of similar tenor two days later. On that date (November 20) they leave port; and on the twenty-fifth Legazpi alters their course so as to turn it from the southwest directly toward the Philippines. This displeases the Augustinian friars on board; but they consent to go with the fleet. After various difficulties and mistakes in reckoning, they reach the Ladrones (January 22, 1565), finally anchoring at Guam. The natives prove to be shameless knaves and robbers, and treacherously murder a Spanish boy; in retaliation, their houses are burned and three men hanged by the enraged Spaniards. Legazpi takes formal possession of the islands for Spain. Proceeding to the Philippines, they reach Cebú on February 13, and thence make various journeys among the islands. They are suffering from lack of food, which they procure in small quantities, and with much difficulty, from the natives—often meeting from them, however, armed hostility. A Spanish detachment succeeds in capturing a Moro junk, after a desperate engagement; its crew are set at liberty, and then become very friendly to the strangers, giving them much interesting information about the commerce of those regions. Finally the leaders of the expedition decide to make a settlement on the island of Cebu. It is captured (April 28) by an armed party; they find in one of the houses an image, of Flemish workmanship, of the child Jesus, which they regard as a valuable prize, and an auspicious omen for their enterprise. The fort is built, and a church erected; and a nominal peace is concluded with the natives, but their treachery is displayed at every opportunity.

On May 28, 1565, the officials of the Western Islands write a report of their proceedings to the *Audiencia* of New Mexico. They have ascertained that the hostility of the natives arises from the cruelty and treachery of the Portuguese, who in Bohol perfidiously slew five hundred men and carried away six hundred prisoners. The Spaniards ask for immediate aid of soldiers and artillery with which to maintain their present hold, and to relieve the destitution which threatens them. They advise the speedy

conquest of the islands, for in no other way can trade be carried on, or the Christian religion be propagated.

Another account of the expedition is given by Esteban Rodriguez, pilot of the fleet; it contains some interesting additional details. On June 1, 1565, the ship "San Pedro" is despatched to New Spain with letters to the authorities, which are in charge of the two Augustinian friars, Urdaneta and Aguirre. The log of the voyage kept by the pilot Espinosa is briefly summarized. When they reach the coast of Lower California the master of the vessel and Esteban Rodriguez, the chief pilot, perish from disease. The ship reaches Navidad on October 1, and Acapulco on the eighth, "after all the crew had endured great hardships." Of the two hundred and ten persons who had sailed on the "San Pedro," sixteen died on the voyage, and less than a score were able to work when they arrived at Acapulco, all the rest being sick.

The previous record of the expedition is now continued. Legazpi makes a treaty with the chiefs of Cebú, who acknowledge the king of Spain as their suzerain. Gradually the natives regain their confidence in the Spaniards, return to their homes, and freely trade with the foreigners. Legazpi now is obliged to contend with drunkenness and licentiousness among his followers, but finds that these evils do not annoy the natives, among whom the standard of morality is exceedingly low. They worship their ancestors and the Devil, whom they invoke through their priests (who are usually women). Legazpi administers justice to all, protects the natives from wrong, and treats them with kindness and liberality. The head chief's niece is baptized, and soon afterward marries one of Legazpi's ship-men, a Greek; and other natives also are converted. The Spaniards aid the Cebuans against their enemies, and thus gain great prestige among all the islands. They find the Moros keen traders, and through them obtain abundance of provisions; the Moros also induce their countrymen in the northern islands to come to

Cebú for trade. An attempt to reduce Matan fails, except in irritating its people. A dangerous mutiny in the Spanish camp is discovered and the ringleaders are hanged. The Spaniards experience much difficulty in procuring food, and are continually deceived and duped by the natives, "who have no idea of honor," even among themselves. Several expeditions are sent out to obtain food, and this opportunity is seized by some malcontents to arouse another mutiny, which ends as did the former. On October 15, 1566, a ship from New Spain arrives at Cebu, sent to aid Legazpi, but its voyage is a record of hardships, mutinies, deaths, and other calamities; it arrives in so rotten a condition that no smaller vessel could be made from it. A number of men die from "eating too much cinnamon." Portuguese ships prowl about, to discover what the Spaniards are doing, and the infant colony is threatened (July, 1567) with an attack by them.

A petition (probably written in 1566), signed by the Spanish officials in the Philippines, asks for more priests there, more soldiers and muskets ("so that if the natives will not be converted otherwise, they may be compelled to it by force of arms"), rewards for Legazpi, exemptions from taxes for all engaged in the expedition, grants of land, monopoly of trade, etc. A separate petition, by Legazpi, asks the king for various privileges, dignities, and grants. Still other requests are made (probably in 1568) by his son Melchor, who claims that Legazpi had spent all his fortune in the service of Spain, without receiving any reward therefor.

Certain documents illustrative of this history of Legazpi's enterprise in 1565 are given in full. An interesting document—first published (in Latin) at Manila in 1901, but never before, we think, in English—is the official warrant of the Augustinian authorities in Mexico establishing the first branch of their order in the Philippines (1564). It was found among the archives of the Augustinian convent at Culhuacan, Mexico; and is communicated to us in an English translation made by Rev. T. C.

Middleton, of Villanova College. The other documents are: the act of taking possession of Çibabao (February 15); a proclamation that all gold taken from the burial-places of the natives must be declared to the authorities (May 16); several letters written (May 27 and 29, and June 1) by Legazpi and other officials to the king; a letter (May 28) from the officials to the *Audiencia* at Mexico, with a list of supplies needed at Cebu. To these is added a specially valuable and interesting document—hitherto unpublished, we believe—Legazpi's own relation of his voyage to the Philippines, and of affairs there up to the departure of the "San Pedro" for New Spain. As might be expected, he relates many things not found, or not clearly expressed, in the accounts given by his subordinates.

Next is presented (in both original text and English translation) a document of especial bibliographical interest—*Copia de vna carta venida de Sevilla a Miguel Salvador de Valencia*. It is the earliest printed account of Legazpi's expedition, and was published at Barcelona in 1566. But one copy of this pamphlet is supposed to be extant; it is at present owned in Barcelona. It outlines the main achievements of the expedition, but makes extravagant and highly-colored statements regarding the islands and their people.

In a group of letters from Legazpi (July, 1567, and June 26, 1568) mention is made of various interesting matters connected with the early days of the settlement on Cebú Island, and the resources and commerce of the archipelago. He asks again that the king will aid his faithful subjects who have begun a colony there; no assistance has been received since their arrival there, and they are in great need of everything. The Portuguese are jealous of any Spanish control in the Philippines, and already threaten the infant colony. He sends (1568) a considerable amount of cinnamon to Spain, and could send much more if he had goods to trade therefor with the natives. Legazpi advises that small ships be built at the Philippines, with

which to prosecute farther explorations and reduce more islands to subjection; and that the mines be opened, and worked by slave-labor.

The Spanish settlement on Cebu was regarded with great jealousy by the Portuguese established in the Moluccas, and they sent an armed expedition (1568) to break it up. As the two nations were at peace, the Portuguese commander and Legazpi did not at once engage in war, but carried on protracted negotiations—a detailed account of which is here presented, from the official notarial records kept by Legazpi's chief notary, and transmitted to the home government. Legazpi claims that he has come to make new discoveries for his king, to propagate the Christian religion, and to ransom Christians held captive by the heathen in these regions; and that he had regarded the Philippines as being within the jurisdiction of Spain. If he has been mistaken, he will depart from the islands at once, if Pereira will provide him with two ships. The latter refuses to accept Legazpi's excuses, and makes vigorous complaints against the encroachments of the Spaniards. Pereira summons all the Spaniards to depart from the islands, promising to transport them to India, and offering them all aid and kindness, if they will accede to this demand; but Legazpi declines these proposals, and adroitly fences with the Portuguese commander. These documents are of great interest, as showing the legal and diplomatic formalities current in international difficulties of this sort.

The Editors

Documents of 1525-1528

Expedition of García de Loáisa

1525-26

Voyage of Alvaro de Saavedra

1527-28

[Résumé of contemporaneous documents, 1522-37]

Translated and synopsized by James A. Robertson, from Navarrete's *Col. de viages*, tomo v, appendix, pp. 193-486.

Expedition of García de Loaisa 1525-26

[These documents are all contained in Navarrete's *Col. de viages*, tomo v, being part of the appendix of that volume (pp. 193-439). They are here summarized in even briefer form than were the documents concerning the voyage of Magalhães, indicating sources rather than attempting a full presentation of the subject. Navarrete precedes these documents with an account of Loaisa's voyage covering one hundred and ninety pages—compiled, as was his account of Magalhães, from early authors and the documents in the appendix.]

A memorandum without date or signature [2] describes to the king the advantages that would arise from establishing the India House of Trade at Corunna rather than at Seville: the harbor of Corunna is more commodious; it is nearer the resorts of trade for the northern nations; much trade now going to Portugal will come to Corunna; larger ships can be used and better cargoes carried; it is nearer to sources of supply, and expeditions can be fitted out better from this place; and it will be impossible for the captains or

others to take forbidden merchandise, or to land articles on the return voyage—as they could do at Seville, because of having to navigate on the river. (No. i, pp. 193-195.)

1522. The king and queen, after the return of the "Victoria" issue a document with thirty-three concessions to natives of their kingdom who should advance sums of money, etc., for fitting out expeditions for the spice regions; these privileges are to cover the first five expeditions fitting out. The interests and rights of the sovereigns and of the contributors are clearly defined. These fleets are to trade in the Moluccas, or in any other lands and islands discovered within Castile's demarcation. The House of Trade for the spice regions is to be established at Corunna. (No. ii, pp. 196-207.)

Madrid, April 5, 1525. Fray García Jofre de Loaisa, a commander of the order of St. John, [3] is appointed captain-general of the fleet now fitting out at Corunna for the Moluccas, and governor of those islands. His powers are outlined, being such as were usually given in such expeditions. As annual salary he is to have, during the voyage, "two thousand nine hundred and twenty ducats, which amount to one million, ninety-four thousand five hundred maravedis." He is to have certain privileges of trade, being allowed to carry merchandise. Rodrigo de Acuña is appointed captain of the fourth ship, with a salary of three hundred and seventy-five thousand maravedís. He may invest fifty thousand maravedís in the fleet, such sum being advanced from his salary. The accountant for the fleet, Diego Ortiz de Orue, is instructed to fulfil the duties incident to his office (these are named), and to keep full accounts. Instructions are issued also to the treasurer, Hernando de Bustamante, who is ordered "to obey our captain and the captain of your ship, and try to act in harmony with our officials, and shun all manner of controversy and discord." He must discuss with the captains and officials questions pertaining to his duty, for the better fulfilment thereof. (Nos. iii-vi, pp. 207-218.)

Toledo, May 13, 1525. The crown reserves the right to appoint persons to take the place of any officials dying during the expedition. In case Loaisa should die, his office as governor of the Moluccas is to be filled in the following order: Pedro de Vera, Rodrigo de Acuña, Jorge Manrique, Francisco de Hoces. His office as captain-general falls first to Juan Sebastian del Cano; then to those above named. Further, the chief treasurer, factor, and accountant are next in succession; and after them a captain-general and other officers shall be elected by the remaining captains, treasurers, factors, and accountants. Instructions are given to Diego de Covarrubias as to his duties as factor-general of the Moluccas. He is to exercise great care in all matters connected with trade, selling at as high rates as possible. (Nos. vii, viii, pp. 218-222.)

A relation by Juan de Areizaga [4] gives the leading events of Loaisa's voyage until the Strait of Magellan is passed. The fleet leaves Corunna July 24, 1525, and finishes the passage of the strait May 26, 1526. On the voyage three ships are lost, the "San Gabriel," "Nunciado," and "Santi Spiritus." The "Santiago" puts in "at the coast discovered and colonized by. . . Cortés at the shoulders of New Spain," to reprovision. Loaisa is thus left with only three vessels. (No. ix, pp. 223-225.)

The deposition of Francisco Dávila—given (June 4, 1527) under oath before the officials at Corunna, in order to be sent to the king—and several letters by Rodrigo de Acuña, dated June 15, 1527, and April 30, 1528, give the interesting adventures of the ship "San Gabriel" and its captain after its separation from Loaisa's fleet. The vessel after various wanderings in the almost unknown seas near South American coasts, and exciting adventures with French vessels on the coast of Brazil, finally reaches Bayona May 28, 1527, in a wretched condition and very short of provisions. She carried "twenty-seven persons and twenty-two Indians," and is without her proper captain Acuña, who had been left in the hands of the French. Abandoned by

the latter on the Brazilian coast, he was rescued by a Portuguese vessel and carried to Pernambuco "a trading agency of the King of Portugal," where he was detained as prisoner for over eighteen months. In his letter to the King of Portugal, Acuña upbraids him for treatment worse than the Moors might use "but," he adds, "what can we expect when even the sons of Portuguese are abandoned here to the fate of the savages? There are more than three hundred Christians, the sons of Christians, abandoned in this land, who would be more certain of being saved in Turkey than here.... There is no justice here. Let your majesty take me from this land, and keep me where I may have the justice I merit." Late in the year 1528, Acuña is ordered to Portugal, as is learned from another document, dated November 2 of that year. Before leaving Pernambuco he desires that a testimony of everything that has happened since his departure from Spain until his arrival at Pernambuco be taken down by the notary-public, this testimony being taken from the men who had come with him, "and the Frenchmen who were present at my undoing, and others who heard it from persons who were in the ships of the French who destroyed me." Acuña desires this in case any accident befall him while on the way to Portugal, and "that the emperor may be informed of the truth, and that I may give account of myself." This testimony is much the same as that contained in the other documents. (Nos. xxiii, pp. 225-241; and no, xv, pp. 313-323.)

June 11, 1528. Hernando de la Torre, captain-general and governor in the Moluccas, sends the king a log of the fleet up to June 1, 1526, followed by the adventures of the flagship, "Sancta Maria de la Victoria," after its separation from the rest of the fleet, with a description of the lands and seas in its course. The log was made by the pilot of the "Victoria," Martin de Uriarte. De la Torre prefaces these accounts with a letter in which he asks for aid, "of which we are in sore need." He says "all the captains of the ships, caravels, and the tender, seven in number; the treasurer, accountants, and officials, both general and private, ... are dead or lost, until now only

the treasurer of one of the ships is left" and he [de la Torre] has been elected captain, "not because they found in me any good qualifications for the office, but only a willing spirit." He gives account to the king "of all that has happened, as I am obliged to do, and because of my office it is more fitting for me than any other to do so." Some notable events mentioned in the log are: the entrance into the Santa Cruz River on January 18, 1526; their arrival on the twenty-fourth at the cape of Las Virgines, near which Juan Sebastian del Cano's ship founders in a storm; and the passage of the strait, beginning March 29, by three ships and the tender, the last-named being lost on Easter Day. A detailed description of the strait follows. On September 4, "we saw land, and it was one of the islands of the Ladrones which the other expedition had discovered," where they find a Spaniard who had fled from the ship of the former expedition. On September 10 they depart from this island for the Moluccas. October 8 they land at an island where the friendly advances of the natives are checked by a native from Malacca, who declares that the Castilians would kill all the inhabitants. On the tenth, "the eleven slaves we had seized in the island of the Ladrones fled in the same canoe that we had seized with them." On the twenty-first they anchor at "Terrenate, one of the Malucos, and the most northern of them." November 4, they have news that the Portuguese are fortified in other islands of the archipelago. Negotiations with the Portuguese are detailed at some length. "The islands having cloves are these: Terrenate, Tidori, Motil, Maquian, Bachan." A description of these islands follows, and then the pilot adds, "All these islands of Maluco and those near by are ... mountainous." March 30, 1528 a Castilian vessel anchors at Tidore, one of three sent by Cortes [5] to seek news of Loaisa. The two others had been blown from their course five or six days before reaching the Ladrones. This ship, under command of Captain Saavedra Ceron, had ransomed three men of the caravel "Santa Maria del Parral," one of Loaisa's ships, on an island to the north of Tidore. These men declare that their ship had been captured by the

natives, the captain and most of the crew killed, and the remainder made prisoners. The accusation is made that these three men, in company with others, had themselves killed their captain. The document closes with various observations as to recent events, and states various needs of the Spaniards. The governor praises Saavedra, declaring that because of his diligence he is worthy of great rewards. (No. xiv, pp. 241-313.)

Letters and documents follow which give details of the voyage of Loaisa, and events in the Moluccas until the year 1535. From a letter written (May 3, 1529) by Hernando de Bustamante and Diego de Salivas it is learned that Jorge Manrique, captain of the "Santa Maria del Parral," had been killed by his own men; and that sixty-one of those sailing in the fleet died a natural death, nine were drowned when the "Santi Spiritus" was wrecked, nine were killed by the Portuguese, and four were hanged. A writ handed to the king from the Council of the Indies says that German factors denied the report of the death of Loaisa; and it is advised that one or two caravels be sent from New Spain—from Colima, or Guatemala, or Nicaragua—to find out the truth of this report.

A letter from Hernando de la Torre states that "Juan Sebastian del Cano, who was captain of the ship wrecked in the strait," became captain-general at Loaisa's death and "died a few days afterwards;" and that of the one hundred and twenty-three men of the "Victoria," and twenty-five others who came with Saavedra, only twenty-five men were left. In an investigation concerning matters connected with Loaisa's expedition, Juan de Mazuecos declares (September 7, 1534) that Loaisa had died of sickness, four hundred leagues from the Strait of Magellan; and that all who ate at his table had died within the space of forty days. Like depositions concerning this expedition are taken from several others, among them being Fray Andres Urdaneta. A document made up from the above investigations says that Loaisa's death was in the last of July, 1526, and that the Ladrones

number in all thirteen islands, "in which there are no flocks, fowls, or animals." (Nos. xvi-xxv, pp. 323-400. These documents are much alike.)

The noted Augustinian Urdaneta [6] wrote an account of this disastrous enterprise, and of subsequent events, covering the years 1525-1535; this relation is the best and most succinct of all the early documents regarding Loaisa's expedition. It bears date, Valladolid, February 26, 1537; and the original is preserved, as are the majority of the Loaisa documents, in the Archivo general de Indias in Seville. Urdaneta, as befits an actor in the events, uses the first person, and gives a very readable and interesting account of the expedition. He describes a Patagonian thus: "He was huge of body, and ugly. He was clad in a zebra skin, and on his head he bore a plume made of ostrich feathers; [7] he carried a bow, and on his feet had fastened some bits of leather." He describes, briefly and graphically, the storms that scattered the ships and caused the foundering of the "Santi Spiritus." Shortly after entering the strait, "a pot of pitch took fire on the commander's ship, and the ship began to burn, and little was lacking that we did not burn in it, but by God's help, and the great care exercised, we put out the fire." "We left the strait in the month of May, five hundred and twenty-six [*sic*] [8]—the commander's ship, two caravels, and the tender. A few days afterward we had a very great storm, by the violence of which we were separated from one another, and we never saw each other again.... In these adversities died the accountant Tejada and the pilot Rodrigo Bermejo. On the thirtieth of July died the captain-general Fray Garcia de Loaisa, and by a secret provision of his majesty, Juan Sebastian del Cano was sworn in as captain-general ... On the fourth of August ... died Juan Sebastian del Cano, and the nephew of the commander Loaisa, [9] who was accountant-general." When they reached the Ladrones "we found here a Galician ... who was left behind in this island with two companions from the ship of Espinosa; and, the other two dying, he was left alive.... The Indians of these islands go about naked, wearing no garments. They are well built men; they

wear their hair long, and their beards full. They possess no iron tools, performing their work with stones. They have no other weapons than spears—some with points hardened with fire, and some having heads made from the shin bones of dead men, and from fish-bones. In these islands we took eleven Indians to work the pump, because of the great number of sick men in the ship." The trouble with the Portuguese in the Moluccas is well narrated. Of the people of Java, Urdaneta says: "The people of this island are very warlike and gluttonous. They possess much bronze artillery, which they themselves cast. They have guns too, as well as lances like ours, and well made." Others of their weapons are named. Further details of negotiations with the Portuguese are narrated, as well as various incidents of Urdaneta's homeward trip in a Portuguese vessel by way of the Cape of Good Hope. He disembarks at Lisbon on June 6, 1636, where certain papers and other articles are taken from him. The relation closes with information regarding various islands, and the advantages of trading in that region. He mentions among the islands some of the Philippines: "Northwest of Maluco lies Bendenao [Mindanao]...in this island there is cinnamon, much gold, and an extensive pearl-fishery. We were informed that two junks come from China every year to this island for the purpose of trade. North of Bendenao is Cebú, and according to the natives it also contains gold, for which the Chinese come to trade each year." (No. xxvi, pp. 401-439.)

Voyage of Alvaro de Saavedra 1527-28

[These documents are printed in the latter part of the appendix to volume v of Navarrete's *Col. de viages*; and although the voyage of Saavedra is connected so intimately with that of Loaisa, it is thought better to present it separately therefrom, as a whole, inasmuch as this was the first expedition fitted out in the New World for the islands in the far East. It is evident thus

early that the vantage point of New Spain's position as regards these islands was clearly recognized. The letter from Cortés to the king of Cebú is given entire, as being somewhat more closely within the scope of this work than are the other documents.]

Granada, June 20, 1526. By a royal decree Cortés is ordered to despatch vessels from New Spain to ascertain what has become of the "Trinidad" [10] and her crew that was left in the Moluccas; to discover news of the expedition of Loaisa, as well as that under command of Sebastian Cabot which had sailed also to the same region. [11] He is advised to provide articles for trade and ransom, and to secure for the expedition the most experienced men whom he can find—it is especially desirable that the pilot should be such. The king has written to Ponce de Leon and other officials to furnish all the help necessary. (No. xxvii, pp. 440-441.)

May, 1527. Following the custom of the king in fitting out expeditions, Cortés issues instructions to the various officers of the fleet. Alvaro de Saavedra, a cousin to Cortés, is appointed to the double office of inspector-general and captain-general of the fleet. Two sets of instructions are given him, in each of which appears the following: "Because as you know you are going to look for the captains Frey Garcia de Loaisa and Sebastian Caboto, and if it is our Lord's will, it might happen that they have no ships; and if they have a supply of spices, you shall observe the following, in order that it may be carried on these ships. You shall note what they give, and to whom it is delivered, and you shall have the said captains and the officials they took with them sign this entry in your book." The first matter is to look for the above-mentioned captains. If they have discovered any new lands he must make careful note of that fact, and of their location and products. He is to go to Cebú to ascertain whether the pilot Serrano [12] and others made captives there are still alive, and, if so, to ransom them. He is to use all diligence in seeking information as to all men of Magalhães's expedition

who were left in those regions. Antonio Guiral is appointed accountant of the fleet; and the same general injunction contained in the other two instructions is also specified in his. Cortés writes in an apologetic vein to those of Cabot's fleet, asking them to inform him fully of events "in order that he may serve his majesty." He writes also to Cabot himself informing him of the purpose of Saavedra's expedition, adding, "because, as his Catholic majesty considers the affairs of that spice region of so much importance, he has a very special care to provide everything necessary for it." He mentions the arrival in New Spain of the tender that had accompanied Loaisa and become separated from him shortly after leaving the strait. [13] He assures Cabot that Saavedra goes simply to look for him and the others and will be subservient to him in all that he may order. A letter is written also to the king of the land or island at which Saavedra should anchor assuring him of only good intentions, and asking friendship and trade. Another letter to the king of Tidore thanks him in the name of the emperor for his good reception of Magalhães's men who remained in that island. (Nos. xxix-xxxiii, pp. 443-461; No. xxxv, pp. 463, 464.)

Letter from Hernán Cortés to the King of Cebú To you the honored and excellent King of Cebú, in the Maluco region: I, Don Hernando Cortés, Captain-general and governor of this New Spain for the very exalted and most powerful Emperor, Cæsar Augustus, King of the Spains, our Lord, send you friendly greeting, as one whom I love and esteem, and to whom I wish every blessing and good because of the good news I have heard concerning yourself and your land, and for the kind reception and treatment that you have given to the Spaniards who have anchored in your country.

You will already have heard, from the account of the Spaniards whom you have in your power—certain people sent to those districts by the great emperor and monarch of the Christians about seven or eight years ago—of his great power, magnificence, and excellency. Therefore, and because you

may inform yourself of what you most wish to know, through the captain and people, whom I send now in his powerful name, it is not needful to write at great length. But it is expedient that you should know, that this so powerful prince, desiring to have knowledge of the manner and trade of those districts, sent thither one of his captains named Hernando de Magallanes with five ships. Of these ships but one, owing to the said captain's lack of caution and foresight, returned to his kingdoms; from its people his majesty learned the reason for the destruction and loss of the rest. Now although he was sorely afflicted at all this, he grieved most at having a captain who departed from the royal commands and instructions that he carried, especially in his having stirred up war or discord with you and yours. For his majesty sent him with the single desire to regard you all as his very true friends and servants, and to extend to you every manner of kindness as regards your honor and your persons. For this disobedience the Lord and possessor of all things permitted that he should suffer retribution for his want of reverence, dying as he did in the evil pretension which he attempted to sustain, contrary to his prince's will. And God did him not a little good in allowing him to die as he did there; for had he returned alive, the pay for his negligence had not been so light. And, in order that you and all the other kings and seigniors of those districts might have knowledge of his majesty's wishes, and know how greatly he has grieved over this captain's conduct, some two years ago he sent two other captains with people to those districts to give you satisfaction for it. And he gave orders to me—who, in his powerful name, reside in these his lands, which lie very near yours—that I too despatch other messengers for this purpose, in order that he might have greater assurance, and that you might hold more certain his embassy, ordering and charging me especially that I do it with much diligence and brevity. Therefore I am sending three ships with crews, who will give the very full and true reason of all this; and you may be able to receive satisfaction, and regard as more certain all that I shall say to you,

for I thus affirm and certify it in the name of this great and powerful lord. And since we are so near neighbors, and can communicate with each other in a few days, I shall be much honored, if you will inform me of all the things of which you wish to be advised, for I know all this will be greatly to his majesty's service. And over and above his good will, I shall be most gratified thereat and shall write you my thanks; and the emperor our lord will be much pleased if you will deliver to this captain any of the Spaniards who are still alive in your prison. If you wish a ransom for it, he shall give it you at your pleasure and to your satisfaction; and in addition you will receive favors from his majesty, and reciprocal favors from me, since, if you wish it so, we shall have for many days much intercourse and friendship together. May twenty-eight, one thousand five hundred and twenty-seven.

Hernando Cortes.

(No. xxxiv, pp. 461-462.)

A relation of the voyage was written by Saavedra and set down in the book of the secretary of the fleet. The two ships and one brig set sail in October, 1527, from the port of "Zagatenejo, which is in New Spain, in the province of Zacatala," on the western coast. When out but a short distance his surgeon dies and is buried at sea. Soon after this one of the ships begins to take water, and so rapidly that it is necessary to bring men from the other vessels to keep her afloat. On December 29 the Ladrones are sighted; and soon afterward they anchor at an island (not of this group), whose inhabitants show previous contact with Castilians by crying as a signal "Castilla, Castilla!" He relates the finding of one of the three men at the island of Vizaya. This man relates that after a year's captivity his master had taken him to Cebú, where he learned from the natives that they had sold to the Chinese the eight companions of Magalhães who were left on that

island. The natives of Cebú "are idolaters, who at certain times sacrifice human beings to their god, whom they call Amito, and offer him to eat and to drink. They dwell near the coast and they often voyage upon the sea in their canoes, going to many islands for plunder and trade. They are like the Arabs, changing their towns from one place to another. There are many fine hogs in this island, and it has gold. They say that people from China come hither, and that they trade among these islands." Another relation of this voyage was presented by Vicente de Nápoles in 1634, in an investigation at Madrid. Early in the voyage the ships become separated, and Saavedra's vessel never again sees its companions. [14] He tells of seeing "an island which is called Mondaña, and which the Portuguese call Mindanao." The finding of the three Castilians is narrated, also the meeting with the survivors of Loaisa's expedition; their negotiations with the Portuguese; and their final return to Europe in a Portuguese vessel are recounted. [15] (No. xxxvii, pp. 476-486.)

Expedition of Ruy Lopez de Villalobos—1541-46

[Résumé of contemporaneous documents, 1541-48.]

Translated and synopsized, by James A. Robertson, from *Col. doc. inéd.*, as follows: *Ultramar*, ii, part i, pp. 1-94; *Amér. y Oceania*, pp. 117-209, and xiv, pp. 151-165.

The Expedition of Ruy Lopez de Villalobos—1541-46

[The expedition of Villalobos, [16] although productive of slight immediate result, paved the way for the later and permanent expedition and occupation by Legazpi. For this reason—and, still more, because this was the first expedition to the Western Islands (in contradistinction from the Moluccas), which included the Philippine group, and because these latter islands received from Villalobos the name by which history was to know them,—these documents, which for lack of space cannot be here fully presented, deserve a fuller synopsis than do those pertaining to the preceding expeditions of Magalhães, Loaisa, and Saavedra. The documents thus abstracted are to be found in *Col. doc. inéd. Ultramar*, ii, part 1, pp. 1-94; and in *Col. doc. inéd. Amér. y Oceanía*, v, pp. 117-209, xiv, pp. 151-165.]

Jalisco, March 28, 1541. The *adelantado* of Guatemala, Pedro de Alvarado, [17] writes the king, Felipe II, regarding his contract with the viceroy of New Spain, Antonio de Mendoza [18] for expeditions of discovery along the coast and among the Western Islands. Alvarado with eleven vessels has called at one of the ports of New Spain, "to excuse the differences and scandals that were expected between Don Antonio de Mendoza ... and myself, in regard to the said discovery, because of his having sent Francisco Vasquez to the said provinces [of the West] with a fleet." They have agreed to make their discoveries, both by land and sea, in partnership "in the limits and demarcation, contained in the agreement that was made with me, considering it as certain that, because of the many ships and people, and the great supply of provisions at our command, we shall know and discover everything that is to be seen in those regions, and bring it to the knowledge of God our Lord, and to the dominion of your majesty." It is determined to divide the fleet into two parts, "one to go to the Western Islands, which should make a hurried trip among them, noting their products; and the other should coast along Tierra-firme." Three large ships and a galley, with a crew of three hundred skilled men under command of

Ruy Lopez de Villalobos, "a man of great experience in matters of the sea," are destined for the voyage to the Western Islands. This fleet is to set out within three months to prosecute its discovery, "for all this time has been and is necessary to repair the vessels." Alvarado tells the king "that all this has been at great labor and expense; and not only our own possessions, but those of many of our friends are risked in it—and I especially ... as I came from those kingdoms impoverished and in debt to so great an extent, have remained in so great necessity that, if your majesty do not help me with some gift and gratification, as has ever been your custom toward those who serve you, I can not maintain myself." By the agreement made with the king, no covenant for explorations and discovery was to be made with any other person for seven years. Alvarado has heard that "the Marquis del Valle [19] persists in begging ... this conquest, and wishes to despatch people to undertake it," and the king is asked to grant no license for this. The *adelantado* had determined to go upon this expedition in person, but has been dissuaded from it by his friends. Antonio de Almaguer has been received as an official of the fleet in place of the previous appointee, who is dead, by virtue of a royal decree permitting Almaguer's appointment to any office that he might desire, in case of the death or absence of the previous appointee. The latter had given the necessary pledges which have been sent to the India House of Trade at Seville. The king is asked to confirm this appointment. (No. i, pp. 1-7.)

Talavera, July 26, 1541. The contract made by the king with Alvarado in 1538 and 1539, and with Mendoza in 1541, provided for the discovery, conquest, and colonization of the islands and provinces of the southern sea toward the west. Alvarado had offered to undertake this expedition within fifteen months after arriving in Guatemala, sending westward two galleons and one ship, sufficiently provisioned for two years, with full crew and equipment, and the necessary artillery; and other vessels for discovery about the American coasts. If lands and islands shall be discovered, he

promises to send thither, for their colonization, "ten additional ships, eight hundred soldiers, and three hundred of them cavalry, should the nature of the land be such that horsemen are necessary for it." He is also to send "ecclesiastics and religious for the instruction and Christian training of the natives of those regions." All this is to be at Alvarado's expense, without the king being obliged to recompense him for any outlay, except by the privileges granted him. "Likewise you offer, that after the discovery ... you shall keep masters, carpenters, and other workmen, as many as thirty, in a shipyard that you own in the said province of Guatemala, in order that what shall have been discovered, may be aided and preserved more easily." Also he is to employ as many men as may be necessary in building vessels for the space of ten years. He is to be governor of Guatemala for seven years, "and as many more as we choose; unless, the *residencia* being taken from you now at our order by ... our auditor of the royal *Audiencia* and chancellery of New Spain should show crimes for which you should be deprived of your trust although you shall be obliged to render an account whenever I order it" Four per cent of all profits of the fifth part of "all gold, silver, precious stones, pearls, drugs, spices, and of all other metals and things found and produced in the said lands, and of which the rights pertain to us," and four per cent of all tributes, are assigned forever to Alvarado (provided that such sum does not exceed six thousand ducats each year), and are divided in due ratio between the provinces discovered. This is clear of all rights or taxes. In answer to Alvarado's request for a tenth of all lands and vassals discovered,—selected as he may see fit, and accompanied by the title of duke, with the dominion and jurisdiction of the *grandees* of Castile,—the king grants him four per cent *pro rata* in each part, and the title of count, "with the dominion and jurisdiction that we shall decree, at the time when we shall order the said title bestowed. This shall be granted after the said discovery, and after you shall have signified what part you have selected, provided that we shall not have to give you your said part

from the best or the worst of the said islands and provinces, or the chief city of a province, or a seaport." Other privileges are: the life-title of governor and captain-general of all places discovered, with an annual salary of three thousand ducats, plus one thousand ducats over and above this sum, to be paid from the incomes and profits accruing to the king from these discoveries, but these shall not be paid unless the incomes and profits reach that figure; his heir shall be governor of two hundred leagues of land, with the same salary and gratification, and under the same condition Stone forts may be built, at his own expense, in such places as he may select, which he and two generations of his heirs shall hold, with an annual salary and gratification of one hundred and fifty thousand maravedis for each one of the forts, to be paid under the same conditions as the foregoing. He shall have the perpetual office of high constable in all lands discovered and conquered. No similar agreement shall be made with others for seven years, if he fulfil his promises. Provision will be made later as to the natives of the lands discovered. Men and goods may pass freely from Puerto de Caballos (conquered by Alvarado) to Guatemala, and orders are to be given by the king that the governor of Honduras shall place no obstacles in the way of such passage; and meanwhile Alvarado's claims to the above port are to be investigated. The governor of Honduras will be required to furnish Indians as porters, for whose services the current price must be paid, as well as for all carts and other equipment used, but as much as possible must be carried by waterways. One hundred and fifty negro slaves may be taken from "these our kingdoms, or from the kingdom of Portugal for the said fleet or for the preparation of the said fleet, free of all taxes;" but the *adelantado* must send an account to Spain, signed by the officials of Guatemala, that such disposition of them has been made; if not so employed, then the sum of six thousand maravedis is to be paid for the rights of each slave. More slaves may be taken after the discoveries have been made. The governors of all ports, etc., are to be commanded to accord good treatment to the fleet,

should it anchor at their respective ports. For ten years all goods taken to the newly-discovered lands shall be free from all taxes. For the same length of time the colonists shall not pay the tenth to the king, but after the tenth year, they shall pay one-ninth, and so on each year until they shall pay one-fifth; but for trade and booty the fifth shall be paid from the beginning. There is to be no duty on goods taken "from these our kingdoms to the said province of Guatemala for the preparation of the said fleet" for the first voyage. All personal property that Alvarado takes to the islands or provinces discovered is to be during his life free from duty, provided it shall not exceed in any year the sum of three thousand ducats. Those going on the expedition who take horses, may take two Indian slaves apiece. Land is to be assigned to the colonists, of which they are to have perpetual ownership after a four years' residence. [20] *Encomiendas* of the Indians may be assigned "for such time as you wish, under the instructions and ordinances given you." The treaties with the Portuguese crown in regard to the demarcation and the Moluccas must be strictly obeyed. [21] The agreement with Mendoza, viceroy of New Spain, that he shall have a one-third interest in the fleet is confirmed. No excise duty is to be levied "for ten years, and until we order to the contrary." A hospital is provided for by one hundred thousand maravedís taken from fines. The hospital also is to receive the rights of *escobilla* [22] and the sweepings in the founding of metals. Lawyers and attorneys are prohibited from engaging in their callings in the lands and islands discovered. The royal officials appointed by the king are to be taken in the fleet, as well as ecclesiastics "for the instruction of the natives of the said islands and provinces to our holy Catholic faith." For the latter, Alvarado is to pay the "freight, provisions, and other necessary supplies fitting to their persons, all at your own cost." Ransoms for captured native princes or seigniors pertain to the king, but, on account of the labors and expenses of the undertaking, one-sixth shall be given to the king and the remainder shall be distributed among the

conquerors, first subtracting the king's fifth; but of the booty falling into the hands of the conquerors after the death of a prince or chief killed in battle, or obtained by justice or otherwise, one-half shall be the king's, and shall be delivered to his officials, first withdrawing his fifth. In case of doubt regarding the collection of the king's rights in any treasure, "especially of gold, silver, precious stones, and pearls, and that found in graves or other places where it shall have been hidden," and in other goods, the following order is to be observed: one-fifth of everything taken in battle, or taken from villages, or for ransoms shall be paid the king; he shall receive one-half of all treasure found in graves or places of worship, or buried, and the person finding the treasure shall have the other half; but any person not announcing his find shall lose "all the gold, silver, precious stones, and pearls, and in addition one-half of his other possessions." The strict observance of the contract is ordered. This contract was first made in 1638; in 1639, a section was inserted confirming the partnership of Alvarado and Mendoza, in which the latter was to receive one-third of all profit; in 1541, in accordance with the new agreement between the two men, a clause was added to this contract, giving equal rights to each. (No. ii, pp. 7-26.)

Mexico, September, 1542. On the fifteenth of this month Mendoza commissions Gonzalo Davalos as his treasurer on the expedition, Guido de La Bezaris [23] as his accountant, and Martin de Islares as his factor. The treasurer is to receive an annual salary of seventy-five thousand maravedis, "to be paid from the profits that shall pertain to me in those lands, it being understood that if this amount is not reached, I am not obliged to pay it from any other source." The usual duties of treasurer are to be observed by him. On the eighteenth of the month very full instructions are given to Villalobos by Mendoza. The principal injunctions of these instructions follow: he will report at Puerto de la Navidad, where the vessels for the expedition have been prepared; these will be delivered to him by Mendoza's agent, who shall make a full declaration of everything in the equipment of

the vessels "except the merchandise and articles of barter, the slaves, the forge ... because they must be under the charge of the treasurer and officials whom I am sending in the fleet for that purpose; and other things I specify in their instructions, and in those of Juan de Villareal [his agent] in regard to it." He shall sign this declaration in the records of the notary and in the books of the accountant and treasurer. All the "artillery, ammunition, war supplies, and weapons, shall be given into the charge of the captain of artillery, and all the vessels of the fleet into the charge of the commander of the fleet, together with all their equipment, tackle and rigging, and provisions." In each ship, a pilot, master, boatswain, and notary shall be appointed. Each ship shall be put in charge of its master, and the notary for that ship shall take full notes of everything transferred to the former's keeping. The master shall also have care of the artillery of his vessel, such charge being imposed by the captain of artillery. For greater security the merchandise and articles for traffic, and the officials having them in charge, are to be apportioned among the vessels. An account must be taken in each vessel of its captain and crew (both sailors and soldiers), giving for each man his father's name and his place of birth. Villalobos is to have special watch over the treasurer, accountant, and factor. The men of the ships are to be divided into watches, no one being excused "except for legitimate cause." "And when you are ready to sail, you shall make full homage, . . . according to Spanish custom, that you will exercise well and faithfully the said office of lieutenant-governor and captain-general, . . . and that you will deliver to me, and to no one else, the discoveries and profits pertaining to me, according as his majesty orders in his royal provision, and that neither directly nor indirectly will you exercise any deceit or wrong in anything." The officers and all others shall take oath to obey him as captain-general, "and that there will be no mutinies or rebellions." The officials appointed by the king to guard his interests are to be received, and the best of treatment shall be accorded them. When a settlement has been made one or two

vessels shall be sent back, sufficiently equipped, with news of such settlement, and of all he has accomplished. "Likewise you shall send me specimens of all the products of the land that you can secure, ... of the manner of dressing [of the inhabitants], and their mode of life, what is their religion or sect, the character of their life and government, their method of warfare with their neighbors; and if they have received you peaceably, if you have made a treaty of peace with them, or your status among them." The spread of religion is to be sought especially. To this end "you shall try to ensure that those in your charge live as good Catholics and Christians, that the names of our Lord and his most blessed Mother, as well as those of his saints, be revered and adored, and not blasphemed; and you shall see to it strictly that blasphemies and public sins be punished." All letters sent in the ships returning must be assured safe delivery. Mendoza is to be first informed of all news brought by the ships. In these ships shall be sent also both Mendoza's and the king's profits, as well as those of the individuals of the fleet, provided the latter shall not prevent the sending of either his or the king's. In affairs of moment Villalobos must consult freely with many people of the fleet, among whom are named "father prior Fray Gerónimo, Fray [blank in manuscript], [24] who was prior of Totonilco, Jorge Nieto, the inspector Arevalo, Gaspar Xuarez Davila, Francisco Merino, Matias de Alvarado, Bernardo de la Torre, and Estrada." If Villalobos should determine to return with all the fleet, those wishing to remain shall do so, and he shall leave them a captain and sufficient stores. Persons are to be appointed to look after the property and belongings of the dead, and to see that no fraud is exercised, in order that his heirs may be secured. Entry must be made, in the method in vogue in Spain, of all things sent back in the ships. All settlements must be made on the shore, and a fort must be erected at some distance from the natives' habitations, in which the articles for trade must be securely stowed. No soldier shall be permitted, without leave, and under severe penalties "to go to the Indian settlements or enter their houses

... and no one shall take anything by force, in the camp or in the town, contrary to the will of the Indians where you shall have made peace." Men are to be appointed who shall attend to the buying of all provisions, "because not having knowledge of the products of the land, [your men] would buy more in accordance with appetite than with reason, where-from much damage would ensue, because the products of the land would be placed at a higher figure, and the value of the articles for barter ... would be lowered;" the prices for trafficking shall be assigned to these buyers and they must not go over them, but try to buy at a lower figure. The trafficking of the merchandise shall be also in charge of experienced persons. "You shall advise your men that, whenever they speak of the emperor, Our Lord, among the natives, they shall speak of his greatness, and how he is the greatest Lord of the earth, and that they have been sent by one of his captains of these regions." (Nos. ii, iii, pp. 7-46.)

Puerto de Navidad, October 22, 1542. Villalobos certifies before a notary that he has received from Juan de Villareal, Mendoza's agent, "four ships, one small galley, and one *fusta*, [25] to wit: the admiral's ship, named 'Santiago;' the 'San Jorge,' 'San Antonio,' and 'San Juan de Letran;' the galley 'San Christoval,' and the *fusta* 'San Martin'—with all equipment, ammunition, artillery, weapons, provisions, etc.,... in the name of his lordship [Mendoza] ... in order to go with the said vessels and with the soldiers of his most illustrious lordship, upon the pursuit and prosecution of the said voyage." He promises in full terms to carry out to the letter all instructions and to give true and complete accounts of everything to Mendoza or his agents. This oath is attested in the form prescribed by the royal notary-public. This same day the oath of obedience is taken by the captains and soldiers, and the pilots and seamen. The oath taken by the captains is, in part, as follows: "Your graces, captains Bernaldo de la Torre, Don Alonso Manrique, Francisco Merino, Mathias de Alvarado, Pero Ortiz de Rueda, Christoval de Pareja, and gentlemen of this fleet, of which Rui

Lopez de Villalobos goes as general for his most illustrious lordship, swear before God, Our Lord, and blessed Mary his Mother, on the holy words written in this book of the holy gospels, and on this sign of the cross [on which each one of them placed his right hand] that, as good, faithful, and Catholic Christians, you promise and pledge your faith and word, and homage as knights and nobles, by right, of Spain, once, twice, and thrice, to be faithful and obedient, and to hold as your captain-general Rui Lopez de Villalobos, here present; and you will observe the instructions he has given you, in so far as the good of the business requires it; and you will be obedient and will hearken to his orders. And you shall declare and advise, each one of you, what you deem suitable and necessary for the good of this expedition, whether he asks it or not, although you think he may be vexed or angry at hearing what you wish to tell him; only you shall state the fundamental reason why your assertion is good, in everything making it a point of your desire to come directly to the question, and not to give your advice with passion, or servilely, but with all freedom." If he send them on missions they must report to him alone. "And none of you shall rouse up mutinies, scandals, seditions, or conspiracies; nor shall you talk against your captain-general or the expedition; rather if you learn or foresee anything of such matters, you shall tell and inform your general thereof, so that it may be remedied." The soldiers swear to be obedient to the commands of Villalobos and his captains, and to follow the general's banners, day or night, holding him as chief; they must be loyal and true in every sense of the word, both on sea and land. The pilots (who are named) and the seamen also take like oath to fulfil their duties completely, acknowledging Villalobos as general. They are to obey the latter "both now on the said voyage, and in the Western Islands." They must try to accomplish the voyage in the shortest time possible, and must take part in no mutinies or uprisings. In his instructions to his captains Villalobos requires the following: No soldier is to be admitted to the fleet who does

not bear a certificate of confession and communion. If there be any such, he must confess within three days to the religious in the fleet, or be put on short rations of water until he does confess. Severe punishment for blasphemy of "the name of God, our Lord, his glorious Mother, or of any of the saints" is stipulated, varying in degree according to the blasphemy. The religious are to receive every consideration, that the natives may see "how we honor the ministers of the Gospel." All weapons are to be kept in a special place in each ship and given to the men only when necessary, and they shall be regularly inspected. Most stringent rules are laid down as to the distribution of water, and the water butts must be inspected each day by the "steward, master, pilot, or boatswain," and every four days by the captain in person, to see that the regulations pertaining thereto are strictly observed. Likewise the amounts of food to be given are carefully stipulated, the amounts, as in the case of the water, being different for soldiers, sailors, negroes, and Indians. Fire is guarded against by ordering all fires, except the lantern, out at four in the afternoon, unless to cook something for a sick man, and then that fire shall be immediately extinguished. Watches are to be maintained day and night. Those caught sleeping at their posts are to be severely punished. If the culprit be an individual who holds an office, for the first offense he shall lose his office; for the second he shall be thrown overboard. A soldier (not of gentle birth) for the first offense shall be made to pass under the keel three times; and for the second be thrown overboard. The captain must stand one watch each night. Each captain shall have a body-guard of six men. All fire must be kept away from the powder. At the least appearance of mutiny immediate measures are to be taken; if it is not possible to inform Villalobos, then the captain is empowered to execute summary justice. The captain is to keep a compass in his room, which he shall constantly consult, and must keep close watch on the course. In case one vessel be separated from the fleet and reach any land, the captain must see that the natives are well treated. The men "shall not enter their houses,

towns, or temples, or talk to the women; nor shall they take anything to eat, or any other articles, before you appoint a man who understands trading, and he shall buy for all what they may need. And you shall try to find out the products of the land, and to procure specimens thereof, and ascertain the character of the people and the land; so that, when we meet you there, you may advise me of everything, and his most illustrious lordship may have knowledge of it all." The captain must under no consideration disembark at this land himself, but must send a trustworthy agent with armed men to arrange peace and friendship with the natives. They must return two hours before nightfall. If peace be made, then a trader will be appointed. They are to be careful that "God our Lord be not offended because of the Indians you take with you; and they must examine the instructions of the pilots and see that the latter abide by these instructions." (Nos. v-viii, pp. 46-65.)

1543. An extensive correspondence ensues between Villalobos and Jorge de Castro, after the fleet, had reached the Philippines, [26] in which the latter, especially in his letters of July 20 and September 2, requests the former to leave the lands falling within the demarcation of the Portuguese monarch; and to cease his depredations among the natives. Villalobos replies to these letters under dates of August 9 and September 12 respectively, justifying his expedition, and his conduct toward the natives, and stating that the requirements given him are to respect the Portuguese demarcation, which he has done. (No. ix, pp. 66-94.)

Cochin, in Portuguese India, February 22, 1547. Fray Geronimo de Santistéban writes to the viceroy of New Spain an account of the expedition of Villalobos. He names and describes very briefly the islands in their course; at one of these they cast anchor, and he gives a description of its people and resources. "February 29 we saw the islands of Bindanao [Mindanao], San Juan, and San Antonio." [27] One of the vessels had been badly damaged in a storm before reaching the island named Matalotes. At

Mazaua Bay they began first to experience famine and sickness. As food was refused them on the island of Sarragan, and their men attacked, they determined to take it by force. The island was soon gained, and "Rui-Lopez labored with that people with entreaties and gifts to make friendship, and to induce them to return to their houses, but in vain." Then began the hunt for food in various places, but much opposition from the natives was encountered. Santistéban says "If I should try to write, to your lordship in detail of the hunger, need, hardships, disease, and the deaths that we suffered in Sarragan, I would fill a book ... In that island we found a little rice and sago, a few hens and hogs, and three deer. This was eaten in a few days, together with what remained of the ship food. A number of cocoa-palms were discovered; and because hunger cannot suffer delay, the buds which are the shoots of the palms were eaten. There were some figs and other fruits. Finally we ate all the dogs, cats, and rats we could find, besides horrid grubs and unknown plants, which all together caused the deaths, and much of the prevalent disease. And especially they ate large numbers of a certain large variety of gray lizard, which emits considerable glow; very few who ate them are living. Land crabs also were eaten which caused some to go mad for a day after partaking of them, especially if they had eaten the vitals. At the end of seven months, the hunger that had caused us to go to Sarragan withdrew us thence." The booty of the island was but little, for the natives had carried away and hidden the greater part of their possessions. The vessel of Villalobos and two small brigs put out from this place of famine to go to the upper islands, the other vessels having been sent on ahead on various commissions. After sailing for forty leagues, the large vessel was unable to advance farther, and put in at a bay called Sacayan [Cagayan], to await good weather, while the two small vessels went on ahead [because according to Alvarado they could navigate nearer the shore] in search of food. Troubles from the natives still pursued these smaller vessels. At one part of Mindanao they tried to secure food. Fourteen

of the crew were left ashore, ten of whom were killed. The two brigs anchored at Mindanao, remaining there for more than fifty days, awaiting the arrival of the ship and galley. From this place they went to Tandaya, [28] where they were well received by the natives. Here the sick men were left, while the others went in search of the rest of their men, but failed to find them where they had been left. A letter was found which directed the searchers to the "islands of Talao, which are forty leagues south of Maluco." Returning to Tandaya, it was found that the men left there had been taken off by the "Sant Juan." Here Santistéban and his party remained for two months, until the king of Tidore sent in quest of Villalobos. A description of these people follows. Finally Villalobos, forced to do so by hunger, cast anchor in Portuguese possessions. Negotiations with the Portuguese followed. The "Sant Juan" was despatched to New Spain May 16, 1545, but it was unable to make the journey and returned within five months. Finally the remnants of the expedition were taken in Portuguese vessels to Ambón [Amboina], where Villalobos died; and thence to Malacca, where only one hundred and seventeen of the three hundred and seventy who left New Spain arrived, thirty remaining in Maluco. Santistéban justifies Villalobos, saying "Your lordship will bear in mind your promise to Ruy Lopez ... to be a father to his children. In the judgment of certain men, Ruy Lopez performed no services for your lordship, for which his children deserve recompense. I know most certainly that, in the judgment of God and of those who regard his works without passion, he did everything possible for the service of your lordship, and that he grieved more over not having fulfilled exactly your lordship's design than over all the other losses, sorrows, and persecutions that he endured." (*Col. doc. inéd. Amér. y Oceanía*, tomo xiv, pp. 151-165.)

Garcia Descalante Alvarado, who accompanied Villalobos, left an account of the expedition, dated Lisbon, August 7, 1548, and addressed to the viceroy of New Spain; it deals more fully with the later adventures of

the expedition. A brief synopsis follows. The fleet left the port of Joan Gallego [Navidad] on All Saints' Day, 1542. They passed, at a distance of one hundred and eighty leagues, two uninhabited islands which they named Santo Thomas [San Alberto] [29] and Añublada, or "Cloud Island" [Isla del Socorro]; and eighty leagues farther another island, Roca Partida or "Divided Rock" [Santa Rosa]. After sailing for sixty-two days they came to a "lowlying, densely-wooded archipelago," which they named the Coral Archipelago, anchoring at one of the islands, Santistéban [San Estevan]. The next islands they named Los Jardines, or "The Gardens," from their luxuriant foliage. January 23, 1543, they passed a small island, whose inhabitants hailed them in good Castilian, saying "Buenos dias, matalotes" [30] [meaning to say "Good morning, sailors"], for which the island was named Matalotes. The next island passed they named Arrecifes or Reefs, the significance of which is apparent. February 2, they anchored in a beautiful bay which they called Málaga [Baganga] and the island Cesarea Karoli [Mindanao], "which the pilots, who afterwards sailed around it, declared to have a circuit of three hundred and fifty leagues." After a month's residence on the island, they left in search of the island of Mazagua, but contrary weather forced them to anchor at an island named Sarrangar and by them called Antonio, [31] where they had trouble with the natives, who were attacked by the Castilians under command of Alvarado. The people defended themselves valiantly with "small stones, poles, arrows, and mangrove cudgels as large around as the arm, the ends sharpened and hardened in the fire," but were finally vanquished; they abandoned this island afterwards and went to Mindanao. "Upon capturing this island we found a quantity of porcelain, and some bells which are different from ours, and which they esteem highly in their festivities," besides "perfumes of musk, amber, civet, officinal storax, and aromatic and resinous perfumes. With these they are well supplied, and are accustomed to their use; and they buy these perfumes from Chinese who come to Mindanao and the

Philipinas." They found a very small quantity of gold. The booty was divided among the company, during which a controversy arose as the soldiers objected to both Villalobos and the viceroy of New Spain having separate shares therein, claiming that it was sufficient to pay the former the seventh which he asked, with the choice of one jewel. After this was settled, the general ordered maize to be planted "which was done twice, but it did not come up. This irritated them all, and they said they did not come to plant, but to make conquests." To their complaints, and requests to change their location, Villalobos replied "that he came for the sole purpose of discovering the course of the voyage, and of making a settlement." "The offensive arms of the inhabitants of these islands are cutlasses and daggers; lances, javelins, and other missile weapons; bows and arrows, and culverins. They all, as a rule, possess poisonous herbs, and use them and other poisons in their wars. Their defensive arms are cotton corselets reaching to the feet and with sleeves; corselets made of wood and buffalo horn; and cuirasses made of bamboo and hard wood, which entirely cover them. Armor for the head is made of dogfish-skin, which is very tough. In some islands they have small pieces of artillery and a few arquebuses. They are universally treacherous, and do not keep faith, or know how to keep it. They observe the peace and friendship they have contracted only so long as they are not prepared to do anything else; and as soon as they are prepared to commit any act of knavery, they do not hesitate because of any peace and friendship that they have made. Those who carry on trade with them, must hold themselves very cautiously. Certain Spaniards who trusted in them were killed treacherously, under pretense of friendship." The Castilians endured much hunger on this island of Sarrangar, and a number of them died. A ship was despatched to Mindanao to make peace, and to arrange terms of trade, and for food, and was received with apparent friendliness. A boat with six men was sent ashore, but was attacked by the natives; one man was killed and the others badly wounded. Failing to obtain food here,

Villalobos set out with twenty-five men for the island of Santguin [Sanguir]. They anchored midway at a small island where "the natives had fortified themselves on a rock ... in the sea, with an entrance on only one side; this was strongly fortified with two defenses, and its summit was enclosed by very large and numerous trees. The approach was from the water side. The houses within were raised up high on posts, and the sea quite surrounded the rock." The people refusing to give provisions, "we fought with them, the combat lasting four hours. Finally we carried the place, and as they would not surrender, they were all killed, with the exception of some women and children." One Spaniard was killed and a number wounded; and, after all but little food was found. On his return to Sarrangan, Villalobos despatched his smallest ship to New Spain to solicit aid, on August 4, 1543. Another vessel started on the same day to "some islands ... which we call Felipinas, after our fortunate prince, which were said to be well supplied with provisions," for the purpose of securing food. Three days after this the troubles with the Portuguese began, with the arrival of the deputy sent by Jorge de Castro. Meanwhile the numbers of the Spaniards and the Indian slaves brought from New Spain were being decimated through the famine they experienced. Expeditions were sent out to gather food, but resulted disastrously. The Portuguese intrigued with the natives not to sell provisions to the Castilians, and to do them all the harm possible. On the arrival of the ship sent to the Philippines for food, it was determined "to go to the Felipinas, to a province called Buio," [32] a salubrious land, "and abounding in food." Further misfortunes met them through stormy weather and the hostility of the natives, who treacherously killed eleven of the Spaniards in one vessel sent ahead to procure provisions. Further trouble with the Portuguese followed at the island of Gilolo, the king of which was hostile to the Portuguese. In these straits, Villalobos determined to appeal to the king of Tidore for aid and supplies, as he was formerly friendly to the Spanish; but his hopes were disappointed.

Then he sent to Terrenate, at the instance of the king of Gilolo, to demand from the Portuguese the Castilian artillery in that island. [33] Finally treaties were made between the two kings and the Castilians. Alvarado was sent (May 28, 1544) to the Philippines to conduct back certain of the boats that had been sent thither when the expedition left the island of Sarrangan. At Mindanao, he was told of three provinces; "the first is Mindanao, and it has gold mines, and cinnamon; the second is Butuan, which has the richest mines of the whole island; and the third Bisaya, [34] likewise possessing gold mines and cinnamon. Throughout this island are found gold mines, ginger, wax, and honey." At the bay of Resurrection on this island he found a letter left previously by Villalobos and two others,—one by Fray Gerónimo de Santistéban dated in April, saying that he with eight or ten men was going in search of the general in one of the small vessels; that fifteen men had been killed by the natives, and that twenty-one remained at "Tandaya in the Felipinas, at peace with the Indians;" that one of the small vessels had been shipwrecked and ten men drowned at the river of Tandaya; and other news. The other letter was from the captain of the ship sent to New Spain, saying that he had set out too late to return to New Spain, and had taken the twenty-one men from Tandaya, and was going now in search of Villalobos. Alvarado coasted among many of the islands meeting with various adventures. He heard that in the "island of Zubu, there were Castilians living, since the time of Magallanes, and that the Chinese were wont to go thither to buy gold and certain precious stones." He returned on October 17 to Tidore where he found Villalobos and the other Castilians. A detailed account of the adventures of one of the two small vessels sent to the Philippines follows. Reunited at Tidore, the Spaniards began to repair the ship in order to return to New Spain. Meantime Jorge de Castro was superseded by Jordan de Fretes, and a truce was arranged between the two nationalities. A ship left Tidore May 16, 1545, for New Spain, but it was unable to get beyond range of the islands, and returned to Tidore October 3

of the same year. The Spaniards began to desert to the Portuguese, arousing the suspicions of the king of Tidore. The negotiations with the Portuguese and the discord among the Castilians are minutely detailed. On February 18, 1546, those wishing to do so embarked in the Portuguese fleet, arriving at Ambón, where a number of them died, including Villalobos. They left here on May 17, going by way of Java to India. A list of the surviving members of the expedition concludes the relation. (*Doc. inéd. Amér. y Oceania*, tomo v, pp. 117-209.)

Expedition of Miguel Lopez de Legazpi—1564-68

[Résumé of contemporaneous documents, 1559-68.]

Illustrative Documents—

Warrant of the Augustinian authorities in Mexico establishing the first branch of their brotherhood in the Philippines; 1564.

Act of taking possession of Cibabao; February 15, 1565.

Proclamation ordering the declaration of gold taken from the burial-places of the Indians; May 16, 1565.

Letters to Felipe II of Spain; May 27 and 29, and June 1, 1565.

Letter to the royal Audiencia at Mexico; May 28, 1565

Legazpi's relation of the voyage to the Philippines; 1565.

[35]Copia de vna carta venida de Seuilla a Miguel Salvador de Valencia; 1566.

Letters to Felipe II of Spain; July, 1567, and June 26, 1568.

Negotiations between Legazpi and Pereira regarding the Spanish settlement at Cebú. Fernando Riquel; 1568-69.

Sources: See Bibliographical Data at end of this volume.

Translations: The résumé of documents, 1559-69, is translated and arranged, by James A. Robertson, from *Col. doc. inéd. Ultramar*, tomo ii, pp. 94-475, and tomo iii, pp. v-225, 244-370, 427-463. Of the illustrative documents, the first is translated by Reverend Thomas Cooke Middleton; the second and eighth by Arthur B. Myrick; the third and fourth by James A. Robertson; the fifth, sixth, and seventh by Alfonso de Salvio.

Resume of Contemporaneous Documents, 1559-68.

[The following synopsis is made from documents published in *Col. doc. inéd. Ultramar*, tomos ii and iii, entitled *De las Islas Filipinas*. Concerning these documents the following interesting statements are taken from the editorial matter in tomo ii. "The expedition of Legazpi, which is generally believed to have been intended from the very first for the conquest and colonization of the Philippines, set out with the intention of colonizing New Guinea; and in any event only certain vessels were to continue their course to the archipelago, and that with the sole idea of ransoming the captives or prisoners of former expeditions" (p. vii). "The course laid out in the instructions of the viceroy [of New Spain, Luis de Velasco] [36] ... founded upon the opinion of Urdaneta, was to New Guinea. The instructions of the *Audiencia* prescribed definitely the voyage to the Philippines" (p. xxiv). Copious extracts are given from the more important of these documents, while a few are used merely as note-material for others. With this expedition begins the real history of the Philippine Islands, From Legazpi's landing in 1564, the Spanish occupation of the archipelago was continuous, and in a sense complete until 1898, with the exception of a brief period after the capture of Manila, by the English in 1762.]

Valladolid, September 24, 1559. The king writes to Luis de Velasco, viceroy of New Spain and president of the royal *Audiencia*, that he provide "what seems best for the service of God, our Lord, and ourselves, and with the least possible cost to our estate; and therefore I order you, by virtue of your commission to make the said discoveries by sea, that you shall despatch two ships ... for the discovery of the western islands toward the Malucos. You must order them to do this according to the instructions sent you, and you shall stipulate that they try to bring some spice in order to make the essay of that traffic; and that, after fulfilling your orders, they shall return to that Nueva España, which they must do, so that it may be known whether the return voyage is assured." These ships must not enter any islands belonging to the king of Portugal, but they shall go "to other nearby islands, such as the Phelipinas and others, which lie outside the above agreement and within our demarcation, and are said likewise to contain spice," The necessary artillery, articles of barter, etc., will be sent from the India House of Trade in Seville. "I shall enclose in this letter the letter that you think I should write to Fray Andres de Urdaneta of the order of Saint Augustine in that city [Mexico], in order that he embark on those vessels because of his experience in matters connected with those islands of the spice regions, as he has been there." The viceroy must issue instructions to the vessels that they "must not delay in trading and bartering, but return immediately to Nueva España, for the principal reason of this expedition is to ascertain the return voyage." The letter enclosed to Urdaneta states that the king "has been informed that when you were a secular, you were in Loaysa's fleet, and journeyed to the Strait of Magallanes and the spice regions, where you remained eight years in our service." In the projected expedition of the viceroy, Urdaneta's experience will be very valuable "because of your knowledge of the products of that region, and as you understand its navigation, and are a good cosmographer." Therefore the

king charges him to embark upon this expedition. (Tomo ii, nos. x and xi, pp. 94-100.)

Mexico, May 28, 1560. Yelasco writes to the king in answer to this letter, saying that he will do his utmost to fulfil his commands in regard to the voyage. He says "it is impossible to go to the Filipinas Islands without infringing the contents of the treaty, because the latter are no less within the treaty than are the Malucos, as your majesty can see by the accompanying relation, made solely for myself by Fray Andres de Urdaneta. This latter possesses the most knowledge and experience of all those islands, and is the best and most accurate cosmographer in Nueva España." He asks the king to show this relation to any living members of Loaysa's expedition in order to verify it. The king should redeem the Spaniards captured by the natives in the Philippines and other islands near the Moluccas. To do this and to reprovision the ships would not be in violation of the treaty made with Portugal. In case the ships should depart before the king's answer is received, the viceroy will order them to act in accordance with the above-mentioned relation. The vessels of the expedition will consist of two galleys of two hundred and one hundred and seventy or one hundred and eighty tons respectively, and a *patache*. [37] Wood, already fitted, is to be sent in the galleys, with which to make small boats for use among the islands. "The man in charge of the work, writes me that the cables and rigging necessary for these vessels will be all ready, by the spring of sixty-one, at Nicaraugua and Realexo, ports in the province of Guatemala where I have ordered these articles made, because they can be made better there than in all the coast of the Southern Sea; and because they can be brought easily from those ports to Puerto de la Navidad, where the ships must take the sea." The artillery and other articles sent from Spain for the vessels have arrived. The letters written by the king to Urdaneta and the Augustinian provincial were delivered, and both have conformed to the contents thereof. "It is most fitting that Fray Andres go on this expedition, because of his experience and

knowledge of these islands, and because no one in those kingdoms or in these understands so thoroughly the necessary course as he; moreover, he is prudent and discreet in all branches of business, and is of excellent judgment." He assures the king that the return voyage to Spain will be made as quickly as possible. In a postscript he adds that all due secrecy has been observed in regard to the purpose of the fleet, and it has been given out that it is for the trade with Peru and for coast defense; however it is rumored that they are for the voyage westward. The same ship carried to the king a letter from Urdaneta accepting the service imposed upon him. He relates briefly his connection with the expedition of Loaysa and his experiences in, and return from, the Moluccas. "And after my return from the spice region until the year fifty-two, when our Lord God was pleased to call me to my present state of religion, I busied myself in your majesty's service, and most of the time in this Nueva España ... both in matters pertaining to war ... and those of peace." Notwithstanding his advanced age and his feeble health, he will undertake this new service. In a separate and accompanying paper Urdaneta sends his opinion concerning the Philippines and neighboring islands, which the viceroy has mentioned in his letter. In this relation Urdaneta declares that "it is evident and clear that the Filipina Island [Mindanao] is not only within the terms of the treaty, [38] but the point running eastward from this said island lies in the meridian of the Malucos, and the greater part of all the said island lies farther west than the meridian of Maluco." [39] He quotes the terms of the treaty to emphasize the fact that the Filipina Island is within Portugal's demarcation. "Therefore it seems that it would be somewhat inconsistent for your majesty to order the said vessels to the Filipina Island without showing some legitimate or pious reason therefor." He advises the king to despatch the expedition strictly within his demarcation, asking him, however, to allow the ships to go to the Philippine Islands for the purpose of redeeming the Spanish captives, "without going to the Malucos, or engaging in trade, except to buy some things which may

be worth seeing as specimens, or food and other articles necessary for the voyage." The best pilots and experienced men should be engaged for this expedition, "so that the most accurate relation possible may be made both of the lands newly-discovered and their longitude, and the route from Nueva España to the said Filipina Island, and the other islands of its neighborhood, so that it shall be understood where the one hundred and eighty degrees of longitude of your majesty's demarcation end. Therefore it seems that not only is it a just cause to go to the Filipina Island in search of your said vassals ... but there appears to be a necessity for it, since they were lost in your majesty's service." These men will be very useful because of their knowledge of the language of the infidels and their acquaintance with those regions. (Tomo ii, nos. xii and xiii pp. 100-113.)

The king replies to Urdaneta from Aranjuez, (March 4, 1561), accepting his offer "to go to the Western Islands in the vessels that Don Luis de Velasco, our viceroy of those regions, is sending thither by our command ... I feel much pleasure at your willingness to undertake this expedition and your understanding that it will be for the service of God, our Lord, and of ourselves ... I charge you that, in accordance with your offer, you make this expedition, and do therein all that is expected from your religion and goodness. In regard to the advice you sent everything has been sent to the said viceroy, so that he may arrange what is most suitable according to his orders." (Tomo ii, no. xvi, pp. 118, 119.)

Nueva España, February 9, 1561. The viceroy writes to the king concerning the fleet. Two ships and one small vessel are being built, and will be provisioned for the trip to the Western Islands and the return to New Spain. They will be fully equipped by about the end of the present year. "It is necessary that your majesty have two pilots sent me for this expedition—men skilled and experienced in this navigation of the Ocean Sea; for, although I have three, I need two more, so that they may go two and two in

the ships.... I have appointed Miguel Lopez de Legazpi, [40] a native of the province of Lepuzcua, and a well-known gentleman of the family of Lezcano, as the general and leader of those embarking in these vessels—who all told, soldiers, sailors, and servants, number from two hundred and fifty to three hundred people. He is fifty years old [41] and has spent more than twenty-nine years in this Nueva España. He has given a good account of the offices he has held, and of the important affairs committed to him. From what is known of his Christian character and good qualities hitherto, almore suitable man, and one more satisfactory to Fray Andres Urdaneta, who is to direct and guide the expedition, could not have been chosen; for these two are from the same land, and they are kinsmen and good friends, and have one mind." (Tomo ii, no. xiv, pp. 113-117.)

Mexico, 1561. Urdaneta, in a memorial to the king, points out the greater advantages of Acapulco as a port, than those possessed by Puerto de la Navidad. It has a more healthful location than the latter, is nearer Mexico City, and supplies can be taken there more easily. The lack of necessities, "such as wine, oil, etc., from España," and its unhealthful location have debarred workmen from going to Puerto de la Navidad; and hence the completion of the vessels has been retarded, and about a year must pass yet before they will be finished. "It is of great advantage that the port whence the men embark be healthful,... because if they embark from an unhealthful land, many fall sick before embarking, and many die afterwards while at sea ... The port of Acapulco appears to have a good location, so that a dockyard might be fitted up there, where vessels can be built, and may there take and discharge their cargoes; for it is one of the foremost ports in the discovery of the Indies—large, safe, very healthful, and with a supply of good water. It abounds in fish; and at a distance of five or six leagues there is an abundance of wood for the buttock-timbers of the vessels, and, some distance farther, of wood for decks and sheathing, and pines for masts and yards." Further, the district about this port is reasonably well populated.

Urdaneta says that if material for making the artillery be sent from Spain, and good workmen, the artillery can be made in New Spain; as well as anchors. "In this land there is copper in abundance, from which artillery can be made," which only needs to be refined. The Augustinian makes some interesting observations regarding social and economic conditions in Mexico, and suggests that it would be very advantageous to compel many youths who are growing up in vagabondage to learn trades, "especially the *mestizos*, mulattoes, and free negroes." Weapons, ammunition, and defensive armor must be sent from Spain for this expedition. Urdaneta requests that hemp-seed be sent, in order that ropes may be made in New Spain. He tells of a plant *pita* [agave], growing in this country which can be used as a substitute for hemp, and many plants of it must be planted near the ports. The pitch, tar, and resin, the instruments and charts for navigation, etc., must be sent hither from Spain. They need good seamen and workmen. The king is requested to allow them to make use of any workmen in the other provinces of "these parts of the Indies," paying them their just wages; likewise to take what things they need, paying the just price. It is advised that the necessary trees for shipbuilding be planted near the ports, and that ranches be established near by to furnish food.

The second section of this document treats of the navigation to the Western Islands: and Urdaneta maps out various routes which should be followed, according to the time of the year when the fleet shall depart on its voyage of discovery. These routes all have to do primarily with New Guinea as the objective point of the expedition, the Philippines being considered as only secondary thereto. Speaking of the Ladrones and their inhabitants, Urdaneta says: "The islands of the Ladrones are many, and thirteen [42] of them are said to be inhabited. The inhabitants are naked and poor. They eat rice, have many cocoa palms, and use salt. They fish with hooks made from tortoise-shell, being destitute of articles made from iron. They place a counterweight in one end of their canoes, and rig on them

lateen-like sails made of palm-mats. It is quite important to explore this island thoroughly, or any of the others, in order to discover and ascertain accurately the navigation that has been made up to that point, and their distance from Maluco and the Filipinas Islands ... Those islands are somewhat less than three hundred and seventy leagues from Botaba [one of the Ladrones]." The "modern maps that have come to this Nueva España," are in his opinion incorrect, as certain coasts are drawn more extensive than is actually the case. Calms must be avoided and the trade winds caught, in order to facilitate navigation. The errors of former expeditions must be avoided, as well as a protracted stay at the Philippines—"both because of the worms that infest that sea, which bore through and destroy the vessels; and because the Portuguese might learn of us, during this time, and much harm might result thereby." Besides. Spaniards as well as natives cannot be depended upon to keep the peace. By leaving New Spain before the beginning of October, 1562, much expense and the idleness of the ships will be avoided. In case land be discovered within Spain's demarcation. Urdaneta requests the king to provide for its colonization by supplying a captain and some of the people and religious—or even that the general himself remain there, "if the natives thereof beg that some Spaniards remain among them." He asks the king to ascertain the truth of the report that the French have discovered a westward route "between the land of the Bacallaos and the land north of it." [43] If it be true then trade might be carried on more economically from Spain direct to the west than by way of New Spain, and the fleets will be better provided with men and equipments. (Tomo ii, no. xvii, pp. 119-138).

Mexico, May 26, 1563. Legazpi writes to the king that "the viceroy of this New Spain, without any merit on my part, has thought best to appoint me for the voyage to the Western Islands, to serve your majesty, putting under my charge the fleet prepared for it—not because this land has few men who would do it better than I, and by whom your majesty would be served better

on this voyage, but rather, because no one would give himself up to it with a more willing spirit, as I have ever done in my past duties." He assures his majesty that he will have the utmost care in this expedition. For the better success of the voyage he has "asked the viceroy for certain things, which seemed to me necessary ... and others of which, in the name of your majesty, he should grant me, which although they were not of so great moment that they were fitting to be asked from so exalted and powerful a personage, the viceroy defers and sends them to you, so that your majesty may order your pleasure regarding them." He asks these things for "so important a voyage" not as "a remuneration for my work, since that is due your majesty's service, but as a condescension made with the magnificence that your majesty always is accustomed to exercise in rewarding his servants who serve him in matters of moment." (Tomo ii, no. xviii, pp. 139, 140.)

Mexico, 1564. The viceroy writes to Felipe on February 25 and again on June 15, excusing the non-departure of the fleet. In the first he says that the delay is due to the proper victualing of the vessels for a two-years' voyage, and the non-arrival of certain pieces of artillery, etc., which were coming from Vera Cruz; the things that were to be sent, from the City of Mexico could not be sent until the fleet was launched, as they would spoil if left on land. Everything will be ready by May. In the second letter he excuses the delay as, owing to calms and contrary winds, the vessels bearing the "masts, yards, and certain anchors" for the fleet did not arrive at Puerto de la Navidad until June 10. It still remained to step the masts and make the vessels shipshape, and to load the provisions; and they will be ready to sail by September. "Four vessels are being sent, two galleons and two *pataches*; ... they are the best that have been launched on the Southern Sea, and the stoutest and best equipped. They carry three hundred Spaniards, half soldiers and half sailors, a chosen lot of men.... Six religious of the order of Saint Augustine go with it, among them Fray Andres de Urdaneta, who is

the most experienced and skilled navigator that can be had in either old or new España." He encloses a copy of the instructions to Legazpi, in order that the king may assure himself that his commands have been obeyed. The best pilots have been secured. The questions of routes, seasons, and other things have been discussed with Urdaneta and others who have made the voyage before. "I trust ... that the expedition will come to a successful end, and that your majesty will be very much served therein, and in all that shall hereafter occur in it." Notice will be given to the king of the departure of the fleet by the first vessel leaving for Spain after that event. (Tomo ii, nos. xix and xx, pp. 140-145).

Méjico, September 1, 1564. After the death of Luis de Velasco, instructions are issued to Legazpi by the president and auditors of the royal *Audiencia* of Mexico, the chief provisions of which here follow. Before the royal officials of this expedition, namely, "Guido de Labezaris, treasurer, Andres Cauchela, accountant, and Andres de Mirandaola, factor," he will take possession of the vessels and their equipment. The flagship will be the "Sant Felipe," in which Legazpi will embark; the "Sant Andres" will carry the commander of the fleet; [44] Captain Juan de la Isla and Captain Hernán Sanchez Muñon will command the *pataches*, the "Sant Juan de Letran" and the "Sant Lucas," respectively. Legazpi's first duty is to appoint pilots, masters, boatswains, notaries, artillery officers, and all other necessary officials. Inventories of the equipment of the fleet, and of the merchandise, etc., carried, are to be made and signed by him; and a copy of the same shall be given to the officials of the royal *hacienda* [treasury]. He shall apportion the cargo, provisions, etc., among the different vessels, as he judge best. Martin de Goiti is to have entire charge of all the artillery, ammunition, etc., "as he is a person to be trusted," and he shall be given a memorandum of all such things. The men embarking in the fleet shall pass a general review; their names, age, parentage, occupation in the fleet, and pay, shall be enrolled in a book; and they shall be apportioned to the various vessels of

the fleet. In Legazpi's ship will embark Captain Mateo del Saz, appointed master-of-camp, two officials of the royal *hacienda*, and those "gentlemen to whom has been given the preference for attendance on you and the standard, and the other necessary persons;" the royal standard and the ensign shall be carried on his vessel. "In the admiral's ship you shall appoint as captain thereof, and as admiral of the whole fleet, the man who is, in your judgment, most suitable." This vessel must carry one of the royal officers. The soldiers and sailors must see that the arquebuses delivered to them are kept in good order. Great care must be exercised in regard to the provisions, and they must be apportioned in set quantities, "as the voyage is of long duration." To this end no useless person shall be taken, and no Indians or negroes (male or female)—beyond a dozen of the latter for servants—or women (married or single) shall accompany the fleet. When the fleet is upon the point of embarking, the Augustinian religious shall be taken on board, who go "to bring the natives of those regions to a knowledge of our holy Catholic faith." They are to have good quarters and to receive good treatment. Before setting sail "you shall have care that all the people have confessed and received communion." The general must perform homage and take oath to "perform well and faithfully the said office and duties of governor and captain-general." Also the oath of obedience and faithfulness to Legazpi shall be taken by all embarking in the fleet, "that they will not mutiny, or rebel, and will follow the course marked out by you, and your banner." The general must guard carefully the morals of his men, and shall punish "blasphemy and public sins with all severity." The property of the dead shall be kept for their heirs, persons being appointed to administer it. The admiral, captains, pilots, and masters shall be given ample instructions concerning the course before setting sail, which they must follow to the letter. The men are to be divided into watches, no one being excused, except for sickness. The fleet, setting sail, shall proceed "in search of and to discover the Western Islands situated toward the

Malucos, but you shall not in any way or manner enter the islands of the said Malucos, ... but you shall enter other islands contiguous to them, as for instance the Filipinas, and others outside the said treaty, and within his majesty's demarcation, and which are reported also to contain spice." They are to labor for the evangelization of the natives, to ascertain the products of the islands, and to discover the return route to New Spain. The route to be taken on the westward journey will be by way of the "island Nublada, discovered by Ruy Lopez de Villalobos" and Roca Partida; then to the islands Los Reyes, the Coral Islands—"where you may procure water,"—and thence to the Philippines; passing perhaps the islands of Matalotes and Arrecifes, in which event they shall try to enter into communication with the natives. "When you have arrived at the said Filipinas Islands, and other islands contiguous to them and the Malucos, without however entering the latter, ... you shall try to discover and examine their ports, and to ascertain and learn minutely the settlements therein and their wealth; the nature and mode of life of the natives; the trade and barter among them, and with what nations; the value and price of spices among them, the different varieties of the same, and the equivalent for each in the merchandise and articles for exchange that you take from this land; and what other things may be advantageous. You shall labor diligently to make and establish sound friendship and peace with the natives, and you shall deliver to their seigniors and chiefs, as may seem best to you, the letters from his majesty that you carry with you for them.... You must represent to them his majesty's affection and love for them, giving them a few presents ... and treating them well. And you may exchange the articles of barter and the merchandise that you carry for spice, drugs, gold, and other articles of value and esteem.... And if, in your judgment, the land is so rich and of such quality that you should colonize therein, you shall establish a colony in that part and district that appears suitable to you, and where the firmest friendship shall have been made with you; and you shall affirm and observe

inviolably this friendship. After you have made this settlement, if you should deem it advantageous to the service of God, our Lord, and of his majesty, to remain in those districts where you have thus settled, together with some of your people and religious, until you have given advice of it to his majesty and this royal *Audiencia* in his name, you shall send immediately to this Nueva España, one or more trustworthy persons ... with the news and relation of what you have accomplished, and where you have halted. What you shall have obtained in trade shall be brought back. This you shall do in such manner that with all the haste, caution, and diligence possible, they shall return to this land, in order that the return route hither may be known and learned; for this latter is the chief thing attempted, since already it is known that the journey thither can be made in a brief time. If you determine to make the return in person to this land, you shall leave there, where you have settled, persons in your stead and some people and religious, but making sure that the commander left by you with such people and religious is a thoroughly trustworthy man, and that he is amply provided with the necessary supplies until aid can arrive. To this man you shall give orders that he preserve with your friends the friendship that you shall have established, without offending or ill-treating them in any way; and that he be ever prepared and watchful, so that no harm may come through his negligence." News of any Spaniards left among these islands from the expedition of Villalobos is to be earnestly sought; and Spaniards and their children are to be ransomed when found, and brought back to Spanish territory. Information is to be sought concerning the natives of the Philippines. The Spaniards must ascertain whether the Portuguese have built forts or made settlements in these islands since the treaty was made, or since Villalobos arrived there. The exploration in Spain's démarcation is to be as thorough as possible. Any land colonized must be well chosen, regard being had to its easy defense. As much treasure as possible must be sent back with the ship or ships that return with news of the expedition. Further

emphasis is laid on the good treatment of the natives, "who, as we are informed, are men of keen intellect, of much worth, and as white as ourselves." "In whatever port, island, or land" they shall make explorations, they are to gather information "of the customs, conditions, mode of life, and trade of their inhabitants; their religion and cult, what beings they adore, and their sacrifices and manner of worship. Information must be obtained of their method of rule and government; whether they have kings, and, if so, whether that office is elective, or by right of inheritance; or whether they are governed like republics, or by nobles; what rents or tributes they pay, and of what kind and to whom; the products of their land most valued among them; what other things valued by them are brought from other regions. And you shall ascertain what articles taken by you from here are held in highest estimation among them." Possession, in the king's name, shall be taken of all the lands or islands discovered. The pilots shall make careful logs. The powerful rulers of these districts are to be told that the proposed destination of the fleet was not to their islands, but the exigencies of the weather rendered a stay there imperative, in order that they may not say "that you carry very little merchandise to go a-trading in lands so distant" They shall request friendship and alliance and trade; and presents shall be given these rulers from the most valuable articles in the cargo. Legazpi must be watchful of his own safety, carrying on negotiations with the natives through his officers, thus guarding against treachery. The person transacting such business shall be accompanied by armed men, and the negotiations must be carried on in sight of the vessels. Hostages must be procured when possible. No soldiers or sailors shall go ashore without being ordered to do so. Sleepless vigilance must be exercised to see that the natives do not cut the anchor-cables, and thus send the ship adrift. To guard against treason and poison, invitations to festivities or banquets must not be accepted, nor shall any food be eaten unless the natives partake of it first. If no settlement can be made because of the unwillingness of the natives, or

because of the scarcity of men, then the expedition—the entire fleet, if Legazpi deem best—shall return, after having first made peace and friendship, trying to bring enough treasure, etc., to pay the expenses of the expedition. It is advisable to leave some of the priests in any event, "to preserve the friendship and peace that you shall have made." If any Portuguese are met among the islands of Japan, part of which lie in Spain's demarcation, any hostile encounter must be avoided, and the Spaniards must labor for peace and friendship. In case they obtain such peace and friendship, then they must try to see the charts carried by the Portuguese. Whether the latter are found or not in these Japanese islands, Legazpi must try to ascertain whether any Theatins [45] have been sent thither to convert the natives. Finding these latter, information as to those regions and the actions of the Portuguese therein must be sought. In case the Spaniards and Portuguese come to blows, and the victory remain to the former, a few Portuguese prisoners shall be sent to New Spain. If the Portuguese have unlawfully entered the limits of Spain, Legazpi shall, with the advice of his captains and the royal officials, take what course seems, best. If vessels are encountered in the Japanese archipelago or in districts contiguous thereto, Legazpi must try to effect peace and friendship, declaring that he was compelled to enter those districts because of contrary winds; he must gather all the information possible from them, concerning themselves and the Portuguese. Should these vessels thus encountered prove to be armed fleets or pirates, any conflict with them must be avoided. In case of a fight, let him depend on his artillery rather than on grappling. Any prisoners must be well treated, "and after having gained information of everything that seems best to you, you shall allow them to go freely, giving them to understand the greatness of the king, ... and that he wishes his vassals to harm no one." Pirates are to be dealt with as shall be deemed best. All trading must be at the lowest possible price, and fixed figures shall be established. Native weights must be used. The royal officials are to have entire charge of all

trading, of whatever nature, and no individual shall presume, under severe penalties, to trade for himself, for in that case prices will be raised by the natives. These officials shall trade first, merchandise to the value of fifty thousand pesos of gold dust [46] for the king, and then ten thousand pesos for private individuals; then another fifty thousand for the king, and so on; but all drugs, spices, and some other articles are the king's alone, and no one may trade for them without his express permission. Careful entries of all trading must be made, and the king shall receive one-twentieth of all the return cargo of individuals in the fleet. Any merchandise belonging to private individuals who do not embark in the fleet shall be traded last, and seven per cent of its returns shall be paid to the king. Slaves may be bought, for use as interpreters, but good treatment is to be accorded them. No Indian shall be captured, nor shall any soldier buy any slave during the time of the voyage; but when a settlement is made they may do so, unless the king order the contrary. Several of them shall be sent to New Spain, however, that "they may be seen here, and from them may be ascertained the products of their lands." In the fortress of any settlement made, two houses shall be constructed, one for Legazpi, and the other for the safe keeping of the artillery and stores; and a ditch and drawbridge are to be made at the entrance to it. The people of the settlement shall live outside the fortress, but in one place. Careful watch must be kept; and the soldiers must take good care of their weapons, having them always in readiness. The soldiers and others are to be prohibited from "going to the villages of the natives of those regions without leave, from entering their houses, from seizing by force anything in the camp or in their village, or contrary to their will, and from leaving their [the soldiers'] quarters. Especially shall you prohibit them and order them that they have no communication with the women of those regions." Legazpi is to remain aboard his vessel until the fortress is completed. After its completion some small boats shall be made. A church shall be built near the fort, as well as a house for the religious, in order that

the latter may minister to the colonists and the natives. "And you shall have especial care that, in all your negotiations with the natives of those regions, some of the religious accompanying you be present, both in order to avail yourself of their good counsel and advice, and so that the natives may see and understand your high estimation of them; for seeing this, and the great reverence of the soldiers toward them, they themselves will hold the religious in great respect. This will be of great moment, so that, when the religious shall understand their language, or have interpreters through whom they may make them understand our holy Catholic faith, the Indians shall put entire faith in them; since you are aware that the chief thing sought after by his majesty is the increase of our holy Catholic faith, and the salvation of the souls of those infidels." To this end all help must be given to these ministers of God. The Indian interpreters carried in the fleet must be well treated. In case it shall be necessary, changes may be made in these instructions, but with the advice of the other officers; but it must be ever kept in mind that he is "to go to the said Filipinas Islands, and other islands contiguous thereto, ... and to discover the return route to this Nueva España with the greatest despatch possible, bringing or sending spices and other valuable articles of those regions." Urdaneta must return with the ship or ships sent back to discover the return route, because of his experience. No person shall be restricted from sending letters, in the return ship or ships, to the king or the royal *Audiencia*. The commander of the return ship shall deliver all the letters to the *Audiencia*, and they, after reading their own shall despatch the others. This person shall be most emphatically charged to communicate with no one until the *Audiencia* has been advised of everything that has happened since the fleet left New Spain. Legazpi is enjoined in strong terms to seek advice among the religious "especially father Fray Andres de Urdaneta," and the officers of the fleet, on all important matters. In case of Legazpi's death the person succeeding to his office is to keep these instructions faithfully. A small box, carefully

fastened, is given into Legazpi's keeping, containing a sealed paper in which is written the name of the person who is to succeed to his command in case of his death, but this person is not to be known until such a casualty. Another similar box, sealed and fastened as the other casket, contains the name of the person who shall receive the command in case Legazpi's successor dies also. At the end of the instructions proper is Legazpi's oath to observe with care the commands enjoined upon him therein. (Tomo ii, no. xxi, pp. 145-200.)

Méjico, September 12, 1564. A letter from the royal *Audiencia* to the king informs the latter of the changes which they have made in the instructions given to Legazpi by Luis de Velasco, who has died. The general and other officers have left for the port of departure, and the fleet will sail some time in October. The first instructions, which were in accordance with Urdaneta's opinion, were to sail toward New Guinea and coast along its shores in order to discover its products and other things. "It seemed to this royal *Audiencia*, discussing and communicating in this regard with persons of experience, who have been in those regions, that, although it be true that the discovery of New Guinea would be important, especially if the riches asserted should be found there, it is not fitting that the voyage thither be made now—both because, as it is new, it has not hitherto been navigated; and because, doing so now, it would be necessary to deviate widely from the course to reach the Western Islands, and the return voyage would be delayed; and it would be running a great risk to navigate in an unknown course." The king's letter of September 24, 1559, is cited in support of the *Audiencia's* change in route, and they "determined to order the general to sail straightway in search of the Filipinas Islands, and the other islands contiguous thereto, by the same route taken by Ruy Lopez de Villalobos." The *Audiencia* do not agree with Urdaneta (see above, p. 81) that the Philippines are in Portugal's demarcation. (Tomo ii, no. xxi, pp. 200-205.)

Nueva España, 1564 (?). The first-appointed admiral of the fleet, Juan Pablo de Carrión, writes to King Felipe in regard to the proposed route. He gives a brief outline of Urdaneta's opinion that they should sail first to New Guinea. This island he declares "is one that we discovered in the year forty-four." He describes it as a desolate region, with but scant food, and declares that the voyage thither is dangerous and arduous. His own opinion is that the fleet should take the same course as did Saavedra and Villalobos; "and that the fleet should put in at the Filipinas Islands, which are friendly islands, with whom we have had trade and friendship, and where even eight Spaniards of the fleet in which I sailed remained. They are islands well supplied with all manner of food, and there is much trade there. They are wealthy and large, and have the best location of the entire archipelago. Their language is known, and their ports, and even the names of their principal rulers, with whom we have contracted friendship.... There are islands among them with a circuit of three hundred leagues, and so down to fifty. Those islands that have been seen are eight large ones, without reckoning the small ones between them. They are within sight of one another, so that the most distant of them is not more than ten leagues from another. To the north of them lies the mainland of China, a distance of about two hundred leagues; at about the same distance to the south lies Maluco. And since the route from these lands thither is already known, and we have had experience of it and since it is a land most abundantly provisioned and has much trade, and is rich, I have been of the opinion that we should go thither, inasmuch as this navigation is understood and that we should not seek a new course attended with so great uncertainty and risk." He recounts that "these islands were discovered first by Magallanes in the year twenty-one," and afterward by Villalobos, and their secret discovered. "They are islands that the Portuguese have never seen, and they are quite out of the way of their navigation; neither have the latter had any further information of them beyond our drawing or chart. They have the best situation for the

return voyage, because they are in north latitude." He ascribes his not being permitted to accompany the expedition to the divergence of his opinion from that of Urdaneta. The latter has declared that he will not go on the expedition if it takes Carrión's course; "and as he who goes as general, ... is of his nation and land, and his intimate friend, he wishes to please the father in everything; and as the said general has no experience in these things, nor does he understand anything of navigation, through not having practiced it, he is unable to distinguish one thing from another, and embraces the father's opinion in everything." Carrión, in a very brief résumé of Urdaneta's life, declares that he is a man of over sixty. (Tomo ii, no. xxiii, pp. 205-210.)

Puerto de la Navidad, 1564. In a letter to the king November 18, Legazpi announces that he has taken over "two large ships and two *pataches*, and one small brigantine," in which are one hundred and fifty seamen, two hundred soldiers, and six religious of the order of Saint Augustine, the chief of whom is father Fray Andres de Urdaneta; in all, the number of souls, counting servants, amounts to three hundred and eighty. "I shall leave this port, please God, our Lord, tomorrow ... and will display, on my part, all possible diligence and care, with the fidelity which I owe, and which I am under obligation to have." He hopes for a successful voyage. He begs the king to bear them in mind, and send aid "to us who go before," and to commit this to one who has care and diligence, "as a matter that concerns greatly the service of God, our Lord, the increase of his holy Catholic faith, and the service of your majesty, and the general good of your kingdoms and seigniories." He asks the king to grant (as in his other letter, *q.v.* above) the requests he had made to the viceroy, and which the latter had sent to Spain; for the preparation for the voyage has taken all his possessions. Two days later (November 20) Urdaneta writes the king to somewhat the same effect, enumerating the vessels, men, etc. Besides himself there are four other religious, "and the other ... God has taken to himself in this port." They will set out the following day, all being well. He praises Legazpi, and requests

the king to keep him in his remembrance. Urdaneta's nephew, Andrés de Mirandaola, is the royal factor of the fleet, and the former begs favor for him. "Also since the religious of the order of our father Saint Augustine are the first to embark in this undertaking, and to undergo so many hardships for the service of God and your majesty, I beg your majesty to grant them favors." (Tomo ii, nos. xxiv and xxv, pp. 211-215.)

November 25, 1564. Legazpi gives instructions on this day to the captains and pilots as to the course to be pursued. Hitherto, since leaving port, a southwest course has been steered; but now, in accordance with the royal instructions, and in the opinion of the captains and pilots, it seems advisable to change the direction. They shall sail first west-southwest to a latitude of nine degrees, and then take a due course for the Philippines, stopping at the island of Los Reyes on the way. If by any chance one of the vessels becomes separated from Legazpi's vessel, the pilots are to return to the above latitude, stopping at any port that they may find, for eight or ten days, in hopes of meeting the other vessels. Whether they find the island or not, and do not find the other vessels, this ship shall continue on the course toward the Philippines. A token and letter must be left at any port they may reach. When the island of Los Reyes is reached, the ship will wait there ten days, after which time they shall continue their course, stopping likewise at Matalotes and Arrecifes, leaving tokens at all places, and trying to explore them and discover their products. (Tomo ii, no. xxvi, pp. 215-217.)

Relation of the expedition, from November 19, 1564, to the end of May, 1565, when the "San Pedro," under command of Felipe de Salcedo, left Cebú for New Spain. The fleet set sail from "Puerto de Navidad, Monday, November 20, two hours before midnight, or rather on Tuesday, November 21, three hours before daybreak." It consisted of the flagship, "San Pedro," the "San Pablo," captained by the master-of-camp, Mateo del Saz, and the *pataches* "San Juan" and "San Lucas," captained by Juan de la Isla and

Alonso de Arellano respectively. The vessels bore as pilots Esteban Rodriguez (chief pilot), Pierres Plin (or Plun, a Frenchman), Jaymes Martinez Fortun, Diego Martin, Rodrigo de Espinosa, and Lope Martin. Legazpi's vessel, the "San Pedro," carried a small brigantine on her poop deck. On November 25, Legazpi opened the instructions given him by the *Audiencia*, which radically changed the course from the one that had been hitherto pursued—the new course being in accord with the advice of Carrión, and by the same route which Villalobos had taken. "The religious in the fleet were very sorry at this, giving out that they had been deceived; and had they known while yet ashore, that such a route was to be pursued, they would not have accompanied the expedition, for the reasons that father Fray Andres de Urdaneta had advanced in Mexico." But they expressed their willingness to make the expedition now for the service of God and the holy Catholic faith, the increase of the kingdom, and the general good of the fleet. On the night of the twenty-ninth, the "San Lucas," which, by the general's orders, was accustomed to take its position at night ahead of his vessel, became separated from the rest of the fleet and was seen no more. [47] Being speedier than, the others, Legazpi naturally expected that it would reach the islands ahead of him and there await the fleet, but he was disappointed. The fleet reached on December 18, the ninth degree of latitude, from which it must proceed westward to the island of Los Reyes. It was found that there was no uniformity among the distances and reckonings of the pilots; and although each contended for the accuracy of his reckoning, they were accustomed to change their figures somewhat, before reporting to Legazpi. Urdaneta's figures proved nearer the truth, but even he changed his reckoning, enlarging it, that he might be more in harmony with the pilots. Thus it happened that the daily runs were exaggerated, giving rise to the belief that Los Reyes had been passed. In accordance with this belief the course of the fleet was changed on the twenty-eighth of December, taking the latitude of ten degrees, in order to reach Matalotes and other

islands. On January 8, 1565, the "San Pablo" reported land on the port bow, and the fleet directed its course southward. The report proving incorrect, the former course was resumed and on the next day a low, small island was discovered. The natives fled at sight of the squadron. The ships ran close to land, and finding no anchorage, for the anchors failed to touch bottom, Martin de Goyti was ordered to go ahead to look for an anchorage. Landing-parties (among whom were Urdaneta and Legazpi's grandson, Felipe de Salcedo, Martin de Goyti, and Juan de la Isla) went on shore to gather what information they could, and Salcedo was empowered to take possession of the island for the king. Meanwhile it became necessary for the vessels to weigh anchor and set sail, as the ebb-tide was taking them out to sea. The small boats that had been sent ashore regained the fleet at ten o'clock, and it continued its voyage. The landing-party had been well received by the natives who had not decamped—an old man, his wife, and a young woman with her child—who showed them their houses, fruits, and articles of food, giving them some of the latter. They showed signs of regret at the departure of the Spaniards. "The Indian was well built and the women good looking. They were clad in garments made of palm-leaf mats, which are very thin and skilfully made. They had many Castilian fowl, quantities of fish and cocoanuts, potatoes, yams, and other grain, such as millet." They used canoes, and made fish-hooks from bone and other articles. "Their hair is loose and long." This island was named Barbudos. [48] No weapons, offensive or defensive, were seen. On the tenth they reached another larger island and many small islets, which they called Los Plazeles from the surrounding shoals. They appeared uninhabited. The same day they passed another uninhabited island, which they called the isle of Birds, from its many wild-fowl. On the twelfth they passed other uninhabited islands which they called Las Hermanas ["The Sisters"]. On the fourteenth, they passed islands which Urdaneta declared to be the Jardines of Villalobos. The pilots ridiculed this assertion, saying that they were much farther on

their course. In a general council on the seventeenth the best course to the Philippines was discussed, as it was advisable to avoid entering at the hunger-point of Villalobos. It was agreed to sail along the thirteenth degree, in which course Urdaneta declared they must meet the Ladrones. On the twenty-second of January land was sighted which the pilots declared to be the Philippines, but which Urdaneta said might be the Ladrones, which he afterwards affirmed to be the case from the lateen-sails of the native boats, "which the inhabitants of the Filipinas do not make." The pilots continued to ridicule him, but Urdaneta's reasoning was correct. The fleet was surrounded by a multitude of boats, whose occupants, all talking at once, invited them with word and sign to land, offering refreshment. Some knives, scissors, beads, a mirror, and other articles were given to the occupants of the nearest canoe. On the following Tuesday the vessels succeeded in finding an anchorage, and the instructions as to behavior on land were carefully enjoined on all the men. [49] They were immediately surrounded by the canoes of the natives, the occupants of which brought many kinds of food, but in very small quantity. They would not enter the vessels although asked to do so by Legazpi, "who showed them much love and affection, and looked upon them as friends." They sold their food for such things as playing cards, little bits of cloth, etc. "The father prior talked with them, using the few words of their language that he remembered, especially counting up to ten, whereat they manifested great pleasure; and one of them mentioned the name Gonzalo, which as the father prior said, was the name of a Spaniard who had been found in one of those islands, which was called Goam." The natives signed to them to enter their villages, where they would find food in abundance. "And all the canoes, and those in them, had their arms, which consisted of shields, bundles of throwing-sticks, slings, and egg-shaped stones.... They leave the body quite uncovered. They are tall, robust, well built, and apparently of great strength. The women, too, are very tall, and wear only a cord tied about the waist,

and to the cord they hang some grass or leaves from the trees, whereby they cover the shameful parts. Some cover the latter also with mats made from palm-leaves. All the rest of the body is uncovered. Both men and women wear their hair, which is of a yellowish color, loose and long, gathering it up behind the head." Their canoes are "very neatly and well made, sewed together with cord, and finished with a white or orange-colored bitumen, in place of pitch. They are very light, and the natives sail in them with their lateen sails made of palm-mats, with so much swiftness against the wind or with a side wind that it is a thing to marvel at." The trading was all done from the canoes for the natives would not enter the vessels. They cheated much, passing up packages filled mainly with sand, or grass, and rocks, with perhaps a little rice on top to hide the deceit; the cocoa-nut oil was found to be mixed with water. "Of these the natives made many and very ridiculous jests." They showed no shame in these deceits, and, if remonstrance was made, began straightway to show fight. "They are inclined to do evil, and in their knavishness they exhibit a very great satisfaction in having done it; and truly whoever gave the name of island of Ladrones [robbers] was right; for they are robbers and boast of it, and are quite shameless and inclined to evil. They render account to no one, each man being sufficient to himself. Thus it was seen that, whenever the general gave some articles, such as beads, mirrors, and articles of barter, to the Indians who seemed to be the principals, they quarreled over who should take them, snatching them from one another and fleeing. And they were always looking for something to steal. They unfastened a large piece of one rudder blade in the *patache* 'San Joan,' and they tried to, and actually did, draw out the nails from the sides of the ships." [50] The vessels having anchored in a small cove for the purpose of refilling the water-butts, the natives showed hostility, discharging showers of stones from two sides, wounding some of the Spaniards, among others Captain Juan de la Isla, whereat the master-of-camp was sent ashore to remonstrate. The natives, in

consequence, promised to keep the peace. Repeated experiences proved that no confidence could be placed in these people; for they broke their word as soon as given. Legazpi took possession of this island "in the name of his majesty"; and the religious disembarked to say mass, and celebrated divine worship. [51] Several natives were captured and held as hostages, being well treated in each case. One escaped, although his legs were fettered with irons, by swimming; one hanged himself, and the others were set free. Urdaneta proposed that a settlement be made in this island, and a vessel despatched to New Spain, but Legazpi said this would be acting contrary to his instructions. Before leaving the island, however, a hundred men under the command of Mateo del Saz landed to inflict chastisement for the death of a ship-boy whom the natives, finding him asleep in a palm grove, whither he had gone while the water-butts were being refilled, had killed in a most barbarous manner. Four of the natives were captured, three of whom (all wounded) were hanged at the same place where the boy had been killed; and the other was, through the intervention of the priests, taken aboard the ship, in order to send him to New Spain. Many houses were burned, a damage, "which, although slight, was some punishment for so great baseness and treachery as they had displayed toward us, ... and was done, so that when Spaniards, vassals of his majesty, anchor there another time, the natives shall give them a better reception, and maintain more steadfastly the friendship made with them." "This island of Goam is high and mountainous, and throughout, even to its seacoast, is filled with groves of cocoa-palms and other trees, and thickly inhabited. Even in the valleys, where there are rivers, it is inhabited. It has many fields sown with rice, and abundance of yams, sweet potatoes, sugar cane, and bananas—these last the best I have seen, being in smell and taste far ahead of those of Nueva España. This same island has also much ginger, and specimens of sulphurous rock were found." The island had "no wild or tame cattle, nor any birds, except some little turtle-doves that are kept in cages." The natives

captured would not eat the meat offered them, nor "would they at first eat anything of ours." The natives were skilful fishermen, being able to catch the fish with the naked hands, "which is a thing of great wonder." "They are excellent swimmers. Their houses are high, and neatly and well made"—some, placed on posts of stone, served as sleeping-apartments; other houses were built on the ground, and in them the cooking and other work was done. They had other large buildings that served as arsenals for all in common, wherein the large boats and the covered canoes were kept. "These were very spacious, broad, and high, and worth seeing." The fleet left this island on February 3, and anchored on the thirteenth near the island of Cebú. Peace was made with the natives of one of the islands. Inquiries were made for Bernardo de la Torre, one of the captains of the Villalobos expedition, and they were given to understand that he was north from there. The natives, while professing friendship, brought their visitors but little food. [52] Legazpi, therefore, sent Juan de la Isla with a party to look for a good port. This party was gone six days, experiencing the usual treachery from the natives, who killed one of the men, who had disembarked without permission. Meanwhile another expedition was despatched toward the south, with the same object in view. Possession was taken of the island of Zibabao in the king's name. [53] On the twentieth of February the fleet set sail passing southward between a large island and a number of small islets. Next day they cast anchor off the large island in a large bay to which they gave the name San Pedro. [54] Here they learned that Tandaya, where they hoped to find the Spaniards still remaining in these regions from the Villalobos expedition, was a day's journey farther on. In this bay a native came to Legazpi's ship who could speak a few words of Spanish. They wished to send word to Tandaya and to buy provisions, but the natives, though good promisers, were tardy doers. Goyti was sent in search of Tandaya, while the general took possession of the island near which the ships were anchored. The latter, attempting to ascend to the native village,

encountered the hostility of the people. Government here was in "districts like communal towns, each district having a chief. We could not ascertain whether they had any great chief or lord." Goyti returned in ten days with news that he had found a large river which he was told was Tandaya. As they explored the coasts they were followed by the natives, who took every occasion of displaying their hostility. He had passed a large settlement called Cabalian. There was a good anchorage here, but no port; "and the Indians of Cabalian had golden jewels, and had many swine and Castilian hens which were near the shore and which could be seen from the boat." On the fifth of March the fleet sailed to this town, reaching it on the same day. Friendship was made with the natives in accordance with their special blood ceremonies [55] in such cases. Some boats, sent out next day under command of the master-of-camp, discovered the strait separating this island from Panay. The usual trouble was experienced by Legazpi in securing provisions, and it was necessary to despatch Goyti to the shore to take what was needed, but with orders not to harm the natives. Next day Legazpi sent to the shore what was considered the equivalent of the food thus taken, in beads and other articles, by a native who was on his vessel. The general learned from hostages aboard his ship the names of many of the islands. On the ninth of March the fleet set sail for Mazagua, being guided by one of these hostages. Failing to meet here the hoped-for friendship, they determined to go to the island of Camiguinin, [56] first setting free all the hostages, giving them back their canoe, provisioning it for three days, and giving many presents of clothes to them, in order by this liberality to contract a lasting friendship. On the eleventh of March the coast of this island was reached. This island "is very thickly wooded." The natives, as usual, fled. On the fourteenth the fleet set sail for Butuan in Mindanao, but owing to contrary winds, they were not able to sail that day beyond Bohol. The *patache* "San Juan" was despatched to Butuan from this place, to try to make peace with its king and the people; and the captain of this vessel was

ordered to treat well any junks he might meet from "China or Borneo, and other parts." The Malayan interpreter, Geronimo Pacheco, was sent in this vessel, and they were ordered to obtain as much information as possible in regard to trade. The time given them for this expedition was twenty-five days. News being received that a large sail had been seen, the master-of-camp was sent in a small boat to investigate. Two days later he returned, reporting that the junk was from Borneo, and that he had fought with it "for it would not listen to peace." In the end the junk surrendered, and was brought in a prisoner; but the enemy "had killed a good soldier with a lance-thrust through the throat," and had wounded twenty more. The men of the junk were Moros, and they had fought most valiantly, and "were determined to die." Legazpi gave the Moros their liberty, whereat they expressed many thanks; he gathered as much information as possible from them in regard to the islands and peoples of these regions. "The Moros told him that they carried iron and tin from Borneo, and from China porcelain, bells made of copper according to their manner, benzoin, and painted tapestry; from India pans and tempered iron pots." Among the captured Moros was the pilot, "a most experienced man who had much knowledge, not only of matters concerning these Filipinas Islands, but of those of Maluco, Borneo, Malaca, Jaba, India, and China, where he had had much experience in navigation and trade." The Moros being shown the articles of trade brought by the fleet, advised them to go to Borneo, Siam, Patan, or Malaca, where they could easily trade them, but "although we wandered about these islands for ten years, we could not dispose of so many silks, cloths, and linens." "This Moro told the general that two junks from Luzon were in Butuan, trading gold, wax, and slaves.... He said that the island of Luzon is farther north than Borneo." The Castilians learn that the hostility and fear of the natives of these islands is the result of a marauding expedition conducted by Portuguese, who had represented themselves to be Castilians. [57] With the aid of the Moro pilot peace and friendship were made with one of the chief

men of the island of Bohol; and now for the first time food was received in any quantity, many sardines especially being brought by the natives. Legazpi despatched one of the small boats to Cebú in order to make friendship and peace with its inhabitants, and to gather all possible information for the relation he was to send back to New Spain. They were guided by the Moro, who acted in the capacity of interpreter, as he knew the language of the natives. A negro "who had been in India and Malaca, and knew the Malay tongue" acted as interpreter between this pilot and the Spaniards. "The Borneans said that the Indians had two Spaniards, and that sometime ago they had given one of them to Bornean merchants; they did not know whether they had the other yet, or what had been done with him. The Portuguese had ransomed the one taken by the Borneans and had taken him to Malaca." As the men sent to Cebú did not return within the time appointed by Legazpi—they had been provisioned for but one week—a canoe of natives, who offered themselves, was sent to look for them. Meanwhile the "San Juan," which had been despatched to Butuan, returned without having accomplished the full object of its mission, namely, to procure information regarding cinnamon. The captain reported having "found at the port of Botuan two Moro junks from Luzon," with which they traded for gold and wax. The soldiers, hearing that the Moros had much gold in their junks, were insistent that they should seize them, alleging as an excuse the deceit practiced by the Moros in their trading. The captain would not permit this, and in order to avoid a collision with the Moros returned to the fleet, leaving part of his duty unaccomplished, for which Legazpi reprimanded him severely. The general, calling a council of his officers and others, consulted with them as to the advisability of colonizing one of the islands. All but the religious were unanimous that a settlement should be made on one of them, but the latter did not care "to deliberate upon this." [58] Questioned as to what island they preferred, if Legazpi should order a settlement made, they signified as their choice the island of Cabalian, where

although there was no port, a settlement could be made in the interior, as food was abundant there, and the return vessel to Spain could be easily provisioned. The unanimous opinion was that the "San Pedro" should return with news of the expedition to New Spain, as it was a lighter and better vessel than the "San Pablo." Nine days after their departure the canoe returned without news of the Spaniards sent to Cebú, which caused Legazpi great anxiety. That same night, however, these men returned alive and well, but the Moro pilot had been treacherously killed by some natives, while bathing in a river of the island of Negros. They had not anchored at Cebú, because of the violence of the tides about it. They had coasted about Negros and Cebú, and reported a large population and a plentiful food supply on the latter island. A council having been called it was determined that the fleet should go to Cebú, without delay, in order that they might make a settlement and despatch the "San Pedro" before the rainy season set in. Therefore on Easter Day the fleet set sail for this island, distant from Bohol fifteen or sixteen leagues. Being delayed by calms and contrary winds and the tides they did not reach their destination until the twenty-seventh and thirtieth of April. In conformity with the opinion that it was allowable to fight with the inhabitants of this island if they refused food and would not make a true friendship and peace—inasmuch as their chiefs had been baptized, and had afterward apostatized, and had treated Magalhães treacherously—Legazpi, after meeting with expressions of hostility and defiance, sent a party ashore to take the island. The natives immediately fled, and the soldiers were unable to find any of them on disembarking. "Their weapons are long sharp iron lances, throwing-sticks, shields, small daggers, wooden corselets, corded breastplates, a few bows and arrows, and culverins." About one hundred houses were burned, the fire having started from an accidental shot from one of the vessels, or having been lit purposely by the natives. The soldiers were quartered in the houses remaining after the fire. "There was found a marvelous thing, namely, a

child Jesus like those of Flanders, in its little pine cradle and its little loose shirt, such as come from those parts, and a little velvet hat, like those of Flanders—and all so well preserved that only the little cross, which is generally upon the globe that he holds in his hands, was missing. [59] Meanwhile, as was right, the general had this prize, and when he saw it, he fell on his knees, receiving it with great devotion. He took it in his hands and kissed its feet; and raising his eyes to heaven, he said: 'Lord, thou art powerful to punish the offenses, committed in this island against thy majesty, and to found herein thy house, and holy Church, where thy most glorious name shall be praised and magnified. I supplicate thee that thou enlighten and guide me, so that all that we do here may be to thy glory and honor, and the exaltation of thy holy Catholic faith.' And he ordered that this sacred image be placed with all reverence in the first church that should be founded, and that the church be called Nombre de Jesus ['Name of Jesus']. It gave great happiness and inspiration to all to see such an auspicious beginning, for of a truth it seemed a work of God to have preserved so completely this image among infidels for such a long time; and an auspicious augury in the part where the settlement was to be made." On May 8, the fort was commenced, Legazpi breaking the first ground, and "dedicating it to the most blessed name of Jesus." [60] The sites for the Spanish quarters and the church were chosen, and the town was called San Miguel, because founded on the day of this saint's apparition. That night the natives returned, setting fire to the remaining houses, so that the whole town was in danger of being burnt, with all the goods brought ashore from the ships. The site of the house wherein had been found the sacred image was selected "as the site of the Monastery of the Name of Jesus ... and from the said house the child Jesus was brought to the ... church in solemn procession, and with the great devotion, rejoicing, and gladness of all the men. Arriving at the church, they all adored it, and placed it on the principal altar, and all vowed to observe, sanctify, and celebrate solemnly as a feast

day each year, the day on which it had been found, April 28. [61] And in addition a brotherhood of the most blessed name of Jesus was established in the same manner, under the conditions of that of San Agustin of Mexico, the majority of the people entering as members and brothers." In this procession took part a number of natives under two chiefs who professed friendship to the Spaniards. Finally peace and friendship was made between Legazpi and the greatest chief of the island, Tupas; and it was arranged that tributes should be paid in produce, since the people had no gold—not because of "any necessity the King of Castilla had of it" but merely as a tribute and token that they recognized him as their lord. But, perhaps through the maliciousness of the Moro interpreters, this peace was not concluded or kept; and certain of the natives, finding one of the company, Pedro de Arana, alone, killed him and cut off his head. "In this manner do the Indians of these islands keep peace and friendship, who in our presence refuse or deny nothing; but twenty paces away they keep nothing that they have promised. They have no knowledge of truth, nor are they accustomed to it. Therefore it is understood, that it will be very difficult to trade with them in a friendly manner, unless they understand subjection or fear." On the twenty-seventh of May, Legazpi ordered that the roll of those remaining be taken, in order that it might be sent to New Spain. Certain men of gentle birth, headed by one Pedro de Mena, objected to serving as Legazpi's body-guard, saying that such was the duty of servants. The master-of-camp hearing this, disrespect to the general, chided them, and sentenced them to serve in the companies. In revenge for this some one set fire to the house in which Legazpi's personal effects had been stored. The fire was put out and the danger averted with difficulty, during which "some of the soldiers were burned and hurt." De Mena and Esteban Terra were arrested, and the latter was given a hearing and found guilty. He was executed next morning. "From this it will be seen that not only are there enemies outside, but even in the very camp itself ... and it will be seen how necessary and suitable is

the aid that must come from Nueva España." (Tomo ii, no. xxvii, pp. 217-351.)

Zubu, May 28, 1565. Andrés de Mirandaola writes to the king various details of the expedition. "The products we have seen as yet among the natives, are gold, cinnamon, and wax; and their trade consists in these articles. And we are certain that these things can be had in abundance if your vassals, the Spaniards, cultivate the friendship of this land, for the aforesaid natives ... are a people who live without any restraint, neither regarding nor respecting those whom they designate as their seigniors.... It will be necessary for your majesty to conquer this region, for I believe without any doubt, that by no other way can it prove beneficial; nor can the Christian religion be otherwise advanced, because the people are extremely vicious, treacherous, and possessed of many evil customs. Therefore it is necessary for your majesty to order the conquest of this region, which can be done, with our Lord's aid, without much loss, if your majesty order people, arms, and ammunition to be provided, of all of which we suffer great lack at present." He tells of the damage inflicted on the Spanish in these regions by the Portuguese. Speaking of the Moro junks found at Butuan, Mirandaola says of the island of Borneo: "This island of Borneo is rich, according to what we have heard of it. It is well populated and is very well fortified, having much artillery. Its people are warlike, and there is much trade in all parts of it." A brief account of the Spanish establishment on Cebú follows, and the consequent communications with the natives, which differ in no respect from other accounts. "Fray Andrés de Urdaneta, my uncle, is returning, and is going to serve your majesty in this discovery; and for his companion goes Fray Andrés de Aguirre. As captain goes Felipe de Salcedo and Juan de Aguirre, persons whom we know will serve your majesty with all fidelity, faith, and cheerfulness." He asks (in addition to the "two hundred well armed and equipped men" requested from New Spain) from the king "six hundred well armed men ... of whom four hundred

should be arquebusers and two hundred pikemen; large artillery, such as culverins, with ammunition; and ammunition and weapons for those who are here now. The people should be the best that can be found and of good lives." He asks the king to confirm the reward granted him by Velasco, and to increase his salary to three thousand ducats on account of the high cost of living. (Tomo ii, no. xxxii, pp. 365-372.)

Relation of the expedition by Estevan Rodriguez, chief pilot of the fleet. This relation seems to have been the log kept by this pilot. Many of its entries are simply reckonings. He gives the names, tonnage, captains, and pilots of the different vessels. On the nineteenth of November the banner and standard were consecrated, and the oath taken. The fleet set sail four hours before dawn on November 21, [62] On Sunday, the twenty-sixth, the course was changed in accordance with the sealed instructions given to Legazpi. The "San Lucas" separated from the fleet December 1. On the eighth, Diego Martin, pilot of the "San Pablo," reported land but he was in error. Next day an island was sighted, in which there were "about one hundred Indians, a people well built and with long beards," for which the island was called Barbudos. "The women have pleasant faces, and these people are as dark complexioned as mulattoes. The women have little gardens. They have certain roots from which they make excellent bread, for I have tried it." [63] On the tenth they passed and named the islands Placeres and San Pablo. Other islands were passed on the twelfth and fifteenth. On the twenty-second they sighted a mountainous island to the south, whose inhabitants saluted them as "chamurre, chamurre," [64] or that is, "friends, friends!" This was the island of Guam. They found it to have a good bay and good rivers of fresh water. The products of this island are named, the people described, and the troubles there briefly enumerated. "The master-of-camp and Martin de Gueyte, with one hundred and fifty men, sacked and burned two villages." During the eleven days spent here "masses were said each day." Numerous words of the language spoken are

recorded: Friend, *chamor*; good, *mauri*; hereabout, *baquimaqui*; pleasant to the taste, *mani*; take, *jo*; oil, *rana*; rice, *juay*; land, *tana*; dry cocoa, *micha*; señor, *churu*; fresh cocoa, *mana*; iron, *yrizo*; botija [a species of jar], *o*; gourd, *coca*; ship, *botus*; nail, *yuro*; salt, *azibi*; sugar-cane, *tupotipor*; fish, *bian*; no, *eri*; salt fish, *azuiban*; yam, *nica*; small, *segu*; wood, *tagayaya*; green banana, *regue*; water, *ami*; tamal, *enft*; banana, *jeta*; acorn, *puga*; net, *ragua*; pictured paper, *tricabo-tali*; eyes, *macha*; rock, *rapia*; ears, *perucha*; paper, *afuipuri*; teeth, *nifi*; palm-leaf mat, *guafal*; hair, *chuzo*; ginger, *asinor*; hands, *catecha*; she, *reben*; foot, *ngmicha*; osier basket, *pian*; beard, *mimi*; deep, *atripe*; leg, *achumpa*; crab, *achulu*; this, *achi*; petaca [a leather covered trunk or chest], *agu*; pitcher, *burgay*; come here, *hembean*; star, *vitan*; moon, *uran*; sun, *afaon*; to eat, *mana*; large, *riso*. Their numbers up to ten are: *acha*, *gua*, *tero*, *farfur*, *nimi*, *guanan*, *frintin*, *gua [sic]*, *ãgua*, *manete*. On the fourteenth of February, 1565, they sighted the Philippines. Describing the natives, Rodriguez says: "these Indians wear gold earrings, and the chiefs wear two clasps about the feet.... All the body, legs, and arms are painted; and he who is bravest is painted most." Juan de la Isla was sent with one of the small vessels to reconnoiter a large and excellent bay at some distance away. There he made blood-friendship with the natives, but one of his men was treacherously killed. Rodriguez's reckonings were taken according to the Mexican rather than the Spanish rules. Rodriguez and Goyti were commissioned to explore among certain of the islands in order to find safe channels for the ships. They found one such between Panay and another island. They passed Tandaya and Cabalian during their ten days' cruise, and the fleet, in consequence of their report sailed to the latter place. The treacherous conduct of the Portuguese to both Spaniards and natives is discovered. "The general determined to go to Betuan, which is a very rich island, whence much gold is brought," and anchor was cast before Bohol, from which place Legazpi despatched Juan de la Isla to explore westward, and Martin de Goyti eastward. A small boat was despatched under

Rodriguez "to discover some islands that could be seen from here. We went in the frigate, fifteen men and one Indian, who knew the language, the pilot of a junk captured by the master-of-camp and Captain Martin de Goete." This detachment coasted among various islands, among them Licoyon and Binglas. [65] They were blown out of their course by a storm. A *prau* was sighted, but its occupants took flight, ran their vessel ashore, and hid on the island. The Spaniards went to the *prau*, and found therein a "little Indian girl of about three years, very pretty. She was hanging over the edge of the *prau* with her body in the water, and screaming. When we came and wished to take her, she slipped into the water and would wellnigh have drowned, had not one of our men leaped in after her." Shortly after this a battle with other natives was averted only by the wind blowing off the covering to their two pieces of artillery, at sight of which the natives fled in confusion and hid themselves. The inhabitants showed themselves hostile at all points and the Spaniards had several narrow escapes on this island of Negros. From here they crossed to the island of Cebú. "This Cibuy is a fine island, about sixty leagues in circumference and thickly populated.... We found fourteen or fifteen villages on its sea-coast.... We did not dare to go ashore, although we were in need of food." The detachment returned to the fleet after twenty days, although they had been ordered only to cruise during six. The natives and two soldiers sent to look for these men had missed them by going to the opposite side of the island from that where Rodriguez had been. The fleet set sail for Cebú, where after landing they found the village deserted. Legazpi ordered that each mess of four soldiers should take one house and the rest of the houses be destroyed. Everything was removed from the houses before any were destroyed. The general ordered that a thick set palisade of stakes be built, including therein a few wells of fresh water. "This village was built in triangular shape, with two water-fronts and one land side." The artillery was placed to defend the coast, while the Spaniards relied on the palisade for protection on the land side, until the fort could be built.

Companies were sent out to scour the country for food, and "always brought back fowl, hogs, rice, and other things ... and some good gold." The natives to the number of one hundred came to make peace one day. "In this town when we entered we found therein a child Jesus. A sailor named Mermeo found it. It was in a wretched little house, and was covered with a white cloth in its cradle, and its little bonnet quite in order. The tip of its nose was rubbed off somewhat, and the skin was coming off the face. The friars took it and carried it in procession on a feast day, from the house where it was found to the church that they had built." The natives were told that they thus honored the child Jesus. "After the mass and the sermon, the general went to treat with the king for friendship, telling him that we came thither for the King of Castilla, whose land this was, who had sent other people here before, and that they had been killed—as, for instance, Magallanes (and when Magallanes was mentioned, the king was much disturbed); but that he pardoned everything, on condition that you be his friends." To this peace the natives acceded, but as in other instances only for the moment; they failed to return at the appointed time to conclude the preliminaries, and killed one of the Spaniards. A body of men was sent out who captured more than twenty of the natives, among them a niece of the king, which was the means of getting into friendly touch with the people once more. The "San Pedro" was ready now to set out on the return trip to New Spain being well supplied with provisions for more than eight months. "Two hundred persons, with ten soldiers and two fathers, the father prior, and father Fray Andres de Aguirre," sailed with it on the first of June. (Tomo ii, no. xxxiii, pp. 373-427.)

1565. Log of the return voyage to New Spain kept by Rodrigo de Espinosa. [66] This man was the pilot of the small vessel "San Juan," commanded by Juan de la Isla. He was ordered to accompany Estevan Rodriguez on the return passage of the "San Pedro," under the command of Felipe de Salcedo. Setting sail on June 1, from the "Port of Zubu, ...

between the island of Zubu and the island of Matan, this latter island being south of Zubu," the "San Pedro" took a general northerly and easterly direction. The passage through the islands is somewhat minutely described. On one island where they landed to obtain a fresh supply of water, they saw "two lofty volcanoes." This island they named Peñol ["Rock"]. On June 10 the island of Filipina was reached, whence the trip across the open Pacific was commenced. Often the direction of the wind and the reckoning of the sun, are chronicled—also the days' runs, which vary between five and forty-five leagues. June 21, Corpus Christi Day, a headland was sighted on the starboard side, which had the appearance of a ship at anchor, and to which the name Espíritu Santo ["Holy Ghost"] was given. By September 15, Cebú lay fifteen hundred and forty-five leagues toward the west. On the eighteenth an island on their starboard side was named Deseada ["Desired"], and the log reads sixteen hundred and fifty leagues from the point of departure. On Saturday, the twenty-second, land was sighted; and next day the point of Santa Catalina, in twenty-seven degrees and twelve minutes north latitude, received its name. From that point they coasted in a southeasterly direction along the shores of southern California to its southern point in "twenty-three degrees less an eighth," naming the headland here Cape Blanco, from its white appearance. Near this place died the master of the vessel, "and we threw him into the sea at this point." On the twenty-seventh the chief pilot "Esteban Rodriguez [67] died between nine and ten in the morning." The small islands southeast of Lower California were passed and it was estimated that they were in the neighborhood of cape Corrientes. On the thirtieth, cape Chamela was passed; and on the first of October, the "San Pedro" lay off Puerto de la Navidad; the chart showing a distance of eighteen hundred and ninety-two leagues from Cebú. "At this time I went to the captain and said to him, that I would take the ship wherever he ordered, because we were off Puerto de la Navidad. He ordered me to take it to the port of Acapulco, and I obeyed

the order. Although at that time there were but from ten to eighteen men able to work, for the rest were sick, and sixteen others of us had died, we reached this port of Acapulco on the eighth of this present month of October after all the crew had endured great hardships." (Tomo ii, no. xxxiv, pp. 427-456.)

Following this relation is a document showing the estimates made by the two pilots and the boatswain, by command of the captain, of the distance between Cebú and Puerto de la Navidad. The first estimate was made on July 9. The map of the chief pilot was found to measure eighteen hundred and fifty leagues, but in his opinion the distance was about two thousand leagues. Rodrigo de la Isla Espinosa [68] declared that an old map in his possession showed more than thirteen hundred and seventy leagues, [69] but he increased the amount to about two thousand and thirty leagues. Francisco de Astigarribia's map measured eighteen hundred and fifty leagues, but his estimation was about two thousand and ten leagues. On September 18 the same three men estimated the distance from Cebú to the first land sighted—"an island off the west coast of New Spain" and lying in about thirty-three degrees—at seventeen hundred and forty leagues sixteen hundred and fifty leagues, and sixteen hundred and fifty leagues respectively; the highest point reached had been a fraction over thirty-nine degrees. (Tomo ii, no. xxv, pp. 457-460.)

1565-1567. Relation of occurrences in the Philippines after the departure of the "San Pedro" to New Spain. [70] To a Moro who presented himself as a deputy from the chief Tupas, Legazpi expressed his sorrow that the natives were fleeing to the mountains, and would not give credence to the friendship and peace offered them in the name of the king, by the Castilians. Word was sent to Tupas that Legazpi regretted the necessity of warring with the natives, and that, when they wished to return, they might do so peaceably. Although they treacherously had killed a Spaniard, he, on

his part, had treated well the two women and two children captured by him, and would restore them freely to their husbands and fathers, without ransom, whenever they chose to return to ask his pardon and to make peace. That same afternoon two chiefs—one of whom, Simaquio, was the husband of one of the women and the father of the two children—came into the fort. They declared themselves to be brothers of the chief Tupas. Simaquio "came to deliver himself to the governor, saying that the latter could do what he wished with him and his, and that he should hold them as slaves, or sell them in Castilla, or do what he pleased with them." Legazpi permitted him to see his wife and daughters, telling him "that he had been as watchful of their honor, as if he had kept them in his own house." Simaquio signified his desire "to be ... the friend and vassal of the king of Castilla, and to have perpetual peace and friendship, and that he would never be found lacking in it." To this Legazpi replied that it was necessary to treat with Tupas and the others jointly, "and that in this manner it would be ascertained who wished peace and friendship, and who did not; that he [Simaquio] should go and confer regarding peace and friendship with Tupas and the other chiefs; and that after such talk and conference, and getting the opinion of all, they should return to finish these negotiations and conclude the matter. Meanwhile his wife and daughters would receive good care and treatment, and he could rest assured that after peace had been made, he [Legazpi] would be their father and they his children, and he would look, after them and protect them as such." This good treatment reassured the natives, and a few days later Tupas appeared and a treaty of peace was made, the conditions of which follow. "First, they make submission, and bind and place themselves under the dominion and royal crown of Castilla and of his majesty, as his natural vassals, promising to be faithful and loyal in his service, and not to displease him in any way. They promise to observe, fulfil, and obey his royal commands as their king and lord; and to obey, in his royal name, the governor and captain residing in these islands, and to

receive the latter whenever he should come to their islands, towns, and houses—whether he were angry or pleased, whether at night or day, whether for peace or for war, without any resistance or hostility, to fulfil his commands, and not to withdraw themselves from this dominion, now or in the future. This they promised for themselves and their future descendants, under risk of falling under and incurring the penalties which should be imposed in case of treachery and treason against their king and lord.

"Item: on condition, that the chief who killed Pedro de Arana by treachery should not enjoy this peace and friendship, until he had appeared before the said governor to make his plea, and whose punishment the said governor said he reserved for himself." The said Tupas and chiefs declared that they accepted this condition; and that, if they could, they would bring this man to his lordship so that he might be punished.

"Item: on condition that, if the said Tupas and chiefs asked the said governor for the aid of his men against any Indians hostile to them, who were making or should make war upon them, the said governor was obliged to give them aid, protection, and reenforcement of men for it. Likewise if the said governor should request people from the said Indians, they would be obliged to volunteer to fight against his enemies. All the spoils taken when the said Spaniards and Indians were acting in concert should be divided into two equal parts, of which the said governor and his people were to have one part, and the said natives the other.

"Item: on condition that, if any Indian, a native of this island, should commit any crime or wrong against any Spaniard, or take anything pertaining to and connected with the Spaniards, the said chiefs would be obliged to arrest him and bring him as a prisoner to the governor, in order that he might be punished, and justice done. And if any Spaniard should do any wrong or damage to the natives, or take anything belonging to them, the

said chiefs and natives were to notify the said governor, and show him the proofs thereof, so that he might punish the wrong, and execute justice according to law.

"Item: It is a condition that, if any slave or other person flee from the Spanish camp, and should go inland where the Indians live and inhabit, the said chiefs and natives be obliged to arrest him and bring him before the governor; likewise if any Indian, man or woman, free or slave, come to the Spanish camp from the Indians, that the said governor promises to send him back and surrender him—so that neither side defraud or hide anything from the other.

"Item: It is a condition that the said chiefs and natives shall be obliged, in selling to the Spaniards any or all provisions native to their land, and which they may wish to sell the latter, to demand only the just prices current among them, and those usually imposed by them, without advancing the price above its usual value. This price shall be fixed and understood, now and in future, and there shall be no change in it. Likewise the said governor shall fix moderate rates on the articles of barter brought from Spain for the natives. After these prices are fixed, neither side may advance them.

"Item: It is a condition that none of the said natives may, now or at any time, come into or enter the camp and settlement of the Spaniards with any weapons of any kind whatever, under penalty that the person entering with weapons shall be punished by the governor." In return for these conditions of peace, thus accepted by the natives, Legazpi promised that, for this first year, they need pay no tribute or other submission until after their harvests, "for the king of Castilla had no need of their possessions, nor wished more than that they recognize him as lord, since they were his and within his demarcation." In token of submission, Tupas and all the other chiefs present bent the knee before Legazpi, "offering themselves as vassals of his

majesty," whom the governor ... received as such vassals of the crown of Castilla, and promised "to protect and defend as such." As a climax, presents of garments, mirrors, strings of beads, and pieces of blue glass were given to the various chiefs. Then Legazpi told them of the necessity of the king's having "a strong house, wherein could be kept and guarded the articles of barter and the merchandise brought thither, and his artillery and ammunition;" as well as a town-site for the soldiers. These the natives should assign, where it best pleased them, "because he wished it to be with the consent and choice of all of them; and although he had planned the house of his majesty on the point occupied at present by the camp, in order to be near the ships, he wished it to be with their universal consent." This place was granted by the natives, whereupon Legazpi proceeded to mark out land for the fort and Spanish town, assigning the limits by a line of trees. All outside this line "was to remain to the Indians, who could build their houses and till the fields." After ordering the natives "to go to the other side of the line which he had assigned to them, and the Spaniards ... within the line ... the governor passed from one part to the other, cut certain branches, and said that, in his majesty's name he took, and he did take; possession of that site, ... and in token of true possession he performed the said acts." Besides not being allowed to enter the Spanish town with arms, no native could come hither at night, unless by special permission. Legazpi promised that "if any wrong should be done them, or they should experience any violence from any one, he would defend and protect them as their own father and protector," and that all wrongs would be punished according to Castilian laws. In conclusion a collation was given to the natives, and Simaquio's wife and daughters were surrendered to him and the other hostages set free, "whereat they expressed great wonder and joy, because it is unusual among them to free prisoners without any ransom." "The next day ... the same chiefs returned ... and said that they had come to make merry with the governor. The latter gave them a good reception,

and set before them a breakfast and some liquor, in which consists their way of making merry." They brought other chiefs who submitted to the Spaniards, and later still other chiefs came in. Trade began to flourish as the natives recovered from all fear and returned to their former haunts. Among other things the natives traded "a great quantity of palm wine, to which the Spaniards gave themselves with good appetite, saying that they did not miss the wine of Castilla. But because of the risk and trouble that might arise therefrom, the governor ordered that wine should not be brought or sold within the camp, and that the Spaniards should not buy it. He told Tupas and the chiefs that, as the Spaniards were not accustomed to this land, and were but recently come thither, it was not good for them to drink this wine, and that some of them had become sick. And he asked that Tupas neither consent to it, nor bring wine to the Spaniards." The traffic still went on nevertheless, "secretly and at night," and the Spaniards gave themselves up to it entirely, saying "that it was better than that of Castilla." Moreover, the women prostituted themselves freely throughout the camp, an evil which Legazpi, although he posted sentinels, was unable to stamp out. Finally he announced to the native chiefs that only men should do the trading in the camp; and if the women did any trading he would assign them a public place as a market, and the latter should enter none of the Spanish houses. The chiefs replied "that those who came to sell and trade were slaves and not married women, and that he should not concern himself about it nor take it ill, for such was their custom, and that married and honorable women did not go to the camp; although the contrary of this was seen and understood afterwards. For the Indians going outside the village, as they do continually, to trade beside the sea, many of the wives and daughters of the chiefs came to the camp along with the other women, and thus went through the camp, visiting with as much freedom and liberty as if all the men were their own brothers. Thus it was seen and discovered later that this is one of their customs, and is exercised with all strangers from the outside.

The very first thing they do is to provide them with women, and these sell themselves for any gain, however slight" The natives are described as covetous and selfish, without neatness and not cleanly. "It has not been ascertained whether they have any idols. They revere their ancestors as gods, [71] and when they are ill or have any other necessity, they go to their graves with great lamentation and commendation, to beg their ancestors for health, protection, and aid; They make certain alms and invocations here. And in the same manner they invoke and call upon the Devil, and they declare that they cause him to appear in a hollow reed, and that there he talks with their priestesses. Their priests are, as a general rule, women, who thus make this invocation and talk with the Devil, and then give the latter's answer to the people—telling them what offerings of birds and other things they must make, according to the request and wish of the Devil. They sacrifice usually a hog and offer it to him, holding many other like superstitions in these invocations, in order that the Devil may come and talk to them in the reed: When any chief dies, they kill some of his slaves, a greater or less number according to his quality and his wealth. They are all buried in coffins made out of two boards, and they bury with them their finest clothes, porcelain ware, and gold jewels. Some are buried in the ground, and others of the chief men are placed in certain lofty houses." [72] Legazpi ordered that in future no slaves be killed at the death of their chiefs, an order which they promised to obey. The natives desired to procure iron in their trading, but Legazpi ordered that none be given them by anyone. However, the trade was continued secretly, the iron being concealed in clothing, even after some of the men had been punished. By various dealings with the natives Legazpi discovered that they were deceiving him in regard to other natives of Cebú and the island of Matan; they had said that these men would make peace and friendship, but they never appeared. The inhabitants of Matan had always been hostile to the Spaniards, "saying that they would kill us, or at least would drive us away by hunger." One day

Tupas told the governor that "his wife and daughters would like to come to see him, because they had a great desire to know him. He replied that he would be very glad and that Tupas should bring them whenever he wished; accordingly, Tupas did so after a few days. Their manner of coming was such that the women came by themselves in procession, two and two, the chief one last of all. After this manner came the wife of Tupas with her arms on the shoulders of two principal women, with a procession of more than sixty women, all singing in a high voice. Most of them wore palm-leaf hats on their heads, and some of them garlands of various kinds of flowers; some were adorned with gold, and some with clasps on their legs, and wearing earrings and armlets, and gold rings on their hands and fingers. They were all clad in colored petticoats or skirts and shawls, some of them made of taffety." The usual good cheer followed, and presents were made to all the women. The same good treatment was accorded to the wives of other chiefs who visited the settlement in the same manner. Legazpi "after his arrival in these islands, tried always to put the minds of the natives at rest, not allowing them to receive any wrong or hurt, or permitting that anything belonging to them should be taken from them without being paid for ... principally in this island of Zubu, where he thought to live and dwell permanently among the natives." A few days after the coming of Tupas's wife and the other women, he sent his niece to Legazpi. She was the first native to receive baptism, "although the father prior made her wait some days, enforcing upon her mind what it meant to be a Christian, and what she must believe and observe after her baptism." She was named Isabel, and married Master Andrea, a Greek calker, a few days after. Her son, aged three, and two children, a boy and a girl, of seven and eight years respectively, also received baptism. Other Indians came, in imitation of Isabel, asking baptism; and seven or eight infants who died received the holy rite that ensured them entrance into heaven. After being two months in Cebú, Legazpi, although pushing the work on the fortifications as rapidly as

possible, sent out, in order to keep his part of the treaty, contingents of men with the natives, at two different times, to aid the latter against their enemies. The weapons and warlike qualities of the Spaniards gained them great prestige and inspired great terror throughout all the islands. About this same time "seven or eight Moros, whose chief was called Magomat, [73] came in a canoe to the camp, declaring themselves to be natives of the island of Luzon; and asked the governor for permission to come to this village to trade with a *prau* which was stationed near this island. They said that if the Spaniards would trade with them, they would be very glad to have junks come from Luzon with much merchandise for the Spanish trade." They had learned of the Spanish settlement through a Moro who had been sent to Panay to buy rice for the fort, and that "they did no harm to anyone, and were possessed of a great quantity of silver and small coins; therefore they had come to find out our manner of trading." One of the Moros happening to sneeze while trading for pearls, said "that they could not buy; that that was their custom, and if they did, they would sin therein." Through these Moros the natives of Cebú learned to demand *tostones* [a small coin] in exchange for their articles of trade, which was a loss to the Spaniards; but the latter laid in a good supply of provisions, by the aid of these same Moros. By the latter, Legazpi sent word to the king of Luzon of his residence in the islands and his desire to meet him and "deliver the message he bore to him from his majesty; and requested that he send him for this, a trustworthy person, or allow him to send some Spaniards thither to treat with the same king." These Moros induced two small "junks from Venduro [Mindoro] which is an island near Luzon" to come to trade at Cebú, having told them of the good treatment afforded them. These latter carried "iron, tin, porcelain, shawls, light woolen cloth and taffety from China, perfumes, and other knick-knacks." The master-of-camp and Martin de Goyti were sent with a body of men to obtain provisions among the neighboring islands, in the month of September of 1565. Guided by certain

chiefs of Cebú, they visited an island to the west, inhabited by blacks who lived in a town called Tanay, stopping on the way at a village, hostile to Cebú, where they obtained some food. The people of Tanay fled at their approach, and the little food found there was sent to Legazpi; while the two leaders remained at the island some days in a fruitless endeavor to make peace and friendship with the natives. On All Saints' Day "about the hour of mass" some twenty houses were burned in the Spanish settlement, "among others that where the religious slept, and the hut where mass was said," and many goods were burned. "It could not be proved whether this fire was set, or happened through carelessness." It having been discovered that the inhabitants of Matan and Gavi who would not make peace with the Spaniards, but were friendly to the natives of Cebú, came freely to that island, and even entered the Spanish settlement, the master-of-camp and Goyti were despatched to Matan to receive the homage of the chiefs or to make war upon them. Warned by the natives of Cebú, those of Matan fled. The invaders burned their village, for which the natives threatened retaliation, saying they would burn the houses of the Spanish settlement. Meanwhile the food problem assumed threatening dimensions, and the men became discontented and began to grumble because they were not allowed to take anything from the natives without pay. "And although the governor and captains, the religious and other chief persons ... tried to encourage them with good words and promises," a mutiny was arranged among certain men, which, "if God in his infinite mercy had not caused it to be discovered, might have caused great loss and trouble." Certain of the petty officers (some of them foreigners), and some of the soldiers and servants, conspired to seize the "San Juan," and, making first a cruise through the islands, to seize "the junks of Borneo, Luzon, and Venduro, trading among these islands." Then they planned their course by way of the Strait of Magellan to New Spain, Guatemala, or Peru, or to Spain or France. If the weather were contrary then "they would go to Malaca, where the

Portuguese would receive them with open arms ... because they had fled from this camp and settlement." All officers had been selected. The mutiny had every appearance of succeeding, for the master of the "San Pablo" had in his care all the artillery, powder, and ammunition aboard the ship. The twenty-seventh of November was set for their desertion, and to avoid pursuit the "San Pablo" and the frigates that had been built were to be sunk. The date, for some unknown reason, was postponed until the twenty-eighth. On that day the master of the "San Pablo" divulged the conspiracy to the master-of-camp, who immediately informed Legazpi. Pablos Hernandez, a native of Venice, the head of the conspiracy, fled, first making an ineffectual attempt to assume the ecclesiastical garb, in order that he might escape with his life. Finally "he determined to die as a Christian, in order that his soul might not be lost;" he gave himself up, and was hanged. The French pilot Pierres Plin, and a Greek were also hanged. The others were pardoned after being severely reprimanded. More than forty persons were implicated in this conspiracy. "The governor imposed only one order upon the foreigners, namely that none of them should speak any other language than Spanish." It was discovered that some of these men had conspired while at Puerto de la Navidad to make off with the "San Lucas," and that one night the sails had been lowered on the "San Pablo" under pretext that Legazpi's ship had done the same, the intention being to desert. Through the promptness of the master-of-camp, who threatened to hang the pilots if they lost sight of the "San Pedro," the conspiracy was foiled. The mutiny suppressed, attention was given to securing food. Five *praus* of natives set out for the province of Baybay, taking with them articles of barter—Legazpi preferring that natives should go on this errand, as he feared that the Spaniards would wrong the islanders. These men delayed, as well as those who went to Panay, and it was thought, purposely, believing that the Spaniards would be driven from the island by hunger. So great was the famine that cats and rats were eaten by some of the soldiers. Goyti was sent with a number of small boats and a

detachment of one hundred men to the villages hostile to those of Cebú, with orders to buy food and try to procure peace and friendship with the natives. He sent back several boat-loads of food, and on his own coming announced peace with five villages. Finally the natives who had gone to Panay returned, after three months' absence, bringing many excuses and but little food. Meanwhile news came from Baybay, where many of the former inhabitants of Matan and Gavi had sought refuge, of hostile excursions against the town of Mandam, an ally and friend of the Spaniards. These people from Baybay carried their insolence so far as to say they would burn the Spanish settlement. Legazpi sent two chiefs to Baybay to demand the release of the prisoners taken at Mandam. The messengers were scoffed at, and the marauders returned to Mandam in greater force, where they committed many depredations and made many prisoners. Legazpi determined to teach these arrogant natives a lesson, and ordered the master-of-camp to go thither; but granted a few days' delay at the petition of the Cebú natives, who said that many of their men were at Baybay, as well as those despatched thither to secure food. During this delay the master-of-camp and Martin de Goyti were sent to the islands where the latter had been shortly before, and where he had made peace with certain villages. This peace was confirmed and the inhabitants of fifteen or sixteen other villages "offered themselves as vassals of his majesty, some of whom gave millet and rice ... and others gave earrings of little weight ... and this was the first gold that was given in these islands to his majesty." All the natives of these islands have no idea of honor among themselves, always being ready to take advantage of each other's misfortunes—as was apparent by those of Cebú, who were friendly to the inhabitants of Mandam, robbing and sacking that town, when its people fled from the raiders of Baybay. The master-of-camp having returned from his expedition among the friendly villages, set out for Baybay, under guidance of Simaquio. This latter guided them, not to the chief city, where the prisoners from Mandam had been

taken, but to the small and unimportant village of Caramucua, which was found deserted. At the town of Calabazan the Spaniards were duped by the few natives found there, who claimed to be natives of Cebú, and asked the invaders to wait two days and they would bring the chiefs of this town to make peace and friendship. The two days having elapsed, and no natives appearing, the Spaniards marched inland, being deserted by all the natives of Cebú, who said that "these were their friends, from which it was quite apparent that they were all hand in glove with one another." A three or four leagues' march resulted only in the killing of a few hogs, the firing of the native huts, and the capture and hanging of several natives. The only salutary result of the expedition was the return of a number of the inhabitants of Cebu who had migrated to Baybay because they did not wish to acknowledge the Spanish rule; asking pardon of Legazpi, these natives of Cebú were permitted to return, but the same favor was denied those from Matan and Gavi. Legazpi's policy was always to treat the people of Cebú with more than fairness, in order to retain their friendship, although he was fully aware of their duplicity toward him. Numerous expeditions in search of food were organized. The master-of-camp with seventy men, and accompanied by Juan de la Isla and the king's factor was despatched to the coasts of Butuan in search of sago, whence they returned after a long delay, and after they were half given up as lost; having failed to obtain provisions at Butuan, the commander of the expedition had gone on farther, overstaying his limit of forty days. On his return he brought more than one thousand *fanégas* [74] of rice. He brought cheering news of the friendliness of the natives, and of the taking possession in the king's name of "Vindanao [Mindanao], and the coast of Botuan, Negros, and Panay." Another expedition under command of Goyti was despatched to Negros with additional orders to procure news of the former expedition, but his quest was useless. Meanwhile a messenger brought word that the master-of-camp was going to Panay, and would return as soon as possible. Before the return

of the master-of-camp, Goyti was sent on another expedition to the coasts of Cabalian and Abuyo, taking with him sixty men. He was successful, sending back several boat-loads of rice, and news that the people of these districts were friendly,—although not much confidence could be placed in their friendship, for only a league from Cabalian five of his men had been treacherously murdered, and another time two more had shared the same fate. The master-of-camp having returned meanwhile, Legazpi sent a reenforcement of thirty men to Goyti with orders to explore the strait between Abuyo and Tandaya. At the mouth of this strait, news was had of a Christian "named Juanes, who had lived with the Indians for more than twenty years, and had married the daughter of a chief, and that he was painted like the other natives." Although an effort was made to obtain definite news in regard to this man, it was unsuccessful; and Goyti, falling ill of fever, was obliged to return without ransoming him. He brought as captives two chiefs whom he caused to be seized. While the camp was weakened by the absence of so many men on these expeditions, the malcontents at the settlement took occasion to attempt another mutiny. The ringleader was a certain soldier named Carrión, who had been pardoned by Legazpi after being "condemned to death by the master-of-camp for a certain crime." He was exposed by a Frenchman, who, like Carrión, had been implicated in the previous mutiny. It was planned to get to the Moluccas, "where they would receive all courtesy." A boat was to be seized from certain Moros of Luzon, and other depredations, to ensure sufficient food, etc., were to be committed. Carrión and one other were hanged. The former "knew but little, but presumed to know it all, and talked too much, so that the majority of his acquaintances shunned his conversation." The master-of-camp was sent with a number of men to attempt the ransom of Juanes from the natives, with orders to stop on the way at Eleyti to ascertain the cause of the delay of a certain Pedro de Herrera who had been sent thither to obtain resin for pitching the ships. When this latter returned he

bore a letter from the master-of-camp to the effect that Herrera had gone beyond his instructions. The latter was thereupon arrested and tried. This man brought news of three Spaniards who were held in the island of Tandaya who had been captured from a vessel within fourteen or fifteen months. Legazpi immediately sent this information to the master-of-camp, in order that he might ransom those men as well as Juanes, but the messengers failed to find that officer. Juanes proved to be not a Spaniard, but a Mexican Indian who had accompanied Villalobos. This Indian declared the three men to be of the same expedition, and Herrera had made a mistake in the time, which should be years, not months. The men despatched under Juan de la Isla to take the information of Herrera to the master-of-camp, fell in with the ship "San Gerónimo," which had been sent from New Spain with aid to Legazpi. The ship itself arrived at Cebú on October 15, 1566, with a doleful story of "bad management, mutinies, want of harmony, deaths, hardships, and calamities." The captain, by name Pericon, was not a suitable officer for such a voyage, setting sail from "Acapulco with more haste and less prudence than was needful." A conspiracy to mutiny was formed under the leadership of the master, the pilot, Lope Martin—the pilot of the vessel that had deserted Legazpi—and others. After various insubordinations, of which the captain, in his blindness, took no notice, the latter and his son were murdered. Soon afterward the two chief conspirators quarreled; and the pilot, forestalling the intention of the master to arrest him, hanged the latter. Then the pilot resolved to return to Spain by the Strait of Magellan, promising to make rich men of all who would follow him, but intending to abandon on some island those who were not favorable to him. Under pretext of wintering at a small islet near the island of Barbudos, he contrived to have the greater part of the men disembark. The ecclesiastic Juan de Viveros, who accompanied the expedition, discovering the pilot's intention to abandon some of the party, remonstrated with the latter's chief adviser, saying that "it was

inhuman, and he should take them to the Filipinas, and leave them where there were provisions," but to no purpose. Each man lost all confidence in his fellows, and certain of the men, forming a counter mutiny in the king's name, seized the vessel and set their course for the Philippines, abandoning Lope Martin and twenty-six men on this island. The leader of this second mutiny hanged two men who were concerned in the death of the captain. Finally, after many hardships, the Ladrones and later the Philippines were reached. The notary of the ship was tried and executed by Legazpi as an accomplice in the captain's death. The others concerned in the mutiny were all pardoned. This new contingent "made homage anew, and swore to obey his majesty and the governor in his royal name." [75] The master-of-camp having been sent about this time to Panay to collect the tributes of rice, returned on November 16, without having accomplished his object, and having been compelled to leave his vessel, the "San Juan," at Dapitan. He brought news that the Portuguese were coming to the island, sent thither by the viceroy of India "in search of Miguel Lopez de Legazpi, who had left Nueva España with four ships." One ship of the Portuguese fleet was encountered near Mindanao and four others about thirty leagues from Cebú, and two more at a distance of ten leagues out. On the following day the two Portuguese vessels last seen made their appearance, but almost immediately stood off again, and soon disappeared. The Spaniards began to fortify their settlement as strongly as possible, and the vessels were stationed in the best positions. Legazpi bade the Spaniards not to forget that they were Spaniards, and reminded them of the "reputation and valor of the Spanish people throughout the world." The natives in terror abandoned their houses, "removing their wives and children to the mountain, while some took them in canoes to other villages; and others took their children, wives, and possessions to our camp, placing them in the houses of soldiers who were their friends, saying they would die with us." On the nineteenth of November the two vessels reappeared; and Martin de Goyti was sent to talk

to them, and if they "were in need of anything," to invite them to anchor in the port. The Portuguese said that they had become separated from the rest of their fleet by a storm. They were bound from India to the Moluccas, and thence to Amboina to take vengeance upon the natives for various depredations. After a mutual salute with the artillery, the Portuguese vessels withdrew. Each carried about thirty-five or forty Portuguese soldiers and crews of Indians from Malabar. Legazpi despatched the same captain with a letter to the Portuguese captain, Melo, expressing his regret that they had not stopped to accept his hospitality, because "at this port they would have been well received and aided with whatever was necessary for their voyage; for his majesty's command was that, wherever he should meet Portuguese, he should give them every protection and aid." He sent presents of food and wine, etc., to the Portuguese, who expressed their thanks verbally, saying "they had no paper or ink." They promised to do no wrong to the natives, at the request of Goyti, "because they were vassals of his majesty, and our friends." A comet seen next day "nearly above the town of Zebu," was taken by the soldiers as an omen of war and bloodshed. Affairs with the natives continued to improve steadily, and several chiefs came to offer themselves as vassals to the governor, promising to pay tribute. The Moro interpreter, his wife, and one child received baptism, a conversion that was of great moment because this Moro had much influence with the natives. The ship "San Gerónimo" was judged totally unseaworthy; and, in a council called by Legazpi to consider the question, it was decided to take the ship to pieces, and to construct a smaller vessel from what could be saved of it. The carpenters and others having made an examination of the vessel announced that it was so rotten that no smaller vessel could be made from it. Legazpi ordered also a large frigate to be built, as there was a great necessity for it to bring provisions to the settlement. The deaths of the Mexican Indian and a sailor and the sickness of several others, were attributed to poison, and Legazpi called Tupas to strict account, telling him that his treatment of the

Spaniards was the reverse of what was to be expected for such good treatment on their part. Finally it was discovered that a woman had poisoned wine that had been sold to these men. She was executed, after having made a full confession and embraced the Christian religion. In consequence a stringent order was issued by the governor that no one should buy the native wine. On the same night of the execution of this woman one of the chiefs implicated in the murder of Pedro de Arana was captured upon information furnished by Tupas; he was executed on the following day, in the place of the murder. Expeditions sent out to explore and gather provisions, learned of gold and mines. On March 5, 1567, the large frigate was completed and launched, and it was named "Espíritu Santo." An expedition was despatched to the island of Gigantes in search of pitch for the boats. [76] "What we call pitch in this region is a resin from which the natives make candles in order to use in their night-fishing, and is the same as the copal of Nueva España, or at the most differs from it very little in color, smell, and taste; but it is very scarce, and occurs in but few places, and is found with great trouble." None was found here, and a boat-load of rice was brought instead from Panay, On the anniversary of the finding of the child Jesus in Cebú, the twenty-eighth of April, one of the two boats that had been despatched to the coasts of Mindanao under command of the master-of-camp returned with news of his death from fever, and anger at an attempted mutiny. Two soldiers who were supposed to be ringleaders were sent back with the frigate and the "San Juan" was following as rapidly as possible. The attempted mutiny was due to the master-of-camp's prohibiting any trading or buying of cinnamon. Martin Hernandez, a Portuguese, was the leader and the mutiny was smothered by his hanging. Martin de Goyti was appointed to the vacant position of master-of-camp, "for he was entirely trustworthy, and had much experience in matters of war." Besides the master-of-camp, fifteen or sixteen others died, which the physician declared was the result of eating too much

cinnamon. The new master-of-camp executed two soldiers and one sailor, who were found to be, after Hernandez, most concerned in the mutiny.

The "San Juan" was despatched to New Spain to carry despatches and to beg aid. At the same time, July 10, came two boats from the Moluccas with letters to Legazpi from the Portuguese commanders inviting the Spaniards to their islands. From these Portuguese it was learned that they proposed a speedy descent upon the settlement. The Spaniards were but ill prepared for such a thing. "All this risk and danger has been caused by the delay in receiving aid from that Nueva España. May God pardon whomsoever has been the cause of so great delay and so many hardships!" [77] (Tomo iii, no. xxxix, pp. 91-225). Cebú, *circa* 1566. A petition to the king bearing signatures of Martin de Goiti, Guido de Labezari, Andres Caúchela, Luis de la Haya, Gabriel de Rribera, Juan Maldonado de Berrocal, Joan de la Isla, and Fernando Rriquel, sets forth the following requests: 1. That ecclesiastics be sent to Cebú, "for the preaching of the holy gospel and the conversion of the natives," as only three of those first sent remain, namely, Fray Diego, Fray Martin de Herrada, and Fray Pedro He Gamboa. 2. More men, and arms and ammunition for five or six hundred men, so that if the natives will not be converted otherwise, they may be compelled to it by force of arms. 3. That due rewards be granted Legazpi for his faithful service. 4. The confirmation and perpetuation of the appointments made by the viceroy of New Spain, Luis de Velasco, in the expedition of Legazpi. 5. That the king grant to all those of the expedition and their descendants forever exemption from *pecho* [78] and custom duty, as well as exemption from tax on ail merchandise that they might trade in these islands for the period of one hundred years. 6. That transferable *repartimientos* [79] be granted to the conquerors and new discoverers. 7. That the wives and children of the conquerors, whether in Spain or New Spain, be sustained from the royal estate until the *repartimientos* be made; and that in case of the death of any of those of the expedition this sustenance be continued. 8.

That land be apportioned to them. 9. That the conquerors alone, outside of the king, be allowed to trade in the Philippines. 10. That the Moros, "because they try to prevent our trade with the natives, and preach to them the religion of Mahomet," may be enslaved and lose their property. 11. That the offices of the royal officials appointed by Velasco be granted for life, and to one heir after them, and that they be allowed to share in the *repartimientos*. 12. An increase of salary because of the high cost of living in these islands. The petitioners beg further: 1. That slave traffic be allowed, "that the Spaniards may make use of them, as do the chiefs and natives of these regions, both in mines and other works that offer themselves." 2. The remittance of the king's fifth of all gold and silver found for fifty years. 3. That the natives be distributed in *encomiendas*. Legazpi in a separate petition makes the following requests: That the Philippines be conquered, colonized, and placed under the dominion of the crown, in order that the gospel may be preached to more advantage and the tributes collected from the natives, who are "changeable, fickle, and of but little veracity." That religious of good life be sent who may serve as examples, and that they may "try to learn the language of this land, for thereby they will obtain good results." That certain Moros, who, under pretext of being traders, preach the Mahometan faith and hinder Spanish trade with the natives, be expelled from the islands, and that they be not allowed to marry or settle therein. That his office of governor and general be confirmed for life and extended to one heir, as promised by Velasco. That the four thousand ducats promised him by Velasco be granted him from the royal estate, inasmuch as he has made the expedition without any personal aid from the king. That he and two heirs be allowed to hold all the forts established by him, with the salary agreed upon with Velasco, and that such holding and salary commence with the fort of Cebú. That the title of high constable, for himself and heirs, of all lands discovered and colonized by him, be confirmed. That he may have two of the Ladrone Islands, with the title of *adelantado*, provided he

conquer and colonize them at his own cost; these islands will be of great service as a way-station between New Spain and the Philippines. That Felipe de Salcedo, his grandson, be granted the habit of the order of Santiago for his great services in the voyage to the Philippines, and his discovery of the return route to New Spain, for all of which he had received no financial aid from the crown. That the king favor Mateo del Saz, the master-of-camp, for his excellent services. (Tomo iii, no. xlv, pp. 319-329.)

Legazpi's son, Melchor, presented five petitions to the king, all growing out of the agreements made with the former by Luis de Velasco, and his subsequent services in the islands. The first petitioned in behalf of Legazpi: 1. That two of the Ladrones with title of *adelantado*, and a salary of two thousand ducats be granted him and his heirs, this concession to bear civil and criminal powers of jurisdiction, and the title of governor and captain-general of the Ladrones. 3 and 4. Exclusive right to choose men for the conquest, both in New Spain and the Philippines, or any other place, and the appointment of duties and officials; also the right to fit out ships in any port of the Indies, and authorization of agents. 5. That he be permitted to assign land to the colonists. 6 and 7. That he and his heirs be high constables of all these islands and that they hold all forts built therein. 8 and 9. To him, his sons, heirs, and successors forever, one-twelfth of all incomes from mines, gold and silver, precious stones, and fruits, in the Ladrones; and two fisheries, one of pearls and the other of fish, in the same islands. 10. That for ten years after any colony has been formed no import tax be paid on goods. 11. That only one-tenth of all gold, silver, gems, and pearls discovered for ten years after the first settlement be paid the king. 12. That Legazpi may appoint in his absence from the Philippines or Ladrones a lieutenant, who shall act in his name. 13. That for six years he may commission two vessels for navigation of the Indies, and that he may despatch them together or separately. 14. That fines be granted for the founding of churches and monasteries throughout the islands. 15. That the

petition in regard to Felipe de Salcedo be granted. 16. That a dozen religious from each order go to the islands, and that their superior do not object to their going. 17. That no foreigners, especially Portuguese, be allowed in the islands, "because therefrom might follow great losses and troubles, as happened when Lope Martin was sent as pilot with Captain Pericón." 18. That no vessels be permitted to go to these islands from the Indies, or from any other land, "without the express consent and commission of the royal *Audiencia* or the viceroy" of the district from which the ship sails, and the king must be fully informed thereof. The cause of this clause was that ships were fitting out in Peru and other places for these islands. 19. That Moros be prohibited from trading in the islands. 20. "Because the conquest of the Ladrones is of slight moment, by reason of their inhabitants being poor and naked," and their best use is as a way-station from New Spain; and New Guinea on the other hand offers much profit in both temporal and religious matters, that their conquest be permitted to Legazpi. 21. That, in case of Legazpi's death before the conquest is effected, the petitioner, or Legazpi's heir and successor, or the person appointed by him, may complete it. This petition was vistoed in Madrid, March 2, 1569, although it had been presented a considerable time before that date. After waiting for two years in vain for an answer to this petition Melchor de Legazpi presented another petition asking: that efficient aid be sent his father; that he be confirmed in his title of governor and captain-general "with the salary that your highness is pleased to assign him, and with the other rewards contained in his [Legazpi's] petition, ... and that he be not abandoned to die in despair at seeing himself forsaken and forgotten by his king;" that he be granted the four thousand ducats promised him by Velasco "in order that we might better prepare for the marriage of ... my sister, who is of marriageable age." The petition states that even had Legazpi's expedition proved a failure, the king should not permit want to come upon his children, since his substance had been expended in the royal

service. In the third petition, Melchor de Legazpi requests that the office of accountant of the City of Mexico rendered vacant by the death of its incumbent, be bestowed upon him, in remembrance of his father's services. He says the family is "poverty-stricken and in debt," because of his father having spent all his possessions in the king's service. The fourth petition presents information concerning Legazpi's services. The fifth petition requests that certain persons be received by the court as witnesses, and give information regarding Legazpi. From the testimony of these persons it was shown that Legazpi was one of the oldest and most honored citizens of the City of Mexico; that he was a wealthy landholder of that city; and had lost his wealth through devotion to the king's service, without receiving any reward therefor. (Tomo iii, no. xlvi, pp. 330-370.)

Warrant of the Augustinian Authorities in Mexico Establishing the First Branch of Their Brotherhood in the Philippines—1564

Fray Pedro de Herrera, vicar-general of the Order of Hermits of our holy Father Augustine in the regions of the Indies, with Fray Diego de Vertavillo, provincial of the same order in this Nueva España, and Frays Antonio de Aguilar, Nicolás de Perea, Francisco de Villafuerte, and Juan de Medina, *definitors* [80]—to our very dear Brethren in Christ, Andrés de Urdaneta, prior, Diego de Herrera, Andrés de Aguirre, Lorenzo de San Esteban, Martin de Rada, priests, and Fray Diego de Torres, to you, all and singular, everlasting greeting in the Lord.

Very beloved sons: You are aware how Felipe, by the grace of God king of the Spains and the Indies, and our lord, has been greatly pleased with the news that some brethren of our order are to go with the expedition now being equipped by his very illustrious viceroy and captain-general, Don

Luis de Velasco, in this Nueva España, which is to sail through the Western Sea of this kingdom toward the continent and certain of the islands that lie between the equator and the Arctic and Antarctic poles, and below the region of the torrid zone itself—to the end that according to right reason and the benign counsels of Christian piety, both at home and abroad as will best seem consonant with the purpose of his royal majesty, you may control the fleet and troops of the Spanish army. Especially too that the most brilliant light of faith may beam upon the populous races that dwell in that region of the world. Through the benignity of God most holy and supreme, and your preaching, there is hope that those benighted barbarians may cast aside the errors and more than Cimmerian darkness of idolatry for the splendor of the gospel; and that they who, so long unacquainted with gospel truth, have been groping in the gloom of Satanic bondage may now at last through the grace of Christ, the common savior of all men, gaze at the full light of truth in their knowledge of his name.

Wherefore, as it has seemed our filial and reasonable duty not to prove wanting in view of the favor and trust granted us by his royal majesty, whereby measures will be taken to add to the divine glory, our homage to the king, and the safety of many mortals,—therefore after long meditation on this matter and mature counsel, sure as we are of your piety, deep learning, charity, and merits, we have chosen you for this apostolic charge, the task (with the help of the Lord, to whom we commend you) of leading peoples to embrace the faith. In order that greater and richer merit may ensue from your obedience in undergoing these very great hardships, which you are ready to meet through your love of Christ—although we have ever found you willing and ready to comply with our mandates—yet now in virtue of the Holy Ghost we command you, the above-named brethren, to set out in this first voyage with the fleet which the illustrious and well-born knight Miguel López de Legazpi, governor and commander of the fleet, whom ours [81] style captain-general, is to conduct to the aforesaid lands.

We exhort and pray you earnestly, as far as we may in the Lord, to be in all things as the good actor of God, as becometh the holy ones and ministers of God, in all virtues—especially humility, patience, and discipline.

Chiefly, however, we desire to have shine forth in your deeds that singular and renowned token of Christians which our Savior Christ, when on the point of offering up his most innocent life and his most holy blood—that thereby, in rescuing us from the deadliest of fates, he might ensure the freedom of mortals—commended repeatedly to his followers as a countersign, in these words: "By this shall all men know that you are my disciples, if you have love one for another." This is that priceless boon of charity which Paul styles "the bond of perfection," which we trust may not only shine forth from your midst—Whereby you should cling to Christ as a companion, and seek the possession of his spirit—but that the same affection of peace and love flow thence from you to all other men as from a clear fountain, to the end that those who have made profession of this soldiership in Christ may cling to one another in the mutual bond of charity, to the maintenance amidst the clash of arms of that "grace which," the Apostle affirms, "is above all sense." For peace, be it known, dwells even in the midst of affrays, and is to be commended by you all, to the best of your power, to the inhabitants of those regions—to whom you should, as the heralds and vanguard of true evangelical piety, appear as in search not of what is your own, but of what is Jesus Christ's. Moreover, we earnestly exhort your charity in the Lord, as far as lies in our power, to announce the all-holy gospel of Christ to all races, baptizing them that believe in the name of the Father, and of the Son, and of the Holy Ghost; training them in the holy Catholic faith, on the same lines on which the faithful are trained by our cherished mother the Church of Rome; shunning utterly therein all novelty of doctrine, which we desire shall in all things conform to the holy and ecumenical councils and doctors acknowledged by the same Church; teaching them especially that obedience which all Christians owe to die

supreme Pontiff and the Church of Rome—which in truth is always the leader, head, and mistress of all other churches of the world—then to their lawful rulers and masters; teaching them at the same time to live under the yoke and discipline of Faith, Hope, and Charity, and to forget, moreover, their old-time superstitions and errors of the Devil. And that you may the more easily fulfil the duty of your apostleship, to which you have been called by the Lord, we declare and appoint all among you who are priests among the preachers and confessors of our order, granting to you whatever privileges have hitherto been granted or shall be granted by the supreme Pontiffs themselves, or their legates, to our order especially, as well as to other orders, hospitals, houses, congregations, or other persons whatsoever—the privileges whereof may be considered as common to us by reason of many apostolic grants, among others, especially, the grants made to us by Julius the Second, Leo the Tenth, Clemens the Seventh, and Paulus the Third. Moreover, we grant you especially all the authority hitherto given by Sixtus the Fourth, Nicholas the Fifth, Gregorius the Ninth, Leo the Tenth, Adrian the Sixth, Clemens the Seventh, Paulus the Third, and Paulus the Fourth, or which hereafter may be given by all other Pontiffs, to all brethren going to the countries of unbelievers, to preach the holy gospel of Christ—especially to Farther Tartary, China, and other regions of the earth wherein we know not whether up to these times has been preached the piety of the holy Catholic faith—among which indults of the Pontiffs, Adrian the Sixth granted and conveyed all his power of whatsoever kind that might seem of need in the conversion and maintenance of neo-Christians. By reason of our office we grant and convey to you this power as far as lies in us.

We grant you, moreover, the power to establish houses and monasteries of our order in whatever places it may seem expedient to you for the glory of God and the health of our neighbor, and all the privileges, especially those of Sixtus the Fourth, Julius the Second, and Leo the Tenth for the reception of novices to the habit of our order. Shunning, moreover, all

novelty, you shall zealously bring them up in the same mode of life that you yourselves have learned from your mother, our order, under the rule of our holy Father Augustine, and the constitutions of the order.

Also, we grant you power to administer all the sacraments to commanders, soldiers, sutlers, traders, and others who go on this expedition, as well as to all other faithful in Christ, whom you may encounter wheresoever you go, in virtue of the grants made therefor to us by Adrian the Sixth, Paulus the Third, and all other supreme Pontiffs.

Also to the very venerable father Fray Andrés de Urdaneta whom you all—each for himself, publicly and privately, at the same time when through our commission you were assembled in chapter—have chosen canonically as your prior and prelate for this expedition, we grant the fulness of all our authority in corporals as well as spirituals, as far as we have, it and are enabled, without reserving anything whatsoever to ourselves. And this authority we wish to terminate in the aforesaid father, whenever according to our instructions you shall choose another, and pass thence in its fulness to the newly-elect, and so on in succession for all time, until this grant of ours shall be recalled by ourselves or our chiefs.

In testimony and faith whereof, we have signed our names, with the titles of our office, to this our grant, whereto we have ordered the seals of our order to be appended.

Given in our convent of Culhuacan [Mexico], the fifth ides of February, in the year of our Redemption one thousand five, hundred and sixty-four.

Fray Pedro de Herrera, Vicar general. Fray Diego de Vertavillo, Provincial. Fray Antonio de Aguilar, Definitor. Fray Nicolas de Perea, Definitor. Fray Francisco de Villafuerte, Definitor. Fray Juan de Medina, Definitor.

Act of Taking Possession of Cibabao

On the flagship, on the fifteenth day of February, 1565, the royal fleet being anchored near a large island, which the natives indicated by signs to be called Cibabao, [82] the very illustrious Miguel Lopez de Legaspi, his majesty's governor and captain-general of the people and fleet of discovery of the Western Islands, appeared before me, Fernando de Riquel, chief notary of the said fleet and government of the said islands, and declared: that whereas his lordship is sending his ensign-general, Andres de Ybarra, to make friends with an Indian, a native of this island, called Calayan, who declared himself a chief; and whereas it is fitting that possession be taken of the island in the name of his majesty; therefore he authorized fully the said Andres de Ybarra to take possession, in the name of his majesty, of the part and place where he went thus with the said Indian, and all the other districts subject and contiguous thereto. In affirmation of the above, he consented to the present ordinance before me, the said notary, and the witnesses hereunder subscribed, with their incidences and dependencies, annexes and rights, and he embossed the same in the form prescribed by law, and signed it with his name, the witnesses being the high constable Grabiell de Riberia, Amador de Arriaran [83] and Juan Pacheco, gentlemen of the governor, Miguel Lopez.

Given before me,

Fernando Riquel, chief notary.

And after the aforesaid, on this said day, month, and year aforesaid, the said ensign-general Andres de Ybarra, appeared before me, the said notary

and the witnesses hereunder subscribed, being on the river Calayan to which the said chief thus named took him, having landed in a small inlet, at the edge of the water, and containing a small bay, and said that in the name of his majesty, by virtue of the power conferred on him by the very illustrious Miguel Lopez de Legazpi, governor and captain-general of the discovery of the islands of the West, he occupied and took possession and apprehended the tenure and true and actual possession or quasi-possession of this said land, and of all territory subject to it and contiguous to it. And in token of true possession, he passed from one end of that land to the other, cut branches of trees, plucked grass, threw stones, and performed such other acts and ceremonies as are usual in such cases—all of which took place quietly and peaceably, with common consent of those who were present, without the opposition of any one. And after the aforesaid act took place, the said Andres de Ybarra besought me, the said notary, to certify thereto, those present as witnesses being, father Fray Diego de Herrera, father Fray Pedro de Gamboa, the high constable Grabiell de Riberia and Francisco Scudero de la Portilla, [84] Pedro de Herrera, and many other soldiers. I, the said Fernando Riquel, notary aforesaid, bear witness to the aforesaid, for it was done in my presence, and I was present at everything jointly with the said witnesses. In witness whereof I, Fernando Riquel, chief notary, affix here my signature and accustomed flourish, which in such documents is in token of truth. Collated with the original. [85]

Fernando Riquel, government notary.

Proclamation Regarding Treasure

Order to Make Declaration of the Gold Taken from the Burial-Places of the Indians

In the island of Cubu of the Western Islands, belonging to his majesty, on the sixteenth of May, one thousand five hundred and sixty-five, the most illustrious Miguel Lopez de Legazpi, his majesty's governor and captain-general of the people and fleet of the discovery of the Western Islands, appeared before me, Fernando Riquel, government notary of the said islands, and declared: that, inasmuch as he had been informed that many Spanish soldiers and sailors have opened many graves and burial-places of the native Indians in this island, wherein a quantity of gold and other jewels has been found; and inasmuch as those opening these graves and finding the said gold have not made a report thereof to his excellency nor to his majesty's officials, in order that his majesty may receive and take his royal fifths and rights; therefore he ordered, and did order, that proclamation should be made, in due form of law, that all who have opened any graves whence they have abstracted gold, jewels, and other valuables, and those who have in their possession gold and jewels of these islands, however they may have been obtained, shall appear and make full declaration regarding such things before his majesty's officials, in order that what is, in this regard, fitting to his majesty's service and the good security of his royal estate, may be provided—under penalty that whoever shall act contrary to this order shall, besides losing all the gold and other valuables thus obtained and abstracted, be proceeded against in due form of law.

Furthermore, he ordered that, from this time henceforth, no grave or burial-place be opened without the permission of his, excellency, in order that there might be present at this opening one of the king's officials, or myself, the above-mentioned notary, so that no fraud or deceit may occur, and so that an account and memorandum may be taken of everything—under penalty of five hundred *pesos de minas* and of returning all that was taken from such grave or burial-place, together with the fifth over and above this for his majesty's exchequer and treasury. This was his declaration and order, and he signed the same with his name,

Miguel Lopez

Proclamation: This said day, month, and year abovesaid, the contents of this edict were proclaimed in the form prescribed by law, by the voice of Pito Atambor, [86] in the presence of myself, the said notary, near the lodging of the said governor and general, and near the lodging of the master-of-camp, Mateo del Sas, many soldiers being present at each place. In affirmation of the above, Fernando Riquel, government notary.

Collated with the original,

Fernando Riquel, government notary.

Letters from Miguel Lopez de Legazpi and Other Officials to Felipe II of Spain—1565

To the Sacred Royal Catholic Majesty:

I gave an account to your majesty of my departure from Puerto de la Nabadad, which is located in Nueva España, with your royal fleet for the discovery of the Western Islands. Continuing my voyage until February thirteen of this present year, I arrived at one of the Filipinas Islands. Afterward I cruised among other islands of this archipelago, until I reached this island of Cubu, whence I despatched a vessel to Nueva España to discover the return route, and to give an account to your majesty of the incidents of our voyage until the departure of this vessel. The relation of the voyage is despatched together with this letter, as well as certain other information in regard to the change of feeling among the natives respecting the friendship and goodwill that they have been wont to exercise toward the

vassals of your majesty, and the cause therefor; the possessions that have been taken in your majesty's name; and the routes of the pilots of this fleet. I beseech your majesty that you will have these examined, and provide whatever seems most fitting. I shall remain in my settlement in this island of Cubu until I receive the orders your majesty shall see fit to impose upon me, although I have but few people. I am writing also to the royal *Audiencia* of Nueva España to beg succor of both people and ammunition, in order that I may sustain myself until your majesty has seen all these records, the memorandum of the articles asked by the officials of your royal *hacienda* [treasury] residing here, and the general and individual communications of those who remain here, and until your majesty shall have provided and ordered what is most fitting, and have signified your royal pleasure. Since this undertaking is so vast, and of so great import in regard to the spiritual and temporal, and has ended so happily, and is so seasonable, I humbly beg your majesty to order that particular account be taken of it, and that you order the succor and provision petitioned and requested from these islands; and that you will give the matter into the charge of one who will provide and effect it with all care and diligence; for I trust, with the help of God, our Lord, that very great blessings in the service of God, our Lord, and of your majesty, will result, with the increase of your royal income and the universal good of your kingdoms and seigniories. I beseech your majesty that, yielding with your accustomed magnificence in showing favor to your servants who serve you in matters of great import, you will be pleased to order that the communications accompanying this letter be examined, and that you will grant me the favor that seems most fitting to your majesty, whose sacred royal Catholic majesty may our Lord have in his keeping, and give you increase of kingdoms and seigniories for many and felicitous years. From Cubu, May 37, 1565.

Your sacred royal majesty's faithful servant, who kisses your majesty's royal feet,

Miguel Lopez de Legazpi

[*Endorsed*: "To the Sacred Catholic Royal Majesty the king Don [Felipe] our lord.—To his majesty, May 27, 1565. Miguel Lopez de Legazpi, Cubu, May 27, 1565.—Seen and to be filed with the others."]

To the Sacred Catholic Majesty:

Because General Miguel Lopez de Legazpi is giving your majesty a full account of events throughout these districts, therefore we shall say only that we remain in your majesty's royal service in these Filipinas—in that part where the men of Magallanes were killed, called the island of Cubu—under the protection of God, our Lord, and awaiting that of your majesty; and we remain here with very great necessity.

We beseech your majesty to provide us aid with the despatch and diligence fitting, in order that your majesty's purpose to introduce the Christian religion into these districts, and to reduce these people, neglected for so many years, and who are in dire need of receiving the fruits of our holy Catholic faith, may be attained. We are of stout heart because of the many favors that our Lord has been pleased to bestow upon us hitherto; and for the future we trust that he will keep us in his holy service, and protect us in that of your majesty. The ship acting as flagship on the voyage hither from Nueva España is about to return to discover the return route to your majesty's kingdoms. The venerable father Fray Andres de Hurdaneta sails in it. To him we refer in everything that has happened here, and we charge him with the relation of events in these districts, as one who has so well

understood everything that has happened hereabout. Father Fray Diego de Herrera, Fray Martin de Herrada and Fray Pedro de Gamboa, religious from whom we receive every good instruction and counsel, remain here.

We supplicate your majesty, with all humility, to exercise the accustomed favor to your majesty's faithful servants and vassals, in consideration of the faith, fidelity, and alacrity with which we have ever served your majesty. What is offered for your consideration by us and by this entire camp, as your servants, we make known to your majesty, which things your majesty will be pleased to provide.

In your majesty's name we have possessed and still possess, as protector and general, Miguel Lopez de Legazpi, one for whom we give many thanks to our Lord, who has been pleased to provide us a so excellent protector, and one who with a so great desire watches over the service of your majesty—whose sacred Catholic royal person may our Lord have in his keeping, and augment with great kingdoms and seigniories; such is the wish of us the faithful servants of your majesty. The island of Cubu, May 29, 1565. Sacred Catholic Majesty, your sacred Catholic majesty's faithful servants, who kiss your majesty's royal feet with all humility: Miguel Lopez de Legazpi, Mateo del Saz, Fray Diego de Herrera, Fray Martin de Rada, Martin de Goiti, Fray Pedro de Gamboa, Guido de Lavezari, Andres Cabchela, Andres de Mirandaola, Andres de Ybarra, Juan Maldonado de Berrocal, Luis de la Haya, Juan de la Isla, Gabriel de Rribera.

[*Addressed:* "To the Sacred Catholic Majesty, King Don Felipe our lord, from his camp in the islands of the West."]

[*Endorsed:* "To his majesty. xxixth of May, 1565. From Miguel Lopez de Legazpi and other persons, from Cubu, on xxixth of May, 1565. Seen, and to be added to the rest. 65."]

Sacred Catholic Majesty:

First and foremost in this present letter, we inform your majesty, with the loyalty and fidelity which we always display, of our great need of help, which your majesty must condescend to have sent us speedily, considering that we have so great need of it in order to attain what is so much desired by us in the service of God, our Lord, and in that of your majesty.

The great service which the venerable father Fray Andres de Hurdaneta has rendered to God, our Lord, and to your majesty is worthy of great praise and many thanks; for he instructed us in all things, both spiritual and temporal, during the whole voyage, and because no other except him sailed in the fleet who did instruct us. Therefore, all of us, your majesty's faithful servants—both the officials of the camp and all your vassals generally—humbly beseech and beg your majesty to consider his great services and merits; and as soon as he has given your majesty an account of all that has happened in these regions hitherto, to order and command him to return, in order to prosecute this undertaking, which is of so great import to the service of God, our Lord, and to that of your majesty—inasmuch as it is fitting for the future, as he is one who has so well understood everything that is occurring in all places, and as therein he may attain the result desired by your majesty in everything. This we hope to achieve, with all confidence and alacrity, through divine favor and the protection of your majesty. Therefore we beseech your majesty to grant us this favor, and succor us with father Fray Hurdaneta's presence, because he is very necessary to us, and will gather much fruit in both spiritual and temporal affairs; and for all the aforesaid matters, and for our consolation and aid, we are sure of this gratification, which your majesty will be pleased to grant us fully, as is your majesty's wonted custom to so faithful servants and vassals. May our Lord watch over the sacred Catholic royal person of your majesty; and may he augment you with great kingdoms and seignories, as is desired by us, your

majesty's faithful servants and subjects. From the island of Cubu, the first of June, the year MDLXV. Sacred Catholic Majesty, your sacred Catholic majesty's faithful servants and subjects, who with all humility kiss your majesty's royal feet: Miguel Lopez de Legazpi, [87] Mateo Delsaz, Martin de Goiti, Guido de Lauezari, Andres Cabchela, Andres de Mjrandaola, Andres de Ybarra, Luis de la Hava, Fernando Riquel, government notary; Amador de Arriaron, Juan Maldonado de Berrocal, Gabriel de Rribera, Juan de la Ysla, Jerónimo de Moncon, Hernando Lopez, Don Pedro de Herrera, Francisco de Leon, Marcos de Herrera, Pedro de Herrera, Juan Pacheco Maldonado, Diego Lopez Pilo, Christobal de Angulo, Luis Antonio Bañuelos, Garcia de Padilla, Martin de Larrea, Lloreynthe Machado, Lope Rodriguez, Garcia Ramyrez, Francisco Escudero de la Porlilla, Rodrigo de Ribera, Pablos Ernandes, Francisco Lopez, corporal, Bartolomé Rodriguez, Diego Fernandez de Montemayor, Antonio Flores, Julio Garcia, Anton Aluarez Degrado, Francisco de Herrera, Ernando de Monrrey.

[*Addressed:* "To the Sacred-Catholic Majesty, King Don Felipe our lord, from the general and his camp in the Western Islands."]

[*Endorsed:* "+ To his majesty. Seen. From the island of Cubu from Miguel Lopez de Legazpi and others. June first, 1565."]

A Letter from the Royal Officials of the Filipinas Accompanied by a Memorandum of the Necessary Things to Be Sent to the Colony

Most powerful sirs:

As your highness [88] must have already learned through the despatch carried as from us by the bachelor Myñes [Martinez], we set sail for these

Western Islands on the twentieth of November, MDLXIII. In compliance with your highness's command, we shall relate what occurs in those islands with all faithfulness and diligence.

Since your highness will find an account of the voyage made by us, in the relation given by the pilots who come with the fleet, we shall say no more about it, except by way of reference. We shall only relate the events which concern the service of God, our Lord, the service of his majesty, and the increase which his royal exchequer can derive from these regions.

We reached these Felipinas on the thirteenth of February, MD[L]XV. From the day of our arrival here until now we have found not a friend or a people who submits to his majesty. The reason for this was disclosed to us after we had sailed about in this archipelago for two months, namely, that the Portuguese who are in the Malucos came to an island called Bohol, where we remained thirty-seven days, and there committed the following mischief: after they had made peace with the natives and given them to understand that they came to trade with them, they called together one day as many natives as they could; and while the latter, thinking themselves safe, were trading with them, the Portuguese gave a war-signal and killed five hundred people, capturing six hundred more whom they took to Maluco as slaves. This has caused us great anxiety, because the natives, having received such cruel treatment, were so frightened that whenever they saw a sail they ran to the mountains; and, if any of them remained, it was to tell us that they desired none of our friendship. Thus from the day we arrived until now, we have suffered much hardship. We stopped at an island where Magallanes's men were killed, and there the people received us somewhat peacefully; but the following day, after they had placed in safety their wives and children, they said that they did not wish to give us in exchange for our goods anything of what we had asked, namely, their provisions. As we have just said, they declared that not only they would not

give us anything, but that they were willing to fight us. Thus we were forced to accept the challenge. We landed our men and disposed the artillery of the ships, which were close to the houses of the town, so that the firing of the artillery from the said ships and the arquebuses on land drove the enemy away; but we were unable to capture any of them, because they had their fleet ready for the sea.

They abandoned their houses, and we found in them nothing except an image of the child Jesus, and two culverins, one of iron and one of bronze, which can be of no service to us; it is believed that they were brought here at the time of Magallanes. We rejoiced, as all Christians ought in like case; for we saw that the Lord had been pleased to place us under his protection and grant us prosperity and favor. We beseech him to guide us in his service and to preserve us in that of his majesty.

As far as we have seen, in all the places to which we have thus far come, we think that his majesty could turn them into great kingdoms and seigniories, if your highness send us the supply of men, arms, ammunition, and artillery; for in our present condition we need everything, and find ourselves in the midst of many and warlike peoples—who, on account of the Portuguese, have declared war against us throughout the whole of the archipelago.

The memorial of things which this camp needs accompanies this letter. [89] Your highness will order that they be supplied with great speed and diligence, for without them we shall incur great peril, and the camp will have no means of support; but with them we shall attain what his majesty desires.

As your highness probably knows, we brought no brands for the royal fifths of his majesty, so that some articles of gold which were found in the graves of these heathens have not been marked. In respect to this and all

other articles which were found and delivered to us, we have done our duty. The general ordered that the persons who found anything should deposit all such articles until your highness shall command otherwise. We beg your highness to order that the right measures be taken in this case; also in regard to the fifths, and the procedure which must be adopted in these regions in all matters pertaining to the service of his majesty and other duties. A general edict was published that any person obtaining gold, pearls, jewels, and precious stones, should lose all, unless they are registered in the register of his majesty, for lack of the said brands with which to mark the fifths. We notify the officials residing in that city [Mexico], so that in case anything should appear that is not noted in the register, they shall take the necessary steps in regard to it.

The specimens of gold, cinnamon, and wax were found in a port called Butuan, where we, the treasurer, and the factor, went by order of the general to investigate a certain report which we had heard concerning things to be found in the island of Beguendanao [Mindanao]. We found the aforesaid port, and in it two Moro junks which were trading there. According to orders received, we made peace with the lord of the said port, and gave him the message and the present which the general sent him. We gave him to understand that with his pleasure we were going to trade in his land, and that we would favor and protect him in everything in the name of his majesty. He answered us through the Moros, who served as interpreters, that he was pleased with our offers. We learned that the Moros felt very uneasy about the embassy, and we think that they influenced the said ruler and the natives by their vile designs. We were obliged to trade with them because they gave no opportunity to the natives to trade with us. The said Moros demanded in exchange for their goods nothing but *testones*, and it was agreed that for each weight of gold six of silver should be given. At this rate we bartered for the specimens of gold, wax, and cinnamon, which we send to his majesty and to your highness. The money belonged to some

deceased persons, a memorandum of which we send to the officials of the royal exchequer.

We beseech his majesty, and your highness in his royal name, that, inasmuch as the said Moros and others take all the gold, pearls, jewels, precious stones and other things of which we have no information,—thus injuring the natives, both by giving us no opportunity to plant our holy faith among them, and by taking the said gold, they should, if they continue the said trade, lose their property and be made slaves, for they preach the doctrine of Mahomet. This matter, as well as the necessary supplies to be sent for our aid, your highness will order to be looked after with great diligence; because all that we ask for in the memorandum is of great necessity in our present critical condition. May your highness add and send whatever may seem best to you, so that we may be able to accomplish in these regions what his majesty desires. There is great need of the Christian religion among these natives, as well as of the men and other things asked in the memorandum. May our Lord keep the most powerful persons of your highnesses, and cause you to prosper with large kingdoms and seigniories.

From Cubu, May xxviii, in the year MDLXV.

Most powerful sirs, we are the faithful servants of your highnesses, who very humbly kiss your most powerful feet.

Guido de Labecares Andres Cauchela Andres de Mirandaola

Memorandum of the Supplies and Munitions Asked to Be Sent from
Nueva
Espana to His Majesty's Camp at the Port of Cubu

Memorandum of things—not only articles of barter, but arms and military supplies—which are necessary, to be provided immediately from Nueva España in the first vessels sailing from the said Nueva España to these Felipinas Islands; of which the following articles must be speedily furnished:

Articles

First: twelve pieces of heavy artillery, and among them culverins and reënforced cannon and swivel-guns for the fortress which is to be built, xii

Fifty more bronze *bersos* [small culverins], of the sort brought from España with double chambers, 1

Twenty falcons with double chambers, xx

A dozen new scaling ladders, xii

Balls for the artillery and the molds for making them,

Two hundred *quintals* [90] of powder cc

Fifty *quintals* of fuses, l

Two hundred *quintals* of lead, cc

Fifty *quintals* of saltpetre, l

Thirty *quintals* of rock sulphur, xxx

Three hundred arquebuses (not of the worthless supply there in Mexico); and with them some with flints, all with horn powder-flasks (large or small) together with their molds and gear, which are to be in good condition, ccc

One hundred corselets with their fittings, c

Two hundred *morions* and helmets, cc

Fifty coats-of-mail, of rather heavy mail, 1

One hundred tapir hides, c

One hundred white blankets for light and serviceable body armor, c

Three hundred pikes with their iron points, ccc

Fifty cavalry lances, 1

Fifty good broadswords, of which there is great need, 1

Twelve foreign cannoniers, for those whom we brought with us are of little account, xii

Three hundred well-disposed soldiers who are to remain here, (a third or half of them to be sailors), ccc

A dozen carpenters to build the vessels which must be built here, xii

Two smiths, with their forges and tools, ii

Four pairs of bellows with their tubes, ii

Twelve negroes for these forges, and among them
four sawyers, xii

An artificer or two to make arquebuses and locks
for them, ii

Two other locksmiths, ii

Fifty *quintals* of tow, 1

A surgeon and a physician, with their drugs; and two other
barbers, [91] because only one remains here, iiii

Three hundred good shields, ccc

Two hundred *quintals* of wrought iron plates, not as it comes
from the mine, cc

Thirty *quintals* of the finest steel, xxx

One hundred tanned cow-hides, c

Three hundred pickaxes, ccc

Two hundred iron shovels, cc

A royal ropemaker, who is in Mexico,

One hundred Venetian sail-cloths, c

Ten *quintals* of sailmakers' twine, x

Two bales of paper, ii

Four balances divided into three parts, iiii

Six weights for large balances, vi

Fifty horn lanterns, 1

Two hundred *fanégas* of salt, cc

Two hundred casks of wine, cc

One hundred casks of vinegar, c

Two hundred casks of oil, cc

Five hundred *arrobas* [92] of sugar, d

One dozen barrels of raisins and almonds, since by not having brought them the men have suffered great-privations, xii

Ten large hogsheads of flour, x

Blankets for the men,

Shirts in quantity,

Doublets in quantity,

Breeches of woolen cloth and linen in quantity,

Hempen sandals in quantity,

Cowhide shoes in quantity,

Hats,

All in quantity for military supplies.

For barter, the following:

Two bolts of Valencian scarlet cloth, with odds and ends, ii

Item seven bolts of Toledo scarlet cloth, vii

Six cases of headdresses, vi

A great quantity of beads, blue, green, and yellow; ten breadths of each sort, xxx

Two pieces of crimson velvet, ii

Three dozen colored hats, xxxvi

One case of large gilded coins for the coast of China, i

Two bales and two boxes of linens, iiii

Two *quintals* of *Muzavetas*, ii

Four pounds of fine coral of all sorts, iiii

Three *quintals* of glass, (one blue), iii

One thousand bundles of glass beads—green and yellow, m

Five hundred dozen hawks' bells, d

Coins and small bars of fine silver for trade in China,

Six large caldrons of pitch, vi

Two large caldrons, such as are used for bucking linen; but they must be large and very strong, because they are to be used in making saltpetre, ii

One thousand sailneedles, m

Two hundred hogsheads hooped with hoops of iron, cc

Two saddles with long stirrups, with colored velvet trimmings, and all rivets, bits, and stirrup-irons to be gilded, ii

Two cavalry saddles with colored trimmings, all to be of good quality, ii

Six gilt swords with daggers of good quality which are for the S.S. on the coast of China and for those in the islands of Japan, vi

All of the aforesaid goods should be sent as soon as possible, on the first ships that sail, for all these things are very necessary, that we may maintain ourselves in these parts.

List of articles needed by the said fleet for the oared vessels which are to be built here for his majesty. The list follows:

First: four hawsers, of one hundred and twenty *brazas* [93] each; each five *quintals*, xx *quintals*

Two large cables, of eighty *brazas* each; each one to weigh six *quintals*, xii *quintals*

Six hawsers, of one hundred and thirty *brazas* each; each to weigh three *quintals*, xviii *quintals*

Two large cables additional, of one hundred and twenty
brazas each; each to weigh ten *quintals*, xx *quintals*

Item common sails for rigging, thirty *quintals*,
xxx *quintals*

We need one hundred *quintals* of cordage of all sorts,
c *quintals*

Two grapnels, each to weight four *quintals*,
viii *quintals*

Four anchors, to weigh five *quintals* apiece,
xx *quintals*

Six grapnels, to weigh three *quintals* apiece; five
or six more, each to weigh from five to six *arrobas*,
xxxiii *arrobas* [sic]

Four grapnels, three *arrobas* each,
xii *arrobas*

Twelve French saws, xii

Four frame-saws, iiii

Six hand-saws, vi

Two grindstones, ii

Five hundred pieces of cloths from Teguintepeq for sails, d

One hundred *quintals* of tar, c

Fifty *quintals* of pitch, l

For *sallotes* ropes which are necessary, four pieces of one hundred and fifty *brazas* each, to weigh three *quintals* apiece, xii *quintals*

Four hawsers of one hundred *brazas* each, to weigh four *quintals* apiece, xvi

Two workmen, oar makers, to make oars from the wood hereabout, ii

Two hundred pulleys; with both eyes and sheaves, cc

One hundred *quintals* of grease, c

Two hundred sheep-skins with the wool on, cc

All this cordage to be *agave* and hemp.

Also two anvils of two *arrobas* each, ii

Also two small ones from six to seven pounds, ii

One anvil, i

Two screws for filing, ii

A half-dozen boys for ironworking, vi

Three or four bellows-pipes for forges, iiiii

One hundred heavy coats of mail, c

The powder and fuse which have been asked for,

Likewise three or four pairs more of bellows are asked for, iiii

Twelve more negroes, xii

Two hundred more iron axes shod in Mexico, cc

Two hundred mattocks, cc

One hundred more pieces of Tequantepeque [Tehuantepec]
and Venetian canvas, c

One pair of large fishing-nets which may come in the
hogsheads mentioned above, ii

Ear-rings, glassware, and fine coral,

The coins and bars of silver, just as they have been
asked for,

The caldrons of pitch, because those that were made
in Mexico were worthless,

One dozen caldrons with three compartments, xii

Four syringes, and the cupping glasses and the lancets which are
likewise ordered,

Sail-needles with large eyes,

Workmen who understand how to build vessels,

Six cables for the flagship, of fourteen or sixteen *quintals* each

The steel that is asked for. [Certain shapes and sizes of steel spikes are specified, with drawings to illustrate; five, thirty, forty, and fifty respectively, of the various kinds are asked for.]

[*Endorsed*: "List of articles which are required for his majesty's camp situated in the port of Cubu of the West."]

Relation of the Voyage to the Philippine Islands, By Miguel Lopez de Legazpi—1565

Illustrious Sire:

I wrote to your excellency from Puerto de la Navidad giving as full an account as possible up to that port. Now I shall do the same, for I consider it a debt justly due, and I shall always consider it so whenever the opportunity presents itself. I am enjoying good health, thanks be to our Lord; and the same can be said of the whole camp, a thing which ought not to be looked upon as of little importance. May our Lord grant to your excellency the good health that I wish.

On Tuesday, November 21, three hours before dawn, I set sail with the fleet that was at Puerto de la Navidad. For five days the fleet sailed southwest, but on the sixth we directed our course westward until we reached the ninth degree. We sailed on in this latitude in search of the island of Los Reyes, in order that we might go from that point to the Felippinas. A week after we had taken this course, we awoke one morning and missed the *patache* "San Lucas," with Captain Don Alonso de Arellano in command. There had been no stormy weather to make it lose sight of us; nor could it

have been Don Alonso's fault, for he was a gallant man, as he showed. It is believed that it was due to the malice or intent of the pilot. And as he had already been informed about the expedition that we were making, and the course we were to sail, and as he was fully instructed as to what he must do in case he should lose sight of us (as actually happened), and whither he must proceed to await us, we expected all the time that we would find the vessel in some of these islands. But up to this time we have heard nothing of it, which gives me not a little uneasiness. After the fleet had sailed for fifty days in the same course between nine and ten degrees, a degree more or less, we reached land, which proved to be an island inhabited by poor and naked fishermen. This island was about four leagues in circumference, and had a population of about two hundred men. That same day we sailed between two other small islands, which were uninhabited and surrounded by many reefs, which proved very troublesome to us for five or six days. At the end of that time we decided that the fleet should continue its course along the thirteenth degree of latitude, so that we might strike a better land of the Filipinas, which the pilots were finding already, and should not strike Vindanao. We followed our course in this latitude, and on Monday, January 21, we came in sight of land, which afterward proved to be one of the Ladrones Islands, called Gua. We directed our bows to that island, but we were no more than two leagues from it when fifty or sixty *praus* under sail surrounded the fleet. These *praus* were furnished with lateen sails of palm mats and were as light as the wind; this is a kind of boat that sails with remarkable speed, either with the wind or at random. In each canoe were from six to eight Indians, altogether naked, covering not even the privy parts, which men are wont to cover. They laughed aloud, and each of them made signs inviting us to his own town (for they were from different villages) and promising to give us food there. At break of day we coasted the island and the next morning we cast anchor in a very good port. The day had scarcely begun when a great number of those *praus* appeared about us.

There were so many of them, who came to trade with us, that some of our men who counted them affirm that there were more than four or five hundred of them around the ships. All that they had to sell us were articles of food, namely, potatoes, rice, yams, cocoa-nuts, sugar-cane, excellent bananas, and several other kinds of fruit. They also brought ginger, which grows in this island in so great quantity that it is a thing to wonder over; and they do not till or cultivate it, but it comes up and grows of itself in the open fields, just as any other herb. The natives shouted at us, each one inviting us to buy of him. The men of the fleet began to give them the face-cards from old playing cards, and to put bits of woolen cloth and other objects around their necks and on their heads. The Indians seeing this asked for these articles, and adorned themselves therewith as they had seen our men do. In these transactions many ridiculous things happened, and many jests were played. Afterward our men began to give them nails, which the Indians liked so well that they desired nothing else after that. They would smell them before taking them. For each nail they gave measures of rice containing about half a *fanéga*, more or less. After the rice was drawn up into the boat by means of a rope, because the Indians would not trade outside of their canoes, and the packages were opened, it was found that only the top layer was rice and the rest straw and stones. The Indian who had practiced this jest would clap his hands in glee, and laugh long and loud, and go from that vessel to another, to play the same trick. Then again they would take the nails, and take flight without giving anything in return. These and many other deceptions were practiced by them. They are so great thieves that they even tried to pull out the nails from our ships. They are better proportioned than the Spaniards. Often they attain the great strength fitting to their statures. One of them went behind one of our soldiers and snatched away the arquebuse from his shoulder. When good opportunity offered, they discharged their weapons on those who were taking in water. Notwithstanding that some of the natives on land were shot down, the

others did not discontinue trading with our ships; but rather those on the ships, after they had sold their goods, went ashore in their canoes, and there with their hardened clubs, stones, and slings (which comprise their weapons, and which they manage very skilfully) they took the place of those who were fighting, and those who were fighting embarked in the canoes, and came also to the ships to trade. All this seems to be the proceeding of savages, as these people really are, for they have only the form of men. They have no laws, or chiefs whom they obey; and therefore every one goes wherever he wishes. They eat no meat. A soldier who went ashore received a wound in the hand. The wound was apparently small; and indeed it was through negligence of the wounded man himself that he died within two weeks. One day, after a slight engagement between my men and the natives, we got ready at sunset to sail, without noticing the absence of a young roustabout who, either through carelessness, or because he had not heard the call to assemble, must have advanced too far on the mountain. As our small boats reached the ships, the Indians, who had not lost sight of us during the hour while we remained there, came out upon the shore. As the boy came down from the mountain to the shore, the Indians, when they saw him, fell upon him and in a moment with great cruelty tore him to pieces, giving him at least thirty lance thrusts through the body. When the men of our ships saw the Indians discharging blows, and discovered that they did not have the boy with them, they returned to shore with great fury; but at their arrival the natives had already fled up a hill. They found the boy as I have said above; and I charged the master-of-camp to punish the natives for this act. At midnight he went ashore, and marched inland, but meeting no Indians, he arranged his men in an ambuscade on shore, in which he killed a few of them and wounded many others. Our men burned many houses all along the coast. The town inland on this island is large and thickly populated, and abounds in all things which are raised in the island. There our men found about two pounds of very good sulphur, and took one of the

natives alive, who was brought to the ship, and whom I am sending to that Nueva España. This island is called Ladrones, which according to the disposition of the inhabitants, is the most appropriate name that could have been given it. Eleven days after reaching this island, we set sail following our course in the aforesaid latitude. After sailing eleven days more with good weather, we finally came in sight of Filippinas, where we finished our voyage. According to the experiments and opinions of the pilots, we covered more than two thousand leagues from Puerto de la Navidad to this island, although I have heard that they were deceived as to the distance. On the afternoon of the same day in which we came to this land, we cast anchor in a beautiful bay, called Cibabao, and there we remained seven or eight days. Meanwhile we sent two boats, one south and the other north (for this island is located north and south) to see whether they could find some good port or river. One of them returned minus a gentleman of my company, called Francesco Gomez, and with the report that, for ten leagues north, they had found neither port nor river. The gentleman was killed by some Indians, after he disembarked to make blood-friendship with them, a ceremony that is considered inviolable. This is observed in this manner: one from each party must draw two or three drops of blood from his arm or breast and mix them, in the same cup, with water or wine. Then the mixture must be divided equally between two cups, and neither person may depart until both cups are alike drained. While this man was about to bleed himself, one of the natives pierced his breast from one side with a lance. The weapons generally used throughout the Filipinas are cutlasses and daggers; lances with iron points, one and one-half palms in length; *lenguados*, [94] enclosed in cloth sheaths, and a few bows and arrows. Whenever the natives leave their houses, even if it is only to go to the house of a neighbor, they carry these weapons; for they are always on the alert, and are mistrustful of one another.

While we were in this bay, Indians and chiefs came in several boats, displaying prominently a white flag at the bow of one of them. Another flag was raised on the stern of the flagship as a sign that they could approach. These people wear clothes, but they go barefooted. Their dress is made of cotton or of a kind of grass resembling raw silk. We spoke to them and asked them for food. They are a crafty and treacherous race, and understand everything. The best present which they gave me was a sucking pig, and a cheese of which, unless a miracle accompanied it, it was impossible for all in the fleet to partake. On the occasion of the death of the gentleman whom they killed, the natives scattered themselves through the island. They are naturally of a cowardly disposition, and distrustful, and if one has treated them ill, they will never come back. They possess, in common with all these islands, swine, goats, hens of Castile, rice, millet, and in addition a great variety of excellent fruit. The people wear gold earrings, bracelets, and necklets. Wherever we went we found a great display of these articles. Although people say that there are many mines and much pure gold, yet the natives do not extract it until the very day they need it; and, even then, they take only the amount necessary for their use, thus making the earth their purse.

Leaving this bay, we sailed south until we reached the end of the island, where the land turns west. Just south of this island are other islands between which and this island there is a straight channel running west. The fleet passed through this channel, and on the second day from our departure from Cibabao, after having sailed nearly thirty leagues, we reached a port of Tandaya Island.

In this port a small river empties itself into the sea through an estuary. Some of our boats sailed up this river and anchored at the town of Cangiungo. The natives received them neither with peace nor war; but they gave our men food and drink. When they were about to eat, an Indian came

to them, who spoke a few words in the Castilian tongue, saying "Comamos" ["let us eat"], "bebamos" ["let us drink"], and answering "si" ["yes"], when questioned by Anton Batista "Billalobos [Villalobos]" and "Captain Calabaça." It seems that he had traded with the people of the fleet of Billalobos, according to what was gather from him. And because he said this, this native vexed the ruler of the village, and never came back. The next day I wished to go to the same village, and found the natives hostile. They made signs that we should not disembark, pulled grass, struck trees with their cutlasses, and threateningly mocked us. Seeing that in this case cajolery could not suffice, we withdrew in order not to disturb them; but as we departed, they began to shower sticks and stones after us, and I was obliged to order the soldiers to fire their arquebuses at them; and they never appeared again. This town has a population of twenty or thirty Indians.

On arriving at that port, I despatched Captain de Goite with a boat and a frigate, well supplied with men and provisions, to discover some port along the coast. On the way he was to examine thoroughly the town of Tandaya, which was not very far from where we were, and other towns of the island of Abbuyo. Deceived by the appearance of the coast, he sailed on past the coast for fifteen leagues, without seeing anything. Finally he reached a large bay on which was situated a large town containing many families; the people had many swine and hens, with abundance of rice and potatoes. He returned to the fleet with this news, which gave us not a little content, for all were longing for land-products. The fleet left this port, and in the afternoon of the next day we reached the above-mentioned bay, where we anchored in front of the large town of Cavalian. One thing in especial is to be noted—namely, that wherever we went, the people entertained us with fine words, and even promised to furnish us provisions; but afterward they would desert their houses. Up to the present, this fear has not been in any way lessened. When we asked the people of this village for friendship and food, they offered us all the friendship we desired, but no food whatever. Their attitude

seemed to me to be quite the contrary of what had been told me by those who had gone there; for they had said that, in this village of Cavalian, which is located on the island of Buyo, Spaniards were received and were well treated. Now they did not wish to see us, and on the night of our arrival, we were made thoroughly aware of this; for they embarked with their wives, children, and property, and went away. The next day, a chief called Canatuan, the son of Malate [95] who is the principal chief of the town, came to us; but I detained him in the ship, until provisions should be sent us from land (paying for them to their satisfaction), because of his not returning to the village and because his father was very old and blind. But this proved no remedy, to make them give us anything but words. It was determined that the people should go ashore. And so they went, and we made a fine festival, killing for meat on that same day about forty-five swine, with which we enjoyed a merry carnival—as payment for which articles of barter were given to the chief whom I had with me. The latter sent us ashore with an Indian, to give these articles to the owners of the swine.

This chief, Canatuan, by signs and as best he could, informed me of the names of the islands, of their rulers and people of importance, and their number. He also promised to take us to the island of Mancagua, [96] which was eight leagues from this island. We set sail with the Indian, and when we reached Macagua I sent him and three others, who went with him to their village in a canoe, after giving them some clothes. He was quite well satisfied, according to his own words, and became our friend.

This Macagua, although small, was once a thickly-populated island. The Castilians who anchored there were wont to be kindly received. Now the island is greatly changed from former days, being quite depopulated—for it contains less than twenty Indians; and these few who are left, are so hostile to Castilians, that they did not even wish to see or hear us. From this island

we went to another, called Canuguinen. [97] Here we met with the same treatment. As the natives saw our ships along the coast, they hastened to betake themselves to the mountains. Their fear of the Castilians was so great, that they would not wait for us to give any explanation.

From this island the fleet directed its course towards Butuan, a province of the island of Vindanao; but the tides and contrary winds drove us upon the coast of an island called Bohol. Here we cast anchor, and within a small bay of this island we made some necessary repairs to the flagship. One morning the *almiranta* [98] sighted a junk at some distance away. Thinking it to be one of the smaller *praus*, the master-of-camp despatched against it a small boat with six soldiers, after which he came to the flagship to inform me of what he had done. Seeing that he had not sent men enough, I despatched another small boat with all the men it could hold; and the master-of-camp himself with instructions how he was to proceed, reached the boat and junk, which were exchanging shots. The junk seeing that the boat contained 10 few men, defied them. When the second boat arrived it found some of the men wounded, and that the junk had many and well-made arrows and lances, with a culverin and some muskets. The junk defied the second boat also. Shouting out in Castilian, "a bordo! a bordo!" ["board! board!"] They grappled it, and on boarding it, one of our soldiers was killed by a lance-thrust in the throat. Those aboard the junk numbered forty-five soldiers. Fourteen or fifteen of them jumped into a canoe which they carried on their poop deck, and fled. Eight or ten of the others were captured alive, and the remainder were killed. I have been assured that they fought well and bravely in their defense, as was quite apparent; for besides the man they killed, they also wounded more than twenty others of our soldiers. In the junk were found many white and colored blankets, some damasks, *almaizales* [99] of silk and cotton, and some figured silk; also iron, tin, sulphur, porcelain, some gold, and many other things. The junk was taken to the flagship. Its crew were Burnei Moros. Their property was returned to

them, and what appeared, in our reckoning, its equivalent in articles of barter was given to them, because their capture was not induced by greed. My chief intent is not to go privateering, but to make treaties and to procure friends, of which I am in great need. The Burneans were much pleased and satisfied with this liberality displayed toward them, thus showing how fickle they were.

On the same day that the boats went to the junk, I despatched the *patache* "San Joan" with orders to go to Butuan and sail along its coast, and to find out in what part of this island the cinnamon is gathered, for it grows there. They were also to look for a suitable port and shore where a settlement could be made. While the *patache* went on this mission, I kept the boat of the Burneans and the pilot. This latter was a man of experience, and versed in different dialects; and he informed me of much regarding this region that I wished to know. Among other things he told me that, if the Indians of this land avoided this fleet so much, I should not be surprised, because they, had great fear of the name of Castilla. He said that while we were among these islands no Indian would speak to us; and that the cause for this was that about two years ago, somewhat more or less, some Portuguese from Maluco visited these islands with eight large *praus* and many natives of Maluco. Wherever they went they asked for peace and friendship, saying that they were Castilians, and vassals of the king of Castilla; then when the natives felt quite secure in their friendship, they assaulted and robbed them, killing and capturing all that they could. For this reason the island of Macagua was depopulated, and scarcely any inhabitants remained there. And in this island of Bohol, among the killed and captured were more than a thousand persons. Therefore the natives refused to see us and hid themselves—as in fact was the case. Although, on my part, I did my best to gain their confidence, giving them to understand that the Portuguese belong to a different nation and are subjects of a different king than we, they did not trust me; nor was this sufficient, for they say that we have the same

appearance, that we wear the same kind of clothing, and carry the same weapons.

In this island of Bohol live two chiefs, one called Çicatuna and the other Çigala, who through the Bornean's going inland to call them, came to the fleet. From these chiefs I heard the same thing that I had been told by the Burnei pilot and his companions, in regard to the great robberies that the Portuguese committed hereabout, in order to set the natives against us—so that, on our coming, we should find no friends. This fell out as they wished, because, although Çicatuna and Çigala made friendship with me, we could put no confidence in them; nor would they sell us anything, but only made promises.

While in this island, I despatched a frigate to reconnoiter the coast of certain islands that could be seen from this island. The chief pilot and Joan de Aguire accompanied it, and it was supplied with sufficient food, men, and provisions. Coming to the entrance between two islands, they were caught by the tide and drifted to the other entrance of the channel; and, in order to return, they sailed around the island. On this island they saw a town where the Moro pilot declared that he was known, and that he was on friendly terms with its inhabitants; but under pretense of friendship, the natives, treacherously killed him with a lance-thrust. The space of one week had been given to them, but it took much longer; for the return could be accomplished only by sailing around the island which was one hundred and fifty leagues in circumference.

When the *patache* returned from Butuan, it reported that they had seen the king, and that two Moro junks of the large and rich island of Luzon were anchored in the river which flows near the town. The Moros sold our men a large quantity of wax. When the men of Luzon saw our *tostones* they were very much pleased with them, and they gave nearly twenty marks of

gold, which they had there in that island, giving for six *tostones* of silver one of gold; and they said that they had more gold, if our men would give them more *tostones*, and that in exchange for the latter they would give them ten or twelve *quintals* of gold which they had there in that island. The soldiers of the *patache* were so desirous to plunder the junks, that they besought permission to do so from the captain; thus importuned, and because his own desire was not less keen, he was on the point of granting it. Fortunately the officials (the treasurer and factor) aboard the *patache* opposed this, saying that it was not fitting to his majesty's service, and that it would stir up the land and set it against us. As the men of Luzon had put some earth within the cakes of wax that they had sold, in order to cheat us with it; and inasmuch as they, moreover, insisted that the natives should not give anything in exchange for any other kind of trade-goods, but only for *tostones*, and had uttered many lies and slanders against us—the soldiers said that this was sufficient to justify the war; and that the war would not be the cause of stirring up the natives, because the latter were not at all well-disposed toward the Moros. Finally they did not touch the Moros, being persuaded to this by the captain and the officials. By my instructions, in case they should meet any strange or piratical junk that proved hostile, they returned to the station of the fleet, bringing a small quantity of gold, wax, cinnamon, and other things. Nevertheless the natives of the island would have sold them a quantity of gold had not the Moros prevented it.

While in the bay of the island of Bohol, I was very anxious about the frigate, since it was to be gone but one week; while twenty-one days had passed, and it was nowhere to be seen. Meanwhile a *prau* which I had despatched with two soldiers and the chiefs Çicatuna and Çigala to the island of Cubu to endeavor to ascertain some news concerning it, had returned, bringing no news whatever of its whereabouts. On Holy Saturday, three hours before daybreak, while we were thus plunged in great anxiety and grief, fearing that our companions might have been lost, captured, or

killed, the shout "the frigate! the frigate!" was heard in our fleet. Turning my glance, I beheld it entering the bay. Only the Burnei pilot was missing; the others looked well and strong, although they had suffered from hunger. On arriving, they informed us that the island which they had coasted had a circuit of one hundred and fifty leagues, and that on their return they had passed between it and the opposite coast of Cubu. [100] They reported that this island of Cubu was densely, populated, containing many large villages, and among them were many people inhabiting the coast, and inland many cultivated districts. The above-mentioned soldiers who went to Cibu in the *prau* with Cikatuna and Cigala said that the same thing was to be observed on the other coast, and that the port of the town of Cibu admitted of anchorage, and was excellent. I decided to take the fleet to that island—a plan I carried out, with the intention of requesting peace and friendship from the natives, and of buying provisions from them at a reasonable cost. Should they refuse all this I decided to make war upon them—a step which I considered justifiable in the case of these people; for it was in that same port and town that Magallanes and his fleet were well received. King Sarriparra and nearly all the natives were baptized, and admitted to our holy faith and evangelical teaching, voluntarily offering themselves as his majesty's vassals. Magallanes and more than thirty of his companions were afterward killed while fighting in behalf of this island against the people of Matan, a thickly-populated island situated near this one. Afterward the two islands made peace privately between themselves, and the inhabitants of the town of Cibu killed many of the Spaniards of the same fleet, and drove the remaining few away from their land. Hence we see that all this is sufficient occasion for any course whatever. In accordance with this last opinion the fleet left the port of Bohol and we reached the port of Çibu on Friday, April 27, 1565. We had scarcely arrived when an Indian came to the flagship in a canoe, who said that Tupas, the ruler of the island, was in the town, and that he was going to come to the fleet to see me. A little later there came from

the village, an Indian, an interpreter of the Malay language, who said, on behalf of Tupas, that the latter was getting ready to come to see me, that he would come on that very day, and that he would bring ten of the principal chiefs of that island. I waited for them that whole day; but as I saw that the people were much occupied in removing their possessions from their houses and carrying them to the mountain, and that during all this day and until noon of the next, Tupas, the son of Saripara, who killed the men of Magallanes, did not come, I sent a boat with father Fray Andres de Hurdaneta and the master-of-camp, in order that, in their presence, the government notary, with Hieronimo Pacheco, interpreter of the Malay tongue (which is spoken by many of the natives of this land), might request the natives, as vassals of the king of Castilla, to receive us peaceably. They were to assure the people that I did not come to do them any harm, but on the contrary to show them every favor, and to cultivate their friendship. Three times this announcement was made to them, with all the signs and kind words possible to win their friendship. But at length—seeing that all our good intentions were of no avail, and that all the natives had put on their wooden corselets and rope armor [101] and had armed themselves with their lances, shields, small cutlasses, and arrows; and that many plumes and varicolored headdresses were waving; and that help of men had come in *praus* from the outside, so that their number must be almost two thousand warriors; and considering that now was the time for us to make a settlement and effect a colony, and that the present port and location were exactly suited to our needs, and that it was useless for us to wait any longer; and seeing that there was no hope for peace, and that they did not wish it, although we had offered it—the master-of-camp said to the natives through an interpreter: "Since you do not desire our friendship, and will not receive us peacefully, but are anxious for war, wait until we have landed; and look to it that you act as men, and defend yourselves from us, and guard your houses." The Indians answered boldly: "Be it so! Come on! We await you

here." And thereupon they broke out into loud cries, covering themselves with their shields and brandishing their lances. Then they returned to the place whence they had set out, hurling their lances by divisions of threes at the boat, and returning again to their station, going and coming as in a game of *cañas*. [102] Our men got ready and left the ships in boats; and as the boats left the ships for the shore, in accordance with the order given them, some shots were fired from the ships upon the multitude of *praus* anchored near a promontory, as well as at the landmen upon shore, and upon the town. But, although they had showed so great a desire for war, when they heard the artillery and saw its effects, they abandoned their village without waiting for battle, and fled through the large, beautiful, and fertile open fields that are to be seen in this region. Accordingly we remained in the village, which had been left totally without provisions by the natives. We pursued the enemy, but they are the lightest and swiftest runners whom I have ever seen. When we entered the village, all the food had been already taken away. However, I believe that there will be no lack of food. In exchange for our hardships this is a good prospect, although there is no hope of food except through our swords. The land is thickly populated, and so fertile that four days after we took the village the Castilian seeds had already sprouted. We have seen some little gold here, on the garments worn by the natives. We are at the gate and in the vicinity of the most fortunate countries of the world, and the most remote; it is three hundred leagues or thereabouts farther than great China, Burnei, Java, Lauzon, Samatra, Maluco, Malaca, Patan, Sian, Lequios, Japan, and other rich and large provinces. I hope that, through God's protection, there will be in these lands no slight result for his service and the increase of the royal crown, if this land is settled by Spaniards, as I believe it will be. From this village of Cubu, I have despatched the ship with the father prior [Urdaneta] and my grandson, Phelipe de Zauzedo, with a long relation of the things which I boldly write here to your excellency. They will inform his majesty at length,

as persons who have been eyewitnesses of all especially of what has taken place here, the state of the new settlement, and the arrangements made for everything. It remains to be said that, since this fleet was despatched by the most illustrious viceroy, my master, of blessed memory, and further, chiefly because of being an enterprise that every gentleman should all the more favor, inasmuch as it pertains naturally to your excellency, as the heir of the glory resulting from this expedition—your excellency should favor it in such a manner that we may feel here the touch of your most illustrious hand, and so that aid should be sent as promptly as the necessity of our condition demands. For we shall have war not only with the natives of this and other neighboring islands of the Philipinas (which is of the lesser import), but—a thing of greater consequence—we shall have to wage war with many different nations and islands, who will aid these people, and will side against us. On seeing us settled in this island the Portuguese will not be pleased, nor will the Moros and other powerful and well-armed people. It might happen that, if aid is delayed and is not sent by you to us with all promptitude, the delay will prove a sufficient obstacle, so that no result will follow from the work that we have accomplished. I beg his majesty to send us some aid with the promptness, which rightly should not be less than in that city of España, where his majesty resides. And because it is worth knowing, and so that your excellency may understand that God, our Lord, has waited in this same place, and that he will be served, and that pending the beginning of the extension of his holy faith and most glorious name, he has accomplished most miraculous things in this western region, your excellency should know that on the day when we entered this village one of the soldiers went into a large and well-built house of an Indian, where he found an image of the child Jesus (whose most holy name I pray may be universally worshiped). This was kept in its cradle, all gilded, just as it was brought from España; and only the little cross which is generally placed upon the globe in his hand was lacking. This image was well kept in that

house, and many flowers were found before it, no one knows for what object or purpose. The soldier bowed before it with all reverence and wonder, and brought the image to the place where the other soldiers were. I pray the holy name of this image which we have found here, to help us and to grant us victory, in order that these lost people who are ignorant of the precious and rich treasure which was in their possession, may come to a knowledge of him.

Copia de Vna Carta Venida de Se-
Uilla a Miguel Saluador de
Valencia. La Qual Narra El Ventu|Roso Des-
Cubrimiento Que los Mexicanos Han
Hecho, Naue-|Gando con la Armada
Quesu Magestad Mando Hazer en|
Mexico. Con Otros Cosas Mar-
Auillosas, y de Gran| Prone-
Cho Para Toda la Chris-
Tiandad: Con|Dignas
De Ser Vistas y
Leydas.

¶*En Barcelona, Per Pau Cortey, 1566.*

Desto de la China ay dos relaciones, y es, que a los dezisiete de Nouiembre del año de mil y quinientos y sessenta y quatro, por mandado de su Mage. se hizo vna armada en el puerto de la Natiuidad e la mar del Sur, cient leguas de Mexico, de dos naues, y dos pataysos, para descubrir las

yslas dela especieria, que las llaman Philippinas, por nuestro Rey, costaron mas de seyscientos mil pesos de Atipusque hechas a la vela.

¶Partieron el dicho dia del puerto, y naugaron seys dias juntas: y a los siete les dio vna barrusca, que se aparto dellas el Patays, que era de cincuenta toneladas, y lleuana venyte [sc. veynte] hombres: el qual nauego cincuenta dias, y al fin dellos, vio tierra, que eran muchas islas entre las quales vio vna mas grande, y alli surgio. ¶Acudieron ala costa gente dela isla la qual es mas blanca que los Indios nuestros: y las mugeres muy mas blancas que los hombres, como las mugeres de cosas de palma texidas, y labradas encima con sedas de colores. Porgala. trahen los dientes colorados, y horadados, y enlos agujeros vnos clauicos de oro. Y los hombres con calcas de lieço de algodõ con senogiles de seda, con muchas pieças de oro. ¶Entre ellos vino vno q parecia de mas calidad, vestido todo de seda, con vn alfange, la empuñadura, y guarniciones de oro, y piedras. ¶Los nuestros les pidieron mantenimientos, y dierõ se losa trueque de bugerias: pero ellos pidierõ hierro y dio seles: y quando vieron los clauos, no querian otro sina clauos, y estos pagauan con oro en poluo. Trayan algunos vnas dagas de azero muy galanas, y muestran ser gente politica y de mucha razõ. Vsan depeso y medida: dierõ alos nuestros gamos, puercos, gallinas, codornizes, arroz, mijo, y pan de palmas: de todo esto ay grande abundancia. Estuno alli el Patays casi treynta dias, esperando las otras naues, y como no vinieron, determino de boluer a Mexico: y al tiepo que salio dela isla, encontro vn junco, que es navio de casi cient toneladas, enla qual venian sessenta Indios, y como vieron el Patays, todos se echarona nado, y se fueron a la tierra, que estana cerca. Entraron dentro algunos soldados, por mandado del capitan, y hallaron que yua cargado de porcellanas, y mantas, y lienços pintados, y otras cosas dela tierra, y algunos cañutillos de oro molido, delos quales no tomaron mas que vno, y algunas porcellanas, y algunas mantas: y delo demas, de todo poco, para traher lo por muestra. Estuu este Patays en yr y en boluer, dozientos, y treynta dias. Huuieron de menester subir mas de

quarenta grados hazia el norte. Huuo desde el puerto do partieron, hasta esta isla, mil y sete cientos leguas. ¶Las otras tres naues dentro de cinquenta dias hallaron muchas islas, y aportarõ en algunas dellas, y passaron en cada vna dellas muchas cosas, que estan grande la relacion, que ocupa veynte pliegos de papel. En fin aportaron a vna isla grande que se llama Iubu, y alli hizieron amistad conel rey della, que se hizo desta manera. Saco se el rey sangre del pecho, y el capitan assi mesmo, y echada la sangre de entrabos en vna copa de vino la partierõ por medio, y el vno benio la vna mitad, y el otro la otra mitad: y aquello dizen q haze la amistad inuiolable. Cõ todo esto tuuierõ ciertas passiones, y robarõ vn lugarejo: y en vna casa pobre hallaron vn niño Iesus, destos que traen de Flandes, con su velo, y pomo enla mano, tan fresco como si se acabara de hazer entonces. En aquella isla qui sieron poblar, porq es muy abundãte de todos los mantenimientos, y començaron a hazer vn fuerte, y hizierõ fuera del vna yglesia, dopusieron el niño Iesus, y la llamarõ del nombre de Iesus: y la isla la llaman sant Miguel, porque se entro enella el dia de su Aparicion. Y de alli alos Malucas dõde esta la especieria, ay cient y cinqueta leguas, y ala China dozientas, y a Malach quinientas leguas. Y hallaron alli canela finissima que la hauian los dela isla trahydo de los Malucas y gengibre, y cosas de seda galanas. Y de alli embiaron delas tres naues la capitana de Mexico, do llego despues que hauia llegado el Patays, y estauan adereçando otras dos naues para socorro. Hay muchas otras islas por alli muy grandes, y son del mismo modo desta. Entre las otras hay vna tierra tan rica de oro, que no lo estiman en nada: y hay tãta cãtidad de canela que la quemã en lugar de leñares de tan luzida gente, q la ygualan con España. Hay alli vn rey q tiene ala continua mil hõbres de guarda: y estima se tanto que ninguno de sus vassallos le vee la cara sino vna vez enel año: y si le han de hablar para tratar conel algo, le hablã por vna zebratana: y quãdo de año a año se dexa ver, le dã muy grandes riquezas. Son gente muy prima, hazen brocados, y sedas texidas de muchas maneras. Tienen en tan poco el oro, q dio este rey por vn pretal de

cascaueles, tres barchillas de oro en poluo: porq alli todo quanto oro ay es en poluo. Cargaron estas tres naues quando tornaron tanta cantidad de oro en aquella isla, que mōto el quinto q dan al rey vn millon y dozientos mil ducados. ¶Andan por alla Moros contratando con naues, y trocãdo cosas de su tierra por oro, y mantas, y especieria, y por clauos y otras cosas. Encontro la armada con vna naue dellos, y tomola, aunque se defendio de tal manera, q mato vno dellos, y hirieron mas de veynte. Y trahian muchas cosas de oro y mantas, y otras especierias que hauian rescatado. Hay tantas islas que dize que son seteta cinco mil y ochocientas. En esta isla de Iubudo hazen poblacion, es do mataron a Magallanes. Y dizen, que los Portugueses con ciertas Carauelas aportaron por alli, haura dos años, llamãdose Españoles, y vassallos del rey de Castilla, y robaron muchas islas, y las saquearon, y lleuaron mucha gente captiua, porque como veyan q nuestra armada se haiza enla nueva España, tomassen los nuestros cō los dela tierra mal credito. Y assi quando los nuestros llegaron, pensando que eran ellos, huyan alos mōtes con sus joyas, y haziendas. Y se ha visto el general en harto trabajo por apaziguarlos, y darles a entender que son ellos, y cierto deue ser hombre cuerdo, porque por la relaciō se vee hauer tenido mucho sufrimiento, por no topar con ellos, y los ha lleuado con mucho amor, sin hazer agrauio a nadie. Ello escosa grãde, y de mucha importãcia: y los de Mexico estã muy vfanos con su descubrimiento, q tienen entedido q seran ellos el coraçon del mundo. Trahe eneste nauio de auiso q es venido agora aca, gegibre, canela, oro en poluo, vna arroua de conchas riquissimas de oro, y blancas, joyas de oro, cera, y otras cosas para dar muestra delo que en aquella tierra ay, y muchas bugerias, y otras cosas muy galanas. Y aunque no las traxeran, harto trahian en hauer descubierto y hallado la nauegacion por aquestas partes, que es cosa de mucha calidad. Con la flota sabremos mas delo que supiere auisare a V.M. &c.

Copy of a Letter Sent from Seuilla
To Miguel Saluador of
Valencia. Which Narrates the Fortunate
Discovery Made By the Mexicans Who
Sailed in the Fleet Which His Majesty
Ordered to Be Built in
Mexico. With Other Wonderful
Things of Great Advantage
For All Christendom:
Worthy of
Being Seen and
Heard.

¶*Printed in Barcelona, By Pau Cortey, 1566.*

Of this discovery, two relations have come from China: namely, that on the seventeenth of November, [103] in the year one thousand five hundred and sixty-four, a fleet was made ready by order of his majesty in Puerto de le Natividad, (which is situated on the Southern Sea, one hundred leagues from Mexico), consisting of two ships and two *pataches*, in order to discover the spice islands, which are named Philippinas, after our king. This fleet, when ready for sailing, cost more than six hundred thousand *pesos* of Atipusque. [104]

¶These vessels set sail from port on the above-mentioned day, voyaging in company for six days. On the seventh a squall struck them, separating from the others the *patache*, a vessel of fifty tons' burden, and carrying a crew of twenty men. [105] This vessel sailed for fifty days, at the end of which time land was sighted. This proved to be a number of islands, among which they saw one larger than the others, where they cast anchor. ¶On the shore of the island were gathered the natives, who are lighter complexioned

than our Indians, the women being of even lighter hue than the men. Men and women were clad alike in garments woven from the palm, and worked along the edges with different colored silks. By way of adornment, they color their teeth, and bore them through from side to side, placing pegs of gold in the holes. The men wear drawers of cotton cloth, silken garters, and many pieces of gold. ¶Among them was one man who seemed of higher rank than the others, clad wholly in silk, and wearing a cutlass, of which the hilt and sword guard were gold and precious stones. ¶Our men asked them for food, giving them various trinkets in exchange. But they asked for iron, which was given to them; and when they caught sight of the nails, they desired nothing else, and paid for them with gold-dust. Some of them wear very neatly-made steel daggers, and they appear to be a polite and intelligent people. They use weights and measures. They gave our men deer, swine, poultry, quail, rice, millet, and bread made of dates—all in great abundance. The *patache* remained here for about thirty days, waiting for the other ships; but, as these did not come, they determined to return to Mexico. As they left the island, they met a junk, which is a vessel of about one hundred tons' burden, in which were sixty Indians. When these caught sight of the *patache*, all threw themselves into the water, and swam to the shore, which was not far away. Some soldiers, by command of the captain, boarded the junk, and found it laden with porcelain, cloths, figured linens, and other products of their country, together with some beads of hammered gold. Of these latter they took but one, with some of the porcelain and cloth—a little of each thing—to carry as specimens. In going and returning this *patache* consumed two hundred and thirty days. They were compelled to run to the north, beyond the fortieth degree. From the port of departure to that island, they sailed one thousand seven hundred leagues. ¶Within fifty days, the other three vessels discovered many islands. They anchored at some of these, and in each one they suffered many hardships. So long is the relation of this, that it fills twenty sheets of paper. [106] Finally they landed

at a large island named Iubu, where they made friendship with its king. This was done in the following manner. The king drew some blood from his breast, and the captain did the same. The blood of both was placed in one cup of wine, which was then divided into two equal parts, whereupon each one drank one half; and this, they assert, constitutes inviolable friendship. Notwithstanding this, they had certain conflicts, and sacked a little village. In a poorly-built house was found an image of the child Jesus, such as comes from Flanders, with his veil and the globe in his hand, and in as good condition as if just made. They wished to settle in that island, because of the abundance of all kinds of food. They began the construction of a fort, outside of which they erected a church, wherein the child Jesus was placed, and they called the church *Nombre de Jesús* ["Name of Jesus"]. They named the island Sant Miguel, because of landing there on the day of his apparition. From here to the Malucos, where the spice is found, there is a distance of one hundred and twenty leagues; to China, two hundred; and to Malach [Malacca], five hundred. They found in this island the finest cinnamon, which its people acquire through trade with the Malucos; besides ginger and articles of fine silk. Of the three vessels, the flagship was despatched from that island to Mexico, where it arrived later than the *patache*, and where two other vessels were being prepared as a relief. There are many other very large islands in that region, in appearance quite like the above-named island. Among others is a region so rich in gold, that the amount is beyond estimation. And there is so great abundance of cinnamon that it is burned instead of wood by those people, who are as luxurious as those of Spain. They have a king there who has a constant body-guard of one thousand men, and who is esteemed so highly that none of his subjects see his face oftener than once a year. If they find it necessary to converse with him on any matter, they speak to him through a long wooden tube. And when he annually permits himself to be gazed upon, his subjects give him many valuable things. These people are quite advanced. They possess

brocaded and silken fabrics of many different kinds. They hold gold in so little estimation that this king gave three *barchillas* [107] of gold dust (for there all their gold is in the form of dust) for one string of hawk's bells. Those three vessels loaded so much gold in that island that the king's fifth amounted to one million two hundred thousand ducats. ¶Moros frequent that district in ships for purposes of trade, bartering the products of their country for gold, cloths, spices, cloves, and other articles. The fleet encountered one of their vessels and captured it, although its occupants defended themselves so valiantly that one of the Spaniards was killed, and more than twenty wounded. They had much gold, cloth, besides spices, which they had acquired in trade. So many are the islands that they are said to number seventy-five thousand eight hundred. That island of Iubu, where the colony was planted, is the place where Magallanes was killed. [108] It is said that the Portuguese with some caravels landed there about two years ago, claiming to be Spaniards and subjects of the king of Castilla, and plundered many islands, sacking them and seizing many of the natives. Consequently, when those people heard that our fleet had been made ready in Nueva España, our men were held in bad repute among the natives of that region. Therefore when our men arrived, the inhabitants, thinking them to be the Portuguese, fled to the mountains with their jewels and possessions. The general has experienced much trouble in appeasing them, and in making the natives understand who the Spaniards are. Surely he must be a discreet man, for the relation shows that he has exercised much forbearance in not coming to blows with them; and he has shown them much friendliness, without causing offense to anyone. This is a great and very important achievement; and the people of Mexico are very proud of their discovery, which they think will make them the center of the world. The vessel that has just come here [109] with the news of this discovery has brought ginger, cinnamon, gold-dust, an *arroba* of the richest gold *conchas* and *blancas*, [110] gold ornaments, wax, and other articles, in order to

furnish proof of what this land contains, besides many trinkets and pretty articles. And even had they not brought these things, they bring enough in having discovered and found the route for navigation to these districts, which is a most notable event. When the fleet comes, we shall know more—of which, when it is known, I shall advise you, etc.

Letters to Felipe II of Spain, By Miguel Lopez de Legazpi—1567-68

Sacred Royal Catholic Majesty:

Captain Martin de Goyti came with me on this expedition to serve your majesty as captain of a company of soldiers, at the order of Don Luis de Velasco (who is in glory), who was viceroy of Nueva España; since then, on account of the death here of the master-of-camp, Mateo del Saez, I have committed his duties to the above-named captain. In both capacities he has served and is serving your majesty faithfully and loyally in every way; and he takes great care and pains, for he is a very prudent and rigorously just man, and possessed of many good qualities for this office. Furthermore, he has shown himself in the wars to be skilful and courageous and of great valor, as an old soldier who has served your majesty many years in Italy and has always been the first in all labors and perils which have occurred. By great diligence and care he has induced many of the natives to become vassals of your majesty; and by his great industry and diligence has been one of the chief means of our being able to maintain ourselves in this land. It is well and fitting, if in this discovery any service has been rendered to your majesty, that you recompense him, for he also has served and toiled in it. May God, our Lord, watch over your majesty's royal person and increase

your kingdom for many years. Done at Cebu, July 12, 1567. Sacred royal Catholic majesty, whose royal feet your humble and faithful vassal kisses,

Miguel Lopez De Legazpi

Very exalted and powerful Lord:

At the end of the year one thousand five hundred and sixty-four, I left Nueva España by way of the South Sea, for the discovery of these islands of the West, by order and commission of his majesty; and having arrived at these Filipinas islands, I sent a vessel back to Nueva España to discover the return route, and to give his majesty an account of the voyage, and inform him that a colony had been settled in this island of Cubu. What has happened since then is, that in these fortunate times of his majesty and your highness there have been discovered and are being discovered many islands and lands, in which God, our Lord, and his majesty and your highness may be very well pleased with the great growth of our holy Catholic faith. And, not to be prolix with long relations of affairs and details concerning this land, I will refer you to those which I am writing to the royal Council of the Indies. It seemed to me that your highness would be pleased with specimens of the weapons with which these natives fight; accordingly they are bringing to your highness a Chinese arquebuse, of which there are some among these natives. Although they are very dexterous in handling these guns, when on the sea, aboard of their *praus*, they carry them more to terrify than to kill. And likewise they bring you a half-dozen lances and another half-dozen daggers, a cutlass, two corselets, two helmets, and a bow with quiver and arrows, all which they use. Moreover, that your highness may see how scrupulous these people are in their dealings, I send your highness a pair of balances and one of their steelyards. I beg humbly your

highness to receive my desire to serve you ever as a faithful servant, and pardon my boldness.

Very exalted and powerful lord, may our Lord watch over the very exalted and powerful and royal person of your highness, and may he augment you with more kingdoms and seigniories for many and fortunate years. From this island of Çubu, July 15, 1567. Your highness's very faithful servant who kisses your royal hands.

Miguel Lopez De Legazpi

Sacred Royal Catholic Majesty:

On the vessel which I sent to New Spain to discover the return route, I gave your majesty a relation of the events of the voyage, and of our arrival and settlement in these islands, up to the time of the ship's departure. The succeeding events in this camp may be seen by the relation which I send with this letter.

Last year a vessel [111] was sent from Nueva España for this island with news of the arrival of the flagship which went from here. It arrived here on the fifteenth of October of last year, in great extremity and trouble, for on the way they killed the captain and a son of his, and some others, and raised mutinies, rebellions, and other troubles, as may be seen from the evidence thereof which I send. As it brought no other assistance, nor any of the articles which we sent for from here, nor any command or order from your majesty (nor have these things been sent here since then); and since after so long a time the flagship has not returned, nor have we received the assistance that was hoped for with it—the men of this camp are in extremities and distressed. Because it has not been permitted them to rob, or

make war upon, or in any way harm the natives, and as they see so great delay in the sending of aid, some have not been lacking in treacherous and damnable purposes and desires, from which God, our Lord, has been pleased up to now to deliver your majesty's loyal and faithful servants—who with all loyalty and zeal have served you and are now serving you in these regions—and I hope therefore that in his divine goodness he will continue to do so.

There have been some islands discovered in this neighborhood, and more are being continually found of which we knew nothing, and which are inhabited by many people. There is disclosed a very great foundation and opening for both the spiritual and the temporal, from which God our Lord and your majesty may derive much profit, and our holy Catholic faith be much increased, if your majesty will give the necessary orders, and provide the suitable religious and laborers who may work diligently in this great vineyard of the Lord. And from what has been hitherto seen much fruit may be had in their conversions, without much difficulty, because there are not known among them either the temples or the rites and ceremonies of other peoples—although they are a people extremely vicious, fickle, untruthful, and full of other superstitions. They all have many specimens of gold, and this they trade and wear as jewelry; but there is only a small quantity of it, by reason of there being no headmen or great lords among them. In some islands we have been informed of and have seen mines of gold, which, if the islands were peopled with Spaniards, would, it is believed, be rich and profitable. In other islands there is an abundance of cinnamon, of which they make little use. They make no exportation of it, and therefore it is of little worth to them. Seventy *quintals* of it, more or less, have been carried upon this ship for your majesty; and there may be carried every year as much as your majesty wishes—enough indeed to supply all Christendom.

I have resided continuously on this island of Cubu, awaiting the orders which your majesty may be pleased to have sent. I have barely succeeded in maintaining the forces with the least possible harm to the natives, and I shall try to do the same until I see your majesty's command, and know your royal will; because if we should make war upon these people, I think that great harm would ensue, but little advantage would be gained, and we should suffer hardships greater than those which have been suffered, although they have been bad enough. By the blessing of peace, we have succeeded in attracting into the obedience of your majesty many towns. As they have come from all this neighborhood of which possession has been taken in your royal name, the list of the towns accompanies this letter. And as these people are fickle and treacherous, and know not how to obey or serve, we ought to have here a fort and a number of Spaniards, who by good treatment might restrain them and make them understand what justice is; and who may settle in other places most convenient for the security of all those of this region. For this purpose married men should be sent and those who would have to remain permanently in this land. I beg your majesty to be pleased to have provided with all despatch what is most in accord with your royal pleasure, and give the commission to some one in Nueva España, who with all care and special diligence, will provide all that is necessary, without there being so much delay as in the past.

For the security of these parts, and in order to get this needed security, it would be fitting and necessary to have built half a dozen galleys. For this, and even to provide them with crews there is reasonable provision here, provided you send officers and workmen to build the vessels, as has been written to the royal *Audiencia* of Mexico. With these vessels all these islands may be protected, as well as many others that are farther away from them; and it might even be possible to coast along the shores of China and to trade on the mainland. They would be very profitable and effective. Your

majesty will cause to be provided in this regard what is most pleasing to you.

In November of last year arrived, very near where we are, a large fleet of Portuguese who were coming from India to Maluco, where they must have thought that we were. Having arrived near our settlement, they stopped a few days, giving out that they were coming in search of us. They sent two small boats to reconnoiter our colony and station, afterward resolving to continue their voyage without stopping here. It may well be imagined that they were not pleased to see Spaniards in these parts.

Farther north than our settlement, or almost to the northwest not far from here, are some large islands, called Luzon and Vindoro, where the Chinese and Japanese come every year to trade. They bring silks, woolens, bells, porcelains, perfumes, iron, tin, colored cotton cloths, and other small wares, and in return they take away gold and wax. The people of these two islands are Moros, and having bought what the Chinese and Japanese bring, they trade the same goods throughout this archipelago of islands. Some of them have come here, although we have not been able to go there, by reason of having too small a force to divide among so many districts.

The people who remain here are very needy and poor, on account of having had, hitherto, no advantages or profits in the islands; and they have endured many miseries and troubles, with very great zeal and desire to serve your majesty, and are worthy of receiving remuneration. I humbly beg your majesty to be pleased to be mindful of their services, to grant them all favor (since these regions and districts contain sufficient for it), because a hundred merit it, and have served well and will serve much more in the future. Therefore I beg your majesty in addition, that your majesty approve the duties and offices given and assigned for these districts, and that your majesty confirm them to the persons who hold them, together with the

greater favors that you may confer on them; for in these men are found the necessary qualifications, and they fulfil their duties with all fidelity.

As this ship was about to sail, there arrived at this port two small galleys from Maluco, carrying certain Portuguese with letters from the captains of the fleet that came to these regions last year for the assistance and fortification of Maluco. In these letters they ask us to go out to their fleet, as your majesty will see by the very letters which accompany this present letter, together with the copy of the one I sent back to them. Some of those who came with the letters gave us to understand that, if we would not go willingly, they would take us by force; and that very shortly they would attack us in so great force that we could not resist them. I do not consider that they have any right to attack us or make war on us, since we, on our part, are causing them no trouble or harm; and although they come, we cannot do anything else than wait for them, notwithstanding that we are few and short of ammunition and other war material, since help has not come from Nueva España as we expected; and we have neither vessels nor equipment in order to escape. May God provide in this what he sees necessary, and as is your majesty's pleasure,—whose sacred royal Catholic person may our Lord watch over for many and prosperous years with increase of more kingdoms. From this island of Cubu, July 23, 1567. Your sacred royal majesty's very humble and faithful servant who kisses your hands and feet.

Miguel Lopez De Legazpi

Sacred Royal Catholic Majesty:

When I arrived in these Filipinas islands in the year sixty-five, I despatched a ship to discover the return route to Nueva España. I also sent

to your majesty a relation of the events of the voyage, and of my colonization in this island of Çubu, where I should await the reply that your majesty should be pleased to have sent me; and stated that I was writing to Nueva España that they should provide me with all the most necessary things; and those we lacked most. Seeing so much delay on all sides, last year I sent another ship with the relation of all that had occurred here, begging your majesty to be pleased to order that we should be helped and provided, with all possible expedition, with the things that we have asked for, and which were extremely necessary and important; and that the matter be committed to some one in Nueva España, who should provide and have charge of it, because although they sent us reinforcements of men, they sent us nothing else that we had asked for. They said that they had not your majesty's commission for it, and that they were expecting every day the warrant that your majesty will be pleased to give in this case, so that by virtue of it they could supply us with what was needed. This great delay has subjected us to hardship and distress, and to great danger and risk—especially through our lack of powder and ammunition, and rigging and sails for the vessels, of which we are quite destitute, and of which there are not, and cannot be, any here. I beg your majesty to have the goodness to have these things seen to, as is most in accordance with your royal pleasure, with the expedition required in a matter of so great importance; and that henceforth this matter be entrusted to some one in Nueva España, at your majesty's pleasure, who shall administer it as is most fitting to your royal service and the good of those here.

By the vessel that left last year, I sent your majesty seventy *quintals* of cinnamon which we got in trade with the natives; and this vessel about to sail carries one hundred and fifty *quintals* more. There is abundance of it, and we could send more, were it not for the lack of articles of barter; for those we bring are valueless, and these natives do not desire them. There are also other drugs, aromatics, and perfumes which our people do not

know; nor do the natives know them, for they have but little curiosity, and care nothing for these things. In some places there are oysters, and indications of pearls; but the Indians neither know of them nor fish for them. There are gold mines; pepper might be had also if it were cultivated and cared for, because pepper trees have been seen, which some chiefs keep in their houses as curiosities, although they value the pepper at little or nothing. The country is healthful and has a fair climate, although it is very rough and mountainous. All trade therefore is by sea, and almost all the natives live on the sea-coast and along the rivers and creeks that empty into the sea. In the interior there are few settlements, although in some islands there are blacks living in the mountains, who neither share nor enjoy the sea, but are most of the time at war with the Indians who live down on the seacoast. Captives are made on both sides, and so there are some black slaves among the Indians.

If this land is to be settled, to pacify and place it under your royal dominion, in order to civilize its inhabitants and bring them to the knowledge of our holy Catholic faith, for it cannot be sustained by way of trade, both because our articles of barter have no value among them, and because it would be more expense than profit—in order to possess it for pacification, it is most necessary and important that your majesty maintain here a half-dozen galleys, with which to explore all this archipelago, and make further discoveries. Likewise they could coast along China and the mainland, and find out what there is there, and achieve other things of great importance. The galleys could be built here at very slight cost, because there is plenty of wood and timber. Your majesty would have only to provide tackle, sails, anchors, and the heavy bolts and nails for these vessels. You would also have to send from Nueva España two skilled ship-builders, two forges, and two dozen negroes from those that your majesty maintains at the harbor at Vera Cruz who might be taken without causing any shortage. Pitch, oakum, and grease, which are not to be had here, could

be made without any further cost. The ships could be manned by slaves bought from these natives, or taken from those places which do not consent to obey your majesty.

Likewise if the land is to be settled, the mines here ought to be worked and fitted up. Since at first it will be difficult and costly and very laborious, for many causes and reasons, your majesty ought to do us the favor of giving up your royal rights and fifths, or a part of them, and for a time suitable, to those working the mines, so that they might reconcile themselves to undertaking it and expending their possessions therein; your majesty ought likewise to give them permission to buy the slaves, whom these natives barter and sell among themselves, and whom they can use on their estates and for their advantage, without taking them from their land and native home. In everything your majesty will examine and provide according to your pleasure. May our Lord keep your sacred royal Catholic majesty, and increase your kingdoms and seigniories for many and prosperous years, as your royal heart desires. From this island of Çubu, June 26, 1568. Your sacred royal Catholic majesty's faithful and humble servant who kisses your royal feet.

Miguel Lopez De Legazpi

Negotiations Between Legazpi and Pereira Regarding the Spanish Settlement at Cebu—1568-69

(I, Fernando Riquel, [112] notary-in-chief of the royal armada which came forth to discover the Islands of the West, and to govern them for his majesty the king Don Felipe, our sovereign, certify and truly testify to all

who may see the present, or its duplicates authorized in public form, that while his excellency Miguel Lopez de Legazpi, governor and captain-general for his majesty of the above-mentioned royal armada, was located with the people thereof in this island and port of Çubu in the said Felipinas, there came to the said port a certain Portuguese armada, the chief commander of which, they said, was named Gonzalo Pereira. He, after arriving at this said port and remaining therein a few days, sent certain ordinances and documents to the said governor, to which the latter replied sending also other documents of his own; and the ordinances and documents of the said commander-in-chief, Gonzalo Pereira, remained in the hands of me, the above-mentioned Fernando Riquel; while the papers and documents which the said governor sent in response to the said captain-general, under his own signature, remained in the hands of the captain-general himself. The duplicates, signed and authorized by Pero Bernaldez, notary-public of the Portuguese fleet aforesaid, I, the above-mentioned Fernando Riquel, possess, and do insert and incorporate them one with another; and the copies thereof, one placed after another, constitute what now follows, arranged according to the order in which they were presented.)

As for the requisition and protest which I, Gonçallo Pereira, commander-in-chief of this fleet of the king, our sovereign, do make to the very illustrious Miguel Lopez de Leguazpi, captain-general of the fortress and settlement which he has recently established in this our island of Cebu: you, Pero Bernaldez, notary-public in this fleet, are directed to lay it before him, and with his reply—or, if he be unwilling to give one, without it—to return to me. You shall present to him the document and documents, which I must send him, to the effect that it is true that, coming from India in order to favor and increase the Christian communities in these islands, which had been persecuted by the unbelievers, I learned in Borneo that his grace had entered into this our charge and conquest, and established himself in this

island of Cebu, and that he had entered by accident and not intentionally through his having encountered severe storms, and had reached land in this possession of ours. Wherefore I arrived on the sixth of October, one thousand five hundred and sixty-six, from Borneo, having come in quest of him to aid and assist him in his need, as was my duty as a Christian, and because of the close relationship and friendliness of our sovereigns which obliged me to do this, and nothing less, in order to fulfil on our part, the compact made between the emperor Don Carlos, whom may God preserve, and the royal sovereign Don Joham the Third, whom may God maintain in glory. As it turned out I did not see him, owing to the stress of weather which constrained me to go directly to Maluco—whence I sent Antonio Rombo Dacosta and Baltesar de Sousa in two *caracoas* [113] to visit his grace, and ascertain from him what he needed from our fleet, offering him most willingly everything that it contained. From the fortress likewise, the same offers were made by Alvaro de Mendonca its commander; but his grace neither accepted nor besought anything from the fleet or from the fortress. And hearing from Antonio Rombo that there was great need of many things, through lack of which much hardship was suffered, I left Maluco again on the thirteenth of October one thousand five hundred and sixty-seven, in search of his grace, very well provided with everything necessary for his aid—no inconsiderable amount—at the cost of his highness and of his captains. And I failed again to see him, in spite of all my efforts, in consequence of setting out late, and having encountered a very violent monsoon. On the twenty-sixth of August, one thousand five hundred and sixty-eight I returned to Maluco, only to retrace for a third time my way. And our Lord was pleased to allow me to arrive at this our port where I encountered him in peaceful wise without any hostile manifestation whatsoever. And I did not take from and defend against him any vessels or supplies, a thing both easy and profitable for us to do; but, on the contrary, I favored his grace in every way, and gave him the title of

governor. But—seeing that the fortress was being strengthened more and more each day upon the land; and that he was trying to enter into communication with the people about, and constraining them in some measure by force of arms to obedience in the payment of tribute to his majesty the king Don Felipe; and entering into agreements, in the name of his majesty, with the people near and far to the effect that they might sail safely all around the land and through the waters of this archipelago,—I am in considerable apprehension, for all this region belongs to the conquest and demarcation of the king our sovereign; and I cannot persuade myself that his grace comes here with the delegated authority and consent of the king Don Felipe, who is so closely connected and allied with the king our sovereign. Wherefore I request his grace, both one and many times, on the part of the very Catholic and Christian sovereigns, [114] to send me word as to the cause of his coming and his stay, and to show the commission which he brings; for if the consent of the sovereigns is in any wise therein contained, I wish to conform thereto, as I am very desirous to give help and favor in every way which will be of service to the said sovereigns—as, in letters, and in the interviews held, I have given his grace to understand thoroughly. And if his grace is not willing to do anything in this matter, and will not consent to come with all his camp and join this fleet, as I have also asked him to do, I summon him, on behalf of the very Catholic and Christian sovereigns, to depart from this land and archipelago of ours forthwith, with all his camp, fleet, and munitions of war, and leave it free and unembarrassed to the said lord thereof. And otherwise I protest that all the loss and damage which may ensue in this matter will fall upon his grace, and that he will be obliged to give account of them to God and to the sovereigns our lords. Given in this galley "San Francisco," in the port of Cebu, on the fourteenth of October one thousand five hundred and sixty-eight.

Goncalo Pereira.

(*Notification:* On the fifteenth day of the said month of October of the year one thousand five hundred and sixty-eight, I, Pero Bernaldez, notary-public for the king our sovereign in this his fleet, went at the command of Goncalo Pereira, the captain-general thereof, to the camp of Çebu of which the very illustrious Miguel Lopez de Leguazpi is the commander; and I presented to him in his lodgings there, two hours, somewhat more or less, after noon on the said day, month, and year, and delivered to him, word for word, the demand and protest above mentioned, given to me by Afonso Alvarez Furtado, factor of the fleet, who was granted due authority for this business by the said commander-in-chief. At this delivery were present the said factor and Baltesar de Freitas, the notary of the fleet; Andres d'Ibarra, captain; Guido de Levazaris, his majesty's treasurer; Amador de Arrayaran, first ensign, and Graviel da Rabeira, head *aiguazil*, of the camp—all of whom signed here with me, Pero Bernaldez, notary, who writes these presents.

Pero Bernaldez, Alfonso Alvarez Furtado, Baltesar de Freitas.

And then the said Miguel Lopez, after the said demand had been read by me, said that he had heard it, and begged that a copy thereof might be given him, to which he would reply in due form; and, that there may be no doubt about the matter, Lopez says upon another line that it will be truly done. And I, Pero Bernaldez, who drew up this writing in the said day, month, and year, and at the said hour, do witness thereto, in company with the said witnesses already mentioned.

Andres de Ybarra, Guido de Lavezaris, Amador de Arrayaran, Graviel de Ribera.)

Authorization: Guonçallo Pereira, commander-in-chief of these south-by-east regions: by my authorization power is granted to Alfonso Alvarez Furtado, factor of the king our sovereign in this his fleet, so that he may, for me, and in my name, present and require from his highness all the papers and documents which may serve the ends of justice, with all the powers which I myself should have in these affairs which I am carrying on with the very illustrious Miguel Lopez de Legazpi, general of the fleet and forces of Nova Spanha. Therefore, in certification of the above, I, Pero Bernaldez, notary-public of this fleet, signed this document on the galleon "San Francisco," in the port of Çebu, on the thirteenth day of the month of October, in the year of the birth of our Lord Jesus Christ one thousand five hundred and sixty-eight.

Goncalo Pereira, Pedro Bernaldez.

(Reply: This is the copy of the answer which the very illustrious Miguel Lopez de Legazpi sent to Gonçalo Pereira, captain-general of the armada in the South Sea. I, Pero Bernaldez, notary-public of this fleet for the king our sovereign, copied the summons of the said Miguel Lopez de Legazpi.)

I, Miguel Lopez de Legazpi, governor and captain-general for his majesty the king Don Felipe, our sovereign, of his forces and the royal fleet, for the discovery of these islands of the West: inasmuch as certain demands, contained in a summons which Pero Bernaldez—notary-public, as he said, of his armada—read to me on behalf of the very illustrious Gonçalo Pereira, captain-general of the Portuguese armada, have been made upon me on the petition of Alonso Alvarez [Furtado], factor of the said armada (as in the said summons to which I refer, is set forth, at greater length); therefore replying to the said demand and to the things contained therein, I say that I came by command of his majesty the king Don Felipe, our sovereign, and

with his royal fleet as the governor and general thereof, with the purpose of discovering the lands and islands of the West, which are and always were within his demarcation, in order to propagate and teach therein the gospel and the evangelical law, and to spread the Christian sway of our holy Catholic faith—the thing which, most of all, his majesty purposes in these parts. In the course of my expedition I arrived at these islands, where I was obliged to provide myself with certain supplies which I needed and which I did not have at hand; and in search of which I went about among the said islands for many days without being able to secure them, until by chance I arrived at this port of Cubu, where I was obliged to spend the winter. I sent from here the flagship, in which I came, to Nueva España with a report of all that had happened during the expedition; and I wrote to his majesty saying that I would await here his answer and despatches in order to learn whither he commanded me to go. And it was because no despatch or answer came to me from his majesty that I stayed here so long, and not from any intention or desire to settle or remain in this land. As a matter of fact, in my instructions I am commanded not to make entry in the islands of Maluco, or to infringe the treaty made between the kings of Castilla and Portugal, our sovereigns. In a clause contained therein, moreover, I am ordered to come to these Felipinas islands and seek for certain people, lost here, who had belonged to the armada of Rui Lopez de Villalobos; and, in case I found them alive, to ransom them at his majesty's expense and deliver them out of their subjection to the infidels, in order to return them to their native lands and to the Christian faith in which they were born and reared. This I have successfully accomplished; of those who had come over in the said armada one was found in the island of Tandaya, and I ransomed him. And I have also received notice that two Spaniards were sold by the natives of the island aforesaid to the Indians of Burney, which piece of information has made me desirous of knowing their whereabouts and what was done with them, that I might bestow upon them the same benefit of ransom. By this it

is clearly seen and inferred that his majesty is convinced and believes that the Filipinas islands are within his demarcation, for on the one hand he orders me to come to them, and on the other not to infringe the royal treaty of our kings and sovereigns. And in this faith and belief I came and have remained here in his royal name, and not with the intention of injuring the most Christian king of Portugal or harming any of his possessions, or in any way to transgress the said treaty. And even though the lands belong to his majesty, my will and intention has, up to the present time, not been to settle in them or in any others until I should have the authority of his majesty; and the assurances and letters of protection which have been given to the natives of this land were so given, to the end and purpose that the warriors and soldiers who go and come from one place to another in search of provisions should not be harmed or injured or robbed. In this, indeed—even though the lands do belong to his highness, as is set forth in the said summons—a service has been done him; for all was done with the intention of protecting and preserving the natives thereof. Moreover, just as soon as I arrived at these islands I endeavored to learn and ascertain if the Portuguese had come here, and if they had any intercourse and commerce with the natives; and if the said natives did them any service, or paid them tribute, or if the Portuguese derived any other advantage from them. And the said natives assured me that this was not the case, and that they neither knew them nor had ever seen them. This assurance emboldened me in thinking myself the more authorized to provide and supply myself from among them, without harm to anyone. As regards the tributes mentioned in the summons aforesaid, the fact is that on a few occasions no supplies were to be bought; and, in order not to make war upon the natives and do them any injury, or to take the supplies from them by force, we persuaded them to give us some provisions by means of which our people might be maintained. Some of them gave and have given, of their own free will, a certain amount of rice and other food, but nothing whatsoever through

which his majesty has derived any profit—on the contrary, a large amount of gold has been paid out for the provisions aforesaid; and this, moreover, the natives gave, when, and in what manner, and in what quantity they themselves desired, without suffering any violence or receiving any reward. Everything which I have enumerated was to protect and defend the natives aforesaid, without doing them any harm or injury whatsoever. And as for what his grace says in the summons aforesaid about sending Antonio Runbo de Acosta and Baltesar de Soza to visit me, and how they came in the month of July of the past year to this camp, with letters from his grace and other captains entreating me to go to their fleet and fortress of Maluco with all my people, together with other offers, I would say that they were received in this camp with all peace and amity and good will, in accordance with the custom of the land. And through them personally I replied to his grace giving them the reasons for my coming and my stay in this land, which are those above-mentioned; and telling him that I was unable to accept the kindness which was proffered me in the fleet and fortress of Maluco, inasmuch as it would be contrary to the commands and orders which I bore from his majesty. And certain persons who came in company with Antonio Runbo, gave us to understand very differently from what had been written me in the letters, and stated and declared that the said captain-in-chief was on his way with all his fleet, with the intent of coming here and taking prisoners all the Castilians that they should encounter. The same purpose was indicated in a letter which Antonio Lopez de Segueira, captain of a galley, wrote at Point Coavite to the master-of-camp Mateus del Saz (may he rest in peace). Consequently, the horizontal rampart of this camp was constructed, in order to guard the munitions and the property of his majesty; for up to that time there had been no fort or protection therefor whatsoever, save only a palisade of palm-logs driven into the ground to keep the natives from doing damage at night—for concerning all the rest our minds were fully at peace, as was natural in the case of people who had

no idea or intention of remaining in the land, but only of awaiting the message from his majesty and then going whither his majesty should command. And so I stated and declared to the said Antonio Ronbo that what I needed was ships to leave the land; and I intimated the same to his grace at our interviews, and begged him to give me two ships of his own, with which I might depart, on condition of my paying for them from his majesty's possessions here. And the same I say today, as the most expeditious means of departing hence and leaving the land in the hands of its rightful owner; and if I have the said ships I will do so now, in order to give satisfaction to his grace. Without them, we are absolutely obliged to await the ships which are to come from Nueva Spana in order that we may depart; and when they come I promise to fulfil and accomplish what I specify above, without any injury attaching to any one whomsoever from my stay in this island. And although the intention and offers of his grace seem favorable, pacific, and impelled by Christian feeling, the statements made public by the people of his fleet are very much in opposition thereto; for they say and declare that he comes only to take us prisoners, and that he has sent for reënforcements from many sources to carry this purpose into effect, and (which has the worst sound of all), that he is sending for reënforcements from among the Mahometan Moros and pagans, to fight against Christians and vassals of his majesty. This I do not believe, as the fleet of his grace is so large and powerful that he may do what he pleases, especially with people who desire to serve him and who will vindicate themselves in everything pertaining to the service of God and of the sovereigns our lords. And as regards the request he makes, in the said summons, to be shown what authority I have for entering these islands, I say, that I am ready and prepared to show it to him as often as he may desire to see it, as I have told him personally. And I likewise on my own part beg him, and if necessary even summon him, in the name of his majesty, once, twice, and thrice, and as many times as I am by law required:

to show me if he have any order or command from the kings our lords in order that I may obey and fulfil it, as I am required to do; or if he has order and command from his highness to trouble and make war upon the vassals of his majesty who may be in these regions. Without that, I find no cause or adequate reason, nor can I believe that his grace desires, to do me violence or any injury, in transgression of the peace and amity and relationship which is so close and intimate between the kings our sovereigns; moreover, it would be a matter of very great displeasure to God our lord. And if, through unwillingness to do so, injuries and scandals should arise and increase on one side or the other, I declare that it will be the fault and blame of his grace, and that he will be obliged to give an account therefor to God and to our sovereigns and lords. And this is what I say and respond to the said summons, not consenting to the protests contained therein. And I sign it with my name, and request you, the present notary, to read and make known this my answer to the said captain-in-chief in person, and that the same be incorporated and inserted in the said summons; and that testimony thereof be given me, as well as the copies necessary, in due form. Done in Çubu, the fifteenth day of the month of October, of the year one thousand five hundred and sixty-eight.

Miguel Lopez de Legaspi.

Notification: In the island and port of Cubu, in the galleon said to be called "San Francisco," I, Fernando Riquel, notary-in-chief, and government notary at the instance of Andres de Mirandaola, factor and inspector for his majesty, read this response and summons to the very illustrious Gonçalo Pereira, captain-general of the royal fleet of Portugal, in person, *de verbo ad verbum* exactly in accordance with the tenor thereof. He said that he had heard it, and would reply. The said Andres de Mirandaola in virtue of his authority presented it, in the name of the very

illustrious Miguel Lopez de Legazpi, governor and captain-general of the royal fleet for the discovery of the islands of the West, there being present, as witnesses to all above-mentioned, Alonso Alvarez Furtado, factor of the royal fleet of Portugal; Pedro Dacuna de Moguemes, captain-general of the sea of Maluco: Sancho de Vasconcellos, nobleman; Guoncallo de Sousa, nobleman of the household of his highness, the king of Portugal; Pero Bernaldez, notary public; and Christoval Ponze, scrivener, notary, all of whom signed it together with me, the said Fernando Riquel.

Andres de Mirandaola, Pero Dacunha de Moguemes, Sancho de Vasconcellos, Afonso Alvarez Furtado, Guoncallo de Sousa, Pero Bernaldez, Christoval Ponce de Leon.

In testimony thereof

Fernando Riquel.

(This copy herewith above-written was well and faithfully compared with the original by me, Pero Bernaldez, notary public of this fleet, without there being found any interlineation or erasure of a kind which would occasion doubt: only the word *perjuizio* [harm], and the interlineations *premio* [reward], and *dha* [for *dicha*—said] are scratched out. Everything there is correct, and the said Fernão Riquel, notary-in-chief, was present at the comparison and subscribed his name here with me, together with Baltesar de Freitas, notary of the fleet, who affixed here his assent, on this day, the twenty-ninth of December of the year one thousand five hundred and sixty-eight.

Pero Bernaldez.)

(This copy was compared before me, Baltesar de Freitas, notary of the fleet, on the said day, month, and year, aforesaid.

Baltesar de Freitas.)

(On the said day, month, and year above-mentioned, I was present at and saw the correction and comparison of this copy.

Fernando Riquel.)

(*Authorization:* In the island and port of Çubu, on the fifteenth day of the month of October of the year one thousand five hundred and sixty-eight, the very illustrious Miguel Lopez Legazpi, governor and captain-general for his majesty over his people and royal fleet for the discovery of the islands of the West, before me, Fernando Riquel, notary-in-chief and government-notary, and in the presence of the witnesses hereunto subscribed, said that, in the name of his majesty he gave and granted all and every authority he possessed—as in such case is by law required, and it may and ought to be sufficient—to Andres de Mirandaola (who was present), factor and overseer of the royal estate of his majesty, in order that in his place, and as if it were he himself, the said Mirandaola might present whatever summons, protests, and replies, and other documents whatsoever, that might prove necessary, to the very illustrious Gonçalo Pereira, captain-general of the Portuguese fleet anchored in this port, in regard to the affairs under negotiation at the present moment between them concerning the service of God our Lord, and that of the kings our sovereigns; and in testimony thereof I sign the present with his name, the witnesses being Martin de Goiti, the master-of-camp, and Captain Diego de Artieda.

Miguel Lopez de Legaspi.

Done before me,

Fernando Riquel.)

(This copy was well and faithfully compared with the original by me, Pero Bernaldez, notary-public of this fleet, without there being found any interpolation or erasure which would occasion doubt; and the said Fernão Riquel was present at the comparison, and signed here with me—together with Baltesar de Freitas, notary of this fleet of the king our lord, who affixed here his assent—on this day, the twenty-ninth of December of the year one thousand five hundred and sixty-eight.

Pero Bernaldez.)

(This copy was compared before me, Baltesar de Freitas, notary of the fleet, in the said day, month, and year, aforesaid.

Baltesar de Freitas.)

(On the said day, month, and year, above-mentioned, I was present at the correction of this copy.

Fernando Riquel.)

Second Summons: Replying to this reply to my first summons, made by the very illustrious Miguel Lopez de Leguazpi, general of the camp and of the people of Nova Spanha, I declare that the essence, subject, and right of all this matter is not contained in words, but in deeds; and that his grace has up to the present time acted in a way very displeasing to God, to his majesty and to the king our sovereign, as I shall set forth in detail. As regards his grace's coming by authority of his royal majesty, the king Don Felipe, in order to discover lands, the islands of the West lying within his demarcation, and to propagate Christianity therein, as should be the principal purpose of so Christian a prince; and bearing withal instructions

not to enter into aught, or in any way infringe the treaty and agreement made between the emperor Don Carlos and the king our sovereign Don Joan the Third (both of whom I pray God may have in glory): this does not absolve, but rather condemns him, inasmuch as he has acted in a manner so contrary to his instructions, neither making discoveries, nor founding any Christian communities, nor limiting himself to his own demarcation, but hastening with great speed to penetrate so many leagues through our demarcation—contrary to the faith, oath, agreement, and instructions of his true king and lord. He would indeed be able to say that he was ignorant of the bound and limit of these two demarcations, if Father Urbaneta had not told and requested him to settle such of the Ladrones Islands as, on his way around them, he might discover; if his majesty had not charged him not to enter, under any consideration, into the territory belonging to the king our sovereign; and if he had not been told and informed by the ships which were in this vicinity that the islands belonged to us, all which will appear, in proper time, in documents sworn before a notary. His grace's saying, in his letter written to me at Maluco, that he entered into this our conquest in consequence of stormy weather surprised me not a little, for the Portuguese in their voyages from Portugal to India (although even more exposed to inclement weather, to more violent winds, and to rough and heavy seas), never encountered a tempest of such violence as to endure for more than twenty-four hours, or in which, however far one of our ships might run, (with sails either furled or spread forth to the wind) they ever passed over an extent of more than fifty or sixty leagues—although, it is true, I have heard it said that one of our ships once ran a distance of eighty leagues; but his grace's having entered three hundred leagues into these waters of ours causes me anxiety, especially in view of his coming through a sea so calm and winds so gentle that small boats are able to navigate it, as most of the people of this region have told and declared to me. As regards his saying that he was absolutely obliged to enter, owing to lack of provisions, I reply

through the lips of the captain of his company and those of ours here, who affirmed that in the Ladrones Islands where he was best employed in the service of God, so many boats brought him supplies that their number was estimated in one single day at six hundred; moreover, that in the islands aforesaid, and in others by which they passed, they obtained hens, swine, fish, rice, and yams. The same thing was told me by the father prior; and I understand that Guido de Lavezaris, treasurer of his majesty and his grace, having, in this archipelago of ours, nothing left of the six hundred boatloads and obtaining in this region so little food in the boats or camp, sent to Panae and others of our districts for supplies at the cost of a great deal of trouble. This is a fact well attested, since I have been in this port; for I consented and allowed many vessels bearing supplies to enter, on their declaring to me that there was so great lack of provisions here that many soldiers were living upon grass. I assert it to be clear and evident, moreover, for every man of judgment and understanding, that so rich a fleet—comprising so large ships, sent forth for the purpose of discovery by its king, and departing from his kingdom of Nova Spanha, a land of so great fertility and abundance—would not lack supplies and munitions for three or even four years; and that a fleet so large as that of which his grace is commander must have come provided and supplied with everything necessary for a long period of time. And this was, indeed, declared to be the fact by the chief men of the encampment, who said that biscuit and supplies abounded on the flagship, when it arrived hence at Nova Spanha; and that there was great superfluity in many things obtained from the islands lying within their demarcation, as well as in many more which his grace brought over in his fleet. In this lack of provisions (in which he placed himself very much by his own choice), we placed Alvaro de Mendonça, who was then captain of the fortress of Maluco, at his disposal for everything that he might need from these lands and seas of the king our sovereign, in the month of July of the year one thousand five hundred and sixty-seven

through the means of Antonio Ronbo da Costa and Baltesar de Sousa, whom I sent for this purpose from Maluco in two *caracoras*. This his grace did not accept—on account of the abundance of everything which he possessed, as it appears—contrary to the action which would be taken by one who is in necessity, and who avails and assists himself even through the medium of his enemies; and even more so in the case of so good friends as are and always have been the vassals of the king our sovereign and those of the sovereigns of Castela, between which princes there exists a very ancient relation and intimacy. The excuse he gives, in addition to the others already mentioned, of entering into this our sea and conquest, because he knew that the Portuguese have no commercial relations as yet within these islands, is weak and of no avail; for in what law, either divine or human, does his grace find it written that, when the kings and their vassals disregard for a time commercial relations with lands belonging within their demarcations, others should consequently take therefrom gold and drugs, which do not belong to them? As for his saying that he entered here to look for Spaniards who remained in these islands from the fleet of Ruilopez de Villalobos, and that he has already ransomed one, and has information regarding two more—this is a very poor reason for violating good faith, truth, oath, and so solemn a compact between so Christian princes. This is especially true in view of the knowledge and experience (to which Guido de Lavezaris could testify) of the great affection and sheltering kindness with which those of the company of Ruilopez de Villalobos were received and transported to Spanha (at great expense to his highness and his captains), through the favor of the viceroy, and were well looked after in our merchant ships; while those who, with his approbation, wished to remain here, were likewise granted many favors, and, having become rich, now dwell in the fortresses and cities of India. Moreover, he might have trusted us in this matter of the three Spaniards, who remained here at all the less cost to his majesty, and without serving his highness. As for trying to make me to

believe that he was serving the interests of the king our sovereign during his stay in this our king's land, with his safeguards and defenses. I emphatically assert that they were all erected very much against his interests; for one who has the intention alleged by his grace gives evidences plain to all, assuring the inhabitants of the land against those accompanying him, but not by means of fortifications and a so great assumption of authority in another's kingdom—usurping therein the vassalage rights of his highness and transferring the same to his majesty, who already has so many; obliging the natives to pay him tribute, and laying down the law to them as if they were his own subjects; and taking them prisoners on their coming to see the captains of their real king and sovereign, as in the case of one who was captured as he came to the pinnacle of Antonio Ronbo da Costa, and prevented from speaking with me. As for the chimerical charges which his grace makes against me concerning the letter of Antonio Lopez de Segueira, and the words of the soldiers of Antonio Rumbo, in what manner could he have formed an opinion from a letter written by an individual captain who had been separated for many days from my company, if the sincerity of my intentions should be truly proved without further indications? For I do not know the words of his letter; but the statement of Antonio Lopez, after having had several shots fired against him, was not without cause, inasmuch as, having learned that alien people had a considerable time previous entered into this our territory, and had made a settlement and erected a fort therein, knowing withal but little of his grace, and much of the compact, good faith, and sincerity of his royal majesty the king Don Felipe, it seemed proper to lay the blame upon the captain rather than on the king—of which, in the judgment of many, his grace was not so ill-deserving. God forbid that I should reply to what is said concerning the words of the soldiers, for I should be very much ashamed to have to give account, in so sorry a business, for my actions in entering and remaining in this port; and to make proof of the great zeal which I have for the service of God and of the kings

our sovereigns, and of my great desire to preserve peace and amity between us—suffering, as I have, whatever wrong is done me in this camp. Let his grace judge me only upon sure grounds, and not on chimerical accusations of the past, the falsity of which I prove by good deeds in the present. With regard to his claim of not having ships in which to depart from these waters of ours into his own, during the three or four years in which he has been settled in this our port of Cebu, I maintain that he had more than sufficient time and ships in which to leave; for I know that the flagship could carry two hundred men, or as many as his grace may then have had in his camp quite easily (for the return passage had already been discovered), inasmuch as his grace intimated to me in a letter which he wrote me at Maluco that the flagship held even more. And of his own accord he ordered the *patache* "San Joan," the other small *patache*, and some frigates to be run ashore; for as soon as one came from Nova Spanha the others could easily go thither—a large fleet, certainly, since it contained more than a thousand men, together with a camp much larger. He lacked, therefore, neither supplies, ships, a known route home, nor time in which to depart from our demarcation, when he entered there, as is plain; the small *patache* and the flagship, also, were not lacking to him. We offered him everything that he needed from the fortress and fleet of his highness.

Therefore, from the above and from other things previously written, it remains proved, not by the Portuguese, but by the Spaniards themselves, and not by camp-followers but by his chief men, that his grace is not here through necessity, but with a very definite aim, awaiting more men and a fleet, in order forcibly to wrest Maluco, China, and Japan, from the king our sovereign. This is clearly shown by the words of the foremost men of his company, and by the many questions they put to us concerning our knowledge of these regions; as well as by the letters from Nova Espanha which have fallen into my hands.

The encampment: It is shown by the people and munitions which his grace ordered to be brought, and which were brought to him; the flagship and the *patache*; the extent of the defenses which he is erecting day and night; the great reinforcements which he is procuring from among the infidels to help him fight against us Christians—as was well made evident at the arrival of Antonio Ronbo and at mine; his ordering these people to hasten with their arms to this camp of his, summoning them to fill all the land with snares; and by his resolve to shed, with the aid of his ships, much Christian blood. All this consists of deeds, and not of imaginations such as he brings up before me regarding the king of Ternate; for it is much more certain that the latter has not yet gone forth from his kingdom than that he is now absent from it. It is true that I summoned that king to come with his fleet, as a vassal of the king our sovereign, for many reasons: first and foremost, to induce him to leave his land and not remain there, when I should go thither to investigate his evil deeds against God and his highness in the persecution of the Christian communities of Morobachan, Anboyno, and Celebs—as on several occasions, it was suspected, happened covertly. The second, to take satisfaction upon his people for the treasonable acts which the natives of Taguima committed in their harbor against the boats of the merchantmen from Maluco and of this fleet; but I was unable to inflict punishment by effecting a landing there on account of the country being overgrown with heavy thickets. The third, that I might negotiate for provisions for this archipelago, if his grace should long remain therein. The fourth, to chastise many Moros and natives who have injured, and are injuring, God and his highness. The fifth, to make such use as should be necessary of that king's services and labor. But as for availing myself of his forces against Christians, may God forbid that I should ever do such a thing; and blood so old and free from stain as mine, and so Christian a nation as the Portuguese are, would never tolerate it. And that this is true I have already intimated to his grace, to the father prior, and to Guido de

Lavezaris, not forgetting where I begin this reply of mine—wherein I declare that his grace is wronging God, his majesty, and his highness, and is, besides, quite well understood in other matters pertaining to this affair. I add, moreover, in so far as God is concerned: his ordering or consenting to the sale of iron and weapons in this camp to the infidels, so as to arm them against Christians; his ordering javelins [115] to be made in this settlement of negroes and in his own, which the Spaniards would take away to Mindanao and Cavetle to sell, exchanging them for cinnamon, hardwood *machetes*, axes, knives, and even for drugs. One of the principal items concerns the Lord's Supper—so jealously guarded by the holy fathers, and regarding which they have issued threats of excommunication, so stringent that no one can be absolved except by them. He suffers many men belonging to this camp to have carnal intercourse in public with native women, without punishing them therefor, although making a pretense of being rigorous in other matters of less importance. He takes other people's property, acting in all respects just as if he were ourselves, and thus takes our property against our will. As concerns his majesty, he reduces and renders null and void, in so many respects, his solemn compact (which deserves all the good faith and truth that should belong to so Christian a prince), and thus wrongs his blood relatives to whom he owes so many obligations. He takes from his highness by force these lands conquered by him; and he is awaiting more forces and a fleet to terminate completely the task of capturing them all. For this he is taking measures, with much preparation of war, in his hostility to the captains and people of his highness's fleet—among whom there is no hostile feeling, and who even offer amicably to serve, with much love and pleasure in so doing, both him and all his company. With regard to the two galleys which his grace asks from me, out of the three which I possess, it would not be right to give them to him, even though I found him doing many services to God and to the king our lord in this land. But when I find him wronging them, and

intending to wrong them still more, I can but be startled at his grace's asking me for the sinews of this fleet and the sword with which to cut off my own head, as I would be doing if I should give him ships in order that he may carry out the more successfully his purpose—especially as no clause existed in the treaty which would oblige the king our lord to order ships and a fleet to be given to the Spaniards who might pass this way with the intention of doing him injury, in order that they might depart hence and continue on their way. As far as his grace's awaiting a reply from his majesty is concerned, I consider it even more unreasonable to ask for galleys; for, just as one who is committing some deadly sin displeases God all the more the longer he continues therein, so likewise, the longer his grace continues to transgress the good faith and truth of the contract made by his very Christian king and lord, the greater displeasure he will cause to God; but, if he would depart hence, upon our waters, in all peace and amity, God would be pleased and the princes satisfied, since they are so good Catholics and so close and intimate relatives. And his grace would thus be atoning for the past to the king our lord, and to me on his behalf; and would not, considering his age, be obliged, in this last quarter of his life, to oppose God in a matter so contrary to precedent and justice, by trying to remain forcibly in this our land and sea, at the cost of shedding innocent blood in the matter, or of its being wiped out at the same cost—when without any trouble or expense he may attain his wish, and be placed where he may see his sovereign; or, in case of loss, have security therefor, and profit into the bargain. Let him go forth once more to make discoveries, and to propagate our holy Catholic faith, in his own demarcation; and I entreat and summon him to depart with his camp into this fleet, where they will be treated with all the good faith, sincerity, and affection which befits good Christians and vassals of kings so closely bound. For the purpose of returning to Espanha, all necessary supplies and hospitable services will be afforded him. But let him not beg off by saying, as he has already said once, that he has

instructions not to transgress or violate the treaty and compact in these our waters; for one who has, in all respects, up to the present time, done precisely the contrary will with all the more justice journey by our waters to Espanha, thus serving God and the kings our lords, rather than injure them by remaining. I also entreat him once more, and with special emphasis summon him, to have his instructions shown to me, as I on my part will do by sending him the orders of the king our lord, whenever he may, with a mind exempt from passion or self-interest, desire me to do so. And I entreat him earnestly as a favor, and I summon him in the name of God and of the said princes, to consider the agreement which I here propose to him: and, having considered it, to carry it out in all respects without distrust, reserve, deceit, or delay whatsoever. And if he does not wish to accept this fleet, which I offer him in order that he may depart, and return to Espanha, let him then depart from this island and from all others belonging to the demarcation of the king our lord, with all his camp implements of war, his master-of-camp, his captains, ensigns, sergeants, corporals, and the other officers and people of war and the royal service. If his grace be unwilling to do this, I bear witness that all the blame and fault which may ensue in this matter will fall upon him, and that he and all his camp will be held and considered as suspected rebels against the mandates of his king and sovereign; and I shall remain exempt from any fault for whatsoever injury and evil may occur. And you, Pero Bernaldez, notary-public in this fleet for the king our lord, are commanded to read to him the contract, and to acquaint the said Miguel Lopez, general of the camp and people of Nova Spanha, with this reply, which shall be incorporated and annexed to the reply made by him, as aforesaid; and of this you will give me the document or documents necessary to be drawn up in public form. I likewise command you, Fernão Riquel, notary-in-chief of this camp, and all the other clerks and notaries thereof, to give and transfer to me all the summons, protests, replies, and responses which may be made in this matter, now or hereafter,

and the instrument and instruments which shall be necessary to me, in duly attested form. In this galley "San Francisco," on the nineteenth day of the month of October of the year one thousand five hundred and sixty-eight. Let there be no doubt in the interlineation which occurs at the hundred and third line of the said reply, namely, *vindo questa*; and where it reads, in the margin, *e requeiro*, at the beginning of the two hundred and thirty-first line above-written—for it is all correct. In the same day and year above-written.

Goncalo Pereira.

(*Notification:* On the nineteenth day of the month of October of the year one thousand five hundred and sixty-eight, in this port of Cebu, at the place occupied by the very illustrious Miguel Lopez de Leguazpi, general of the fleet and forces of Nova Spanha, there was given to me by Afonso Alvarez Furtado, factor of the fleet of the king our lord, the compact made between the emperor Don Carlos (whom may God preserve) and the king Don Joan the Third our lord (may he live in glory), and likewise the answer which Guonçallo Pereira, captain-general, sent to the reply to the first summons of the said Miguel Lopez de Leguazpi; and he ordered me, on behalf of the king our lord, to read it, and acquaint him therewith. And I read, and made him cognizant thereof, *de verbo ad verbum*, before him personally and many persons of his camp. He replied thereto that he had heard the same, and would make answer. Witnesses thereto who were present at all the proceedings: the said Afonso Alvarez Furtado; Baltesar de Freitas, clerk of the said fleet; Martin de Goti, master-of-camp; Andres de Mirandaiola, factor of his majesty; Andres de Ybarra, captain; Dioguo Dartieda, captain; and Guido de Lavezaris, his majesty's treasurer—all of whom affixed their signature with me.

Pero Bernaldez, notary.)

(In the said day, month, and year above written, with me signed Fernando Herrequel, notary-in-chief of this camp and fleet. Witnesses: Martin de Goiti, Andres de Ybarra, Andres de Mirandaola, Guido de Lavezaris, Diego de Artieda, Fernando Riquel, Afonso Alvarez Furtado, Baltesar de Freitas.

Pero Bernaldez.)

Compact: Don Sebastião, by God's grace King of Portugal, and of the Algarves here and beyond the sea, in Africa; Seigneur of Guinee and of the conquest, navigation, and commerce of Ethiopia, Arabia, Persia, and India—to all the *corregidores*, auditors, judges, justices, officials, and persons of my realms and fiefs, to whomsoever this my letter of testimony may be presented, and on whom the recognition thereof is incumbent, greeting: I hereby declare that, through Gonçalo Pereira, knight of my household, captain-general of my fleet, now at my fortress of Maluco, I was petitioned by Alvaro de Mendonça, captain of the said fort, and knight of my household, that I should order a copy made of the compact which was made between the King Don João and the emperor Don Carlos, my ancestors of glorious memory, in regard to the doubt and controversy of Maluco; the same to be filed in the factory of the said fortress, in order that he might thereby justify himself completely with Miguel Lopez de Leguazpi, captain-general of the fleet of the king Don Felipe, my much loved and esteemed brother, now stationed at the island of Cebu. The copy of this contract I have ordered sent to the said captain; it is, *de verbo ad verbum*, as follows:

Don Jòhan, by the grace of God King of Portugal and of the two Algarves here and on the other side of the sea, in Africa; Seigneur of Guinee, and of the conquest, navigation, and commerce of Ethiopia, Arabia, Persia, and India,—to all the *corregidores*, auditors, judges, justices,

officials, and persons of my realms and fiefs, to whom this my letter of testimony may be presented, and on whom the recognition thereof is incumbent, greeting: I hereby declare that by my governor Jorge Cabral, orders were sent to my auditor-general (whom, with appellate jurisdiction, I maintain in those parts of India), to forward a testimonial letter giving a copy of the compact made between me and the emperor, my greatly beloved and cherished brother, regarding the dispute and controversy of Maluco, in the interest of which, and thus ordered in fulfilment of my duty, the said copy of the compact was forwarded in the testimonial letter by two routes. The copy thereof, *de verbo ad verbum*, constitutes what follows in the consecutive pages adjoining this.

Don João, by the grace of God King of Portugal and of the Algarves on this side and beyond the sea, in Africa; Seignior of Guinee and of the conquest, navigation, and commerce of Ethiopia, Arabia, Persia, and India, to all the *corregidores*, auditors, judges, justices, officials, and persons to whom this my testimonial letter shall be shown, and on whom the acknowledgment thereof is incumbent: I inform you hereby that my attorney tells me that, for the protection and preservation of my laws he needs the copy of the compact which I have made with the emperor, my greatly beloved and cherished brother, in regard to the dispute and controversy of Maluco. It is as follows:

[Here follows the Compact or treaty of Zaragoza, April, 1529, whereby Carlos relinquishes all rights to Maluco for the consideration of three hundred and fifty thousand ducats. The essential parts of this treaty are given in vol. i, pp. 222 ff. of this series.]

[The summons or notification proper then continues:]

And, on his summoning of my said attorney, I ordered him to forward to him this my letter of testimony with the copy of the said compact given in

the town of Almeyra on the ninth day of the month of December. Ordered by the king's decree through the licentiate Francisco Diaz de Amaral, of his *desembargo*; and *corregidor* of my court with jurisdiction over criminal affairs, Antonio Ferrãz drew up the same in the year one thousand five hundred and forty-five, and I, Pero Dalcaceva Carneiro, of the said Council of the said sovereign, and his secretary and notary-in-chief in all his kingdoms and possessions, countersigned it.

(This compact above preceding and declared was here copied entire from the copy sent from the kingdoms, which was signed by the licentiate Francisco Diaz de Amaral mentioned therein, approved by the chancellor's office, and drawn up by the secretary, Pero Dalcaceva Carneiro and João de Figueiroa. Wherefore, coming as it does in the manner above set forth, this copy, which was derived therefrom and written here, is a true one, without any thing of a nature to cause doubt save a certain interlineation reading "within the said line, which such islands or lands." For, to make the same a true copy, it was written on thirteen half-sheets of paper and compared, from beginning to end, by the official whose name is affixed hereto; and full faith shall be given the same wherever it shall be presented, in court or out, in view of the fact that, for greater assurance, it is sealed with the seal of my arms in this city of Goa on the twenty-third day of April. The king ordered the same through the licentiate Christovão Fernandez, member of the *desembargo* and auditor-in-chief of India with appellate jurisdiction. Lopo Daguiar, a notary by office, had the document written and subscribed, by the authority which he possesses, in the year of the birth of our Lord Jesus Christ, one thousand five hundred and fifty. *Pagado nihil*. [116] The licentiate,

Christovao Fernandez.)

(Compared with the original copy by me, a notary, in conjunction by the official here subscribed. Antonio Fernandez, Lopo Daguiar. *Pagado nihil*. Lopo Daguiar. The licentiate,

Andre de Mendanha.)

(This compact previously and above set forth was in its entirety copied from the copy of another copy sent from the kingdom and signed by the licentiate Christovan Fernandez mentioned therein, which was approved by the chancellor's office, and compared by Antonio Fernandez and Lopo Daguiar: wherefore, on account of its above-mentioned source, this duplicate emanating therefrom is presented here as a true and correct copy, without there being anything therein which would cause doubt. It was all inscribed upon seventeen half-pages of paper, with the copy of the letter-patent and that of the compact, compared in its entirety by the official hereunto subscribed. Wherefore full and entire faith shall be given to the same, wherever it shall be presented, both in and outside of court, inasmuch as, to assure the same, it is sealed with the seal of my arms in this fortress of Maluco on the second day of the month of September. Ordered by the king through Alvaro de Mendonça, nobleman of his household and his captain in this said fortress, and through Thome Arnao, court-notary who had it drawn up and subscribed, by the authority possessed by him thereto, in the year of the birth of our Lord Jesus Christ one thousand five hundred and sixty-seven. *Pagado nihil*.

Alvaro de Mendonca.)

(Collated with the original copy of the said copy by me, a notary, in company with the officials hereunto subscribed. Dioguo de Paiva, Thomé Arnaõ, of the chancery.

Vasco Martinez.)

(This is the copy of a reply which the very illustrious Miguel Lopez de Leguazpi sent to Gonçalo Pereira, captain-general in these regions of the South for the king our lord, which reply I, Pero Bernaldez, notary-public of this fleet, copied from the original at the request of the said Miguel Lopez de Legazpi.)

I, Miguel Lopez de Legaspi, governor and captain-general for his majesty the king Don Felipe, our sovereign, over his people and his royal fleet for the discovery of the islands of the West—in reply to the rejoinder made by the very illustrious captain-general of the Portuguese fleet, to the response which I made to his first summons, do now confirm my response aforesaid, which is absolutely true, as said and declared therein; and this will be proved and established with true and sufficient evidences and proofs, at any and all times, as it shall prove necessary. And I do not feel bound to reply to many of the things contained in his rejoinder, inasmuch as they are utterly irrelevant, and have nothing to do with the business here concerned—tending, as they do, to attribute fault, and cause for slander, where there is none; many of them, also, being untrue, and unworthy of a person in so serious and important a station, and of so illustrious and Christian blood as the said captain-general claims to possess. And thus denying it, in all and for all, and coming to the essential points, I declare and affirm that my entrance in this island was occasioned by the reasons and causes contained in my response; that it was forced and necessary, and without my knowing that I had passed the line of demarcation. And this I neither knew nor understood until the said captain-general assured me of it in his letters. And likewise I affirm that I was detained, and remained here against my will, through my inability to leave in any way for lack of ships and provisions; and not intentionally or purposely to harm, in any way whatsoever, the very illustrious and puissant sovereign, the king of Portugal, or any of his possessions, or to harm any third party. Nor had I the intention of taking anyone's property away from him, as may be proved by those principal

persons of this camp by whom his grace declares himself to be informed of the contrary; for, if put upon their oaths, they will, as Christians, be unable to escape the necessity of telling the truth. And, as a man who has desired, and still desires, to depart hence, the first time when Antonio Rumbo da Costa and Baltasar de Soza came here, I informed them that what I needed for that purpose was ships, and that ships were on their way; and so I have informed his grace many times. In this necessity, however, he has up to the present time given me neither remedy, aid, nor favor—which I expected from friends and vassals of a sovereign so related by kinship and blood with his majesty; and as I would have done for them, if I had found them in the plight in which they find me. It is no valid objection to say that I have had ships in which I could have left—such, for example, as the "Capitana" and the "San Juan," which went to Nueva España—for the "Capitana" carried about two hundred persons, and the *patache* "San Juan" seventy, which number was the utmost that they could carry, on account of the supplies and rigging which they bore. Nor does it avail to say that I intentionally ran the flagship aground, for the opposite is the truth; nor should it be presumed or believed that a vessel so much needed by this camp (the property, moreover, of his majesty) could purposely have been run aground—which statement any person who is willing to look at the matter dispassionately, will clearly perceive. And it avails even less to say that the father Fray Andres de Urdaneta requested me to settle in the island of Ladrones, for this did not occur; nor will such a request ever appear, in truth, save in so far as it was discussed whether it would be well for us to go to that island, in view of our having no supplies, or any kind of meat, or anything to live on. It was agreed by all that we should proceed thither, as was done; and the six hundred crafts which he said came alongside the ships came to beg and not to give. For, in all the ten days of our stay there, we could not buy ten *fanegas* of rice; and if they brought anything it was cocoanuts, bananas, *tamalle*, and other articles of the fruit kind, of very unsubstantial and

ordinary quality. This will prove to be the truth, rather than what is said in opposition thereto. And when we arrived at these islands, we were in great need of food, as we had on board the fleet nothing but biscuit—and even that in small quantity, as it was carried only by the "Capitana" for its return; so that the whole camp suffered for the lack of food. And even if the supply of biscuit was more than sufficient to last until Nueva España was reached, yet as the return passage was not then known, we endeavored to supply those going on the vessels with provisions sufficient for one year; and as they arrived at Nueva España instead, within three months, they had of necessity a superabundance of biscuit. Further, regarding his accusations as to my being here against the will of God and of his majesty, I deny it; for I have always endeavored to do his majesty's will with all fidelity and loyalty like the true and faithful servant that I am, as has ever been the custom of my ancestors; and I shall try to pursue that course until I die. Accordingly, I intend to give good account to his majesty, as I have always done, of all matters entrusted to me—which here require neither allegation nor mention, for I am bound to account therefor to his majesty alone. As for what he says concerning the promises and kind services which were offered me from him, I refer to his said first summons and his reply to my rejoinder—the import of which is that I should go with my men to his fleet and depart therein for India, or some other place, and that I should immediately leave these lands with all my men; and accusing me of many losses and damages which I did not inflict. These offers, made under such hard conditions, appear more like those of an enemy than of a friend; for I do not see that the terms proposed could have been any harsher if I and all those with me had been Turks. For the first injunction, namely, that I should go to India, is contrary to what his majesty expressly orders me to do; so that, if I did it, I might then indeed be accused of violating his will. It would be, moreover, a violation of the treaty between the kings, our sovereigns, which was presented me by his grace, inasmuch as a clause thereof says that the

vassals of the king of Castilla may navigate the seas of the king of Portugal as much as necessary, in order to reach the South Sea of his majesty toward the strait of Magallanes, and no more; and that if any other navigation than this through the seas of his highness occurs, it will be done by any persons in violation of the said treaty. Wherefore we are bound not to do this thing under any consideration, for our intention has been and is to adhere to the said treaty. And as for the second injunction, that we should depart and leave the land immediately with all our men and munitions of war, such a thing is impossible without ships, as is clear and evident, and as such I declare the same. And, therefore, from the offers aforesaid results, and may be clearly inferred, the intention with which the said offers were made—which is tantamount to using force upon us and injuring us, as if we were men isolated in this island, and without respect for the will of God or of our sovereigns and lords, or for peace and friendship, or for the relationship that exists between them. And that the truth of my justification may stand out more clearly, I declare myself ready to show the instructions and orders which I bear—as I have previously said I would do, on the condition that the said captain-general show me his own: and I do promise that if he will sell me ships in which to go away, that I will immediately depart, and leave these lands free to the rightful owners thereof. And in the event that I do not obtain them from this source, but that ships or message shall come from his majesty, I will do the same, without my stay in this island causing any damage or injury to any district of the kings our lords. And, to carry out the same, I am ready, if necessary, to make any instrument or instruments whatsoever; and to pay for any and all damage which may result from my stay in this island. And since God, the omnipotent and true who resides in the heaven, is cognizant of the hearts intentions, and wills of men I do appoint him judge of this dispute between us. O show the truth, and protect and aid the same in all respects. And, not admitting the protests of the captain-general's reply, I beg and require him—once, twice, and thrice, and

as many times as I am by law obliged,—in the name of God our Lord and of his majesty, to accept our justification and leave us free; and that he cherish no intention to make war upon us, or harm us, or employ any force or injury against us; for our own will and intention is to inflict the same on none. And, if the contrary be done, I do protest that it will be at his own blame and responsibility, and that he will be obliged to incur all the damage and losses which may result therefrom. And I request you, Fernando Riquel, chief clerk of this camp, to read the same to him, and to notify him thereof, and to give me in public form the testimonies and duplicates thereof which may be necessary to me for the protection of my right. Given in Cubu on the twentieth day of the month of October, of the year one thousand five hundred and sixty-eight. No doubt should be occasioned by the erasure where it reads *navios* ["ships"], which was erased in the interest of truth.

Miguel Lopez de Leguazpi.

(*Notification:* In the galley "San Francisco" of the fleet of the very illustrious Goncalo Pereira, captain-general, anchored in the harbor of this island of Cebu, on the twentieth day of the month of October of the said year, I, Fernando Riquel, chief clerk, and in the government employ, did read this response and that contained therein to the said captain-general in person, in presence of the factor and inspector Andres de Mirandaola, who holds power of attorney from the very illustrious Miguel Lopez de Legaspi, governor and captain-general for his majesty and on his behalf. And his grace, the said captain-general, having heard the foregoing, which I read to him *de verbo ad verbum*, said that, not replying to what did not demand reply in the said response—which had been written by one more blinded by passion than in the free use of his senses, or than by one of the descent which he claimed—but confining himself only to the most essential points concerning the service of God and of the kings, he does deny everything

which his grace says in his said rejoinder, evidences for which denial he will show in their proper time by documents worthy of credence before the sovereigns. He also states that he refuses even more emphatically to show him the instructions which he carries; for since he has been in this port (now some twenty days), his grace told him continually that he would show him his instructions, yet upon his sending Don Duarte de Meneses for this purpose, his grace would not show him the same; and likewise, when he came with the said Don Duarte upon this galley "San Francisco," his grace refused to show his instructions to him. Moreover, when he went ashore to see his grace, and talked with him, the latter would not show the same; and on two occasions when he sent hither the said factor, Andres de Mirandaola, with a response, he did not order him, either in person or by another, to show the same, although he continually affirmed that he would show them. On account of these things, and of his breaking in all respects the said principal contract; and, because it appears that he was not in need, during the three years and some months of his stay here; and because of the deceptions which his grace practiced upon him, using many fine words, but very different deeds as the coast defenses and forts proved—although he [the Portuguese captain-general] did not adopt such method in his treatment of him, when he allowed many ships bearing provisions and men to enter the harbor, although he could have detained the same—through all these things, his real intention is laid bare. For, as one intending to make war takes advantage of all occasions to that end, so has his grace done and still is doing. As for the other matters, he is referred to the protest sent to him today by Pero Bernaldez, notary-public of the Portuguese fleet. And this he gave as his response before the witnesses, Captain Alvaro de Mendonza, Admiral Don Duarte de Meneses, Simon de Mendonça, and the factor Afonso Alvarez Furtado, who together with me; the said Fernando Riquel, signed the same with their names. Andres de Mirandaola, Alvaro de

Mendonca, Don Duarte de Meneses, Simão de Mendonça, Alfonso Alvarez Furtado.

I testify thereto, *Fernando Riquel*.)

(This duplicate has been compared most carefully with the original by me, Pero Bernaldez, notary-public of this fleet for the king, our lord, without there being found any interlineation or erasure which would cause doubt—save that there is an erasure where it read *navios* ["ships"], which was done in the interests of truth. And the said Fernão Riquel, chief clerk, was present at the comparison, and signed here with me, together with Baltesar de Freitas notary of the fleet, who placed here his approval. This day, the twenty-ninth of December, one thousand five hundred and sixty-eight.

I have compared this duplicate,

Pero Bernaldez.)

(This duplicate was compared before me, Baltesar de Freitas, notary of this fleet, on the said day and year above specified.

Baltesar de Freitas.)

(On the said day, month, and year, I was present at the collation and comparison of this duplicate.

Fernando Riquel.)

Third summons: Concerning the summons and protest that I, Gonzalo Pereira, captain-general of this fleet, make to the very illustrious Miguel Lopez de Leguaspi, general of the fleet and people of Nova Espanha. You, Pero Bernaldez, notary-public of this fleet, are directed to present and read

to him the same; and, with his reply (or without it, if he refuse to give one), to put into my hands the instruments necessary to me to prove the truth of what follows. I affirm that on arriving at this port of Cebu, and exchanging such courtesies with his grace as were befitting to the requirements of my position and rank, besides offering both by letters and requests on behalf of the king our lord, everything needful to him and to his army, and to his royal majesty, the King Don Felipe—in order, also, to serve in this matter the king our lord—his grace did not so much as consent to accept from me anything whatsoever; but descended to subterfuge, and, as answer to my rejoinder, ordered his artillery to take position in front of the fleet, to impede my passage—in spite of his being on the land and sea of the king our sovereign. In every respect, therefore, he gives evidence of not adhering to the compacts and treaties made between his imperial majesty Don Carlos, King of Castella, and King Don Joaõ, our lord (may they rest in glory), which documents I had sent and presented to him in order to obviate all doubts and disputes that might arise. He has certainly incurred, in return, the displeasure of God and the sovereigns. Secondly, I send him again the letter of the emperor Don Carlos to Ruilopez de Vilhalobos, and those of his company, that he may see more clearly its truth and purport; and I summon his grace particularly—once and as many times as I am empowered thereunto—and, in general, all his captains, ensigns, sergeants corporals, and pilots, and all the other officials of war, retinue, and justice, on both land and sea, soldiers and sailors alike—in conformity to the said compact, to assemble immediately on this fleet of the king our lord, and to depart therein in order to present themselves before the viceroy of India. From the said viceroy, in the name of the king our lord, in my own, and in that of the captains of this fleet and of the fortresses of India, I give to each individually, and, to all in general, assurance that no harm or injury whatsoever shall be done them; that they shall be left free to go to their own kingdom or remain in India, as they prefer; and that they shall receive all

possible good treatment, and be given all their property, and everything of which they may stand most in need. And if his grace refuse to do this, I summon him again and many times, and all the rest of his fleet and army, individually and collectively, to depart at once and leave the said fortress, and abandon this island and all others which, by the said treaty, are seen to belong to the commerce and conquest of the king our lord, and to leave everything here forever free and disembarrassed. And likewise I notify them not to do violence to, and to leave free, the Portuguese who are in his army, to whom, by this present, I give assurance, in the name of the king our lord, that they shall not be proceeded against as criminals, for thus embarking and being in the said fleet and camp, from the day when they passed the boundaries of Castella up to the present. And I summon them all individually and collectively, and I order them in the name of the king our lord, to come immediately to this the fleet of their true king and sovereign, on the above-mentioned assurance that they shall in all respects be protected. And if they do not consent thereto, and he, Miguel Lopez de Leguaspi—and his captains and officers, and all the persons above-named—shall not, in every respect, assent to that which I request and demand as above, I declare that he—together with all his above-mentioned captains and persons aforesaid, of whatsoever rank, nation, condition, or country they may be—will be held and considered and judged as disobedient by his royal majesty, King Don Felipe, their sovereign, and by the King of Portugal, our lord, and by their officers of justice. And in the same event I do, now and forever, in the name of the said kings, hold them as rebels, if they neither come hither nor depart within the three days first following the notification of this summons. I impose this time upon them as a limit, declaring that they shall not be allowed another day's respite; that they will be condemned to death, both natural and civil, either through war or in any other way whatever, according to the custom and laws of our kingdom; and that their possessions, ships, artillery, munitions of war, and everything else

which they may have brought to this land or obtained therein, or received in trade or in any other way, shall be seized and distributed and given away to the extent which may seem to me conformable to the said compact. Nor shall they, the parties aforesaid, or any one acting for them, or any of their heirs, or any relation or descendant, in particular or in general, have in this matter any right—neither they, nor likewise the owners of the said property, fleet, or munitions, which shall thus be taken from them, even though absent, wherever they may be. Moreover, even though they be not guilty of the disobedience and disrespect aforesaid, nor have given any cause for this action, they shall not, subsequently nor at any time, have any right to proceed against me, or against any captain, officer, or member of this fleet who may be holding the same; nor shall any heir of the above-named persons, at any time whatsoever, be obliged to make restitution thereof, either legally or as a matter of conscience. Likewise, in conformity with the said compact, I declare to be null and void, and of no effect or force, all right which they may have, royal, personal, or based upon any other title or right which may be named, designated, or specified, or which his majesty King Don Felipe claims to have acquired, through the compact made between the very Catholic and Christian sovereigns, King Don Joan the Second of Portugal, and Don Fernando of Castella (may they rest in glory), regarding the division of the conquest and discovery of the world, conceded by the holy fathers, in the commerce and conquest of Maluco and all its lands and seas which shall be found, perceived, or discovered by ships in that whole region west of Nova Spanha, as determined by an imaginary line from north to south through the islands of Las Velas [Ladrones]; and those rights I declare null and void from the day on which the said Miguel Lopez de Leguazpi passed to the west of the said line with his fleet. And likewise I declare that, inasmuch as this fleet contains more soldiers than men of letters, all summons, declaration, and protestation befitting the right and justice of the king, our lord, and of his descendants and kingdoms, shall be

held as made and truly and completely declared, demanded, summoned, alleged, and protested, without any lack or failure, whatsoever. And neither his royal majesty, nor any or all successors to the kingdom of Castella shall have the right to require or summon the Portuguese to deliver to them their lands and conquest of the said West; or demand any payment or satisfaction whatsoever for the losses, damages, deaths, or deprivations of property occurring to the disobedient camp and fleet, or to any others who, subsequently arriving, are subject to the foregoing. For others have already come to these parts who pretended to be filled with brotherly love and affection, but did not prove this by their actions—inasmuch as they did very great injury to the property of the king our lord, and of his vassals, without the king's receiving any compensation therefor from his illustrious highness. No doubt should be entertained regarding the interlineation where the word *justica* ["justice"] occurs. This day, the twenty-first day of the month of October, in the year one thousand five hundred and sixty-eight.

Gonzalo Pereira.

(*Notification:* On the twenty-first day of the month of October of the year one thousand five hundred and sixty-eight, at the present place of habitation of the very illustrious Miguel Lopez de Leguazpi, general of the fleet and people of Nova Espanha, I, Pero Bernaldez, notary-public, in his presence and that of his captains and many other persons of his camp, read, *de verbo ad verbum*, the foregoing summons, together with the letter of the emperor Don Carlos (may he rest in glory). In reply, he said that he heard the same and would respond as was befitting. Witnesses thereto: Martin de Goete, master-of-camp; Andres de Ybarra, captain; Guido de Lavezaris, treasurer of his majesty; Luis de a Haya, captain—all of whom affixed their signatures together with me. Martin de Goiti, Luis de la Haya, Guido de Lavezaris, Andres de Ybarra.

Pero Bernaldez.)

(*Response:* This is a duplicate of a response which the very illustrious Miguel Lopez de Leguaspi sent to Goncallo Pereira, captain-general in these parts of the south for the king our lord. This response, I, Pero Bernaldez, notary-public of this fleet copied from the original at the request of the said Miguel Lopez de Leguazpi.)

I, Miguel Lopez de Leguazpi, governor and captain-general for his majesty King Don Felipe, our lord, of his people and the royal fleet for the discovery of the islands of the West, declare in response to the third summons of the very illustrious Gonzalo Pereira, captain-general of the Portuguese fleet, served on me by Pero Bernaldez, notary-public thereof, that I am ready and prepared to do and fulfil everything specified and offered by me in the answers which I have previously given to the summons which he has sent me. Basing my reply once more upon them, I repeat that on my part there will be no failure to respect and carry out the treaty made by the kings our lords, and to maintain the peace, friendship, and alliance which have existed and still exist between them, and which is incumbent upon us owing to the close relationship of the two. As for the conditions contained in the said summons aforesaid, which command me to go with all my people to his fleet, to depart therein for India, I declare that this is impossible for me, as it would be a direct violation of the instructions which I have received from his majesty; nor could I give over my people and my fleet to any person whomsoever, without his majesty's express permission and command. Moreover, it would be a violation of the compact and treaty existing between the kings our lords. And, in the event of my not doing this, he says that within three days from now I must leave this island and these lands. This I myself desire, and would be glad to do so, if it were possible. And I promise to do the same immediately, if his grace will furnish me means therefor. But it is neither right nor reasonable to oblige me to

perform the impossible. And I declare, therefore, and promise that when I shall have ships I will depart, and leave the land free to whomsoever it may belong, without allowing my stay therein to result in harm to any one; and if it shall so result, then I stand ready to pay and to give payment and satisfaction therefor, to a sufficient and adequate amount, and to do everything in my power to the end that the treaty between the kings our sovereigns shall not be transgressed, or any injury be done or ensue to any of the parties hereto. And regarding what he says in his summons concerning the new fort, I admit that it is true that some fortifications were begun—a thing most usual and customary wherever there is a garrison of Spanish soldiers—for protection from any one who might undertake to do me injury or violence. But it was not done to injure his fleet, or anything else belonging to him, which did not previously do me injury. This is especially evident in view of the fact that although yesterday I had begun the erection of the new fort, aforesaid, on receiving a letter from his grace in which he asked me to cease and not continue work upon the same, I immediately ordered that work to cease and to be suspended; and nothing more has been or will be done thereon, if his grace and his fleet are willing to keep peace and friendship with me, as is incumbent upon Christians and vassals of sovereigns so closely connected and related. This I do in order that no statement or calumny for breaking the said peace may be uttered against me. And, regarding what he says in the rejoinder to my second reply, namely, that I refused to show the instructions which I bear, his grace knows perfectly well that I have offered many times to show him the same, and that nothing was sent by him. And to do everything possible on my own part, and to make my cause a just one, I send to him enclosed herewith those clauses of my instructions bearing upon the present business, which were copied from the original, and signed and approved by the chief notary of this camp, in order that they might be produced as witness and proof, at anytime or place whatever; besides this, his grace will be allowed, if he so

desire, to send some person here to see them collated with the original. Throughout these instructions is evident and deducible the Christian spirit, greatness, rectitude, and kindness of his majesty King Don Felipe, as well as the moderation which he orders to be maintained wherever we should fall in with Portuguese—which is very different in its nature from what is essayed and planned against me and the vassals of his majesty. It will be seen, moreover, how just is his majesty's cause, and, in his royal name, our own. Therefore, in the name of God omnipotent, our Lord and of his majesty, I beg and summon his grace once, twice, thrice, and as many more times as I am bound by law—not to consent to or permit any wrong or injury to be done, directly or indirectly, by evasions, or in any other manner whatsoever, in order that Christian blood may not be shed without cause or occasion, to the great displeasure of God and of the princes our sovereigns. For my intention was not to do any harm to any one; but rather I offer to pay all and any damage which may result from my stay here; and I declare that, if he do the contrary, then all the deaths, damages, losses, and interests shall fall upon his head and responsibility, and that he shall be obliged to pay and make satisfaction for the same. Moreover, I protest, as much as the rights of his majesty and our own make it incumbent upon me, to demand, allege, and protest, and, although it be not declared or specified here, I do allege, demand, and protest therein, as many times as the law and my duty require. And I do not admit the protestations and condemnations which are contained in his summons and protest; and I request that this response shall likewise be read, shown, and made known to all the captains of his fleet, together with the clauses of my instructions, in order that they may see our justification; and, having seen it, comport themselves as Christians—so that God our Lord, and our princes, may be better served, without shedding Christian blood; and that the other injuries and difficulties which, in the opposite event might ensue, may be avoided. And I require and summon you, Fernando Riquel, notary-in-chief of this camp, to read and make

known this response and protest, and the clauses mentioned therein, to the said captain-general, and the other captains of his fleet; and, with his response, or without the same, to give me the testimonies and copies necessary to me in his majesty's interest, and to my own in his royal name. Given in Cubu, on the twentieth day of October of the year one thousand five hundred and sixty-eight.

Miguel Lopez de Legazpi.

(*Notification:* The foregoing answer and clauses, I, Fernando Riquel, notary-in-chief in the government employ, read and made known to the said very illustrious Gonzalo Pereira, captain-general of the Portuguese fleet, in his own person, as well as to the other captains of his fleet, *de verbo ad verbum*, in such a way that it was understood—those captains being Alvaro de Mendonca, Don Duarte de Meneses, Simon de Mendoca, Lorenzo Furtado de Mendoca, and Mendo Ruellas de Vasconcelos—on the twentieth day of the month of October of the year one thousand five hundred and sixty-eight. And let it be understood, that although I reckon today as the twentieth of October, the summons to which this is the response, was made upon the twenty-first everything having been done upon the same day. The cause for this is the difference between the Portuguese and the Castilians, the former reckoning one day ahead, and so it is in all the rejoinders and summons. I delivered this notification and summons to the said parties on the galley "San Francisco," this day, the twentieth of October, in the presence of the foregoing persons, and of Alonso Alvarez Furtado, factor of his highness—all of whom signed their names here, together with me; likewise Christoval Ponce, notary of his majesty's camp. Simaon de Mendonca, Alvaro de Mertonca, Lourenco Furtado de Mendonça, Don Duarte de Meneses, Alfonso Alvarez Furtado, Mendornellas de Vasconcellos, Christoval Ponse de Leon.

I testify thereto, *Fernando Riquel*.)

(This copy was closely and faithfully compared with the original by me, Pero Bernaldez, notary-public of this fleet, without there being found any interlineation or erasure of a kind which would cause doubt—although there is an interlineation—*dha* [*dicha*, "said"] which was truthfully inserted. The said Fernao Riquel, notary-in-chief, was present at the comparison, and signed his name together with Baltesar de Freitas, notary of the fleet, who placed here his approval. This day, the twenty-ninth of December of the year one thousand five hundred and sixty-eight.

Pero Bernaldez.)

(This copy was compared before me, Baltesar de Freitas, notary of the fleet, on the said day and year above specified.

Baltesar de Freitas.)

(On the day, month, and year aforesaid, I was present at the collation and comparison of this copy.

Fernando Riquel.)

(This is the copy of certain clauses of [the instructions given by] the royal *Audiencia* of Mexico, which the very illustrious Miguel Lopez de Leguaspi sent to Goncalo Pereira, captain-general in the regions of the south for the king our sovereign—which document was copied at the request of the said Miguel Lopez de Leguaspi.

I, Fernando Riquel, notary-in-chief of the royal fleet for the discovery and administration of the islands of the West, for his majesty, King Don Felipe, our sovereign, testify and affirm to all persons, who may see the present: that in a set of instructions and regulations, signed by Don Luis de

Velasco, former viceroy of Nueva España; the licentiate Valderrama, *visiador*-general and member of the council of his majesty; Doctor Ceynos, Doctor Villalobos, Doctor Horozco, Doctor Vasco de Puga, and Doctor Villanueva—all auditors of the said Royal *Audiencia* of Nueva España, resident in the City of Mexico—and countersigned by Antonio de Turcios, secretary of the *Audiencia*, is contained, among many other clauses, the following:)

"The course of conduct which you, Miguel Lopez de Leguaspi, appointed as governor and general on his majesty's behalf, for the discovery of the islands of the West, by the very illustrious viceroy Don Luis de Velasco, late governor and captain-general of this Nueva España, and president of the royal *Audiencia* resident therein, are to adhere to in the voyage and expedition which with the aid of God, our lord, you are about to undertake for the discovery aforesaid, with the ships which have been constructed for that purpose by his majesty's orders and are now at Puerto de la Navidad in this Nueva España, on the coast of the South Sea is as follows:"

[See *ante*, p. 89 ff., for synopsis of these instructions.]

[The clauses sent thus by Legazpi relate in general to the course to be pursued in the expedition in regard to the Portuguese and their possessions in the eastern seas—assuming, however, that the Philippines fell within Spain's demarcation, wherein Legazpi was ordered to effect a settlement. The document continues:]

(I took the above clauses from the said instructions and regulations. They were signed by the above-mentioned viceroy [Antonio de Mendoza], the *visitador*, and the auditors, as is sufficiently apparent; and to that document I refer, by order of the most illustrious governor Miguel Lopez de Leguaspi. The same are well and faithfully copied, and the comparison and collation thereof took place before Christoval Ponze, notary of this camp, and Juan

de Gamboa. And they are well and faithfully copied. Given in the island of Cubu, on the twentieth day of October, in the year one thousand five hundred and sixty-eight. Therefore, I, the said Fernando Riquel, affix hereunto my signature and accustomed flourish, in attestation of truth. *Fernando Riquel.*)

(I, Fernando Riquel, notary-in-chief of the government, read and made known to the said most illustrious Goncalo Pereira, captain-general of the Portuguese fleet in his own person, and to the other captains of his fleet—to wit, Alvaro de Mendoca, Don Duarte de Meneses, Simon de Mendoça, Lorenzo Furtado de Mendoça, Mendornellas de Vasconcellos—the above reply and clauses, word for word, so that he might have full understanding thereof, on the twentieth day of the month of October, in the year one thousand five hundred and sixty-eight. It is understood that, although I reckon today as the twentieth of October, the summons to which this is a reply was dated on the twenty-first, all which took place on one and the same day. The cause for this difference between the Portuguese and Castilians is that the Portuguese are one day ahead. [117] This is so in all their replies and summons. I delivered this notification and summons abovesaid in the galleon "San Francisco" on the twentieth day of October abovesaid, in the presence of those above-mentioned, and Alonso Alvarez Furtado, factor of his highness; and they all signed their names jointly with me and Christoval Ponze, notary of his majesty's camp. Simon de Mendoza, Don Duarte de Meneses, Alvaro de Mendoça, Lorenzo Furtado de Mendoça, Mendornellas de Vasconcelos, Alonso Alvarez Furtado, Christoval Ponze. *Fernando Riquel.*)

(This copy was collated thoroughly with the original by me, Pero Bernaldez, notary-public of this fleet. It has no interlineations or erasure which would cause doubt. There occurs only the following interlineation, namely, *entender* ["to understand"], which was added to make it correct.

The said Fernão Riquel was present at the collation, and signed here jointly with me and Baltesar de Freitas, notary of the fleet, who placed here his approval. Collated on the twenty-ninth day of December of the year one thousand, five hundred and sixty-eight.

Pero Bernaldez.)

(I certify that this copy was collated in my presence, Baltesar de Freitas, notary of this fleet, on the day as abovesaid. *Baltesar de Freitas.)*

(On the said day, month, and year abovesaid, I was present at the correction and collation of this copy.

Fernando Riquel.)

Fourth summons: Replying to this third answer of the very illustrious Miguel Lopez de Leguazpi, general of the fleet and people of Nova Espanha, I declare, as I have already said in my reply, that actions speak louder than words. Up to this point I have acted in a way pleasing both to God and to the kings our lords, being bound to serve both equally well, on account of the close and long enduring union which, always existing between the former sovereigns of Castella and Purtugal, does now likewise exist between these present rulers. And, understanding from the instructions which his highness [of Portugal] gives to his captains for such cases, that he orders them to serve the interests of his royal majesty, King Don Felipe, in every possible way not at variance with his own interests, I have in all respects thus carried out his commands and all the stipulations of the treaty; while his grace has violated the same in so many ways, principally in making traffic, on behalf of Nova Espanha, of gold and drugs from this region within our demarcation—a thing forbidden in specific terms in the treaty. This does not harmonize with what his grace says about stress of weather and the lack and necessity of ships—for one who has been

engaged in traffic knows the remedy for such cases, and his grace did traffic in our gold and drugs, and sent for reënforcements, by the fleet—a thing which, likewise, does not harmonize with his affirmations. For, the fewer people the ships contained on coming from Nova Espanha, the better could his grace lodge himself therein with all his camp, there being none in the whole voyage to obstruct his way provided they had sufficient crews. But God exists, and heaven cannot be covered with a sieve; nor are there diseases of the eye so serious as to be able to hinder the perception of a thing so evident. His grace is condemned by his own captains for his transgressions against the treaty, while he himself admits that his instructions forbid him to enter our demarcation. And although, in view of the above, I was released from obligation to do him any favor, yet I have been begging him for a considerable time to make use both of me and of this fleet, since he himself possesses none, and to depart therein upon his way. Nor is it reasonable that his grace should depart alone in any of these ships; and he must be out of his senses, after staying here four years, to undertake to wait four more in this land of the king, our lord—for that is the least time in which ships can be constructed in Nova Espanha for him to depart in; and this season there could reach him only the *patache* "San Joan," and some ship or other from Peru, a very small conveyance for so large a camp. Wherefore I beg him as a favor, and summon him, once and many times, to depart in this fleet belonging to the king, our lord,—or, better, to his majesty—together with all the people of his highness, inasmuch as this tends to the latter's service; for this is the easiest and best remedy, to depart from our conquest, and observe, at least, in part, the treaty. Likewise, I again request him to come with all his camp to this fleet, that we may both continue together the work of propagating our holy Catholic faith, and destroying the sect of Mafamede [Mahomet] in Maluco, Java, and Acheen; for as this work is so pleasing to God, it should be likewise so to so Christian a sovereign as is his majesty. And—in payment

for the many times when the kings of Portugal went to Castella to render aid to her sovereigns against the Moors who were warring against them—it would be better for us to join our forces, and change our hostility to friendship, as the battle of Selado, and the raising of the great siege of Sevilha, and many other battles in which the Portuguese added luster to their name in the service of the said kings, demand—and, in our own times, those fleets of ours which participated in the capture of Tunes, in the island of Dargel, or again in the taking of Pinhao, [118] and in many other public and private undertakings in which, with both money and arms, we greatly aided the kings of Castella. In spite of all this, his grace will not grant me a thing so reasonable and pleasing, both to God and to the kings our lords, and to the advantage of their army; but, on the contrary, so obstinately refuses to accept the offer of this fleet, and will not depart from our land, but steadily continues building fortifications and throwing up new breastworks, from which he attacked the fleet of the king our lord in this his port, and fired several shots at us from the fortress, as if we were Moors and pagans. And yet I did not allow him to be bombarded, in reply, from this galley "San Francisco," although I had cannon with which I could have caused him much anxiety; but rather retired, in accordance with my constant desire, past and present, for peace—as is seen in my reluctance to make war upon him or to be the cause of shedding Christian blood. Thus I have acted very differently from his grace, who had ambuscades laid at the fords, whither I sent my boat, peaceably, without any soldiers aboard, in order to show in all respects my great desire to avoid war. As for his grace's saying that I opened fire on his fort, it was only after I had sent him word beforehand not to make this necessary; so that the desire which has since been made evident by him was shown therein also. And a few bombardments from the boats, moreover, were not sufficient either to deter his people on land from continuing their work upon our land and sea or his grace from breaking out in open war against me with great ardor and desire;

while I, on the contrary, had very little desire to injure him, but allowed many vessels, people, and provisions to go into the fortress, wherewith he could fortify himself against this peaceful fleet of the king our lord. And with regard to the clauses of his instructions which his grace had shown to me in his defense, I would say that this was of service to me; for although, it is true, one of them says that he shall go among the Filipinas islands, yet, immediately thereafter follows a contrary clause to the effect that he shall in no way transgress the treaty and agreement between Castella and Purtugual, which has the more force to prevent him from going to the Filipinas, in virtue of the more effectual words contained in the solemn covenant of the treaty aforesaid. Moreover, in regard to his grace's saying that the desire entertained by his majesty was not to enter our demarcation, and that he thought the Filipinas were in his, I would say that in all kingdoms, when it happens that doubt arises in the instructions, letters, provisions, or charters of the sovereigns, it is the custom to be guided thereby according to the intention of those who gave them. Another clause declares that, if he find us in his demarcation, he shall not do us any violence; but his grace came even to our own territory and did this, acting in flagrant disobedience to what his instructions allowed him, by undertaking illegally and wrongfully thus to dispossess us of our land and sea. And again I beg and summon him, once and many times, on the part of God, and of the kings our lords, not to do us violence, but to depart in this fleet, in the doing of which he will be doing great service to God and to the sovereigns aforesaid. And if he do not this, I declare by all the declarations of the protest sent to him through Pero Bernaldez, notary-public of this fleet, on the twenty-first of October, in the year one thousand five hundred and sixty-eight, that all the losses, deaths, dispossessions of property, and damages consequent shall fall upon his grace, while I shall remain free and absolved therefrom. I request and summon you, Fernão Riquel, notary-in-chief of that camp, to read and make known this response to the said Miguel Lopez, and with his reply—or

without it, if he refuse to give it—to deliver to me the certain instrument or instruments which shall be necessary to me; likewise that you send me such instruments, so arranged as to be authoritative, containing all the summons, protests, duplicates, replies, rejoinders, and letters which have been exchanged and written in this affair hitherto. In this galley "San Francisco," on the twentieth day of October, in the year one thousand five hundred and sixty-eight. There is no doubt or wrong erasure herein.

Guoncallo Pereira.

(*Notification:* In the island and port of Cubu, in the Filipinas, on the twenty-seventh day of the month of October of the year one thousand five hundred and sixty-eight, before the very illustrious Miguel Lopez de Legaspi, governor and captain-general for his majesty of the war and of the fleet for the discovery of the islands of the West, and in the presence of me, Fernando Riquel, chief notary of the same, there appeared Roque Bras, a servant, claiming to be in the service of the very illustrious Goncalo Pereira, captain-general of the Portuguese fleet anchored in this port; and, in his name, presented this document as contained above. And he asked me, the said Fernando Riquel, to read the same, and the said governor ordered me to read it; wherefore, to carry out his commands, I did read it, *de verbo ad verbum*, as well and exactly as I could, considering that it was written in Portuguese. The said governor, on hearing the same, said that he had heard it and would respond thereto—witnesses to all the abovesaid being the master-of-camp Martin de Goiti, Captain Diego de Artieda, Captain Luis de la Haya, and Captain Juan de Salzedo, all of whom signed the same jointly with me. Martin de Goiti, Diego de Artieda. Luis de la Haya, Juan de Salzedo.

Fernando Riquel.)

(*Response:* This is the copy of a response which the very illustrious Miguel Lopez de Leguaspi sent to Guoncallo Pereira, captain-general in these regions of the south for the king our lord. I, Pero Bernaldez, notary-public of the said fleet, copied the same from the original at the request of the said Miguel Lopez de Leguaspi.)

I, Miguel Lopez de Leguaspi, governor and captain-general for his majesty King Don Felipe, our lord, of his people and royal fleet for the discovery of the islands of the West: in response to the summons of the very illustrious Gonzalo Pereira, captain-in-chief of the Portuguese fleet, served on me the twenty-seventh day of this present month of October I declare that it is true, as contained in his summons, that "actions speak louder than words," as also do offers without actions—which in his case we have seen to be very different. For it is manifest and known to all that his actions have been, and are, very different from good words; since on the twentieth day of this month, without any cause or legitimate reason, or without the removal of the assurances given by one to the other, or without making or giving any warning or information, his grace ordered his galleys and small vessels to make an attack on certain fortifications and defenses of ours. And they attacked and fired many cannon and arquebuse-shots at the people on the shore and bank near the fort aforesaid, without any artillery being fired at them in return from this camp, which could do them harm, until the outcome of the affair was seen. On the contrary, astonished at the treatment afforded us when we had not given any occasion whatsoever for the same, I wrote to his grace that very day. He, without any reply to what I had written, sent, the next morning, two galleots and a pinnace to take up a position in the other entrance of this harbor (where they now are), in order to prevent us from receiving any supplies or provisions. He has blockaded us upon all sides; and, what is most intolerable of all, the galleys and pinnaces aforesaid have sacked, fired, and burned all the neighboring villages, and killed the natives and inhabitants, without exempting even

women and children, in the towns of Gavi, Cotcot, Diluan, Denao, and Mandavi—for the sole reason, and no other, as I understand, that they had been at peace with us, and had supplied and sold us provisions for our money. All this cannot be denied, inasmuch as we have seen it all with our own eyes. This may well be called deeds, and not words: and he has answered with a war of incredible cruelty. And in view of this, it is not surprising that we should have taken or that we do take some precautions, since he has made war so openly, and now tries to do us so open violence and injury. As far as the pleasing of God and of our rulers is concerned, it is of very little service, or none at all, to say that we should go to his fleet; for this cannot be done without violating his majesty's orders, to which I shall not expose myself. Moreover, all possible justifications have been offered on my side for not departing from this land and leaving it free; and, if necessary, I now offer them again. And it has no bearing on the subject to say that I have been here four years and desire to remain four years more; for my intention and desire has not been, nor is, to remain here even one year, but to depart as soon as I receive despatches and ships from his majesty—which, at latest, will be here with the next northeast wind. And as for his saying that only the *patache* "San Juan" and one ship can reach me, that is all nonsense; for his majesty, if he desire, can send one, six, ten, or twenty ships from Nueva España, for they have them in the South Sea there. And, what is more, I offer to depart with those that come, whether they be few or many, this being the easiest, shortest, and quickest remedy for what his grace says he wishes and desires—namely, that I should leave this land free and unembarrassed. And in this way he will receive full satisfaction very shortly, without loss, damage, or injury whatsoever to the one side or the other, unless his grace himself chooses to give occasion therefor. And, if he do this, he will do his duty, and what he is bound to do in the service of God and of our sovereigns, and will obviate the necessity of shedding Christian blood—as well as an infinite number of damages and annoyances

which might otherwise ensue and come to pass now or in the future. And if, in the event of his grace's not being willing so to do, any further damage, loss, or scandal should ensue, then I declare that he shall be guilty of it all; and that he shall be considered to have acted criminally in all respects and be obliged to give an account of his deeds to God and to our sovereigns and rulers. And I ask and summon him—once, twice, thrice, and as many more times as I am required by law—not to permit violence to be done me, or any injury or warlike action such as he has undertaken, much to the displeasure of God and of our sovereigns and lords. And I protest, in all ways in which I have already protested, and all others in which, on his majesty's behalf, I am bound to request, declare, affirm, and allege—all of which, although not specified in detail, is fully expressed herein. And as for what he says about its being better to join his fleet in the work of propagating our holy Catholic faith, and destroying the sect of Mahomet in Maluco, Java, and Achen, in compensation for the many occasions on which the sovereigns of Portugal aided those of Castilla against the Moros—I say that if his highness or he, in his royal name, wage war against the pagans in these islands, and have need of other people's assistance, I am ready and prepared to give him soldiers to help, and to go with him to the places above-mentioned, in the service of the very illustrious and puissant King of Portugal, conformably to the instructions and orders which I have from his majesty, provided that his grace give them ships and supplies, and such other securities as may be reasonable from one party to another. Regarding what he says of the clauses of my instructions, the unequivocal, holy, and sincere intention of his majesty stands clearly forth therefrom, and should be received and admitted as such; and likewise the fact that I myself have fulfilled his royal orders, and have no intention of injuring any one or taking other people's property from them. For I offer and stand ready to depart, just as soon as possible, from everything which his grace declares to belong to his highness, without any further summons; and to pay for all the

years of my stay here. This—being, as it is, the truth—is sufficient satisfaction for all that his grace has said or may say in the matter; for I desire to follow his instructions provided it be within my power, and depart from this land and leave it free and unembarrassed. And therefore I declare that I will do this, as I have said—refusing at the same time to admit his allegations, and basing myself upon those which I have made on my own part, which are true and certain. Given in this settlement and camp on the twenty-eighth day of October in the year one thousand five hundred and sixty-eight.

Miguel Lopez de Legaspi.

(*Notification:* In the galley "San Francisco" of the royal fleet of Portugal, on the twenty-eighth day of October in the year one thousand five hundred and sixty-eight, I, Christoval Ponze, notary, read and made known this response and summons of the very illustrious Miguel Lopez de Legaspi, governor and captain-general of the fleet for the discovery of the islands of the West, to the very illustrious Gonzalo Pereira, captain-general of the royal fleet of Portugal, in his own person, *de verbo ad verbum*, in such a way that he understood it. He responded that he heard and would make answer to the same, witnesses being Don Duarte de Meneses, admiral of the said fleet, Antonio Lopez de Sequeyra, Mendornellas de Vasconcellos, and the factor Alonso Alvarez Furtado, all of whom signed here their names. Don Duarte de Meneses, Antonio Lopez de Sequeyra, Mendornellas de Vasconcellos, Alfonso Alvarez Furtado.)

(This copy was carefully collated with the original by me, Pero Bernaldez, notary-public of this fleet, without there being found any interlineation or erasure which would cause doubt—although there is an erasure of the word *no* ["not"] which was made without deceitful purpose. At this comparison was present the said Fernão Riquel, who signed here

with me, together with Baltesar de Freitas, notary of the fleet, who placed here his approval on this twenty-ninth day of December, in the year one thousand five hundred and sixty-eight.

Pero Bernaldez.)

(This copy was compared before me, Baltesar de Freitas, notary of this fleet, on the day aforesaid.

Baltesar de Freitas.)

(I was present at the correction and comparison of this copy on the month, day, and year aforesaid.

Fernando Riquel.)

Fifth summons: In response to the fourth reply which the very illustrious Miguel Lopez de Leguaspi, general of the fleet and people of Nova Spanha, sent and had conveyed to me on the twenty-ninth day of the month of October in the year one thousand five hundred and sixty-eight, by Christovão Ponze de Leon, notary of his camp, I say that I cannot help being amazed again and again at seeing how his Grace attempts to depreciate my actions and give luster to his own—those on the one side being so different from those on the other, and done in sight of his camp yonder and of this fleet stationed here. When there are, however, so many noblemen and gentlemen of such reputation for sincerity and truth, his Grace will not be able to deny that during the forty days of peace in this port, he did not see any sign of hostility in this our fleet of the king, our lord, or any indication thereof, inasmuch as ships were allowed to enter to him with men and provisions aboard—when by capturing them, as could have been done easily, I could have caused him much annoyance, if my intention had been to bring about such a consummation. His Grace,

however, in great contrast to my own procedure, on the same days and during the same peace, had many breastworks and defenses constructed in his fortress, and corresponding defenses outside of the same with a great amount of artillery mounted on many baskets filled with earth. These were quite sufficient to defend himself against a great army, rather than a small band of Portuguese zealous in the service of God and of the kings our lords, and reluctant to shed Christian blood even in so just a cause. Nor will he deny that—not content with having so strong a fortress, with so many Spaniards to make defense against us in our own territory in case I should undertake to do him violence therein—he ordered, during the term of the peace, an artillery station to be established on the bank opposite where he took in water, in order to prevent me from obtaining any; and up to the present time he has refused to let me have any, although this is our own land. Moreover, he desired to cannonade the fleet at short range from the fortress aforesaid, as afterward more clearly appeared; for, on my immediately writing his Grace through Baltesar de Freitas, notary of the fleet, to do me the favor to order that this should not occur again, since it seemed more the act of an enemy than of a friend, he wrote me in return things irrelevant to the case, while the rest of his letter consisted only of vain words and compliments. I wrote to his Grace again the next day, sending my letter by Pero Bernaldez, notary-public of this fleet. In this letter I asked him again to do me the favor of ordering the work to be destroyed; otherwise, I should consider myself authorized to declare that war had broken out, and that the assurances between us would remain null and void—as his Grace will see in my letters, since his memory is so feeble as he says and declares, since he says and declares that without the assurances being canceled as yet on either side, and without giving any warning or intimation whatsoever, I ordered the boats and galleys to fire on his fortifications and basket defenses. But this I did, in reality, in firing on the black people of the land, who were acting against their true king and

lord. Little blood was shed in this affair, as I have ascertained, but all this business his Grace owes to his failure to reply to or satisfy me—acting as if he wished open war with me, as was seen by the breast-work which he had constructed. And—after a few volleys had been fired from the said boats, galleys, and pinnaces, in reply to the many broadsides which they let fly at us from their fortress—here on the afternoon of that same day Fernan Riquel, notary-in-chief of that camp, came with a reply from his Grace, also a copy of certain clauses from his instructions, and a message to the effect that he would finally have the work stopped, if this fleet would stand off farther from shore. This I showed to the said Fernão Riquel, who suddenly became short-sighted, in order not to see it; nevertheless, I ordered the boats to retire, and to fire no more. And the next day I did not, on my part, consent that they should go on increasing the work further. In what, then, does his Grace find here, up to the present time, more good words and deeds than mine? Moreover I gave him much more peace. It should be added that after the boats had killed many Indians and a few Spaniards, they ceased from further shots that afternoon and the following day. It would then have been just and due to us that his Grace should have had the basket defenses destroyed—for that was the true road to peace and amity after so long a period of enjoyment of our land—rather than to allow a bombardment, as cruel as if against heretics, to take place and endure from eleven o'clock in the morning till sunset. These ships of the king our lord were pierced with balls in his own port, killing several persons, and so aimed as to kill many more, if I had not used caution and retired. This affair is certainly an ugly and terrible one, before God and men. I did not, however, consent that any broadside should be fired from this galley, the "San Francisco," although I had pieces of very large caliber therein, which could have done much damage to the fortress and defenses. And therefore, up to the present time, I have not shed, nor given occasion for the shedding of Christian blood as his Grace has done in batteries and ambuscades—

although none whatever were made against him, inasmuch as I restrained myself when I could have done him much injury by fire and sword. The sovereigns yonder, however—who are so good Christians and have clear minds—will judge of the fair words and fair deeds of his Grace, and of my deceitful words and most evil deeds; for we cannot be good judges in our own behalf in such an offense committed against the king, our lord, and his vassals. Quickly turning to the work at hand, a little later on the same day of the cannonading, I ordered the galleys to take possession of the other mouth of this harbor; for, now that his Grace has broken out in war against me, it seemed to me better service to God, and to the kings our lords, and a Christian's obligation, to pursue hostilities by means of starvation rather than by fire and sword—for although I blockade you with it, I have ordered this fleet, and it stands ready, to bring you a great quantity of supplies, that you may not perish through lack thereof. And as for the damage which the oared vessels have done in the territory of the infidels, it does not appear to me so serious and unheard-of as his Grace depicts it; for it is juster in war that we should punish those vassals of the king our lord for unfaithfulness and opposition to their true leaders than that his Grace himself, although a stranger here, should, in time of peace, give them very different kind of punishment for slighter cause, in addition to making them pay tribute. As for his assertion that he will pay and satisfy the king our lord for all the losses and damage which he has done him in this land of his, it was unnecessary to write such a thing; for his Highness is not a merchant nor is he so avaricious as to take satisfaction in money or property from any other sovereign, particularly from his captains; and he will be satisfied, and I, in his name, only at his Grace's leaving the land free and unencumbered, and thus not bringing about the death of his vassals there in so many ways. As for his Grace's being willing to give me people and assistance for the augmentation of the faith and the service of the king our lord, certainly he may be sincere in this one matter; but the Moros of Maluco, Java, and

Acheen are, through our sins, so numerous, that without his Grace in person, and all his company, it would be difficult to sweep them away. But with such aid I hope in God that much service will be done Him by us all; for on His account they ought to be resigned to take a voyage much longer than from India to Espanha, inasmuch as He suffered Himself to be crucified and shed His precious blood for our salvation. For the letters of instruction issued by Christian princes do not forbid their captains the propagation of the Catholic faith and the destruction of the sect of Mafamede, in any land or in any way whatsoever—especially when the rightful king, through his captains, requests this so necessary assistance from his Grace; and when there is so much intimacy and so close a relation between these kings our lords, as to justify asking that there be given him all the supplies and munitions necessary and sufficient to their needs, and even much more. But since his Grace is not willing, for the sake of God and the aforesaid sovereigns, to go so long a way toward carrying out their wishes, I protest in the terms already on my part protested. And I require you, Pero Bernaldez, notary-public of this fleet, to read and make known this response to the said Miguel Lopez; and to deliver into my hands an instrument drawn in public form, containing all the summons, protests, replies, duplicates, and letters, which may be needed for the outcome of this business. Given in this galley the "San Francisco" on the thirtieth day of October, in the year one thousand five hundred and sixty-eight.

Goncalo Pereira

(Notification and Reply: On the thirtieth day of the month of October in the year one thousand five hundred and sixty-eight, at the place now occupied by the very illustrious Miguel Lopez de Leguazpi, general of the fleet and forces of Nova Spanha, at the command of Goncallo Pereira, captain-general of the fleet of the South Sea, I, Pero Bernaldez, notary, read and made known to him *de verbo ad verbum*, this reply as above written. He responds as follows to the same: "that the captain-general should well remember that, in the first letter in which this summons is mentioned, he asked only for the cessation of the work of erecting the wicker defenses, which request was granted immediately and the work ceased, although baskets cannot constitute war, and are rather for defense than offense. And on the following day, by a second letter which his Grace wrote, he again reiterated and requested that the baskets should be taken down, and that he should receive either yes or no as an answer, with which he would consider himself to have received a final answer. With the same letter he sent me word by the factor Andrés de Mirandaola and Hernando Riquel, notary-in-chief of this camp, that if the baskets were not taken down by nightfall, he would consider war to have broken out between us. While I was engaged in framing an answer to this, and before the time-limit set by him had expired, he sent his galleys and small boats to attack the defenses and the people who were stationed on the shore. Then our soldiers, seeing that the Portuguese were attacking them and had begun hostilities, determined to complete their defenses, and fought with the Portuguese from about noon-time until sunset, without any cannon-shots being fired at the Portuguese from this camp. And on the morning of the following day, without any new action on our part, the said captain-general sent two galleys and a small boat to seize upon the other entrance to this harbor, and this order was executed. They have been and still are located there, toward the east; and

they refuse to allow any person, or supplies, or anything else whatsoever, to come in or go out from this camp—a procedure for which I am at a loss to find the proper designation, unless it be war and the intention to starve us to death, which is not a usual action on the part of Christians. Consequently, he should not be astonished if this causes us to think that his actions do not correspond to his words, and to the offers made on his part; while, on the contrary, there is in truth all possible justification on our part, and we have offered assistance and favor, should they be necessary, against infidels, and in the interest of his Highness, the very illustrious and puissant King of Portugal. For I will carry out and fulfil that promise with the same willingness with which it is offered, in the consciousness of being therein of service to his Majesty. And it is but little relevant to say that, unless I go in person with all my camp, nothing can be effected; for either there or here, or any place whatsoever, I could be of little use, and would be but little missed; nor is it just, in view of the impossibility of my performing it without the express permission of his Majesty, to attempt to oblige and bind me to perform the same. And as for the rest, I confirm what I have already said, responded, requested, and protested against, in his Majesty's name, in previous replies and rejoinder; and if it be necessary, I again request, demand, and protest, as many times as I am by law obliged, and as may be befitting. As for the war, violence, and injuries which his Grace does, and tries to do me, I elect almighty God, who knows the whole truth and the hearts of men, as judge, and pray that He, out of the infinite pity and benignity of His heart, may aid and favor him who most truly and with least injury has tried and is trying to obtain peace from the opposite side, without Christian blood being shed, to His great displeasure and that of the kings our lords. Therefore I exculpate his Majesty, and myself in his royal name, as well as all those in his royal service at this camp, so that neither now nor at any subsequent time may blame or responsibility be charged upon or imputed to them." He signed the above with his name, and said that he gave

it, and he did give it, as his answer. There were present, as witnesses, Captain Juan Maldonado de Berrocál; the ensign-general, Amador de Arriaran; the accountant, Andres Cauchela; the chief constable, Graviel de Ribera; and the notary-in-chief, Fernando Riquel—all of whom, together with me, the said Pero Bernaldez, signed the same. Miguel Lopez de Legazpi, Juan Maldonado de Berrocal, Andres Cauchela, Amador de Arriaran, Graviel de Ribera, Fernando Riquel.

Pero Bernaldez

Sixth summons: In response to this fifth answer from the very illustrious Miguel Lopez de Leguazpi, general of the fleet and people of Nova Spanha. I admit briefly that in my first letter to him, I requested him to discontinue the defenses, and in the second, to destroy them—which his Grace refused to do, although it was a thing so just and so important to the lords of the land, as well as to my own advantage, for him not to employ hostilities against me, or give me occasion to accept the same; for it was but a slight cost or humiliation for a man who has so great a desire for peace as his Grace constantly says he has, to destroy the defenses, in which more hostility than friendship is displayed. I, on the other hand, had more than sufficient reason and justification for sending the galleys to take possession of the other entrance to this harbor, inasmuch as our respective courses of action were very unlike during the peace, as has been stated in other responses. Moreover, his Grace will not, in spite of all, deny that the galleys had not yet left this position when his people began to bombard me; and that those vessels had taken a very different route from that of going to cut off supplies. And as for his Grace's excusing himself and the rest of the company from engaging in the service of God, of his Majesty, and of the king our lord, as I have requested, more cogent reasons exist than that his presence is not very important in a case of so great urgency. Concerning his reiterated plea that he cannot violate his royal Majesty Don Felipe's

instructions, I declare to him that since he entered here in violation of the same, and against the will of the king our lord, the latter will be well served by his Grace's going still farther, in his willingness to employ himself in his Majesty's service. And in all the rest, I take my stand upon what has already been said, and protest by what has already been protested. I order you, Pero Bernaldez, notary-public of this fleet, to notify him thereof, and deliver into my hands such instrument or instruments as shall be necessary to me, drawn up in legal form. Made in this galley "San Francisco" on the first day of November in the year one thousand five hundred and sixty-eight. An erasure was made by me therein which shall not cause doubt, since it was made without intention to deceive.

Goncallo Pereira

(In the island and port of Cubu in the Filipinas, on the thirty-first day of the month of October, in the year one thousand five hundred and sixty-eight, before the very illustrious Miguel Lopez de Legazpi, governor and captain-general for his Majesty of the people and fleet for the discovery of the islands of the West, and in the presence of me, Fernando Riquel, notary-in-chief and official notary, appeared Pero Bernaldez, notary-public, who declared that he belonged to the fleet of the very illustrious Goncalo Pereira, captain-general, and read this response above-written. The said governor after hearing the same, said that, "as his Grace the said captain-general says, he had written in the first letter that the work on the wicker fortifications should cease; and that, with the intention of pleasing and satisfying him in all respects, he, the said governor, had ordered the work thereon to cease; and it would not have continued, had not his Grace ordered them to be bombarded with many pieces from four galleys and small boats—whereupon the soldiers seeing that they were being fired upon completed their defenses at the great risk of their own lives and persons. And on the following day, when the galleys and small boats went off to

seize and blockade the other entrance to this harbor, the purpose of their expedition was shown clearly, and afterward put beyond the shadow of a doubt, by their own acts. And it is unjust that his Grace should prohibit the conveyance of provisions to this camp, for those therein are Christians, and vassals of his Majesty, King Don Felipe, our lord. This act, beside being disobedience to God our lord, will greatly displease the princes, our sovereigns. And so I beg and request of him, and, on behalf of God and of his Majesty, I summon him, to allow the unrestricted entrance to and passage from this camp of provisions, as should be done and permitted between Christians, and between vassals of princes so intimate and so closely related. By the copy of the clauses of his instructions sent to the captain-general, his [Legazpi's] entrance into these islands, is shown to have been by the orders of his Majesty and not against his royal will; and he declares that, in order to depart from the islands, the shortest way open to him is that which he has requested in his past replies. It is also evident that his Grace could very easily provide for this, especially now that additional ships have come to him aside from those of his fleet. In doing this he will greatly please God our lord and the kings our sovereigns, and extricate this whole camp, as well as his own fleet and person, from a bad predicament. The said captain-general must understand that he will therein particularly serve his own sovereign, for he will prevent the necessity of other soldiers and fleets being sent here to attack us. Wherefore again, I request, summon, and protest to him all that has been requested, summoned, and protested in the past response, and the answer thereto." And this he said he gave as his response, and he signed it with his name, in the presence, as witnesses, of Captain Andres de Ybarra, Captain Juan de Salzedo, Captain Juan Maldonado de Berrocál, and the accountant Andres Cauchela, who signed the same with me. Miguel Lopez de Legazpi, Andrés Cauchela, Andres de Ybarra, Juan de Salzedo, Juan Maldonado de Berrocal, Pero Bernaldez.

Before me, *Fernando Riquel*)

Last summons: I conclude with this my last response, weary of so many papers containing so many irrelevancies on a thing so clear and evident; for though I admit the possibility of his Grace's having ordered the work to cease, as he affirms in his rejoinder, yet I declare it to be of no avail to give an order if the order be not carried out, or not obeyed. The work, on the contrary, was continued with greater haste and care for four hours after the time-limit which I had written to his Grace, saying that if the work were not destroyed I should consider myself as answered. I stated that oared boats would then be sent to frighten them, and prevent the execution of a work so unjust and of so ill a purpose, in addition to the many acts of injustice which have already been committed here in this land of the king our lord, greatly to his displeasure—and, as I believe, that of his Majesty, which is the same thing. On my complaining several times to his Grace, during the continuance of peace, and when I had so great a desire of serving him—as even now I feel no hesitation in doing—in regard to his erection within the aforesaid camp of many breastworks and fortifications, he replied, by letter, that it was the custom of camps and soldiers always to be thus throwing up fortifications. Nevertheless, he was erecting those defenses, not in his Majesty's demarcation, but thirty leagues within that of his Highness, and against one of his captains—one, too, who is so peaceably inclined as I have always been, until the moment when war was waged against me, and a considerable time after that, for which reason I am surprised at his acts. I then ordered the galleys to the other entrance of this harbor—the justest and most Christian means of acting, for it was my intention not to starve him to death, but to oblige him to cease from this injury to his Highness, and accept shelter in this fleet and make up for past privation. For what Friar Quapucho [i.e., fustian-clad] is so humble, so long-suffering, and so charitable to any one as I have been to a person who has not deserved it from his king and lord? The more ships that come to me to join this fleet, the better service will his Grace and company be able to enjoy therein, and

they will experience much friendship and satisfaction therein—thus performing great service to God and to the kings, to whom we are all so closely bound, and for whom we ought to endure and surfer hardships with exceeding joy. And this the more, because his Grace neither possesses nor gives any just reason for being excused from so virtuous a work (in which he will always take personal part in company with me who follow and accompany him), or for being unwilling to concede what I have requested so many times, and now request again, much more earnestly, on behalf of God, of his Majesty, and of the king our lord. All that has happened or which may subsequently happen, therefore, I declare shall fall to his own responsibility; and I protest, by the protestations already made, and by all which may redound to the justice and right of the king our lord, and of the subsequent heirs of the kingdoms of Portugal. And you, Pero Bernaldez, notary-public of this fleet, are directed to make the same known to him, and give and deliver to me such instrument or instruments as shall be required by me. In this galley "San Francisco," on the second day of the month of November, in the year one thousand five hundred and sixty-eight.

Goncallo Pereira

(In the island and port of Cubu, on the first day of the month of November, in the year one thousand five hundred and sixty-eight, in the presence of me, Christoval Ponze, scrivener of this camp of his Majesty, there appeared Pero Bernaldez, notary-public, who claimed to be of the royal fleet of Portugal, and read this answer from the very illustrious Goncalo Pereira, captain-general of the said fleet, to the very illustrious Miguel Lopez de Legazpi, governor and captain-general for his Majesty of the royal fleet for the discovery of the islands of the West, in his own person, in such wise as to be heard by him. He declared that he had already answered and replied to the said captain-general, on many distinct occasions, concerning the fact that his intention and will had not been nor is

to injure the exalted and puissant king of Portugal, or anything belonging to him in any way; or to seize upon or take from him, or occupy this or any other land belonging to him. "I desire, as I have desired always, to depart from this land; and if up to the present moment this design has not found realization and I have not departed, it has been through lack of equipment and of ships, and not through any expectation of reënforcements of men and a fleet, as, on the contrary, he affirms." Wherefore he begged the said captain-general to sell him ships, in order that he might immediately depart; or else to suggest to him some other way by which he could leave, since he neither wishes nor desires any other consummation. As for the fortifications and defenses which his Grace mentions, they are for the purpose of defense against any one trying to do him violence or injury unjustly and unreasonably, until such time as he may be enabled to depart and leave this land free, as he has declared and promised he would do. Neither on his own part nor on that of anyone belonging to his camp has he desired to make war upon his Grace or on the members of his royal fleet; but rather to serve them in all possible ways, as he has offered in past summons and responses, to which he begs to refer, and on all of which he takes his stand anew. On the other hand, it is quite clear and evident that the captain-general is trying to do him violence and injury in wishing to carry him to India with him without consenting to any other means whatsoever; and in having begun and initiated war against him and blockaded him, by ordering the entrances and outward passages of this harbor blockaded, on account of which he is bound to make defense. And since the said captain-general wishes it so, and continues doing so great injury to God our lord, and to our sovereigns, by the war, and sheds Christian blood, unreasonably and without justification, all the blame and responsibility, and all the damages, losses and deaths resulting therefrom, shall be upon his shoulders. He protests again by all protested and demanded by him in his past replies, and by all which most devolves upon him in this case to protest, demand, and summon, as many

times as is proper and to which he is by law obliged; and he thus challenges him as testimony, in the presence, as witnesses, of Captain Diego de Artieda and Captain Andres de Ybarra; the factor, Andres de Mirandaola; the treasurer, Guido de Levazaris; and the ensign-in-chief, Amador de Arriaran, all of whom signed here their names. Miguel Lopez de Legaspi, Diego de Artieda, Andres de Ybarra, Guido de Lavezaris, Andres de Mirandaola, Amador de Arriaran, Pero Bernaldez.

Before me, *Christoval Ponze*, notary)

(All the above papers, writings, replies, responses, and other documents above set forth, I, the said Fernando Riquel, took *manu propria*, as best I could, from the originals, writing them down *de verbo ad verbum* and letter for letter, at the request of the said governor Miguel Lopez de Lagazpi, who signed the same here with his name. And they are accurate and true, witnesses of the correction and comparison with the originals thereof being Miguel Lopez, Francisco de Cocar, and Juan de Gamboa y Lezcano, soldiers in this camp—in testimony whereof I have made my usual signature and rubric. Given at Cubu, the second day of the month of June in the year one thousand five hundred and sixty-nine.

In testimony of the truth, *Fernando Riquel*)

(This copy was written on twenty-three sheets of paper, including the present, and bears the corrections, erasures, and interlineations following: [These follow, in the original document.] And note should be taken that the contract was corruptly and badly written for so it was in the original.)

(In the City of Mexico, on the twenty-third day of the month of December in the year one thousand five hundred and sixty-nine, the presidents and auditors of the royal *Audiencia* of Nueva España said that, inasmuch as in a docket of letters and despatches from Miguel Lopez de

Legaspi, governor and captain in the islands of the West, which came addressed to this royal *Audiencia*, this relation was found therein of negotiations between the said governor and Goncalo Pereira, a Portuguese, captain of the most serene King of Portugal, regarding the summons repeatedly served, to the effect that the said Miguel Lopez should depart from the islands, region, and spot, where he was situated as is declared in the said relation, it is fitting that this docket be sent to his Majesty in his royal Council of the Indies. In order that entire faith may be given thereto, a judicial inquiry shall be received confirming the signature as that of the said Miguel Lopez de Legaspi, and of the handwriting and signature of Hernando Riquel, his notary. Having been received as signed from the secretary of this royal *Audiencia* it shall be sent to his Majesty. And accordingly they ordered it, by decree, to be set down in writing.

Sancho Lopez de Agurto)

(*Attestation:* And then upon the said day, month, and year above specified for the said inquiry, there was received an oath in the name of God and the blessed Mary, and upon the sign of the cross +, in the form prescribed by law, from Sancho Lopez de Agurto, secretary of the royal *Audiencia* of this Nueva España, and he took the same in the presence of me, Juan Augustin de Contreras, notary of his Majesty and receiver of this royal *Audiencia*, under which he promised to tell the truth in this affair. On being interrogated by the aforesaid, and after having seen the writing contained in this other part, and the signatures thereof, where occur the names of Miguel Lopez and Fernando Riquel, he said that this witness knew the said Miguel Lopez and Fernando Riquel, whom many times he had seen write and sign their names; and that he knows that the said Miguel Lopez de Legaspi went as governor and general to the islands of the West, and took as his official notary the said Fernando Riquel, on the authority of the viceroy Don Luis de Velasco; and that the said signatures at the end of the said narration and

writing, to wit, "Miguel Lopez" and "Fernando Riquel," together with the handwriting of the said narration are, of a truth so far as this witness knows, those of the parties aforesaid; and he says this without the slightest doubt, for, as already said, he has seen them write and sign their names, and he has written papers and signatures of theirs in his possession similar to those of the said narration, without the slightest variation. The said Hernando Riquel was held and considered as an upright man, and a lawyer of much veracity; and as such this witness held and still holds him. And he declares on the oath taken by him that his entire deposition is true, and he has affixed his signature to the same.

Sancho Lopez de Agurto

Before me, *Johan Augustin*, notary of his Majesty.)

[The sworn depositions of Juan Augustin de Contreras and of Alonso de Segura, made before Sancho Lopez de Agurto, follow. They are substantially the same as the above. The document continues:]

(I, the said Sancho Lopez de Agurto, notary of the chamber of the said royal *Audiencia* of Nueva España, who was present at the said inquiry made therein, affixed my seal in testimony of the truth. [119]

Sancho Lopez de Agurto)

Bibliographical Data

Expedition of Garcia de Loaisa

Résumé of contemporaneous documents.—These documents, dated from 1522 to 1537, are briefly synopsized from Navarrete's *Col. de viages*, v, pp. 193-439. This editor obtained the material for his series from the archives of Sevilla, Madrid, and Simancas.

Voyage of Alvaro de Saavedra

Résumé of contemporaneous documents.—These documents are dated in 1527-28, and are published by Navarrete, *ut supra*, pp. 440-486.

Expedition of Ruy Lopez de Villalobos

Résumé of contemporaneous documents.—These documents, also synopsized, for the period 1541-48, are obtained from *Doc. inéd.*, as follows: *Ultramar*, ii, part i, pp. 1-94; *Amér. y Oceania*, v, pp. 117-209, and xiv, pp. 151-165.

Expedition of Miguel Lopez de Legazpi

Résumé of contemporaneous documents.—These documents, covering the period 1559-69, are also synopsized from *Doc. inéd. Ultramar*, ii, pp. 94-475, and iii, pp. v-225, 244-370, 427-463.

Warrant for establishment of Augustinian Mission (1564).—The original of this document was found among the archives of the Augustinian convent at Culhuacan, Mexico. The only publication of this *Patente* of which we are aware is that (in Latin) from which our translation is made, in a work by Elviro J. Perez, O.S.A.,—*Catalogo bio-bibliografico de los religiosos agustinos* (Manila, 1901), pp. xi-xiv. At present, we are unable to give further information concerning the document.

Possession of Cibabao (Feb. 15, 1565).—The original MS. (from a copy of which our translation is made) is conserved in the Archivo de Indias at

Sevilla; pressmark, "Simancas—Filipinas; descubrimientos, descripciones y poblaciones de las Islas Filipinas, años 1537 á 1565; est. 1, caj. 1, leg. 1, 23." It has been published in *Doc. ined. Ultramar*, i i, pp. 351-355.

Proclamation regarding gold found in burial places (May 16, 1565).—The data for the preceding document apply to this one also—save that to pressmark should be added "ramo 25;" and that the pagination for this one in *Doc. ined.* is 355-357.

Letter to Felipe II (May 27, 1565).—The original MS. is also in Sevilla; pressmark, "Simancas—Filipinas; descubrimientos, descripciones y gobierno de Filipinas; est. 1, caj. 1, leg. 1, 23." It was published, *ut supra*, pp. 357-359. There are two copies in the Archivo, one of which is incorrectly endorsed "1569." In such cases it should be remembered that despatches and other official documents were often sent in duplicate—sometimes in triplicate, or even quadruplicate,—and by different vessels, to ensure that at least one copy should reach its destination.

Letters to Felipe II (May 29, June 1, 1565).—The original MSS. (from copies of which our translations are made) are also in the Archivo de Indias; pressmark. "Patronato, Audiencia de Filipinas—Cartas de los gobernadores." More definite designation is not possible, as these MSS. were not in their regular place in the above *patronato* at the time when our transcripts were made. With the letter of June 1 we present a photographic reproduction of the signatures. Both of these documents were published in *Doc. inéd. Amér. y Oceania*, xiii, pp. 527-531.

Letter to the Audiencia of Mexico (May 28, 1565).—The original MS. is in the Archivo de Indias; pressmark, "Simancas—Filipinas; descub. descrip. y pob. Filipinas, años 1537 á 1565; est. 1, caj. i, leg. 1, 24, no. 24." This letter was accompanied by a memorandum of supplies needed for the military post established in the Philippines by Legazpi; and with the above-

named MS. is a list of this sort—which, however, must have been placed in this *legajo* by some error, as it mentions some articles that had been sent in the year 1570. But in another patronato—which has the same title as the above, but for the years 1566-68—in "est. 1, caj. 1, leg. 2, 24," is a list of similar character, with the title, *Memoria de los rescates y municiones que se pidieron á Nueva España, para enviar al campo de S.M. que reside en el puerto de Cubu*. This document is undated; but internal evidence makes it probable that it is the list which was sent with this letter to the Audiencia, with which we have accordingly placed it, transferring the other list to a later date, 1571.

Legazpi's Relation (1565).—The original MS. is in the Museo-Biblioteca de Ultramar, Madrid; pressmark, "170-20-3_a_, caja n_o_. 22." It has not, so far as is known, ever been published. Nothing indicates positively the name of the person to whom it was written; but we may reasonably conjecture, from the style of address, that it was probably sent to the president of the Audiencia of Mexico. As Legazpi's own account of his voyage and achievements, this document possesses special interest and value.

Copia de vna carta venida de Seuilla a Miguel Saluador de Valencia (1566).—This little pamphlet (Barcelona, Pau Cortey, 1566) is generally regarded as the first printed account of Legazpi's expedition. But one copy is known to exist—the one which was in Retana's collection, now the property of the Compañia General de Tabacos de Filipinas, Barcelona. For this reason, we present this document in both the Spanish text and English translation—the former being printed from an exact transcription made from the original document at Barcelona. The original is in two sheets (four pages) of quarto size, printed in type about the size of that used in this series; it is bound in red boards, and is in good condition.

Letters to Felipe II (July 12, 15, 23, 1567, and June 26, 1568).—The original MSS. of these four letters (from copies of which our translations are made) are in the Archivo de Indias at Sevilla; pressmark, "Simancas—Secular, Audiencia de Filipinas; Cartas y expedientes de gobernador de Filipinas vistos en el consejo. Años de 1567 á 1599; est. 67, caj. 6, leg. 6."

Negotiations between Legazpi and Pereira (1568-69).—The originals of these documents are in the Archivo de Indias at Sevilla; pressmark, "Est. 1. caj. 1, leg. 2, 24, n_os_. 5, 6, 7, 8, 9." A MS. copied or compiled from these originals for use in the South American boundary negotiations at Paris in 1776, is in the Archivo general at Simancas; pressmark, "Leg. 7412, fol. 87 y 88;" from a copy of this MS. our translation is made.

NOTES

[1] This document is printed in both the original language and English translation.

[2] Navarrete says in a note that this must have been made about the time the Junta of Badajoz closed, in 1524.

[3] The hospital (and, later, military) order of St John of Jerusalem, was first established in that city in 1023, and received papal recognition in 1113.

Its knights served with distinction in the crusades. From 1291 to 1523 the order had its seat in the island of Rhodes; but in 1530 that of Malte was ceded to it by the emperor Charles V. After the capture of Malta by the French, the order became small and insignificant. This order was known in the course of its history by various names, among them being the Order of Rhodes (Rodas).

Garcia Jofre de Loaisa, the commander of this expedition, was a native of Ciudad Real. He must not be confounded with the noted archbishop of Seville, of the same name, whose kinsman he was. The commander died at sea in July, 1526.

[4] This was a priest who accompanied the expedition. After passing the Strait of Magellan, the ship "Santiago," in which Areizaga sailed, was compelled by lack of supplies to direct its course toward the Spanish settlements on the west coast. This priest returned thence to Spain, where the historian Oviedo saw him; the latter compiles from Areizaga's narrative a long account of his adventures, and of Loaisa's voyage as far as the strait (see Oviedo's *Hist. de Indias*, lib. xx, cap. v-xiii).

[5] Hernan Cortés, the conqueror of Mexico, was born in 1485, at Badajoz, Spain. When a mere boy, he resolved upon a military career, and in 1504 went to the West Indies, where he took part in various expeditions, and held some official posts of importance. During 1519-27, Cortes effected the conquest of Mexico and subjugation of its people. Returning to Spain in triumph (1528), he received from the emperor titles and lands, and was made captain-general of New Spain, an office which he held from 1530 to 1541. He sent Saavedra to search for Loaisa (1527); and in 1533 and, 1539 sent out expeditions of discovery—the latter, under Ulloa, ascending the western coast of America to thirty-two degrees north latitude. Cortes died at Seville, December 2, 1547.

[6] Andrés de Urdaneta was born in 1498, at Villafranca de Guipuzcoa. He received a liberal education, but, his parents dying, he chose a military career; and he won distinction in the wars of Germany and Italy, attaining the rank of captain. Returning to Spain, he devoted himself to the study of mathematics and astronomy, and became proficient in navigation. Joining Loaisa's expedition, he remained in the Moluccas, contending with the Portuguese there, until 1535, when he went back to Spain. Going thence to Mexico (about 1540), he was offered command of the expedition then fitting out for the Moluccas, "but on terms which he could not accept." Villalobos was given command of the fleet in his stead, and Urdaneta later (1552) became a friar, entering the Augustinian order, in which he made his profession on March 20, 1553, in the City of Mexico. There he remained until the fleet of Legazpi departed (November 21, 1564) from La Navidad, Mexico, for the Philippine Islands; Urdaneta accompanied this expedition, with four other friars of his order. He was appointed prelate of those new lands, with the title of "protector of the Indians;" he also acted as pilot of the fleet. In the following year he was despatched to Spain, to give an account to the government of what Legazpi had accomplished. This mission fulfilled, he desired to return to the Philippines, but was dissuaded from this step by his friends; he came back to Mexico, where he died (June 3, 1568), aged seventy years. Urdaneta was endowed with a keen intellect, and held to his opinions and convictions with great tenacity. To his abilities and sagacity are ascribed much of Legazpi's success in the conquest of the Philippines. For sketches of his life, see Retana's edition of Martínez de Zúñiga's *Estadismo de las Islas Filipinas* (Madrid, 1893), ii, appendix, pp. 621, 622; and *Dic.-Encic. Hisp.-Amér.*

[7] The "zebra" was the guanaco or South American camel (*Auchenia*). The feathers were those of the South American ostrich (*Rhea rhea*), also called "nandu" and "avestruz" by the natives, or possibly of the smaller species *R. darwini*; both are found as far south as the Strait of Magellan.

[8] It was the custom of many of the writers of these early documents to give in dates only the last two or three figures of the year.

[9] His name was Alvaro de Loaisa.

[10] This was the flagship of Magalhães, which remained at Tidore after the departure of the "Victoria." The "Trinidad" set out for Panama on April 6, 1522, but was compelled by sickness and unfavorable winds to return to the islands. She was then captured by the Portuguese; the ship was wrecked in a heavy storm at Ternate, and her crew detained as prisoners by the Portuguese. Hardships, disease, and shipwreck carried away all of them except four, who did not reach Spain until 1526.

[11] Sebastian Cabot (Caboto) was born about 1473—probably at Venice, although some claim Bristol, England, as his birthplace; he was the son of the noted explorer John Cabot, whom he accompanied on the famous voyage (1494) in which they discovered and explored the eastern coasts of Canada. A second voyage thither (1498), in which Sebastian was commander, proved a failure; and no more is heard of him until 1512, when he entered the service of Fernando V of Spain, who paid him a liberal salary. In 1515 he was a member of a commission charged with revising and correcting all the maps and charts used in Spanish navigation. About this time, he was preparing to make a voyage of discovery; but the project was defeated by Fernando's death (January 23, 1516). In the same year Cabot led an English expedition which coasted Labrador and entered Hudson Strait; he then returned to Spain, and was appointed (February 5, 1518) royal pilot-major, an office of great importance and authority. He was one of the Spanish commissioners at Badajoz in 1524; and in 1526 commanded a Spanish expedition to the Moluccas, which sailed from Spain on April 3 of that year. Arriving at the River de la Plata, Cabot decided to explore that region instead of proceeding to the Moluccas—induced to take

this step by a mutiny among his officers, sickness among his crews, and the loss of his flag-ship. Misfortunes followed him, and he returned to Spain in 1530. Upon the accession of Edward VI to the English throne, Cabot was induced to reenter the English service, which he did in 1548, receiving from Edward promotion and rewards. Nothing is heard of him after 1557; and no work of his is known to be extant save a map of the world, made in 1544. and preserved in the Bibliothèque Nationale, Paris. Regarding his life and achievements, see Nicholls's *Sebastian Cabot* (London, 1869); Henry Stevens's *Sebastian Cabot* (Boston, 1870); Harrisse's *Jean et Sebastian Cabot* (Paris, 1882); F. Tarducci's *John and Sebastian Cabot* (Brownson's translation, Detroit, 1893); Dawson's "Voyages of the Cabots," in *Canad. Roy. Soc. Trans.*, 1894, pp. 51-112, 1896, pp. 3-30, 1897, pp. 139-268; Dionne's *John and Sebastian Cabot* (Quebec, 1898); Winship's *Cabot Bibliography* (London, 1900).

[12] João Serrão, one of Magalhães's captains, was elected, after the latter's death, to the command of the fleet. On May 1, 1521, he was murdered by natives on the island of Cebú, having been treacherously abandoned there by his own companions.

[13] The "Santiago," in which was the priest Areizaga (see note 3).

[14] Saavedra died at sea in the month of December, 1529. See Navarrete's *Col. de viages*, v, p. 422.

[15] Lib. xx of Oviédo's *Hist. de Indias* is devoted to the relation of these early expeditions to the Philippines of Magalhães, Loaisa, and Saavedra.

[16] Ruy Lopez de Villalobos is said to have been a man of letters, licentiate in law, and born of a distinguished family in Malaga; he was brother-in-law of Antonio de Mendoza, who (then viceroy of New Spain) appointed him commander of the expedition here described. Departing from

Navidad, Mexico (November 1, 1542), he reached Mindanao on February 2 of the following year; he was the first to make explorations in that island. It was he who bestowed upon those islands the name Filipinas (Philippine), in honor of the crown-prince Don Felipe of Spain, afterward known as Felipe II; he conferred this appellation probably in 1543. The Portuguese, then established in the Moluccas, opposed any attempt of Spaniards to settle in the neighboring islands, and treated Villalobos as an enemy. After two years of hardships and struggles, he was obliged to place himself in their hands; and, departing for Spain in one of their ships, was seized by a malignant fever, which terminated his life at Amboina, on Good Friday, 1546. In his last hours he was spiritually assisted by St. Francis Xavier (styled "the Apostle of the Indies"). For biographical material regarding Villalobos, see *Dic.-Encic. Hisp.-Amér.*, article: "Lopez de Villalobos;" Galvano's *Discoveries of the World* (Hakluyt Society edition), pp. 231-238; and Buzeta and Bravo's *Diccionario Filipinas*; Retana's sketch, in his edition of Zúñiga's *Estadismo*, ii, p. 593*.

[17] Pedro de Alvarado was, after Hernán Cortés, the most notable of the early Spanish conquerors of New Spain. He was born at Badajoz, about 1485, and came to America in 1510. He served with distinction in many wars and expeditions during the conquest, and received from Cortés various important commands. Among these was the post of governor and captain-general of Guatemala (1523); in the following year he founded the old city of Guatemala, which later was destroyed by the eruption of a volcano. In 1534 he planned to send an expedition to the Pacific islands; but news of the discovery of Peru and the conquests of Pizarro caused him to defer this enterprise, and he sent instead troops to Peru, fitted out through his extortions on the inhabitants of his province. Afterward he planned, with Mendoza, the expedition conducted by Villalobos, but never knew its outcome; he died on July 4, 1541, from wounds received while attacking an Indian village.

[18] Antonio de Mendoza belonged to a family of distinction, and was born at Granada, toward the close of the fifteenth century. He was the first viceroy of New Spain, being appointed April 17, 1535. He was beloved by the people for his good government; he made wise laws, opened and worked mines, coined money, founded a university and several colleges, and introduced printing into Mexico. He despatched two maritime expeditions of discovery—that of Villalobos, and another to California; and made explorations by land as far as New Mexico. In 1550 he was sent as viceroy to Peru, and administered that office until his death, which occurred July 21, 1552, at Lima.

[19] The title of Marquis del Valle de Oaxaca was conferred upon Hernán Cortes, July 6, 1529. He had taken great interest in the exploration of the Pacific Ocean and its coasts; and had spent on expeditions sent out with that object no less sum than three hundred thousand pesos (Helps's *Life of Cortés*, p. 282.)

[20] This compares favorably with the homestead law of the United States. The institution mentioned in the next sentence apparently was peculiar to Spanish colonial administration in America. Its origin was in the *repartimiento*, which at first (1497) meant a grant of lands in a conquered country; it was soon extended to include the natives dwelling thereon, who were compelled to till the land for the conqueror's benefit. In 1503 *encomiendas* were granted, composed of a certain number of natives, who were compelled to work. The word *encomienda* is a term belonging to the military orders (from the ranks of which came many officials appointed for the colonies), and corresponds to our word "commandery." It is defined by Helps (practically using the language of Solorzano, the eminent Spanish jurist), as "a right conceded by royal bounty, to well-deserving persons in the Indies, to receive and enjoy for themselves the tributes of the Indians who should be assigned to them, with a charge of providing for the good of

those Indians in spiritual and temporal matters, and of inhabiting and defending the provinces where these *encomiendas* should be granted to them." Helps has done good service to historical students in recognizing the great importance, social and economic, of the *encomienda* system in the Spanish colonies, and its far-reaching results; and in embodying the fruits of his studies thereon in his *Spanish Conquest in America* (London, 1855-61), to which the reader is referred for full information on this subject; see especially vols. iii, iv.

[21] See the Treaty of Zaragoza, vol. i, p. 222.

[22] This was the dust or residue of the filings from the various assays and operations in the founding of metals, and was usually applied to the benefit of hospitals and houses of charity. It belonged to the king, and was placed under lock and key, one key in possession of the founder and the other of the king's factor.—Note by editor of *Col. doc. inéd.*

[23] This name is variously spelled Labezaris, Labezares, Labezarii, Lavezarii, and in other ways. This man occupied an important place in Legazpi's expedition, and was later governor of the Philippine Islands. Several documents by him will appear in this series.

[24] A note by the editor of *Doc. inéd.* says that the religious sent in this expedition were Fray Jerónimo de San Estevan, prior of the Augustinians; Fray Nicolás de Perea, Fray Alonso de Alvarado, and Fray Sebastián de Reina.

[25] A small vessel with lateen sails.

[26] This was the Portuguese governor of Ternate and the Moluccas. The correspondence may be found in the archives of Torre do Tombo.

[27] Apparently a reference to the islands Sarangani and Balut, off the southern point of Mindanao. Regarding Mazaua (Massava, Mazagua) Stanley cites—in *First Voyage by Magellan* (Hakluyt Society Publications, no. 52), p. 79—a note in Milan edition of Pigafetta's relation, locating Massaua between Mindanao and Samar. It is doubtless the Limasaua of the present day, off the south point of Leyte.

[28] A map by Nicolaus Visscher, entitled *Indiae Orientalis nova descriptio* (undated, but probably late in the seventeenth century) shows "Philippina al Tandaya," apparently, intended for the present Samar; but Legazpi's relation of 1565 (*post*) would indicate that Tandaya was the modern Leyte. Ortelius (1570) locates the Talao Islands about half-way from Mindanao to Gilolo they are apparently the Tulour or Salibàbo Islands of today.

[29] The names in brackets are the modern appellations (see *Col. doc. inéd. Ultramar*, ii, pp. xvi, xvii).

[30] Antonio Galvano explains this by declaring that he had in 1538 (being then the Portuguese governor of the Moluccas) sent Francisco de Castro to convert the natives of the Philippines to the Catholic faith. On the island of Mindanao he was sponsor at the baptism of six kings, with their wives, children, and subjects. See Galvano's *Tratado* (Hakluyt Society reprint of Hakluyt's translation, *Discoveries of the World*, pp. 208, 233).

[31] See *Col. doc. inéd. Ultramar*, ii, p. xvii.

[32] On old maps Abuyo; the aboriginal appellation of the island of Leyte (Retana-edition of Combés's *Mindanao*, p. 749).

[33] Probably the cannon belonging to Magalhães's ship "Trinidad," which the Portuguese seized in October, 1522; they had built a fortified post

on the island of Ternate in the preceding summer, their first settlement in the Moluccas. Ternate, Tidore, Mutir, and two others, are small islands lying along the western coast of Gilolo; on them cloves grew most abundantly when Europeans first discovered the Moluccas.

[34] Bisayas or Visayas is the present appellation of the islands which lie between Luzón and Mindanao.

[35] This document is printed in both the original text and English translation.

[36] Luis de Velasco succeeded Antonio de Mendoza as viceroy of New Spain, taking his office in November, 1550, and holding it until his death (July 31, 1564). He was of an illustrious family of Castile and had held several military appointments before he became viceroy. He exercised this latter office with great ability, and favored the Indians to such an extent that he was called "the father of the Indians." He died poor and in debt, and was buried with solemnity in the Dominican monastery at the City of Mexico.

[37] A small vessel used as a tender, to carry messages between larger vessels, etc.

[38] The Treaty of Zaragoza, *q.v.* vol. i, p. 222.

[39] This opinion is correct, referring as it does to the five islands lying along the coast of Gilolo.

[40] Miguel Lopez de Legazpi who, with Andrés de Urdaneta, rediscovered and conquered the Philippine Islands, was born in Zubarraja in Guipúzcoa in the early part of the sixteenth century, of an old and noble family. He went to Mexico in 1545, where he became chief clerk of the *cabildo* of the City of Mexico. Being selected to take charge of the

expedition of 1564, he succeeded by his great wisdom, patience, and forbearance, in gaining the good will of the natives. He founded Manila, where he died of apoplexy August 20, 1572. He was much lamented by all. He was succeeded as governor of the Philippines by Guido de Lavezaris.

[41] Navarrete says (*Bibl. Marit.*, tomo ii, p. 492), that Legazpi was fifty-nine years old when the fleet set sail in 1564, which makes him six years older than the age given above. See *Col. doc. inéd. Ultramar*, tomo ii, p. 116, note.

[42] The Ladrones or Marianas number in all sixteen islands, and are divided into two groups of five and eleven islands respectively. They extend north and south about nine hundred and fifty kilometers, lying between thirteen degrees and twenty-one degrees north latitude, and one hundred and forty-eight degrees and one hundred and forty-nine degrees forty minutes longitude east of Madrid. They are but thinly populated; their flora resembles that of the Philippines. The largest and most important of these islands, Guam, is now the property of the United States.

[43] Although this allusion cannot well be identified, it indicates some episode of the great eagerness and readiness for western discovery then prevalent in France. Cartier's explorations (1534-36, and 1540-43), and later those of Jean Allefonsce, had already been published to the world; and maps of the eastern coast of North America showed, as early as 1544, the great St. Lawrence River, which afforded an easy entrance to the interior, and might readily be supposed to form a waterway for passage to the "Western Sea"—especially as New France was then generally imagined to be a part of Asia; Japan and China being not very far west of the newly-discovered coast.

[44] These two vessels were rechristened "San Pedro" and "San Pablo" before actually sailing. The admiral of the fleet was to have been Juan de

Carrión; but he was left behind because of his dissensions with Urdanetá, and Mateo del Saz fulfilled his duties.

[45] The Theatins were a religious congregation founded in Italy (1524) by Gaëtano de Tiene and Giovanni Pietro Caraffa, archbishop of Theato (the modern Chieti)—who afterward became pontiff of Rome, under the title of Paul IV. Their object was to reform the disorders that had crept into the Roman church, and restore the zeal, self-sacrifice, and charity of apostolic days. They would neither own property nor ask alms, but worked at various trades and were thus maintained, with voluntary offerings from the faithful. During the next century they spread into other European countries (where they still have many houses), and undertook missions in Asia.

[46] The total cost of the preparation of Legazpi's fleet was 382,468 pesos, 7 tomines, 5 grains of common gold; and 27,400 pesos, 3 tomines, 1 grain of gold dust. These expenses cover the period from December 13, 1557, until March 2, 1565. See *Col. doc. inéd. Ultramar*, iii, no. 36, pp. 461-463.

The gold dust here mentioned (Spanish *oro de minas*) means gold in the form of "gravel" or small nuggets, obtained usually from placers, or the washings of river-sands. The "common" gold (*oro común*) is refined gold, or bullion, ready for coinage.

[47] This vessel, after trying to find—or at least making such a claim—the fleet in Mindanao and other islands, returned to New Spain, anchoring at Puerto de la Navidad August 9, 1565. A relation by its captain Alonso de Arellano, gives an account of this voyage (published in *Col. doc. inéd. Ultramar*, iii, no. 37, pp. 1-76). Testimony as to the truth of this relation is given under oath by its author, his pilot Lope Martin, and others. It is quite evident throughout that it was written with the hope of explaining

satisfactorily the "San Lucas's " sudden disappearance and failure to rejoin the flagship. Accounts of islands passed by the vessel are given and the various and frequent mishaps of wind and wave detailed at length. On January 8 an island was reached where the people "were afraid of our ship and of us and our weapons. They are well proportioned, tall of stature, and bearded, their beards reaching to their waists. The men wear their hair long like women, neatly combed and tied behind in a knot. They are greedy, very treacherous, and thoroughly unprincipled.... They are Caribs, and, I understand, eat human flesh. They are warlike, as it seemed to us, for they were always prepared, and they must carry on war with other islands. Their weapons are spears pointed with fish bones, and masanas [a wooden weapon, generally edged with sharp flint, used by the early Mexican and Peruvian aborigines.]..... They are much given to hurling stones from slings, and with very accurate aim. They are excellent swimmers and sailors. We called this island Nadadores [Swimmers], because they swam out to us when we were more than a league from the island." A mutiny sprang up after reaching the Philippines, but was checked. Arellano claims that he left the prescribed tokens of his visit in Mindanao. The *patache* reached Puerto de la Navidad on August 9, after its crew had suffered many hardships and much sickness. Legazpi, quite naturally, was much displeased at the evident desertion of the "San Lucas" and caused action to be taken against Arellano and Lope Martin, by Gabriel Diaz of the Mexican mint. This latter presented various petitions before the *Audiencia* of Mexico, detailing the charges and asking investigation. The charges were desertion,— "in which the loss he occasioned cannot be overestimated," because this vessel was intended for a close navigation of the islands and their rivers and estuaries, which the larger vessels could not attempt,—assuming to himself powers of jurisdiction that belonged to Legazpi as general of the expedition,—executing summary justice on two men (causing them to be thrown overboard),—cruelty, and "many other grave and serious offenses;" which

"he had committed in company with the pilot and others." Diaz asked that Arellano be made to render an account to Legazpi and to serve for his pay, as he had served in the expedition but ten days. However just the demand for an investigation, it was never made, which was probably due to Arellano's influence with the court in Spain. The only notice that appeared to be taken of the petitions was a request from the *Audiencia* that Diaz show his authority to act in the case, which he had showed already in the petitions. The voyage of the "San Lucas" is called by the editor of *Col. doc. inéd. Ultramar*, "one of the boldest registered in the history of navigation." See the above series, tomo ii, pp. 222, 223; and tomo iii, pp. v-xviii, and 1-76.

[48] See the notarial attestation of the taking of possession of Barbudos in *Col. doc. inéd. Ultramar*, iii, pp. 76-79. This was apparently one of the Marshall Islands.

[49] On January 26, 1565, Legazpi in person took possession of the Ladrones, for the Spanish crown. This possession was made in the island of Guam, before Hernando Riquel, government notary, and with all the necessary formalities. The witnesses were "Fray Andres de Urdaneta, prior; the master-of-camp, Mateo del Sanz; the accountant, Andres Cauchela; the factor, Andres de Mirandaola; the chief ensign, Andres de Ybarra; Geronimo de Moncon, and many others." See the record of possession, *Col. doc. inéd. Ultramar*, iii, pp. 79-81.

[50] Cf. with this the thievishness, and dexterity therein, of the Huron Indians, in *Jesuit Relations* (Cleveland reissue), v, pp. 123, 241, 243, and elsewhere.

[51] This island is styled variously Guam, Goam, Guan, and Boan (see *Col. doc. inéd. Ultramar*, ii, p. 243). The United States government now uses it as a coaling station.

[52] From an official document drawn up by Hernando Riquel, it appears that the fleet reached the Philippines in very poor condition, due to insufficient and careless preparation. In response to a petition signed by the royal officials "Guido de la Vaçares [Lavezaris], Andres Cauchela, and Andres de Mirandaola," that testimonies be received from certain officers and pilots of the fleet, in regard to its poor condition, Legazpi ordered such depositions to be taken, which was done on May 23, 1565. These testimonies show that the fleet left Puerto de la Navidad with insufficient crews, marine equipment, artillery, and food, in consequence of which great sufferings had been and were still being endured. It was testified "that the provisions of meat, lard, cheese, beans and peas, and fish lasted but a short time, because of putrefying and spoiling by reason of having been laid in many days before sailing." See *Col. doc. inéd. Ultramar*, iii, pp. 305-318.

[53] The notarial testimony of this taking of possession will be given in this volume, p. 167.

[54] Probably the island of Leyte. See *Col. doc. inéd. Ultramar*, ii, p. 258.

[55] This ceremony of blood friendship will be explained in later documents. It was characteristic of Malayan peoples. The present Cabalian is in the extreme S.E. part of Leyte.

[56] Camiguin, north of Mindanao, and north by west from Butuan Bay.

[57] The testimonies of the "wrongs inflicted on the natives in certain of the Philippines, under cover of friendship and under pretext of a desire to trade," by Portuguese from the Moluccas, and the injuries resulting therefrom to the Spaniards, are recounted in *Col. doc. inéd. Ultramar*, iii, pp. 284-305.

[58] Probably in pique because Urdaneta's advice to colonize New Guinea had been disregarded, and because these islands were, as Urdaneta declared, in Portugal's demarcation.

[59] The notarial memorandum of the finding of the Niño Jesús will be found in *Col. doc. inéd. Ultramar*, iii, pp. 277-284. It gives Legazpi's testimony concerning the discovery, and his appointment of the date of finding as an annual religious holiday, as well as the testimonies of the finder, Juan de Camuz, and of Esteban Rodriguez, to whom Camuz first showed the image (which is described in detail). Pigafetta relates {*First Voyage of Magellan*, pp. 93, 94) that he gave an image of the Infant Jesus to the queen of Cebú, April 14, 1521—evidently the same as that found by Legazpi's men.

[60] On this day Legazpi took formal possession of the island of Cebú and adjacent islands for Spain. The testimony of Hernando Riquel, government notary, of this act appears in *Col. doc. inéd. Ultramar*, iii, pp. 89, 90.

[61] This image is still preserved in the Augustinian convent at Cebú; a view of it is presented in this volume.

[62] The preceding relation says three hours.

[63] Probably the casava root.

[64] The native race inhabiting Guam is called Chamorro.

[65] This was the island of Negros (*Col. doc. inéd. Ultramar*, ii, p. 410).

[66] The pilot makes use of the familiar second person singular forms throughout this relation.

[67] His relation of this voyage, continued until a few days before his death), is preserved in the Archivo general de Indias, at Seville. See *Col. doc. inéd. Ultramar*, ii, p. 456.

[68] His full name. He was a brother of Captain Juan de la Isla. See *Col. doc. inéd. Ultramar*, vol. ii, p. 458.

[69] The number in the printed document is one thousand three hundred and seventy. This must be an error for one thousand eight hundred and seventy, as so great a difference between the three maps would hardly be likely to occur.

[70] This relation may be considered as the continuation of that which records the voyage from New Spain, until the departure of the "San Pedro" from Cebú. Neither is signed, but the former seems to have been written by a military officer, as he speaks in one place of "the men of my company."

[71] Cf. the Chinese belief, and the reverence of the American Indian for his ancestors.

[72] Cf. the burial rites of North American tribes, as described in the *Jesuit Relations* (see Index, article: Indians).

[73] This chief's name is also spelled in this relation Mahomat.

[74] The *fanéga* is a measure of capacity that was extensively used throughout Spain and the Spanish colonies, and in the Spanish-American republics; but it is now largely superseded by the measures of the metric system. Its value varied in different provinces or colonies. Its equivalents in United States (Winchester) bushels are as follows: Aragón, 0.64021; Teruel (Aragón), 1.23217; Castile, 1.59914; Asturias, 2.07358; Buenos Aires, 3.74988; Canary Islands, 1.77679 (struck), 2.5 (heaped). The *fanéga* of

Castile is equivalent to 5.63 decaliters. The name was also applied to the portion of ground which might be sown with a *fanéga* of grain.

[75] A detailed relation of the voyage of the "San Gerónimo" was written by Juan Martinez, a soldier, being dated Cebú, July 25, 1567. It is given in *Col. doc. inéd. Ultramar*, ii, no. 47, pp. 371-475. From the very first the insubordination of the pilot Lope Martin was manifest, who said to the easy-going captain. "If you think you are going to take me to Cebú, you are very much mistaken; for as soon as he saw me there, the governor would hang me."

[76] In regard to this use of precious gums, see *East Africa and Malabar* (Hakluyt Society Publications, no. 35), pp. 31, 230; in that text *yncenso* is incorrectly translated "wormwood."

[77] Document no. xli, pp. 244-276, tomo iii, consists of memoranda made by Hernando Riquel, notary of the expedition. These were drawn up by order of Legazpi, and relate to occurrences after the fleet reached Cabalian (March, 1565), until the resolution to colonize in Cebú. They are mainly concerned with negotiations with the natives, and are fully attested; but contain nothing additional to the matter in the relations.

[78] A tax paid to the monarch by those not belonging to the nobility.

[79] See note 18, *ante*, on *repartimientos* and *encomiendas*.

[80] Counselors of the provincial or other high official, whose advice was considered by him in all important affairs.

[81] Ours: a familiar term in use by members of a religious order, referring to their fellows therein.

[82] This island is called by the French pilot Pierres Plun, in his relation, Zibaban, Zibao, and Zibaba. La Concepción calls it (*Historia*, vol. i, p. 331) Ybabao. The editor of *Cartas de Indias* conjectures this to be the island of Libagas (near Mindoro); but that would not agree with the statements made about it in various documents. Retana (*Zúñiga*, vol. ii, p. 383*) says that Cibabao is Samar, which is, however, not an altogether satisfactory identification.

[83] This name is given at Arrezun in *Col. doc. inéd. Ultramar*.

[84] In *Col. doc. inéd. Ultramar*, this name is given as Francisco Escudero de la Portolla.

[85] In another document, dated February 20, 1565 (published in *Col. doc. inéd. Ultramar*, iii, pp. 81, 82), Legazpi personally verified the possession taken by Ybarra, Andrés de Urdaneta being witness thereto. On that day Legaspi took possession not only of Cibabao but of the adjacent islands.

[86] In *Col. doc. inéd. Ultramar* (p. 336), this name is given as "ypolito atanbor."

[87] Many of these names are signed with a *rubrica* or flourish, which, like the French *paraphe*, was customary as a protection against forgery.

[88] Apparently referring to the president of the *Audiencia* of New Spain, although the formal address is to that body as a whole.

[89] This list does not accompany the letter, either in the Sevilla archives or in *Doc. inéd.*; but see Bibliographical Data for this document, at end of this volume.

[90] The Spanish *quintal* varied in different provinces and colonies as follows (equivalents given in U.S. pounds): Aragón, 109.738476; Castile (and Chile), 101.6097; Asturias, 152.281185; Catalonia, 87.281; Valencia (old measure), 109.728476; Buenos Aires, 101.4178. This unit of weight has been generally replaced by those of the metric system.

[91] Evidently this word is used in its early sense, of one who practiced blood-letting, etc., as the barber often performed duties now strictly pertaining to the physician.

[92] The *arroba* was equal to four *quintals*.

[93] The *braza* was a measure of length, equivalent to 16.718 decimeters, or 1.82636 yards (U.S.) The name originated (like the French *brasse*) in the primitive use of the human arm as a measure of length. The *braza* (square) was used in the Philippines as a measure of surface, being equivalent to 36 Spanish, or 30.9168 English, square feet.

[94] A short dagger with a broad blade.

[95] In the relation published in *Col. doc. inéd. Ultramar*, ii, pp. 265-277, where these transactions are recounted in greater detail, these names are spelled Camutrian (Camutuan, Camotuan), and Maletec, respectively.

[96] Apparently the same as the Massaua of earlier documents.

[97] In the relation cited above, note 92, the name of this island is spelled (p. 277) Camiguinin.

[98] The second ship of the fleet, "San Pablo." The "San Pedro" or flagship was spoken of as the *capitana*.

[99] A veil of thin gauze worn by the Moors. Evidently the term is used in this connection, as the Mohammedans of these islands were called Moros (Moors) by the Spaniards.

[100] Apparently referring to the island of Negros.

[101] The word is *escaupiles*, which was a species of ancient Mexican armor.

[102] An equestrian exercise with reed spears.

[103] The actual date of departure was the twenty-first.

[104] See note 43, *ante*, as to the cost of the fleet. The reference in the text is apparently to some Mexican mint or mine.

[105] This vessel was the "San Lucas," commanded by Alonso de Arellano; see account of its adventures in "Expedition of Legazpi."

[106] A reference to the relation sent to Felipe II by Legazpi—probably by the "San Pedro."

[107] A measure for grain containing one-third of a *fanega*.

[108] An error naturally made, in those early days of acquaintance with the Philippines, since the island of Mactan (Matan), where Magalhães was slain, lies near the coast of Cebú. According to the *U.S. Philippine Gazetteer* (p. 69), the archipelago comprises twelve principal islands and three groups, with one thousand five hundred and eighty-three dependent islands.

[109] Apparently meaning the "San Pedro," which was despatched from Cebú by Legazpi on June 1, 1565. It reached Navidad on October 1, and

probably arrived at Seville in May or June, 1566.

[110] The *concha* and *blanca* were ancient copper coins of the value of one-half and three *maravedis*, respectively. The coins above-mentioned evidently resembled these in size.

[111] The "San Geronimo."

[112] Throughout this document, the statements and comments of the notaries will be enclosed in parentheses, to enable the reader more easily to separate the various letters and writs from one another.

[113] The *caracoa* is a large canoe used by the Malayan peoples—"with two rows of oars, very light, and fitted with a European sail, its rigging of native manufacture" (*Dic. Acad.*). According to Retana (*Zúñiga*, ii, p. 513*), the word *caracoa* is not to be found in Filipino dictionaries.

[114] Referring to the rule of Sebastião, the infant king of Portugal, and of his grandmother Catarina, regent during his minority.

[115] Javelins: the Portuguese word is *azagayas*, with which cf. *assagai*, the name of a like weapon among the Kaffirs of Africa.

[116] This phrase (meaning "nothing paid") is no longer used in notarial documents. Sometimes when documents are legalized by the Mexican Legation at Washington, the fee is not paid there, but is to be paid at Mexico on presentation of the document there; the secretary of the Legation accordingly writes on it, *No se pagaran derechos*—perhaps a similar procedure to that noted in the text.—*Arthur P. Cushing* (consul for Mexico at Boston).

[117] This arose from the fact that the Portuguese navigated eastward from Europe to reach their oriental possessions, while the Spaniards

voyaged westward. The reckoning of the Spaniards in the Philippines was thus a day behind that of the Portuguese. This error was corrected in 1844, at Manila and Macao respectively. See vol. i, note 2.

[118] Sevilla, one of the centers of Mahometan power in Spain, was besieged for more than two years (1246-48) by Fernando III of Castilla, who finally captured it. The expedition against Tunis here referred to was undertaken by Carlos I of Spain (1535). to restore Muley Hassan, the Mahometan king of Tunis, to his throne, whence he had been driven by Barbarossa, King of Algiers; the usurper was expelled, after a brief siege.

[119] This is followed by the certification of the copyist who transcribed this document for the South American boundary negotiations between Spain and Portugal in 1776, at Paris. It reads thus: "I, Don Juan Ignacio Cascos, revisor and expert in handwriting and old documents, and one of those appointed by the Royal and Supreme Council of Castilla, made the foregoing copy, and collated it with the original, which was written on twenty-four sheets of ordinary paper, and signed, each in his own hand, by Miguel Lopez de Legazpi and Fernando Riquel. Madrid, the twenty-sixth day of August in the year one thousand seven hundred and seventy-six.

Juan Ignacio Pascos."

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